



**ESTABLISHMENTS CODE
OF
THE GOVERNMENT OF
THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

Volume I

*Issued by the Secretary of the Ministry of Public Administration
under the authority of the Cabinet of Ministers*

2013

THE ESTABLISHMENTS CODE

VOLUME I

This volume of the Establishments Code is issued with the approval of the Cabinet of Ministers. This Volume which was originally issued on 01.09.1985 is hereby reissued with the inclusion of all Public Administration Circulars issued with the approval of the Cabinet of Ministers from 01.09.1985 to 31.12.2012.

2. With effect from 02.04.2009, the Procedural Rules of the Public Service Commission published in the Gazette Extraordinary No. 1589/30 dated 20.02.2009 which are effective from the aforesaid date shall be made applicable to the officers in the Central Government in connection with the provisions indicated in Chapter I to V of this Volume.

3. Doubts and issues in interpretation and matters not covered by these provisions shall be referred to the Director General of Establishments.

P.B. Abeykoon

Secretary

Ministry of Public Administration
and Home Affairs

08th July 2013.

CONTENTS

<i>Chapter No.</i>	<i>Title</i>
I.	General
II.	Recruitment Procedure and Appointment
III.	Transfers
IV.	Grant of Monthly Pay, Temporary Status, Permanent Status and Pensionability
V.	Release, Reversion and Termination of Employment
VI.	Service Records, Reports and Certificates
VII.	Salaries
VIII.	Overtime, Holidays and Holiday Pay and Allowances
IX.	Fees
X.	Payments to Jurors, Witnesses, Unofficial Magistrates, Sudden Death Inquirers and for Miscellaneous Services
XI.	Reimbursement and Compensation
XII.	Leave
XIII.	Railway Warrants
XIV.	Travel on Duty within the Island
XV.	Travel abroad for Study, Training or on Duty
XVI.	Holiday Travel
XVII.	Concessionary Season Tickets
XVIII.	Official Residence
XIX.	Government Quarters
XX.	Holiday Bungalows
XXI.	Protective Clothing and Uniforms
XXII.	Welfare Amenities
XXIII.	Special Concessions and Conditions regarding Officers Suffering from Certain Types of Illnesses
XXIV.	Salary Loans and Advances
XXV.	Concessions to Members of Trade Unions
XXVI.	Medical Attention and Medical Examination of Officers for Physical Fitness
XXVII.	Channels of Communication
XXVIII.	Administrative Procedures
XXIX.	Acquisition of Land, Investments and Mortgages
XXX.	Right of Government over its Officers
XXXI.	Exercise of the Rights of Association and Expression of Opinion
XXXII.	Exercise of Political Rights
XXXIII.	Legal Advice and Legal Actions
XXXVI.	Release of Public Officers to the Welfare Societies of Public Officers

CHAPTER I

GENERAL

1. Definitions
2. Amendments to the Code
3. Distribution
4. Exercise of Powers

CHAPTER I

GENERAL

1. Definitions

"Appointing Authority " means the Cabinet of Ministers, or a Secretary to a Ministry or a Head of a Department or other Public Officer to whom the Public Service Commission has delegated its powers of making appointments in terms of Article 58(1) of the Constitution.

"Appointment" means the conferment of any paid office in the Public Service, as a first appointment to a person not already in the Public Service subject or not subject to subsequent confirmation. If not, conferment of any paid office in the Public Service to a person who is already in the Public Service either as a subsequent appointment or a promotion or a transfer involving an increase of salary or any change in status (eg: the grant of temporary or permanent status to a casual officer or permanent status to a temporary officer) subject or not subject to subsequent confirmation.

"Citizen" means a citizen of Sri Lanka as defined in the Constitution of the Democratic Socialist Republic of Sri Lanka.

"Combined Service" means the Public Management Assistants' Service, Government Translators' Service, Sri Lanka Librarians' Service, Sri Lanka Information and Communication Technology Service, Development Officers' Service, Combined Drivers' Service for Motor Vehicle Drivers in the Public Service and Office Employee's Service.

"Effective Date" means the date from which a salary should be paid as approved by the relevant authority.

"Emoluments of an Officer" means the salary, duty allowance, personal allowance and any other allowances, not being in the nature of a re-imbursement such as travelling, transport or combined allowances.

"Fees" means all remuneration from whatever source, except salary and approved allowances.

"Field Officer" means a Public Officer whose work lies mainly in the field, is not confined to one particular place and involves regular attendance at worksites, whose duties are of a supervisory nature and who is expected to undertake inspections and visits.

"Gender" Unless the context otherwise requires, any reference to the masculine gender includes the feminine gender and any reference to the wife of an officer, applies to the husband of a female officer.

"Head of Department" means a Head of Department listed in Appendix 1. "Head of Department" in the case of a Ministry means the Secretary to the Ministry.

"Incremental Date" means the calendar day on which an increment falls due. If an increment falls due on the 29th of February the incremental date will alternate between 1st March, and 29th February.

"Incremental Period" means the period commencing from the date on which an increment is granted or a salary step is decided, to the date immediately preceding the date on which the next increment is due. This is normally a period of one year unless the incremental date is altered in accordance with this Establishments Code.

"Mileage" means the reimbursement for expenditure incurred on travel and transport by road on duty and includes Car Mileage, Motor Cycle Mileage, or Bicycle Mileage. It is determined at the appropriate rate relevant to the number of miles of travel or transportation.

Minister concerned-

- (a) "Minister concerned" and "Ministry concerned" respectively mean the Minister and Ministry in charge of the Department or other Institution in which the Public Officer concerned is serving,
- (b) "Minister concerned" in the case of an officer of a Combined Service means the Minister in charge of the subject of Public Administration.
- (c) "Minister concerned" subject to (d) below means the President, in the case of a Department not under a Ministry for which the appointments are made by the President.
- (d) "Minister concerned" in the case of the office of the Leader of Parliament means the minister appointed as the Leader of Parliament.

"Officer at primary level" means a Public Officer whose fixed salary or the initial of whose monthly salary is less than Rs. 12,470.00

"New Entrant" for the purpose of the Official Language Policy means, an officer who was first appointed to a post in the Public Service on or after September 24th, 1956, and who is not deemed to be an "Old- Entrant".

"Officer" means a "Public Officer" as defined below.

A person who holds any paid office under the Republic, other than a Judicial Officer but does not include -

- I. the President,
- II. the Speaker,
- III. a Minister,
- IV. a Deputy Minister,
- V. a Member of Parliament,
- VI. a Member of the Constitutional Council,
- VII. a Member of the Election Commission,
- VIII. a Member of the National Police Commission,
- IX. a Member of the Judicial Service Commission,
- X. a Member of the Public Service Commission,
- XI. the Secretary General of Parliament,
- XII. Commissioner General of Elections,
- XIII. a Member of President's Staff,
- XIV. a Member of the staff of the Secretary General of Parliament,
- XV. an Officer who is appointed to the Election Commission by the Election Commission,
- XVI. a Member of Army or Navy or Air Force,
- XVII. an Employee of a Public Corporation, a Statutory Board or an Institution vested in the Government.

"Promotion" means the appointment, in accordance with an approved Scheme of Recruitment, of an officer holding a post in the Public Service to a post, class or grade which is superior to the post he holds, or the class or grade to which he belongs.

Post -

"A Comparable Post" is one which has at least the same incremental rate and a maximum salary not less than that of the post with which it is compared.

"An Inferior Post" is one, which has a lower initial salary, a lower incremental rate and lower maximum salary, or any two of them lower than those of the post with which it is compared.

"A Superior Post " is one, which has at least the same initial salary and the same incremental rate and a higher maximum salary than the post with which it is compared. A post, which has a fixed salary higher than or equal to the maximum salary of the post with which it is compared, is also a superior post.

Chapter I]

"Public Corporation" means any Corporation, Board or other body which was or is established by or under any written law other than the Companies Ordinance, with funds or capital wholly or partly provided by the Government by way of grant, loan or otherwise.

"Public Holiday" means Sunday, Full Moon Poya Day or any other day declared as a Public Holiday under Act No. 29 of 1971.

"Re-employment" means an appointment to a post in the Public Service of an officer who has left the Public Service.

"Reinstatement" means the restoration to public office of an officer who had been interdicted or dismissed or whose probationary appointment had been terminated or who had vacated office.

"Salary" means the consolidated salary.

Revision

"Scheme of Recruitment" means a Scheme approved by the Cabinet of Ministers or the Director General of Establishments for the said purpose. (If it is after 02.04.2009, it shall be a Scheme which was approved by the Public Service Commission.)

Secretary -

- (a) With reference to a Department, means the Secretary to the Ministry in charge of that Department.
- (b) With reference to a post or officer means the Secretary to the Ministry in charge of the Department to which that post or officer belongs.
- (c) In the case of a Department not grouped under a Ministry, refers, unless otherwise specified, to the Head of that Department.

In the case of the salary of a "Staff Officer" clarifications made under the new salary structure which is effective from 01.01.2006 are applicable.

"Status" in regard either to a post or an officer refers to whether the post or officer is casual, temporary, permanent or pensionable.

"Study or Training" means a scholarship, fellowship, study tour, observation tour, travel grant, seminar, or any other award which contains an element of training and/or enhances an officer's qualifications, knowledge or experience.

"Officer at Secondary Level" means an officer who is not a Staff Officer, and the initial of whose monthly salary is not less than Rs. 13,120.00

"Transfer" means the moving of an officer from one post to another post or from one station to another station in the same service or in the same grade of the same Ministry or Department with no change in salary.

"Urban Authority" means a Municipal Council or an Urban Council.

2. Amendments to the Establishments Code

2.1 All amendments to the Establishments Code will be serially numbered and will be issued by the Secretary to the Ministry in charge of the subject of Public Administration.

2.2 On receipt of any amendment slip, it should be attached to the Register of Amendments by amending the relevant term or the sentence in ink, writing the number of the amendment slip in the margin and by keeping a note in the proper order in the Register of Amendments.

2.3 Where an amendment slip is issued it should be inserted in the appropriate place and a note should be kept in the Register of Amendments; the old pages should be removed and it should be enclosed in the loose - leaf binder of script alterations for future reference by removing the old pages.

2.4 An amendment will be effective from the date of issue, as shown on the amendment, unless otherwise stated.

2.5 The Head of a Department or Sub-office should nominate an officer to be responsible for maintaining the inventory of copies of the Establishments Code issued within that office, and for keeping them up-to-date by the insertion of all amendments.

3. Distribution

3.1 The Head of a Department or a sub office should maintain a Register showing the distribution of volumes of the Establishments Code within their offices.

3.2 Additional copies should be purchased from the Superintendent, Government Publications Bureau.

4. Exercise of Powers

4.1 Any authority to be exercised or approval to be given by the Director General of Establishments may be exercised or given by the Secretary to the Ministry in charge of the subject of Public Administration.

CHAPTER II

RECRUITMENT PROCEDURE AND APPOINTMENT

1. General
2. Scheme of Recruitment
3. Advertisement
4. Power of Appointment
5. Procedure for making an appointment and a promotion
6. Prior conditions to be satisfied for appointment or promotion
7. Disqualification for appointment to the Public Service
8. Letter of Appointment
9. Re-employment
10. Procedure on appointment
11. Probation
12. General Conditions governing appointments
13. Acting appointment
14. Seniority
15. Efficiency Bar
16. Departmental Examination
17. Concessions to Ex-serviceman

CHAPTER II

RECRUITMENT PROCEDURE AND APPOINTMENT

1. General

1:1 Under the Constitution the power of appointment to the Public Service is vested in the Cabinet of Ministers.

1:2 An appointment or promotion can be made only to a post in the approved cadre. The creation of a new post or effecting an increase in cadre is a function of the Director General of the Department of Management Services, General Treasury, who will lay down the procedure to be followed for the purpose.

1:2:1 Except for an officer remunerated by fees, such as a Registrar of Births, Deaths and Marriages, no unpaid person shall be employed in the Public Service without the approval of the Secretary.

1:3 The grading and designation of posts, assignment of salary scales and rates of pay and wages within the existing salary structure of the Public Service, the determination of allowances, fees and all other emoluments and the general terms and conditions of service are the functions of the Director General of Establishments whose approval should be obtained when taking decisions on the above. Where a new post is created and a salary scale within the existing salary structure of the Public Service cannot be assigned to it, a new salary scale for such a post will be assigned by the Director General of the Department of Management Services, General Treasury in consultation with the Director General of Establishments.

1:3:1 If a new proposal sent to the Director General of the Department of Management Services, (see F.R. 71) involves any changes relating to the matters referred to in Sub-section 1:3, a copy of such a proposal should be sent to the Director General of Establishments seeking his approval for such matters.

1:4 The designation of a post should strictly be as shown in the approved Scheme of Recruitment and will appear as such in the Annual Estimates, advertisement, and the letter of appointment. The designation should not be changed without the approval of the Director General of Establishments and the Director General of the Department of Management Services, General Treasury.

1:5 An Appointing Authority with delegated power should follow any instructions given by the delegating authority to whom, he is directly responsible for the exercise of that power.

1:6 Every appointment must be made in accordance with the Scheme of Recruitment approved in terms of Sub-sections 2:2 to 2:5.

1:7 If, as a matter of urgency, a casual appointment, (see Section 3 of Chapter IV) has to be made to a temporary or permanent post, or a substitute appointment has to be made to cover the duties of a post in the absence of its substantive holder, only a person eligible under the approved Scheme of Recruitment should be considered.

1:8 A promotion must be earned by satisfactory work and conduct and by the fulfillment of all the conditions stipulated in the Scheme of Recruitment, such as passing an Efficiency Bar or Qualifying Examination, obtaining the prescribed academic, professional or technical qualification or reaching a prescribed point on the salary scale.

1:9 The effective date of an appointment or promotion is the date specified in the letter of appointment, or the date on which the officer first assumes the duties of his new post, whichever is later, subject to Sub-section 1:10, but in no case should it be earlier than the date on which the post was created or on which it was rendered vacant (see Sub-section 6:1).

1:10 The Appointing Authority should not antedate an appointment on any grounds without the approval of the Director General of Establishments.

1:10:1 If there are reasons for antedating an appointment, a request should be submitted with the reasons to the Director General of Establishments through the Secretary of the respective Ministry by the Appointing Authority. The following conditions should also be satisfied for the purpose.

1:10:2 There has been a substantive vacancy in the post from the date to which the appointment is proposed to be antedated.

e.g. The post of an officer on leave prior to retirement does not become vacant until his retirement actually takes effect.

1:10:3 On the date to which it is proposed to antedate the appointment, the officer should have possessed all the qualifications prescribed for appointment to the post in terms of the Scheme of Recruitment applicable on such date.

1:10:4 The officer was performing all the duties of the post continuously from such earlier date on an acting appointment made by the Appointing Authority by a letter of appointment duly issued to such effect.

1:10:5 The selection for the substantive appointment was made in terms of the "Method of Recruitment " laid down in the Scheme of Recruitment.

1:11 Antedating will not, in any case be allowed in the following circumstances:-

1:11:1 If such antedating results in the officer concerned gaining seniority over an officer appointed before him to the same grade or post; or in disturbing the seniority made at the selection for such appointment.

1:11:2 If the substantive appointment is made on the results of a competitive examination.

1:12 In the case of a promotion from Class to Class or Grade to Grade of a Service, which is regulated by a fixed ratio between the classes or grades, the promotion may, subject to the provisions of the Minute governing that Service or of the Scheme of Recruitment, take effect from the date on which the vacancy occurred; provided that where the Appointing Authority considers that no suitable officer is available for promotion to fill the vacancy immediately, he may direct that the vacancy be filled by promotion with effect from a future date specified by him. The officer so promoted will receive the salary of his new appointment only with effect from that date.

1:13 If an officer who receives a promotion is prevented from assuming the duties of his new appointment by reason of temporary release to some other post outside the Public Service, the date from which the promotion should become effective will be determined by the Director General of Establishments.

1:14 The effective date of passing an examination for purposes of confirmation, promotion and/or on an Efficiency Bar will be the commencing date of that examination at which the officer completes the examination. If, however, no such examination could be held on the prescribed date, the effective date of passing the examination will be determined by the Director General of Establishments having regard to the date on which the examination was due to be held in the normal course and the reasons for the delay in holding the examination.

2. Scheme of Recruitment

2:1 For every post in the Public Service or, where such a post belongs to a Grade or Service, for every such Grade or Service, there should be a Scheme of Recruitment which specifies the salary scale of post, the qualifications required, age limits and other relevant particulars, drawn up by the Department concerned and approved in accordance with Sub-section 2:2 to 2:5.

2:1:1 The Scheme of Recruitment in respect of a post in the Public Service which has already received approval will continue to be in force subject to any changes as may be made hereafter.

2:1:2 The draft Scheme of Recruitment should be prepared substantially in the form set out in Appendix 2.

2:1:3 A Scheme of Recruitment may be embodied in a Minute governing a Service, e.g. the Minute on the Sri Lanka Administrative Service, which will be issued under the authority of the Cabinet of Ministers.

2:2 Every draft Scheme of Recruitment should be forwarded in triplicate by the Secretary to the Ministry to the Director General of Establishments.

2:3 The Director General of Establishments will approve the Scheme subject to such amendments as may be made in consultation with the Secretary.

2:4 If, there is a difference of opinion between the Secretary to the respective Ministry and the Director General of Establishments, the matter should be submitted by the Secretary to the Cabinet of Ministers for a ruling. Where there is a major change proposed in a Scheme of Recruitment the Director General of Establishments will, even if he is in agreement with the change proposed, suggest to the Secretary that the Scheme be submitted to the Cabinet of Ministers for approval.

2:5 Any amendment ordered by the Cabinet of Ministers or agreed to between the Secretary and the Director General of Establishments should be incorporated into the Scheme and the approved Scheme of Recruitment in its final form should be certified by the Head of the Department.

2:6 Two copies of the certified Scheme of Recruitment should be sent to the Director General of Establishments.

2:7 The Scheme of Recruitment should not be changed to meet transitory problems, such as any temporary shortage of persons with the qualifications stipulated therein. In such a situation the Secretary should obtain the approval of the Director General of Establishments to deviate from the Scheme of Recruitment for that particular intake.

2:7:1 An application for authority so to deviate should state specifically the deviation proposed and the reasons therefor with references to the approved Scheme.

2:8 In regard to a certain special type of post such as those in the field of Aesthetics, Literature and Sports, a selective appointment may be made from persons who have a special competence in such field, without a Scheme of Recruitment but with the prior approval of the Director General of Establishments. Such an appointment should, however be on contract basis, and a person so appointed will have no claim for permanency.

2:9 If it becomes necessary to amend an approved Scheme of Recruitment, an application should be made to the Director General of Establishments by the respective Secretary with a Schedule of Amendments and the draft of the amended Scheme.

2:9:1 The Schedule of Amendments should set out the existing text of the portion to be amended, the amendments proposed and the reasons therefor in the following columns:

Para. No., Existing text, Amendments proposed, Reasons.

2:9:2 The draft of the amended Scheme of Recruitment should incorporate the amendments proposed, and underlined in red.

2:10 The provisions of Sub-sections 2:5 and 2:6 will apply in respect of such amended Scheme of Recruitment.

2:11 In any subsequent correspondence with the Director General of Establishments relating to a post, a copy of the Scheme of Recruitment in its final form should be sent.

3. Advertisement

3:1 Every vacancy in the Public Service should be advertised (see Appendix 3) by the Appointing Authority and in conformity with the approved Scheme of Recruitment except where-

3:1:1 an appointment made by the Cabinet of Ministers;

3:1:2 the Cabinet of Ministers directs that it is not necessary;

3:1:3 as on 06.09.1978 it had already been provided that recruitment need not be by advertisement;

3:1:4 an acting appointment has to be made.

3:2 Advertisement will not be necessary in the case of promotions within a Department or Service or in special cases where the Appointing Authority decides that the number of persons having particular specialized qualifications is so few that it is not necessary to resort to advertisement.

3:3 Each application for a post advertised that is received, should be scrutinized to check the eligibility of the applicant in terms of the Scheme of Recruitment and all the applications should be scheduled. This should be done in the office of the Appointing Authority. However, where recruitment is by an examination, the Appointing Authority will advertise the examination and, where it has to be conducted by the Commissioner General of Examinations, the receipt, scrutiny and scheduling of applications will be done by him.

4. Power of Appointment

4:1 The power to make an appointment is vested in the Cabinet of Ministers, who will directly exercise these powers in respect of:
Additional Secretary to a Ministry, Head of Department, Government Agent/ District Secretary and Senior Assistant Secretary.

4:2 The Cabinet of Ministers has delegated the powers of appointment in respect of all other categories of public officers to the Public Service Commission.

4:2:1 The Public Service Commission has delegated its powers of appointment in respect of all other such categories of public officers in Staff Grade to Secretaries to Ministries,

except that in the case of

- (a) An officer in a Staff Grade in the Auditor General's Department and in the Election Commission, who is not in a Combined Service, the Secretary to the President is the Appointing Authority; and
- (b) in the case of an officer in the Staff Grade not falling under a Ministry and not in a Combined Service, the Head of Department is the Appointing Authority.

4:2:2 In the case of an officer in the Staff Grade in a Combined Service, the Secretary to the Ministry in charge of the subject of Public Administration is the Appointing Authority.

4:3 The Public Service Commission has delegated its power of appointment not referred to in Sub-section 4:2:1, to Heads of Departments/ Public Officers holding delegated authority. In the case of an officer in a Combined Service, the power of appointment is delegated to the Director General of Combined Services.

5. Procedure for Making an Appointment and a Promotion

5:1 In regard to the posts referred to in Sub-section 4:1,

5:1:1 As soon as it is known that a vacancy will occur in such a post or when such a new post is created, the Secretary should report the fact to the Cabinet of Ministers through the Minister concerned with a recommendation where possible.

5:1:2 If the officer recommended is in a Combined Service, the Minister in charge of Public Administration will send such a communication in consultation with the Minister in charge of the Ministry concerned.

5:1:3 If the officer recommended is a Public Officer in the service of a different Ministry, the Minister concerned will make his recommendation after consulting the Minister who is in charge of the Ministry where the public officer serves.

5:2 In regard to posts referred to in Sub-section 4:2:1.

5:2:1 As soon as it is known that a vacancy will occur in a post of staff grade or when such a new post is created, the Head of the Department should report the fact to the Appointing Authority, stating whether he recommends filling the post immediately or not. If he recommends not filling such a vacancy immediately, he will state the reasons therefor.

5:2:2 If the Head of the Department recommends the filling of the vacancy, he will forward the approved Scheme of Recruitment and a draft advertisement calling for applications in terms of the approved Scheme of Recruitment.

5:2:3 The Appointing Authority will advertise the post in the Government Gazette.

5:2:4 The Appointing Authority will receive applications, scrutinize each application, check the eligibility of applicant, schedule the applications and make provisions as may be required in the Scheme of Recruitment for the appointment of a Selection Board.

5:2:5 Any Selection Board prescribed by the Scheme of Recruitment will be appointed by the Appointing Authority.

5:2:6 Such a Selection Board should generally consist of five public officers as members inclusive of the Chairman. Unless otherwise specified in the Scheme of Recruitment at least one of the members of such a Board should be from a Ministry or Department other than the Ministry or Department in which the vacancy exists.

5:2:7 On receipt of the recommendation of the Selection Board, the Appointing Authority concerned will make the appointment.

5:3 On completion of an examination, the Appointing Authority make provisions, for the interview of candidates by the Selection Board. The marks obtained by the candidate at the written examination should not be made available to the Board. Unless the Scheme of Recruitment provides otherwise, the selection of a limited number of candidates for interview by the Board may be made by the Appointing Authority on the basis of the marks obtained at the written examination.

5:3:1 On receipt of the recommendations of the Selection Board, the Appointing Authority will have the order of merit ascertained according to

the marks obtained by the candidates at the written examination and at the interview.

5:3:2 The Appointing Authority will thereafter make the appointment.

5:4 In regard to posts referred to in Sub-section 4:3.

5:4:1 The Appointing Authority will take action to fill vacancies, as provided for in the approved Scheme of Recruitment.

5:4:2 The Appointing Authority will advertise the vacancies where necessary, receive applications, check eligibility of applicants, schedule the applications and arrange for the applicants to be interviewed by a Selection Board appointed by him. When a large number of persons apply for a small number of vacancies, the Appointing Authority may restrict the number of persons to be summoned for interview, in the ratio of 5 persons to every vacancy where the number of applicants is over 25.

This does not apply to the filling of vacancies by promotion.

5:4:3 Such a Selection Board should consist of at least three public officers as members inclusive of the Chairman, and at least one member should be from a Ministry or Department other than the Ministry or Department in which the vacancy exists, unless otherwise specified in the Scheme of Recruitment.

5:4:4 On receipt of the recommendation of the Selection Board, the Appointing Authority will make the appointment.

5:5 Promotion of an officer to a post in the Staff Grade will be made by the Secretary, in accordance with the Scheme of Recruitment.

5:6 Promotion to a post not in the Staff Grade will be made by the Head of Department concerned, in terms of the approved Scheme of Recruitment.

6. Prior Conditions to be Satisfied for Appointment or Promotion

6:1 Before an appointment or promotion is made, the Appointing Authority should satisfy himself that

6:1:1 the post has been approved by the Director General of the Department of Management Services, General Treasury;

6:1:2 financial provision has been made for it;

6:1:3 a vacancy actually exists in the cadre (A vacancy exists only when a new post has been created or when the services of the holder of an existing

post have been terminated. A vacancy does not exist during the period an officer due to retire is on leave preparatory to retirement or when the holder of a post is on no pay leave or has been temporarily released.)

6:1:4 the, need for the post continues to exist;

6:1:5 the appointment/ promotion is in accordance with the approved Scheme of Recruitment;

6:1:6 he has the authority to make the appointment/ promotion.

6:2 Where an officer himself is in no way responsible for the delay in the decision regarding his promotion which results in such decision being taken when he is not in service or is deceased, the promotion should be given after his claims for promotion have been examined from the due date, even though the officer is already retired or deceased by the date of the decision. This will be applicable only in the case of a grade to grade promotion in a service.

6:3 Where the Appointing Authority is the Cabinet of Ministers, it is the duty of the Secretary to the Ministry concerned to satisfy himself that the provisions of Sub-sections 6:1:1 to 6:1:4 are satisfied before taking action in terms of Sub-section 5:1:1.

7. Disqualification for Appointment to the Public Service

7:1 A person, who has been in the Public Service and has been retired compulsorily for inefficiency, or been retired as a merciful alternative to dismissal, or who has been dismissed or whose services have been terminated after a disciplinary inquiry or who has vacated his post and has not been permitted to resume duties in terms of Section 7 of Chapter V, is disqualified for appointment to the Public Service.

A list of such persons is circulated from time to time by the Director General of Establishments. Departments should maintain an alphabetical index of the names of officers so circulated so as to ensure that they are not re-employed (See Section 8 of Chapter V).

7:1:1 A New Entrant Public Officer who has been admitted to the Public Service in any medium other than Tamil or Sinhala whose probationary/ trial appointment has been terminated for failure to pass the prescribed proficiency tests in one of the official languages is disqualified, unless he has since obtained the qualifications which would entitle him to obtain exemption from the highest proficiency tests in one of the official languages prescribed for the post for which he applies.

7:2 A person who is not a citizen of Sri Lanka cannot be appointed to the Public Service except with the approval of, and on such terms and conditions as may be

determined by, the Minister concerned with the concurrence of the Minister in charge of the subject of Public Administration.

7:2:1 Where the Minister concerned decides that a particular post should be filled by a non-citizen, the appointment should be made in terms of the general rules governing appointment to the Public Service.

7:3 A person holding an unsalaried office, such as Registrar of Births, Deaths and Marriages, should not be appointed to hold any additional office without prior consultation with the authority who made the unsalaried appointment.

8. Letter of Appointment

8:1 Every person (other than casual daily paid labourer employed for a very limited period on a day to day basis) appointed to a post should be issued a letter of appointment setting out fully the terms and conditions of his employment, following as far as possible, the text and form of the appropriate specimen in appendix 4.

8:2 In the case of an appointment made directly by the Cabinet of Ministers, the letter of appointment will be issued by or on behalf of the Secretary to the Cabinet of Ministers.

8:2:1 Any other letter of appointment will be issued by the Appointing Authority.

8:2:2 The draft of a letter of appointment need not ordinarily be referred to Director General of Establishments but in cases of difficulty or doubt his advice may be sought.

8:3 Before the appointed person assumes the duties of the post, an acknowledgement of the letter of appointment, stating that he accepts the post on the terms and conditions set out in it, should be obtained from him.

8:4 A promotion is an appointment and a letter of appointment should be issued as in Appendix 4. However in case where the promotion is from one Class or Grade to another in the same service it should suffice if an intimation of the promotion is issued to the officer, indicating the date of promotion and Class or Grade to which he is promoted and also any Efficiency Bars which he may be required to surmount in the new Class or Grade.

8:5 Where the designation of a post is changed with the approval of the Director General of the Department of Management Services and the Director General of Establishments and there is no change in the duties, emoluments or conditions of service, no fresh letter of appointment is required. A letter informing the officer concerned of the change in designation and the fact that the other conditions of appointment remain unchanged would suffice.

9. Re-employment

9:1 Prior Cabinet approval must be obtained where a person who has retired from the Public Service is to be re-employed in a post in the Public Service or is to be employed in a Public Corporation.

9:1:1 A person who has retired from the Public Service before completing sixty (60) years of age will not be re-employed in a post in the Public Service or be employed in a Public Corporation unless the Cabinet is satisfied that there are exceptional reasons for doing so.

9:2 A person who has been retired on medical grounds may be re-employed by the Appointing Authority in a vacancy in the post or grade from which he retired, provided that-

9:2:1 he had not completed fifty (50) years of age at the time of his retirement;

9:2:2 at least one year has elapsed since the date of retirement;

9:2:3 his work and conduct prior to retirement had been satisfactory. (If the unsatisfactory nature of the officer's work was attributable to ill-health however, it would not by itself be a bar to re-employment);

9:2:4 he has subsequently been found fit by a duly constituted Medical Board;

9:2:5 if he had been retired on grounds of any nervous or mental disorder, the approval of the Secretary is to be obtained.

9:3 The salary on re-employment will be determined in terms of Section 8 of Chapter VII.

9:4 A person who is re-employed should be issued a letter of appointment setting out the terms and conditions of his re-employment. (see specimen forms V and VI in Appendix 4)

10. Procedure on Appointment

10:1 When a person not already holding a permanent post in the Public Service is provisionally selected for a permanent appointment or for an appointment on probation with a view to permanent employment, the Head of the Department in which the vacancy exists must direct the selected candidate to fill up form General 169, and to forward it to the nearest Government Medical Officer in charge of a hospital (in Colombo, the Physician, Out-Patients Department, General Hospital ; in Kandy and Galle, the Physician of the Hospital) and to present himself for a medical examination. No fee is chargeable for this examination.

Chapter II]

10:2 The Medical Officer will make an examination and fill up form Health 169, which he will forward through the Head of his Institution to the Regional Director of Health Services of his Division. The latter will complete the report and forward it to the Head of Department concerned if the candidate has been found physically fit for appointment, and to the Director General of Health Services if he has been found unfit. In the latter case, the Director General of Health Services will inform the Head of Department whether the candidate is fit for appointment or whether he should be further examined medically.

10:3 A Head of Department must ensure that no salary is paid to a newly appointed officer until the medical report on Form Health 169 has been received. However, if the delay is not due to any fault of the officer concerned, the Head of Department may pay the salary at his discretion.

10:4 If the person has been found physically unfit for the appointment, the provisional appointment should be cancelled, but he will be eligible for the salary for the days he has worked.

10:5 A person appointed to a temporary post should be asked to submit himself for a medical examination before a Government Medical Officer who will make his report on Form Health 169. Such a person, on appointment or absorption to a permanent post, need not be called upon to undergo a second medical examination.

10:6 A person appointed to a post in the Public Service whether on a permanent, temporary or casual basis should make and subscribe or take and subscribe the affirmation or the oath in the 7th Schedule to the Constitution within one month of his appointment to such office, a specimen form of which is shown below.

I..... do solemnly declare and affirm that I will uphold and defend the Constitution of the Democratic Socialist Republic of Sri Lanka and that I will not, directly or indirectly in or outside Sri Lanka, support, espouse, promote, finance, encourage or advocate the establishment of a Separate State within the territory of Sri Lanka.

Signature: _____

Before me at _____,

on this _____ day of _____, 20_____.

Signature _____.

Name and Designation: _____.

10:6:1 In addition to persons empowered under the existing law to administer an affirmation or oath the following categories of officers may also do so :

- (a) An officer of Staff Grade in the Public Service as defined in the Establishments Code;
- (b) An officer not below the rank of an Assistant Superintendent of Police;
- (c) A Commissioned officer of the Armed Services; and
- (d) An officer of Executive Grade in a Public Corporation.

10:6:2 Provision should be included in the letter of appointment that such person should make and subscribe the affirmation or take and subscribe the oath within one month of his appointment and that the failure to do so would result in such person ceasing to be in service or hold office.

10:6:3 Where a person who is required to make the affirmation or take the oath, fails to do so by the date stipulated in the letter of appointment he should be reported to the Secretary to the Ministry in charge of the subject of Public Administration. Such report should include the name and designation, Ministry, Department of the person concerned and should be accompanied by a statement from him giving the reasons for his failure to make the affirmation or take the oath within the prescribed period. The Head of the Department should make his own observations in such a report on the reasons adduced for failure to make the affirmation or take the oath. Action on such reports will be taken as provided for in Article 165(2) of the Constitution.

10:6:4 The subscribed form of affirmation or oath perfected and duly signed by the officer should be filed in the personal file of the person concerned except in the case of an officer of a Combined Service whose form will be kept in the personal file by the Director General of Combined Services.

10:6:5 An entry should be made in the History Sheet of the officer that the affirmation has been made and subscribed or oath has been taken and subscribed and every such entry should be initialed by a responsible officer; in the case of a Staff Grade officer such an entry should be made in the Personal Record File of the officer concerned and the entry initialed by a responsible officer nominated for the purpose.

10:7 A person appointed otherwise than in a purely temporary capacity to a post, the initial salary of which is not less than Rs. 13,060.00 per month and who is not required by written law to give notice of resignation in advance, should, on appointment, sign an agreement on Form General 160.

10:8 The perfected agreement form should be filed in the Department in which the officer serves and in the case of an officer of a Combined Service, such a form should be forwarded to the Director General of Combined Services who will keep it.

10:9 In the case of a person who is required to furnish security, the Head of Department should, as soon as possible, inform the officer of the amount of the security, and request him to furnish it within two months from the date of appointment. If he fails to do so within three months, his salary should be withheld and action may be taken in terms of Section 8(2) of the Public Officers' (Security) Ordinance (Cap. 352).

10:10 In ascertaining the date of birth of an officer, no document other than Birth Certificate issued by the Registrar General or an officer duly authorised by him or a special certificate of age authorised for the purpose should be entertained. However, the special provisions in the Department of Pensions intended to prevent delays in the payment of pensions and gratuities are not rescinded.

10:11 A public officer is required to ensure that the provisions of the Constitution in regard to Language as provided in Chapter IV of the Constitution are complied with. It is reproduced in Appendix 5.

11. Probation Period

11:1 Every appointment to a permanent post will be on probation for a period of three years.

11:2 Appointment on probation implies that the officer may, before confirmation, count on being admitted to the permanent establishment if he carries out the obligations imposed by his letter of appointment and proves by conduct and efficient service, his suitability for permanent retention in the Public Service. Appointment on probation makes possible the elimination of a person against whom definite misconduct cannot be urged and who, for temperamental and other defects, should be released from the Public Service, before it is too late for him to find other employment.

11:2:1 The following procedure should be followed in the case of an officer appointed on probation:-

He should be regarded as being on probation with a view to learning work and being tested for his suitability for permanent retention.

He should not only be given all facilities for acquiring experience in his duties, but also be under continuous and sympathetic observation and guidance.

If during his period of probation, he shows any tendencies which render his suitability for permanent retention doubtful, he should at once be warned and given such assistance as may be possible to correct his failings. Any admonition administered for any serious act or omission or any fault of conduct or character which, if persisted in, may prevent his confirmation should be communicated to him in writing and an acknowledgement obtained, so that no question may

subsequently arise as to whether the officer was warned of his failing and given an opportunity of improvement.

11:2:2 A Head of Department should have a report made on every officer in his Department appointed on probation, after his first year of probation and then again after the second year.

These reports should be carefully considered and, where necessary or desirable he should be warned of any shortcomings. A final report should be prepared six (06) months before the expiry of the period of probation. Before the expiry of the period of probation, the three reports should be taken into consideration by the Appointing Authority and an order made either confirming or extending the probationary period.

11:2:3 A Head of Department should ensure that an officer on probation is confirmed on completion of the period of probation or his period of probation is extended or the probationary appointment is terminated. The officer concerned should be informed of the decision in each case.

11:2:4 Where an inquiry into an irregularity committed by an officer on probation cannot be completed before the expiry of the period of probation, it is not correct to postpone the consideration of the officer's confirmation until the inquiry is completed. In such a case his probationary appointment should be terminated or the period of probation extended taking into consideration the circumstances of the case.

11:3 An officer confirmed in a permanent post in the Public Service will not normally be required to serve a period of probation on his being appointed to another permanent post. But the Appointing Authority may, in the first instance, appoint such an officer to act in the new post for a specified period with a view to testing him in the new post.

11:3:1 The acting period to be specified should be determined having regard to the period that the officer would normally require to fulfil any condition that may be laid down for confirmation in the new post and the duration for which it would be possible to keep his substantive post vacant.

11:3:2 If the Appointing Authority of the substantive post which the officer holds does not agree to keep that post vacant for the duration of the acting period, the new appointment will be on probation / trial and without the right of reversion to his former post.

11:4 During the period of probation the Appointing Authority will have the power to terminate the officer's appointment without specifying any reason. Similarly an officer appointed to act in a post under Sub-section 11:3 may, where right to reversion exists, be reverted to his substantive post during the acting period, without any reason being specified or have his appointment terminated.

11:4:1 However, such an officer can submit an appeal to the Public Service Commission within 06 months from the date of receiving the letter of the termination of appointment.

11:5 If at the end of the period of probation or at the end of the acting period, the officer's work and conduct are judged to have been satisfactory, and if he has fulfilled all the requirements for confirmation in that appointment, he should be confirmed in his appointment by the competent authority.

11:6 The authority, competent to order confirmation is the Appointing Authority.

11:7 If the officer is not judged as fit and qualified for confirmation in all respects, either his appointment should be terminated or the period of probation or the acting period should be further extended by the Appointing Authority subject to Sub-section 11:9 or 11:10 and provided that,

11:7:1 where the Appointing Authority is the Head of Department to whom power of appointment has been delegated, he should not extend the period of probation by more than one (01) year without the approval of the Secretary.

11:7:2 in the case of an officer appointed to act in a post with a view to confirmation in terms of Sub-section 11:3, the Appointing Authority should not extend the acting period without the concurrence of the Appointing Authority of the substantive post. If the period of the extension is more than one year he should also obtain the approval of the Secretary.

11:8 When an officer appointed on probation is confirmed in his appointment, his permanent appointment will be dated from the date of his appointment on probation, subject to Sub-sections 11:9 and 11:10.

11:9 When an officer fails to qualify for confirmation at the proper time, that is, within the initial period of probation, for reasons beyond his control, his period of probation may be extended by a reasonable period to enable him to qualify. If the officer qualifies within that extended period, he will be confirmed as from the date of his appointment on probation. He will not lose the salary or seniority.

11:10 If an officer fails to qualify for confirmation at the proper time, that is within the initial period of probation, for reasons within his control, but qualifies for confirmation during an extension of the period of probation granted to him in terms of Sub-section 11:7 then

11:10:1 the increment falling due after the expiry of the initial period of probation will be deferred by the length of time taken in excess of the initial period allowed to him to qualify,

11:10:2 he will be confirmed in his appointment with effect from the date of his appointment,

11:10:3 his seniority in his grade or service will be determined by the date on which he qualified for confirmation,

11:10:4 the question of restoring to him the salary which he would have received if his confirmation had not been delayed will receive the consideration of the Secretary to the Ministry in charge of the subject of Public Administration on the expiry of five (05) years from the conclusion of the initial period of probation, provided a written request is made by the officer through the Head of his Department within six (06) months of such expiry. If the circumstances of his case are regarded as meriting it, he will, with effect from the date of the decision of the Secretary to the Ministry in charge of the subject of Public Administration, be allowed to draw the salary he would have drawn if his confirmation had taken place at the proper time. He will not however, save in very exceptional cases, be restored to the seniority, which he otherwise would have held.

12. General Conditions Governing Appointments

12:1 Every public officer will be subjected to the Financial Regulations, the Establishments Code, Departmental Orders or Regulations and any other Orders or Regulations that may be made from time to time.

12:2 The holder of an appointment which is permanent and pensionable will be required to contribute either to the Widows' and Orphans' Pension Scheme or to the Widowers' and Orphans' Pension Scheme as the case may be.

12:2:1 Contributions to the Widows' and Orphans' Pension Scheme or to the Widowers' and Orphans' Pension Scheme should be on the following basis:

- (1) Up to primary and secondary levels – 6% (six percent of the monthly consolidated salary)
- (2) Up to tertiary and senior levels – 7% (seven percent of the monthly consolidated salary)

12:2:2 The monthly salary referred to in Sub-section 12:2:1 means the new monthly consolidated salary inclusive of any pensionable allowance.

12:3 The holder of an appointment which is permanent but non-pensionable or of an appointment which is temporary and with monthly pay, will be required to contribute 8% of his salary to the Public Service Provident Fund. He may, in addition, contribute up to a further 8% of his monthly salary. The Government will in all cases contribute 12% of the salary.

12:4 An appointment to a permanent and pensionable post in Classes I to III of the Labour Grades will be subjected to the conditions stipulated in Chapter IV.

Chapter II]

12:5 If for any reason an appointment to a permanent post is made on a temporary or casual basis or an appointment to a temporary post is made on a casual basis, the conditions governing that appointment will be determined by the nature of the appointment and not by the status of the post (See Chapter IV).

12:6 A public officer may be required to furnish security in terms of the Public Officers' (Security) Ordinance in such sum and manner as the Secretary may decide.

12:7 A public officer may be required to serve in any part of the Island.

12:8 Every person appointed to a permanent or temporary post should be pronounced physically fit to serve in any part of the Island after a medical examination by a Government Medical Officer in terms of Sub-sections 10:1 to 10:5 of this Chapter.

12:9 Every officer will be required to conform to the provisions of the Chapter IV of the Constitution of the Democratic Socialist Republic of Sri Lanka and any other laws, regulations or rules that may be made from time to time to give effect to the Language Policy of the Government. (See Appendix 5)

12:10 Every officer holding a permanent or a temporary appointment, who is a New Entrant to the Public Service for the purposes of the Official Language Policy of the Government and who has been admitted to the Public Service in any medium other than Tamil or Sinhala, will be required to pass the prescribed test in one of the official languages namely Level I, II and III proficiency tests within three (03) years from the date of appointment.

However, if an Appointing Authority feels that an officer who enters the Public Service or Public Institution under his purview in one of the official languages should have a sufficient knowledge in the other official Language to discharge the duties, he should take action to amend the Scheme of Recruitment/ Service Minute of such service in order to require such person to have a sufficient knowledge as a condition for admission or confirmation. This condition should be incorporated in the letter of appointment of such service/post.

12:10:1 A minor employee is exempted from the requirement of obtaining proficiency in the official languages. However, if any Appointing Authority feels that any category of minor employees in his Department or work place needs a minimum competence in one of the official languages or both he will, before stipulating such a condition, obtain the permission of the Secretary of the Ministry in charge of the subject of Public Administration who should consult the Secretaries to the relevant Ministries before approving such a variation.

12:10:2 Every new entrant officer who is required to obtain proficiency in one of the official languages should, on receiving appointment, be given facilities on full pay for a period of six months to obtain proficiency in one of the official languages. He will thereafter, be required to sit the relevant proficiency

examination and if he does not pass he will be given the opportunity to pass the examination within a period of two years immediately after the period of six (06) months on full pay, while he performs his normal duties. If he fails to pass the examination in the prescribed period of two and half years his service will be terminated.

12:10:3 Special full-pay leave, not exceeding six (06) months may be granted on request and subject to the exigencies of service, to an officer who has sufficient knowledge in one of the official languages in order to encourage him to acquire a sufficient knowledge in the other official language if such full time language courses are being conducted by a Government Department or an institution approved by the Secretary of the Ministry in charge of the subject of Public Administration. This special full pay leave may be granted in addition to the leave granted under Sub-section 12:10:2 of this Chapter.

12:10:4 Officers who have been admitted to the Public Service in Tamil medium and who have not been confirmed in his appointment solely on account of his failure to pass the prescribed proficiency tests in Sinhala should, notwithstanding his failure to fulfil these conditions be confirmed in his appointments with effect from 23.12.1988. Increments withheld within the grades in which an officer is at the time of the confirmation, should be restored to him provided such increments have otherwise been earned. He will therefore be placed on the salary point he would have reached had those increments been allowed, but he will not be paid any arrears of increments.

12:10:5 An old entrant officer should be exempted from passing an examination in the second language provided he has already passed an examination in either Tamil or Sinhala of the standard necessary for the Senior School Certificate Examination. Exemption under this section can only be granted if the subject of the examination passed is a subject stipulated in the Scheme of Recruitment/ Service Minute for such exemption.

12:10:6 Where any old entrant officer has lost the benefit of a salary increase as a result of the operation of the second language requirement, such lost benefits should be restored to him without arrears, with effect from 9th July, 1980.

12:11 Every officer who is appointed subject to a period of probation or in an acting capacity with a view to confirmation and who has been admitted to the Public Service in any medium other than Tamil or Sinhala will be required to acquire a working knowledge of the official languages during such period.

12:11:1 The concession granted to an officer reference to which is given in Sub-sections 7:1:1, 12:9, 12:10, 12:10:1, 12:10:2, 12:10:3 and 12:11 will take effect from 23.12.1988.

12:11:2 Every officer should attain the proficiency in the second official language (prescribed level for the post) applicable to the relevant post within five (05) years of the appointment to the service / post. Salary increments of the officers who fail to attain the level of proficiency within the prescribed period will be deferred.

12:12 A monthly paid officer who wishes to relinquish his appointment should give at least one month's notice in writing or one month's salary in lieu thereof unless a longer period of notice has been specified in his letter of appointment.

12:12:1 Where the Government wishes to terminate the services of a monthly paid employee (in accordance with the terms of his appointment) he will be given one month's notice or a month's salary in lieu thereof.

12:12:2 In the case of a daily paid officer such notice will not be required unless the letter of appointment requires it.

12:12:3 For the purpose of this section "month" means the space of time from a day in one (01) month to the day numerically corresponding to that day in the following month.

13. Acting Appointment

13:1 Every acting appointment to a post in the Public Service should be made in the manner as prescribed below:

- (a) with the approval of the Cabinet except where under statute, when it becomes essential for a public officer to perform the full duties of an additional post or the duties of more than one post in the Public Service and a Public Corporation.
- (b) with the approval of the Appointing Authority in the case of an officer whose appointment is not made by the Cabinet, to perform the duties in an additional post, during the absence of a substantive holder of the post or to fill a temporary vacancy.

13:1:1 In making an acting appointment to a post referred in Section 4:1, the procedure laid down in Sub-sections 5:1:2 and 5:1:3 should be followed.

13:1:2 Where an officer is recommended for an acting appointment it should clearly be stated whether the officer is qualified in all respects for appointment to the post in terms of the approved Scheme of Recruitment.

13:2 An acting appointment to a post temporarily vacant should not be made as a matter of course. Wherever it is possible, without loss of efficiency, to distribute the duties of a temporarily vacant post, an acting appointment should not be made.

The Government is entitled to call upon any public officer to perform without extra remuneration any Public Service, which could reasonably be performed by use of the skills that are expected of that officer, even if such work does not fall strictly within the scope of the officer's normal duties.

13:3 An acting appointment should be made as a temporary measure only and until a substantive appointment is made. If the post continues to require the services of a full time officer, the substantive appointment should be made without delay. If, however, a full time officer is not required, the duties should be distributed among the other officers of the Department as indicated in Sub-section 13:2.

13:4 No officer should be appointed to act in any vacant office, unless he is in every way fully qualified to perform the duties of that office.

13:4:1 An officer who is unable to pass beyond a salary point in his own substantive post, grade or class on account of his failure to pass a prescribed qualifying examination and/or an Efficiency Bar, should not be appointed to act in a superior post.

13:5 If no person with the qualifications specified in the Scheme of Recruitment is available for appointment and it is necessary that the post should be filled immediately, then the most suitable officer could be appointed to "attend to the duties of the post".

13:6 The remuneration of an officer appointed to act in a post or to attend to its duties will be determined in accordance with the rules relating to acting pay.

13:7 No additional remuneration is payable unless an officer has been appointed by the Appointing Authority to act in a post or to attend to the duties of a post. Any Departmental arrangement to cover up the duties of a vacant post will not entitle the officer covering up duties, to additional remuneration.

14. Seniority

14:1 On appointment, Seniority in any Class or Grade of a Department of a service will be determined by the effective date of appointment or promotion to that Class or Grade as defined in Sub-sections 1:9 to 1:14 and subject to Sub-section 11:10.

14:2 An officer's seniority in a Grade or Class will only be altered in the following cases:

where he fails to pass an Efficiency Bar by the due date;

where his probationary period is extended (See Sub-section 11 : 10) or where an order of reduction in seniority is made as a disciplinary punishment.

14:3 On reversion.—When an officer is reverted, his seniority in the post or grade to which he is reverted will be determined in accordance with the following rules:

14:3:1 When on disciplinary grounds an officer is reduced in rank and reverted to a lower grade, his seniority in the lower grade or post on such reversion will be determined in accordance with the order of the Disciplinary Authority.

14:3:2 When on abolition of office or due to redundancy, an officer is reverted with the approval of the Appointing Authority, to a post of grade previously held by him, his seniority in the post or grade to which he is reverted should, with the approval of the Director General of Establishments, be determined on the basis of the aggregate service he counts in that particular post or grade. This means that he will be junior to all officers whose length of service in that post or grade is equal to or more than his service in that particular post or grade. If he has not passed an Efficiency Bar he will not be placed in seniority over any officer who has been promoted over that Efficiency Bar.

14:3:3 If an officer is reverted at his own request and with the approval of the Appointing Authority to a post previously held by him, such reversion will be treated as a new appointment and his seniority will be determined by the date of reversion. Where, however, a salary step higher than the initial is allowed to such officer with the approval of the Director General of Establishments in terms of Sub-section 6: 3: 1 of Chapter VII his seniority may, with the approval of the Director General of Establishments be determined with reference either to the length of service in that post at the time he relinquished it or the time an officer appointed on the initial of the salary scale would take to reach that salary step, whichever is less.

14:3:4 An officer who has been temporarily released on no pay leave for service outside the Public Service (see Section 2, Chapter V), will retain his seniority in his post or grade subject to his passing any Efficiency Bar which he is required to pass, provided that the no pay leave is deemed to have been granted on grounds of public policy for purposes of the Minutes on Pensions.

14:3:5 If the no pay leave is not granted or not deemed to have been granted on grounds of public policy for the purpose of Section 10 (1) of the Minutes on Pensions, the period of such temporary release will not count for seniority and such officer will rank as junior to all those officers whose length of service in the particular post or grade on the date on which he reverts to his post is more than his service up to the date on which he was temporarily released.

14:4 On re-employment - Seniority will be determined in accordance with the rules of the following Sub-sections:

14:4:1 If an officer who has retired is re-employed in the same post or grade from which he retired, his seniority will be determined by the period he had served in the post or grade from which he retired up to the date of his retirement.

14:4:2 If an officer who has retired is re-employed in a post or grade other than that from which he retired, his seniority will be determined by the date of his re-employment.

14:4:3 If an officer, whose prior services have been terminated by resignation, vacation of post, or by reason of unsatisfactory work or conduct, is re-employed, he will not be entitled to any claim for seniority on account of his past services and his seniority will be determined by the date of his re-employment.

15. Efficiency Bar

15:1 (i) An Efficiency Bar/ Efficiency Bars shall be included, where necessary, in the Scheme of Recruitment/ Service Minute taking into consideration the nature of duties and the responsibilities of the posts.

(ii) In assigning a salary scale, it shall be stated that the first Efficiency Bar must be passed before reaching the fourth salary step and if a second Efficiency Bar is prescribed, the second Efficiency Bar must be passed before reaching the 7th salary step.

(iii) (a) Information as to whether the Efficiency Bar Examination is a written test, a professional test/ an oral test or a combination of those should be mentioned.

(b) If the Efficiency Bar is a written test, subjects included, and particulars of the syllabuses in respect of each subject should be mentioned.

(c) If it is a Professional test or a combination as mentioned in (a) above, the scope of the subject matter for that test should be mentioned.

(d) If the Efficiency Bar Examination is an oral test, particulars as to the areas on which they will be tested orally should be mentioned.

(e) The number of occasions every Efficiency Bar Examinations is held per year, and by whom they are held should be mentioned.

(f) In the case of a written test, the minimum number of marks that should be obtained for a pass in each subject, and in the case of a professional test, oral test or a combination mentioned in (iii)(a) above the minimum number of marks necessary for a pass should be separately and clearly mentioned.

(g) Whenever there are more than one subject for an Efficiency Bar test, it should be specified whether the candidate should be successful in all the subjects at one setting, or whether it is sufficient if he sits for each subject on different occasions and obtain passes.

(iv) If the Secretary of the relevant Ministry decided that a pass obtained by an officer at an Efficiency Bar Examination held for officers of the Sri Lanka Administrative Service is acceptable, it may be included in the Scheme of Recruitment, provided that,

(a) Prior approval of the Director General of Combined Services, and concurrence of the Commissioner General of Examinations have been obtained.

(b) Co-ordination with the Director General of Combined Services should be established to get the necessary particulars included in the Gazette notification relating to that examination so as to enable the relevant officers to sit for the examination.

(c) When such Schemes of Recruitment are forwarded for the approval of the Director General of Establishments, certified copies of letters giving approval and concurrence specified in (a) above should be attached.

(v) Whenever a Secretary of a Ministry decided that a pass obtained by an officer in an Efficiency Bar held for officers in a different service is an acceptable qualification, it should be mentioned in the Scheme of Recruitment provided that the prior approval of the authorities specified in Section (iv) above, and the concurrence of the Commissioner General of Examination have been obtained, and when such Schemes of Recruitment are forwarded to the Director General of Establishments for approval, certified copies of letters giving approval and concurrence specified in (iv) (a) above should be attached.

(vi) As mentioned in (iv) and (v) above in instances where officers belonging to different services sit for an Efficiency Bar Examination held under a different Service Minute or a different Scheme of Recruitment, any exemption from the Efficiency Bar available under the said Service Minute/Scheme of Recruitment will not be granted to those who sit thus. They are only given the Permission to sit for that Efficiency Bar Examination.

(vii) When a Post Graduate Degree Certificate/ a Diploma Certificate or any other Educational or Professional Certificate is accepted as a pass in an Efficiency Bar Examination,

(a) Such Post Graduate Degree Certificate/ Diploma Certificate/ any other Educational Certificate or the Professional Certificate should have been issued by an Institution recognized by the Government and the name of the awarding institution should be mentioned and in the case of a Diploma Certificat, the time period should be mentioned.

(b) In the case of an examination held by a Government Institution, particulars regarding such Institution and the examination should be mentioned.

(viii) In the case of the officers in the Teaching Service, if the certificates obtained by participating in Seminars and Conferences etc. constitute passes in the Efficiency Bar, particulars regarding such Seminars and Conferences, and the number of Seminars and Conferences the officer should participate in to obtain the certificates, should be mentioned.

(ix) The Appointing Authority, Administrative Authority and Head of the Department are jointly responsible for holding Efficiency Bar Examinations on the due dates.

(x) No exemptions from Efficiency Bar Examinations shall be granted on completing forty-five (45) years age and no provisions to exempt from Efficiency Bar Examinations on completion of age shall be included in the Schemes of Recruitment or Service Minutes.

15:2 Promotion over an Efficiency Bar will be governed by the Service Minute/ Scheme of Recruitment for the post, grade or service.

15:3 Before an officer can be promoted over an Efficiency Bar, a certificate must be given by the Head of the Department that the officer is in every respect fit for such promotion. The certificate must be attached to the first pay sheet on which the salary step above the Efficiency Bar is paid. The certificate in respect of a Head of Department will be given by the Secretary.

15:4 The aforesaid certificate should not be granted unless the Secretary to the Ministry or the Head of the Department as the case may be, is satisfied that the officer has fulfilled all the conditions stipulated for promotion over the Efficiency Bar and is capable of carrying out efficiently whatever duties are likely to be assigned to him during the period which will elapse before he reaches the next Efficiency Bar or the maximum of his salary scale, as the case may be.

15:4:1 Where the passing of any examination is one of the conditions for promotion over an Efficiency Bar, the date on which the officer passed the examination should be stated on the certificate.

15:4:2 For the effective date of passing such examination see Sub-section 1:14.

15:5 When it is decided that an officer is not fit to be promoted over an Efficiency Bar, the decision and the reason therefor must be communicated to him in writing. Such a decision will operate as a deferment of the increment falling due until he is promoted over the Efficiency Bar. His case should be reconsidered at the end of each year thereafter or earlier if necessary, until he is judged fit for such promotion.

15:5:1 If for any special reason an officer is granted, with the approval of the Director General of Establishments, an extension of time period to pass an Efficiency Bar, he may be allowed to draw increments (above the Efficiency Bar) during such extension of time allowed. If he does not pass the Efficiency Bar during the extension allowed, the increment that falls due after the expiry of that extension will be deferred by a period of time equal to the time in excess of the extension allowed to pass the Efficiency Bar.

15:6 An officer may appeal to the Secretary of the Ministry in charge of subject of Public Administration about the decision of a Head of Department not to promote him over an Efficiency Bar, however no such appeal shall be made where the officer's promotion over an Efficiency Bar has been withheld for failure to pass an examination prescribed as a requirement for such promotion.

15:7 In the case of an officer of the Sri Lanka Administrative Service, Sri Lanka Engineering Service and Sri Lanka Scientific Service, any decision regarding the promotion over an Efficiency Bar should be made by the Secretary of the Ministry in charge of subject of Public Administration.

15:8 Exemption of an officer from the requirement of an Efficiency Bar may be granted only by the Secretary of the Ministry in charge of subject of Public Administration. Such exemption will operate only from the date of grant of such exemption. He will not be entitled to any benefits with retrospective effect.

16. Departmental Examinations

16:1 A scheme should be drawn up for each Departmental Examination prescribed for confirmation, promotion and promotion over Efficiency Bars, etc. It is the responsibility of the Head of Department to ensure that such examination is held on the due dates.

16:2 Every such scheme of examination should be approved by the Secretary to the relevant Ministry and should, where appropriate, be included in any Scheme of Recruitment or promotion submitted to the Director General of Establishments.

16:3 The Secretary to the Ministry or the Head of the Department or in the case of the Sri Lanka Engineering Service and the Sri Lanka Scientific Service the Chairman, Engineering Service Board and the Secretary, Scientific Service Board respectively should notify in the Government Gazette the date on which an examination is to be held, giving at least three weeks' notice prior to the closing date of applications.

17. Concession to Ex-servicemen

17:1 The following concessions should be granted to Ex-servicemen of the Armed Services who wish to obtain employment in the Public Service or in Public Corporations :-

- (a) Age:- Deduction of the period of service in the Regular Force from the age of an Ex-serviceman, where such deduction will enable him to be brought within the maximum age prescribed for the post applied for.
- (b) Educational Qualifications:- Reduction to the next lower standard of minimum educational standards laid down in a Scheme of Recruitment to a post.
- (c) Technical Qualifications:- Consideration of the skill and experience gained during service in the Armed Services in Technical Units, when Technical qualifications are assessed.
- (d) Salary on Appointment:- The Provisions of Chapter VII will apply.

17:2 "Ex-serviceman" for the purpose of this section is an officer or a Serviceman who has left an Armed Service on retirement or on completion of his period of employment.

CHAPTER III

TRANSFERS

1. General
2. Authority for ordering transfers
3. Transfer Boards
4. Notice of Transfer
5. Appeal Boards
6. Time-table for action connected with Transfers

CHAPTER III

TRANSFERS

1. General

1.1 A transfer should not be made as a matter of routine, but generally in order to accommodate the request of an officer who has served in an unpopular station, for an opportunity to serve in a popular station or for specific administrative reasons.

1.2 A transfer should be effected in accordance with the Scheme of Transfers formulated by the Transfer Board, taking into account the special needs of a Department and the need for review in keeping with technical changes.

1.3 An officer under transfer orders should be allowed to leave in sufficient time to reach his new station by the date fixed.

1.4 Section 4 of this Chapter will not apply to the Police Service and to Departments which have special Schemes of Transfer.

2. Authority for Ordering Transfers

2.1 The Constitution vests the Cabinet of Ministers with the power of transfer of a Public Officer.

2.2 The Cabinet of Ministers has delegated its powers to the Public Service Commission in respect of officers not appointed by the Cabinet of Ministers and the Public Service Commission has delegated the power of transfer to public officers.

2.3

<i>Category</i>	<i>Authority for Transfer</i>
1. Head of Department, District Secretary/ Government Agent, Additional Secretary, Senior Assistant Secretary to a Ministry	: Cabinet of Ministers
2. Public officer in a staff grade in the Combined Services:	
(a) Outside a Ministry	: Secretary to the Ministry in charge of the subject of Public Administration
(b) Within a Ministry	: Secretary to the respective Ministry

<i>Category</i>		<i>Authority for Transfer</i>
(c) Within a Department	:	Head of the Department
3. (a) Public Officer in a staff grade not in the Combined Services	:	Secretary to the respective Ministry, Head of the Department if not under a Ministry.
(b) Public Officer in a staff grade in the Department of the Auditor-General and the Department of the Commissioner of Elections, not in the Combined Services	:	Secretary to the President
4. Public Officer not in a staff grade in the Combined Services :		
(a) Outside a Ministry	:	Director General of Combined Services
(b) Within a Ministry	:	Secretary to the respective Ministry
(c) Within a Department	:	Head of the Department
5. Public Officer not in staff grade and not in the Combined Services:		
(a) Within the Ministry	:	Secretary to the respective Ministry
(b) Within the Department	:	Head of the Department

2.4 A transfer of an officer of the Combined Services within a Ministry should be intimated to the Secretary, Ministry in charge of the subject of Public Administration.

3. Transfer Boards

3.1 The authority ordering a transfer will act on the advice of a Transfer Board except in cases referred to in Section 3:2 when the transfers will be ordered entirely at the discretion of the authority.

3.2 A Transfer Board will not deal with:

- a transfer not involving a change of station,
- a transfer on disciplinary grounds,
- a transfer necessitated by the exigencies of the service,
- a transfer in a Department having less than twenty five transferable officers.

3.3 One or more Transfer Boards should be set up in every Department which has twenty five or more transferable officers.

3.4 Where the number of transferable officers is large enough to warrant it, there should be separate Boards for officers belonging to different services within the Department (e.g., in the Department of Health Services, different Boards will deal with the transfer of Doctors, Nurses, etc.)

3.5 A Transfer Board should consist of-

- (a) Two representatives of Management (e.g., a Senior Deputy and the Staff Officer in charge of Establishments matters in the Department) other than an officer nominated for the Transfer Appeals Board.
- (b) One representative of either-
 - (i) each Trade Union in the Department or of the Services in the Department having a membership of 15% or more of the total number of officers in that Department or Services : or
 - (ii) each Trade Union of which an officer has been released for full time Trade Union work.

3.6 Where there is wide disparity in the opportunities to serve in popular stations as between one Department and another within the same Ministry, a transfer Board should be set up in the Ministry to effect inter departmental transfers in order to provide to those in unified services within the Ministry, such as the Clerical Service a better distribution of opportunities within the Ministry for, service in popular stations.

3.7 Transfer of officers of the Combined Services from one Ministry to another will be dealt with by the Transfer Boards which will be set up by the Director General of Combined Services.

3.8 Each Transfer Board should draw up a Scheme of Transfers taking into consideration the following among other matters :

3.8.1 Grading of stations should be done into categories such as "Highly Popular" "Popular" and "Unpopular ". A popular station would generally be one where various facilities such as schooling, housing, etc., are available, or any other station for which there is a heavy demand.

3.8.2 Fixing of the maximum period of service in each category of station (e.g., it may be two years in an unpopular station and four (04) years in a highly popular station).

3.8.3 When an officer is transferred from one Department to another, his periods of service in the different categories of stations in the Departments in which he has previously served should be taken into account when he is given his posting in his new department. This is necessary to prevent the possibility of officers continuing to stay in the same station for long periods by the expedient of obtaining transfers to a sub-office in another Department when their term of service in a particular sub-office of one Department is due to expire.

3.8.4 In selecting officers for service in distant and unpopular stations, unmarried male officers and married officers without school going children should, where possible, be selected in preference to married officers with school going children. The number of school going children and their ages may also be considered.

3.8.5 No firm rules can be laid down with regard to such special factors and each Transfer Board will have to work out its own scheme depending on the nature of the service. In some Departments it may be impracticable or inadvisable to embody such considerations in the Scheme of Transfers.

3.8.6 Generally an officer should, wherever possible, be placed in a post in his area of residence. The transfer outside his district of residence should generally be done only in instances of established guilt after a formal disciplinary inquiry which necessitates such transfer.

3.9 The Scheme of Transfers, as well as any amendments, should be made known to all relevant officers.

3.10 A Transfer Scheme will be subject to the exigencies of service. The interests of smooth and efficient administration are paramount and transfers should be effected in such a manner as to cause the minimum disruption in the work of a Department.

3.11 The Transferring Authority may vary the decisions of the Transfer Board and communicate his reasons for doing so to the Board.

4. Notice of Transfer

4.1 As far as possible, all transfers should take effect from the 1st of January each year. At least two (02) calendar months' notice of transfer should be given to enable an officer to find suitable schools for his children and to arrange housing accommodation. Where a transfer is deferred or canceled, at least one month's notice of such cancellation or deferment should be given.

4.2 If, for any reason, less than one (01) month's notice of transfer or less than three (03) days' notice of cancellation or deferment of a transfer is unavoidable, the requirements of Sub-section 24:12 of Chapter XIV should be complied with.

4.3 The authority ordering, cancelling or deferring a transfer should bear in mind the extra cost to Government, (see Section 24 of Chapter XIV) where short notice is given and should ensure, therefore, that transfer, cancellation or deferment is not ordered at short notice except in very urgent and unavoidable circumstances. Where a transfer, cancellation or deferment at short notice could have been avoided, the officer responsible is liable to be surcharged the extra cost to Government under Sub-section 24:13 of Chapter XIV.

5. Appeal Boards

5.1 A Transfer Appeal Board will consist of the Head of Department and a Senior Staff Officer nominated by the Head of Department, other than an officer who served on the Transfer Board.

5.2 An appeal will be entertained only on the grounds that a proposed transfer violates the Scheme of Transfers or that circumstances have so changed as to justify a variation of the original transfer order or that very grave personal hardships of exceptional nature will be caused by the transfer.

5.3 Full and final authority is vested in the Secretary to the Ministry to decide in cases which a Transfer Appeal Board cannot settle.

6. Time table for action connected with Transfers

6.1 Each year, applications for transfer should be called for to reach the Transfer Board before the 15th of August. The Board will entertain only such requests which are made in accordance with the Transfer Scheme.

6.2 The list of transfers as decided by the Board should be notified to the officers concerned by the first of October each year.

6.3 An appeal could be entertained by the Appeal Board up to about the 15th of October.

6.4 The final decision of the Appeal Board should be communicated to the officers concerned before the 1st of November.

CHAPTER IV

GRANT OF MONTHLY PAY, TEMPORARY STATUS, PERMANENT STATUS AND PENSIONABILITY

1. Status of a Post or an Officer
2. Definition of Substitute, Casual, Temporary and Permanent Officer
3. Recruitment on casual basis
4. Grant of Temporary Status and Monthly Pay
5. Grant of Permanent Status
6. Pensionable Post and Pensionability

CHAPTER IV

GRANT OF MONTHLY PAY, TEMPORARY STATUS, PERMANENT STATUS AND PENSIONABILITY

1. Status of a Post or an Officer

"Status" in regard either to a post or an officer refers to whether the post or officer is casual, temporary, permanent or pensionable.

1:1 Status of a Post - Whether a post is to be of a casual, temporary or permanent nature will be determined at the time it is created, by the authority creating the posts, and will be indicated when the creation of a post is intimated to the Department concerned. It may not always be indicated in the estimates. A Department should, therefore, be guided by the instructions given by the Approving Authority. Any doubts should be cleared with the Director General of the Department of Management Services.

A post created for an ad hoc job in a scheme of a temporary nature, where the work will come to an end after a certain length of time, must be regarded as casual.

1:2 Status of an Officer.- The terms "casual", "temporary", "permanent" and "pensionable" when used in respect of an officer, indicate the nature and terms and conditions of his appointment and may not always have regard to the status of the post he occupies.

Examples

1:2:1 A casual appointment may be made as a stop-gap measure to a permanent post until that post is filled on a permanent basis. While the post itself is, therefore, permanent, the holder of the post is a casual officer.

1:2:2 Similarly, a temporary officer may be appointed to a permanent post.

1:2:3 An officer who has acquired permanent status may continue to be employed in a temporary post after he has acquired permanent status; similarly a temporary officer may continue to be employed in a casual post after he has acquired temporary status. This may result from a casual officer acquiring temporary status or a temporary officer acquiring permanent status in terms of Sections 4 and 5 of this Chapter.

2. Definition of Substitute, Casual, Temporary and Permanent Officer

2:1 A Substitute is a person employed to perform the duties of a post which is substantively filled but whose holder is absent from the post for a limited period e.g., a substitute watcher may be employed when the substantive watcher is on leave. His appointment must be on a purely casual basis and on daily pay.

2:2 A Casual officer is a person appointed as such, on a daily pay basis, for a short period, to a post approved as a casual post, or as a stop-gap measure to a temporary or permanent post pending the filling of the post on a temporary or permanent basis.

2:3 A Temporary Officer is a person appointed as such to a post approved as a temporary post, or a casual officer who has been granted temporary status in accordance with Section 4, even though he may continue to hold the casual post through which he acquired the qualifications for temporary status.

2:4 A Permanent Officer is a person appointed as such to a post approved as a permanent post, subject to the conditions of a period of probation, or a person who has been granted permanent status under Sub-sections 5:1, 5:2 or 5:3 even though he may continue to hold the casual or temporary post through which he acquired permanency.

3. Recruitment on casual basis

3:1 Recruitment to a casual post should be on a strictly casual basis.

3:2 A casual officer or a substitute may be recruited with due authority only on a daily pay basis. Such an officer will not have any claim to continued employment under Government. This fact should be made clear to him at the time of recruitment.

3:3 Recruitment on a casual basis to a vacancy in the permanent sanctioned cadre, pending the filling of the vacancy on a permanent basis should be avoided. Where, due to urgency, a stop-gap casual appointment is made, immediate steps should be taken to make a permanent appointment in accordance with the approved Scheme of Recruitment. Such a vacancy should as far as possible, be filled within a month, and in any case within three (03) months.

3:4 If an alternative job opportunity is not available, the services of a casual officer who is engaged in a specific project /activity /assignment should be terminated on completion /abandonment of such project /activity /assignment irrespective of the time involved for its completion.

3:5 The engagement for a service which is required seasonally (e.g., on an agricultural farm) should always be on a casual basis.

3:6 A period of service of any casual officer who is on daily pay beyond the age of fifty five (55) years will not be reckoned for the purpose of payment of any gratuity under the Minutes on Pensions.

4. Grant of Temporary Status and Monthly Pay

4:1 A Casual officer filling a vacancy in a post in the Combined Services should not be granted monthly pay, temporary status or permanent status except on the specific instructions of the Director General of Combined Services.

4:2 An officer appointed to a post approved as a temporary post should be placed on the monthly scale of pay applicable to the post.

4:3 A casual officer will be granted monthly pay and temporary status on his satisfying the following conditions :-

he is a citizen of Sri Lanka; his work and conduct during the five (05) years immediately preceding the grant of this concession have been satisfactory; and he has ten (10) years' service with an attendance of not less than 2,520 days, within these ten (10) years. Where an officer's attendance has fallen short of 2,520 he will become eligible for the concession only on the date on which he completes 2,520 days of attendance (Any period of full pay leave and public holidays with full pay will be counted as "attendance" for this purpose).

5. Grant of Permanent Status

5:1 An officer who has continuous service in a temporary capacity in one and the same post for five (05) years will be granted permanency in that post, provided his service has been satisfactory.

5:2 An officer who has moved from one temporary post to another will be granted permanency in the last post held, provided he counts an aggregate of not less than seven (07) years of uninterrupted service in these posts and provided his service has been satisfactory.

5:3 An officer who has served in a temporary capacity in more than one post but in interrupted periods will be granted permanency provided the aggregate of the periods of actual service in a temporary capacity is not less than ten (10) years and the aggregate of the periods of break in his service is less than five (05) years. Such an officer will be granted permanency in the last post held by him or in a post of a comparable or lower grade in which he had service, at the discretion of the Appointing Authority provided his service has been satisfactory.

5:4 A temporary officer who has been granted permanency under the above rules is liable to be retired when his services are no longer required.

5:5 Permanent status granted to an officer under the above rules is related to the post in which permanency is granted, and he will enjoy that status only so long as he remains in that post.

5:6 If an officer who has been granted permanent status in one post, moves to another post which is not permanent, he will, except as provided for in Sub-section 5:7 lose the permanent status secured in the previous post. If the new post to which he has moved is a temporary one, he will be granted permanent status after two (02) years' continuous service in the new temporary post.

5:7 If an officer who has been granted permanent status in one post is appointed to another post which is in the direct line of promotion from his former post, (e.g., promotion from Storekeeper, Grade II Segment B, to Storekeeper, Grade II Segment A) he will retain in his new post, as personal to him, his permanent status, even though the new post is a temporary one. This concession will not apply if the new post is a casual one.

5:8 Notwithstanding anything contained in Sub-sections 5:1 and 5:3 above, a temporary/ casual officer in service could be absorbed to fill a vacancy in the permanent cadre of the same post or grade, provided he has the minimum qualifications prescribed in the Scheme of Recruitment for the post or grade to which he is appointed a minimum of three (3) years' service in such post, whether on a temporary or casual basis or both, and provided his work, attendance and conduct are satisfactory. Where an officer's attendance has fallen short of 750 days during the three (03) year period of service, he will become eligible for this concession only on the date on which he completes seven-hundred and fifty (750) days' attendance.

5:9 In the case of skilled and semi-skilled labour, the minimum service qualification referred to in Sub-section 5:8 above, may be relaxed, taking into consideration the dearth of skilled manpower.

5:10 Seniority- The seniority of an officer who is granted permanent status in accordance with the above rules, will be determined by the date from which he is granted permanency.

5:11 Probation.—An officer granted permanent status will be on probation as provided for in Section 11 of Chapter II.

6. Pensionable Post and Pensionability

6:1 A permanent post is not necessarily pensionable. Only a permanent post, which has been scheduled under the Minutes on Pensions is pensionable. A post will be so scheduled under the authority of the Secretary to the Ministry of Public Administration.

6:2 A pensionable officer is one appointed as such to a post scheduled as a pensionable post under Section 2 of the Minutes on Pensions.

6:3 A holder of a pensionable post is not necessarily pensionable. e.g., an appointment to a pensionable post may, for special reasons, be made on a contractual and non-pensionable basis.

CHAPTER V

RELEASE, REVERSION AND TERMINATION OF EMPLOYMENT

1. Release for appointment to some other post in the Public Service
2. Release for Service outside the Public Service
3. Reversion
4. Resignation
5. Retirement
6. Termination of appointment
7. Vacation of post
8. Return and Index of officers dismissed, etc.

CHAPTER V

RELEASE, REVERSION AND TERMINATION OF EMPLOYMENT

1. Release for appointment to some other post in the Public Service

1:1 If an officer holding an appointment in the Public Service wishes to obtain some other appointment in the Public Service, he should secure his release from the appointment he holds.

1:2 The release will be granted by the Appointing Authority, to whom he should apply through the Head of his Department.

1:3 The Appointing Authority will not normally refuse to release an officer who seeks to better his prospects unless:

1:3:1 the officer is under a Bond to serve in that post or Department.

1:3:2 even though he is not under a Bond, he has been specially trained to perform the duties of his post.

1:3:3 it would very seriously affect the work of that Department to the extent that it out-weighs the consideration that the Government will still have the benefit of his services in a different capacity.

1:4 If an officer has received a special training to perform the duties of the post he holds, as referred to in Sub-sections 1:3:1 and 1:3:2, he should be released for service in a new post only if his training will be of direct use in the new post he seeks.

1:5 The Head of the Department should obtain the approval of the Secretary concerned before releasing an officer or recommending his release to the Appointing Authority if it would adversely affect, to any appreciable degree, the work of the Department.

1:6 If an officer's services are required temporarily in another post in the Public Service, he should be appointed to act in that post and the provisions of Section 13, Chapter II will apply.

2. Release for Service outside the Public Service

2:1 An officer may be released for service outside the Public Service (as for instance in a Public Corporation) only with the sanction of the Appointing Authority

and any other authority whose concurrence is required by the law under which the Corporation or Board is constituted.

2:2 Every such release requires the concurrence of the Director of Establishments as well, to ensure the preservation of pension rights of a public officer during a period of temporary release to a Public Corporation and, in the case of permanent release, the conferment of benefits under the Minutes on Pensions in respect of services under the Government.

2:3 An application for release (Temporary or Permanent) should be made on a form as in specimen given at Appendix 6 by the Appointing Authority of the officer's substantive post through the Secretary to his Ministry and the Secretary to the Ministry under which the Public Corporation to which it is proposed to release the officer.

2:4 An officer over 53 years of age should not be released temporarily or permanently for service to a Public Corporation, unless—

2:4:1 There is no other suitable officer in the service of the Board / Corporation concerned who could be appointed to the post ; and

2:4:2 It has been found after advertisement, that there is no suitable person who could be recruited from outside the Public Corporation other than a retired public officer.

2:5 If the officer is released temporarily, the terms of his release will be as follows :-

2:5:1 The period of release should not exceed two (02) years. Before the expiry of the period of temporary release he should opt either to revert to his former post or (if the Public Corporation desires to retain his services permanently) to be permanently released to that Public Corporation.

2:5:2 If the officer is released at the instance of Government or on grounds of public policy, he will be regarded as being on no pay leave on grounds of public policy for the purposes of Section 10(1) of the Minutes on Pensions.

2:5:3 The pensionary contribution in respect of a public officer on temporary release to a Public Corporation is 25% of his new consolidated salary. This applies to all cases of temporary release, irrespective of purpose, where a pensionary contribution is stipulated.

2:5:4 If the release is at his own instance, he will be granted no pay leave and will not be entitled to the benefits of Section 10(1) of the Minutes on Pensions. He will not be considered for promotion to any vacancy which may arise during the period of his release.

2:5:5 The terms on which an officer who has been temporarily released will revert to his former post in the Public Service will be as provided for in Sub-sections, 6:4 and 6:5 of Chapter VII and Sub-sections 14:3:4 and 14:3:5 of Chapter II.

2:6 If an officer is permanently released for service in a Public Corporation, the terms and conditions of his release will be governed by the law under which that Public Corporation is constituted and by the relevant provisions of the Minutes on Pensions.

2:7 An officer in the Public Service who wishes to become or to be a member of the Volunteer Force or the Volunteer Reserve of the Army and any such person who is a member of that Force or Reserve, should be released and provided all facilities to undergo and to render such military training and military service on production of a document from the Commander of the Army or from any authority duly authorized to do so on his behalf.

2:8 If an officer is released on no pay leave to take up employment abroad (whether under a Foreign Government, an international organization or a private employer) the provisions of Section 16 of Chapter XII will apply.

3. Reversion

3:1 An officer who is permanently released or who relinquishes his post to accept another post whether in the Public Service or outside it, will have no right of reversion to his former post.

3:2 Such reversion, if permitted, will be regarded for all purposes as a new appointment made outside the Scheme of Recruitment, and will, in all cases, require the approval of the Appointing Authority and the Director General of Establishments.

3:3 Where reversion is so permitted, the officer's seniority on reversion will be determined by Section 14 of Chapter II and his salary on reversion will be determined by Section 6 of Chapter VII.

4. Resignation

4:1 An officer may submit his resignation from his appointment with one month's notice to the Appointing Authority through the Head of his Department or on payment of a month's salary in lieu thereof.

4:2 If the Appointing Authority refuses to accept his resignation and the officer ceases to report for duty, he should be deemed to have vacated his post as from the date of such cessation (see Section 7).

4:3 On receipt of the resignation of a pensionable officer, the Head of his Department should inform the officer in writing, that if he resigns from his appointment he will forfeit all claims to a pension, gratuity and all other benefits arising from his service prior to resignation, should he afterwards succeed in obtaining re-employment under Government.

4:3:1 He should also be informed that if his resignation is accepted, any application to withdraw it later will not be considered.

4:3:2 An acknowledgement to the effect that he has been informed in these terms should be obtained from him in writing.

4:4 When forwarding a resignation for acceptance by the Appointing Authority where the Head of Department is not the Appointing Authority, the Head of Department should state that he has complied with the requirements of Sub-section 4:3.

4:5 Acceptance of resignation should be notified in writing to the officer concerned.

4:6 An officer who resigns forfeits all claims and benefits arising from his services prior to his resignation. However, if an officer resigned and rejoined service, the period of service prior to resignation will be considered for pension purposes only, provided his work and conduct have been satisfactory. (see Chapter VII, Sub -section 8:1).

5. Retirement

5:1 The retirement of a Public Officer is governed by the Public and Judicial Officers (Retirement) Ordinance and rules made under that Ordinance.

5:2 The optional age of retirement of a public officer is fifty-five (55) years.

5:3 An officer may remain in service up to the age of fifty-seven (57) years without obtaining an extension of service annually, subject to the provisions of the following Sub-sections.

5:3:1 An officer who has exceeded fifty-five (55) years of age, may retire from the service, at his own discretion, after giving a minimum of three (03) months' prior notice to the Appointing Authority.

5:3:2 If the Appointing Authority decides that the performance and efficiency of an officer who has exceeded fifty-five (55) years of age are unsatisfactory, he has the authority to retire him, after giving three (03) months' notice.

5:4 The Cabinet of Ministers or the Public Service Commission in which the appellate power is vested has the authority to revise, vary or cancel an order made by an Appointing Authority regarding the extension of service considering the reasons in an appeal submitted by an aggrieved officer.

5:5 The Appointing Authority has the authority to extend the period of service of an officer from the age of fifty-seven (57) years, up to sixty (60), on the ground of the service requirement, subject to the provisions of the following Sub-sections.

5:5:1 An officer who intends to remain in service beyond the age of fifty-seven (57) years should forward his application for extension of service to the Appointing Authority through the Head of the Department, annually. The application for the first extension should be made six months prior to the date, which he reaches fifty-seven (57) years of age and the applications for extension of service up to sixty (60) years of age should be made three (03) months prior to the date, which the period of extension commences. The Appointing Authority on considering such application shall decide on granting the extension of service.

5:5:2 Where the Appointing Authority is the Cabinet of Ministers, the application for extension of service should be submitted to the Secretary to the relevant Ministry before the prescribed date, as mentioned in Sub-section 5:5:1. The Secretary shall decide on granting the extension of service after consulting the Minister. In the case of a decision to refuse the extension of service, such decision should be referred to the Cabinet of Ministers by the relevant Minister explaining the reasons for such decision.

5:5:3 An officer should be informed of the period for which his service is extended. An extension of service should not be granted for more than a year at a time.

5:6 Unless it is a disciplinary order, the relevant Authority shall not take action to send an officer on retirement in terms of the above provisions, before the two dates, which is the date that the officer completes ten (10) years of service when the period of service that can be counted for pension is less than ten (10) years, or the date that he completes the age of sixty (60) years, whichever date comes first.

6. Termination of appointment

6:1 The services of an officer holding a temporary appointment may be terminated at any time by the Appointing Authority without any reason being assigned.

6:2 A probationary appointment may be terminated at any time by the Appointing Authority without any reason being assigned.

7. Vacation of post

7:1 An officer who absents himself from duty without leave will be deemed to have vacated his post from the date of such absence and he should be informed accordingly at once by registered post or by personal delivery to him.

7:2 An order of vacation of post under this Section can be issued by the Disciplinary Authority or a Staff Officer who is a local Head of Department.

7:3 Charges should not be framed against him nor should he be called upon to submit an explanation for his absence without leave.

7:4 If he/she volunteers an explanation within three months, it should be considered by the appropriate disciplinary authority in terms of the disciplinary rules and permission to resume duties may be allowed or refused by that authority (see also Chapter XLVIII).

8. Return and Index of officers dismissed, etc.

8:1 When an officer is retired for inefficiency, or as a merciful alternative to dismissal or is dismissed or his services are terminated for a specific act of misconduct while holding a temporary appointment or an appointment on probation or trial, or vacates his post, the Head of the Department should promptly report the event to the Director General of Establishments who will from time to time issue a list of such officers to all Departments.

8:2 A Head of Department and an Appointing Authority should maintain an alphabetical index of the names of such officers and should ensure that they are not re-employed.

CHAPTER VI

SERVICE RECORDS, REPORTS AND CERTIFICATES

1. General
2. History Sheet
3. Personal Record File
4. Personal File
5. Personal Record File/Personal File
6. Confidential Report
7. Certificate of Service

CHAPTER VI

SERVICE RECORDS, REPORTS AND CERTIFICATES

1. General

1:1 Any adverse comment made in a history sheet, personal file, annual performance/ work report or confidential report of an officer must be communicated to him.

1:2 A Certificate must also be made on or attached to the document carrying such an adverse comment, to the effect that the requirement in Sub-section 1:1 has been complied with.

1:3 Documents required for purposes of determining and paying an officer's pension should be maintained by a Department in accordance with instructions issued by the Director General of Pensions. Utmost care should be given to the maintenance of these documents to avoid delays in the sanctioning of pension, when the officer finally retires from service.

1:4 An official communication relating to the character and service of a Public Officer must not be placed at his disposal.

2. History Sheet

2:1 When an officer is appointed to a post, whether permanently or on probation or on agreement, a history sheet for such an officer should be prepared at once. If the officer has had prior service under the Government, immediate steps should be taken by the Head of Department in which the officer is appointed, to obtain particulars of all such prior service, temporary or otherwise, on appropriate History Sheets, duly certified by the Heads of Departments where the officer had been employed. These History Sheets should then be shown to the officer and a certificate should be obtained from him to the effect that the particulars therein are correct.

2:2 A History Sheet on Form General 53A must be maintained in respect of an officer appointed permanently to a pensionable post, except an officer of the Railway, Police, Survey and Education Departments (whose History Sheets will be maintained on forms adapted to their requirements) and one for whom a personal Record File is maintained in terms of Sub-section 3:1.

Chapter VI]

2:3 A History Sheet of a monthly paid and a daily paid officer should be maintained on Form General 234 and Form General 226A respectively. In the case of an officer contributing to the Public Service Provident Fund (PSPF) his PSPF Number and the date of commencement of contribution to the PSPF should be mentioned.

2:4 The Railway, Police, Survey and Education Departments are exempted from maintaining History Sheets on the understanding that the entries made in the registers maintained by them are checked by a responsible officer. A certified copy thereof giving full particulars of salaries paid and half pay and no pay leave granted to each officer should be forwarded to the Auditor General's Department for verification periodically. This copy should finally be sent to the Director General of Pensions with the pension application of every retiring officer.

2:5 The existing method of recording service may be continued in the case of telegraph messengers who are paid message fees according to the number of telegrams delivered.

[Removal](#)

2:6 A History Sheet need not be kept for-

a casual substitute, unless a substitute for any particular grade is employed frequently and is likely, in due course, to be absorbed into the grade; a History Sheet should be maintained on Form General 234 or 226A as the case may be.

a temporary or casual daily paid officer, provided full information can be furnished in respect of any such officer subsequently taken on by another Department.

a worker employed on "agreement" under contract. - A record must, however, be kept in respect of a piece rate worker paid directly by the Government.

2:7 The History Sheet of an officer will usually be kept in the Department concerned. That of an officer of a Combined Service will, however, be kept in duplicate, one copy by the Department concerned and one copy by the Director General of Combined Services.

2:8 For the purpose of maintaining the History Sheets of officers of a Combined Service, a Head of Department in which such an officer is employed, must report monthly to the Director General of Combined Services, the information set out in Sub-section 2:9:3.

2:9 A History Sheet should be maintained in accordance with the following rules.

2:9:1 It should be kept under lock and key and should generally be arranged in alphabetical order.

2:9:2 The duty of entering information into the history sheet and its custody should be entrusted to a Senior Clerk/ Senior Public Management Assistant who will be held responsible for its safety and for the correctness of the entries in it.

2:9:3 All changes of the description set out in Sub-section 2:10, and half pay and no pay leave should be entered in it direct from and immediately after, the issue of the original order of the Head of Department. Commendations and Censures should be entered on Form General 230B and filed along with the History Sheet.

2:9:4 The Date of Birth of the officer should be noted in it when it is opened, after verification from a Certificate of Birth or a Certificate of Probable Age (issued by the Registrar General) furnished at the officer's expense. The entry on the history sheet should be initialed by a Staff Officer. Where only the year of birth is known, the 1st July of that year should be regarded as the date of birth. In such case, a note should be made in the History Sheet to indicate that the 1st of July is a hypothetical date.

2:9:5 Every entry in a history sheet should be checked with the original order and initialed by a Staff Officer. A Staff Officer should also check from time to time, and at least once in three months, to see that the notes are kept up-to-date and that all necessary History Sheets have been duly opened for all the relevant officers and are fully accounted for.

2:9:6 A History Sheet should not be accessible to any officer other than a Staff Officer, the Head Clerk/ Chief Public Management Assistant or other person specifically authorized by the Head of the Department. An officer should be allowed to see his own history amendment sheet at intervals of five years in the presence of a Staff Officer so authorized. A certificate should be obtained from the officer after each scrutiny to the effect that the particulars therein are correct.

Revision

2:9:7 Whenever the Head of the Department has occasion to report to the Secretary to the Ministry for disciplinary action against a Staff Officer, he should attach to such report a certified copy of the History Sheet of the officer concerned.

2:9:8 When an officer is transferred from one Department to another, the former Department should make out and retain a copy of his History Sheet and forward the original to the latter Department under confidential cover.

2:9:9 When an officer eventually retires, his History Sheet should be attached to the paper of particulars for calculation of pension and forwarded direct to the Director General of Pensions.

2:10 Full particulars of every appointment, acting and probationary appointment, confirmation, extension and termination of probationary and acting appointment, transfer (excluding a transfer within a department which does not

involve either change of station or any alteration in emoluments) promotion, release, grant, suspension, stoppage, reduction or deferment of increment, promotion or disallowance of promotion over an Efficiency Bar, interdiction, suspension, reduction in rank, salary or allowance, dismissal, resignation, retirement, re-instatement and death must be reported by a Head of Department to the Auditor-General.

2:10:1 In the case of a transfer involving a change of station, it should be stated whether the travelling expenses are to be met from public funds or by the officer concerned.

2:10:2 This return of 'changes' should be furnished in Form General 228 as soon as the month in respect of which it is rendered is past.

2:10:3 'Nil' returns should not be sent, but the information that there was nothing to report for the month succeeding the date of the last return should be embodied in the next return.

3. Personal Record File

3:1 A Personal Record File on Form General 230A should be maintained in respect of every officer-

appointed to any permanent post by the President or Cabinet of Ministers;
in a Combined Service who holds an appointment as a Staff Officer;
belonging to a Departmental grade, who had appointment as a Staff Officer.

3:2 The authority responsible for maintaining these files will be as follows :-

Officer appointed by the President	.. Secretary to the President
Officer appointed by the Cabinet of Ministers	.. Secretary to the Cabinet
Officer of a Combined Service	.. Secretary to the Ministry of Public Administration
All others	.. The Head of Department

3:3 The Head of Department responsible for maintaining this file in respect of "All others" referred to at 3:2 above, should transmit a duplicate copy of it and of all subsequent entries or alterations made in it, to the Secretary to the Ministry concerned.

4. Personal File

A Personal File should be maintained in respect of every officer (there is no specific form as in the case of Personal Record File for this purpose).

The authorities responsible for maintaining a personal file are:-

Authority appointing an officer

Authority employing an officer

Example

In the case of a Public Management Assistant of the Combined Service, the Director General of Combined Services will maintain the central personal file. At the same time the Department in which the officer works will maintain a departmental personal file. When the officer is transferred to another Department the departmental personal file will be sent to his new Department.

5. Personal Record File/Personal File

5:1 The Personal Record File/Personal File should be maintained by a Staff Officer and these of a Staff Officer, should be maintained by a Staff Officer of a higher grade. Where this is not possible, a senior officer of the grade concerned may be placed in charge, with due regard to propriety in a particular situation e.g. if the officer in charge is due for promotion etc., then the Head of Department should handle such a file.

5:2 A censure should be entered in red ink in the Personal Record File or Personal File, in the case of an officer for whom a Personal Record File is not maintained, and every such case must be supported by a certificate to the effect that it has been conveyed to the officer and that any protest made by him against it has been considered and over-ruled before entry was made.

5:3 No papers relating to a disciplinary matter should be filed in the Personal Record File or Personal File unless the officer has been found guilty of any charge. If so, a copy of the charge and the disciplinary order should be filed in it.

5:4 A Petition against an officer may be filed in the Personal Record File/Personal File only if an official report on it is also filed with it.

6. Confidential Report

6:1 A Confidential Report on an officer for whom a Personal Record File is maintained, should be forwarded by the Head of the Department to the Secretary to the Ministry.

In the case of a Head of Department, the Confidential Report will be made by the Secretary.

In the case of an officer of a Combined Service the report will be made to the Secretary to the Ministry of Public Administration.

Chapter VI]

A Confidential Report of an officer of the Sri Lanka Engineering Service will be made to the Secretary to the Ministry of Public Administration through the Director, Engineering Service.

6:2 Where it has been the practice to furnish a Confidential Report on any other class or grade of officer in any Department, to the Head of Department or other Authority, the practice should be continued unless and until the Secretary to the Ministry gives instructions to the contrary.

6:3 The duplicate copy of an Annual Confidential Report in respect of 'All others' referred to under Section 3:2, to be filed in the duplicate of Personal Record File, should be sent to reach the Secretary to the Ministry concerned before the 31st January, each year.

6:4 Any adverse comment made in the Confidential Report of an officer should be communicated to him, and any written protest or appeal by him against such a comment should be attached to the Confidential Report to be placed on record.

7. Certificate of Service

7:1 No certificate of character, merit or service should be given in any circumstances to any public officer other than a public officer who is leaving the Public Service on retirement or voluntary resignation.

7:2 An officer who leaves the Public Service on retirement or voluntary resignation or on the termination of a temporary appointment for reasons other than unsatisfactory work or conduct, may be supplied with a certificate of service embodying the following details :-

Name of officer;
Period of service under Government;
Positions held with dates and names of Departments;
Cause of leaving the Public Service;
Efficiency;
General conduct.

7:3 Such a certificate in respect of an officer of a Combined Service will be issued by the Secretary to the Ministry of Public Administration.

In the case of other officers, it will be issued by the Head of the Department and in the case of a Head of Department, it will be issued by the Secretary to the Ministry concerned.

7:4 The authority completing the certificate of service should bear in mind that the main purpose of such a document is its use as a reference concerning the officer's period of service under the Government when he wishes to seek employment

elsewhere. He should, therefore, give in it all the information, which a prospective employer might fairly expect to obtain from the person who had previously employed the officer.

In the case of an officer whose service has not been satisfactory, credit should be given for any good qualities shown which might enable him to obtain employment in other walks of life.

CHAPTER VII

SALARIES

1. General
2. Computation of Salary for part of a year or month
3. Salary on first appointment
4. Salary on revision of a salary scale
5. Salary on Promotion
6. Salary on Reversion
7. Salary on Interdiction
8. Salary on Re-employment, Alternative employment and on Release
9. Incremental Credit
10. Increments
11. Salary of a deceased officer
12. Acting salary and special additional remuneration

CHAPTER VII

SALARIES

1. General

1:1 The determination of salaries is a function shared by the Director General of Establishments and the Director General of Budget, General Treasury who will act in consultation. The Director General of Establishments will assign salary scales in the existing salary structure of the Public Service to particular posts or grades. The Ministry of Finance will be responsible for the formulation of new salary scales and for the revision of the general salary structure as a whole.

1:2 Determination of a salary or salary scale to be prescribed for a new post will be made and the General Treasury and the Director General of Establishments if that early or salary scale is brought under the existing salary structure.

1:3 A salary must be paid in accordance with the rates and scales so approved and should not be altered on the grounds that different rates or scales are shown in the Estimates.

1:4 Action should be taken as per 1:2 above regarding the all new proposals for assignment of salary scales to new posts created by the Director General of Management Services of the General Treasury, for which no salary scale has been determined and further, such proposals should not be included in the estimate of the following financial year without prior approval.

1:5 Any revision of a salary will be effective as from the date on which such revision is ordered unless expressly stated otherwise in the order.

1:6 An officer should not receive the salary for any period during, which he has been absent from duty without leave, independent of any disciplinary action that may be taken for such absence.

1:7 An officer under interdiction will have his salary determined under Section 7.

1:8 An officer who has vacated his post will not be entitled to any salary from the date of such vacation. Further, one (01) month's salary, in lieu of notice, should be recovered from any money payable to him.

2. Computation of salary for part of a year or month

2:1 Where a salary is fixed on an annual basis, the portion of it payable for any part of a year or a month will be computed as follows.

2:2 One twelfth of the annual salary will be an officer's pay for one calendar month.

2:3 When an officer who is entitled to a monthly salary enters service on first appointment on a day other than the first day of a month, or when he is on no pay leave for any part of a month, the salary payable to him for that month will be in proportion to the number of days (inclusive of non-working days) in that part of the month he worked.

Example

A is appointed on 24.03.2010 to a post the salary of which is Rs. 13,990.00 per month.

Period served 24-31st March = 8 days

Pay for March is;
$$\frac{8}{31} \times 13,990 = \text{Rs. } 3,610.32$$

B is on no pay leave for two days in March, 2010. His pay for a month is Rs, 13,990.

Period of service in that month (31 days-2 days) = 29 days

Salary payable for March is;
$$\frac{13,990}{31} \times 29 = \text{Rs. } 13,087.42$$

2:3:1 When a period of no pay leave or half pay leave commences on a day following a holiday or ends on a day preceding a holiday, that holiday will not be included in the period of such leave, provided the officer was on duty on the day immediately before the holiday at the commencement of that period of leave, or on the day immediately following the holiday at the end of that period of leave.

Example

C is on duty on 31.12.2009. He is absent on no pay leave from 02.01.2010, resuming duties on 12.01.2010, 01.01.2010 and 11.01.2010 are holidays.

The period of no pay leave will be 02.01.2010 to 10.01.2010 (both days inclusive) that is 9 days.

2:4 When the annual or monthly salary of an officer is changed (e.g. due to grant of an increment, on promotion or on revision of the salary scale or a reduction of salary) with effect from a date which is not the first of the month, the salary for that month will be determined in proportion to the number of days in each part of the month served at the appropriate rate of pay.

Example

D is on a salary of Rs.14,280.00 per month and receives his monthly increment of Rs. 145 on 28th April.

Pay for the period 1st to 27th of April is;

$$\begin{array}{r} \text{Rs.14,280} \\ \text{-----} \\ 30 \end{array} \times 27 = \text{Rs.12,852.00}$$

and pay for the period 28th to 30th of April is;

$$\begin{array}{r} \text{Rs. 14,425} \\ \text{-----} \\ 30 \end{array} \times 3 = \text{Rs.1442.50.}$$

His pay for the month is Rs. 14,294.50 (Rs. 12,852+1442.50)

An alternative method of calculation would be as follows:

Salary for the month is Rs. 14,280.00. Portion of increment for 28th to 30th of April

$$\begin{array}{r} 145 \\ \text{-----} \\ 30 \end{array} \times 3 = \text{Rs.14.50}$$

Pay for the month is Rs. 14,294.50

2:5 In the calculation of salary, if the amount payable involves a fraction of a cent, the fraction should be reckoned as a cent if it exceeds half a cent; the fraction should be excluded if it is a half cent or less than a half cent. vide F. R. 238(3).

3. Salary on first appointment

3:1 An officer should, on first appointment to a post be placed on the initial of the salary scale of that post unless he is entitled to be placed at a salary point in terms of Sub-section 3:3 and 3:4 of this Section, or of Section 5 or Section 9.

3:2 An applicant for a post should not be promised a salary point or he should not be placed at a salary point except as provided for in this Section.

3:3 An officer may be placed at a salary point in consideration of any special qualification and/or experience only if the advertisement for the post includes provisions to the effect that an applicant with such a special qualification and/or experience will be placed at a suitable salary point.

3:4 The due salary point on which he may be placed may be specified in the scheme of Recruitment and/or advertisement or may be left open for a decision taking

action as per 1:2 above. Concurrence of relevant authorities should be obtain for inclusion of such provision in the Scheme of Recruitment.

3:5 Where such provision is made in the advertisement, the Selection Board should carefully examine the qualifications and experience of the candidate selected and make its recommendation regarding the salary point.

3:6 Where the salary point is left open to negotiation in terms of Sub-section 3:4, the selected candidate should not be permitted to assume the duties of the post until agreement is reached and the approval of the Authorized Officer approving the Service Minute or the Scheme of Recruitment obtained thereto.

3:7 Provision should not be made in any letter of appointment for placing the officer on a salary point unless the prior approval of the authority, who approves the Service Minute/Scheme of Recruitment has been obtained.

4. Salary on Revision of a Salary Scale

4:1 When a salary scale is revised, the conversion of the salary of a serving officer to the revised scale should be made as from the effective date.

4:2 Unless otherwise directed by the Director General of Establishments or the Authority for granting approval for salary revision, the salary of a serving officer should be converted from an old scale to a new scale, in accordance with the following rules.

4:3 If on revision, the last salary drawn by an officer on the old scale falls between incremental steps of the new scale, he will be placed on the next higher step on the new scale.

4:4 If after revision, the last salary drawn by an officer corresponds to a salary step on the new salary scale, he should be placed on the next (higher) salary step.

4:5 If on revision, the last salary drawn by an officer is below the initial of the new scale he will be placed on the initial of the new scale.

4:6 An officer's future incremental date will be the effective date of the revision of the salary scale.

4:7 If at the time of revision, an officer is serving on the maximum of his scale, the question of granting him stagnation credit will be determined by the Director General of Establishments taking into consideration the officer's relative seniority, promotional opportunities etc. The Head of Department should address the Director General of Establishments indicating the above particulars together with his recommendation.

4:8 If the new salary scale is disadvantageous to an officer in service at the time it is introduced, the approval of the Director General of Establishments may be sought to allow him the old salary scale, as personal to him.

4:9 The “Last Salary Drawn” means the salary drawn by an officer on the date immediately prior to the effective date of the revision of salary and not the salary drawn at the time the salary revision is intimated.

5. Salary on Promotion

5:1 An officer will receive the salary of the post to which he is promoted from the effective date of his promotion as defined in Sub-sections 1:9 to 1:14 of Chapter II.

5:2 When that salary is a fixed non-incremental salary, he will receive that salary.

5:3 If the salary of the post to which an officer has been promoted is on an incremental salary scale, his salary should be converted from one salary scale to the other salary scale according to the following instructions. In the course of this salary conversion if an officer has earned a salary increment within a year up to the date of his promotion he should be paid the amount equal to the value of the earned salary increment. His salary should be converted as shown below dis-regarding the value of the earned increment of salary in deciding the salary step on promotion.

5:3:1 If on promotion, the last salary drawn by an officer falls between the salary steps of the new salary scale, he should be placed on the immediately next higher salary step, and also he should be given an additional salary increment.

5:3:2 If on promotion, the last salary drawn by an officer corresponds to the initial salary or to a salary step on the new salary scale, he should be placed on the next higher step.

5:3:3 If on promotion, the last salary drawn by an officer is less than one incremental step (incremental steps of the promotion) or more incremental steps than the initial salary of the new salary scale, he should be placed on the initial salary step of the new salary scale.

5:3:4 If on promotion, the last salary drawn by an officer is less than one incremental step below the initial salary of the new salary scale he should be placed on the initial step of the new salary scale and paid an additional salary increment.

5:4 An officer’s future incremental date will be the effective date of promotion.

5:5 If the salary point on which a promoted officer is placed is above an Efficiency Bar for promotion over which he is not yet qualified, he would not be

granted any further increments until he is promoted over the Efficiency Bar, unless the authority of the Director General of Establishments is obtained either to grant him an extension of time to pass the Efficiency Bar or to exempt him from the Efficiency Bar taking into consideration his age, seniority, experience and efficiency.

5:6 Where a salary revision and promotion of an officer fall on the same day, the conversion of salary on promotion of such an officer should be made either on the basis of the old salary scales (before converting his salary into the new salary scale in terms of Section 4) or on the new salary scales (after converting his old salary into new salary scale in terms of Section 4) is more beneficial to the officer.

5:7 The “Last Salary Drawn” means the salary drawn by the officer on the date, immediately prior to the effective date of promotion and not the salary drawn at the time of promotion is intimated.”

New Inclusion

6. Salary on Reversion

6:1 When an officer is reduced and reverted to a lower grade or to a post previously held by him, the salary to be paid to him should be as specified in the disciplinary order.

6:2 When on abolition of office or on account of redundancy, an officer is reverted to a post or grade previously held by him, his salary on reversion will be the salary he would have drawn in his previous post or grade had he served in it continuously, and earned increments on the salary scale of his previous post or grade, provided that it does not exceed the last salary drawn by him in the post from which he is reverted and provided that he does not receive incremental credit for any period during which his increment had been deferred.

6:2:1 If under Section 6:2 he would be placed on a salary step over an Efficiency Bar which he has not passed, the approval of the relevant authority should be obtained either to grant him an extension of time to pass the Efficiency Bar or to exempt him from the Efficiency Bar.

6:3 When an officer at his own request has been reverted to a Post or Grade previously held by him, on the recommendation of the Appointing Authority and the approval of the Cabinet of Ministers/ Public Service Commission, it should be treated as a new appointment and the officer should be paid the initial salary entitled to the class/grade in which he served for the last time, in the salary scale of the post to which he is reverted.

Revision

6:3:1 If, however, there are any special circumstances that would justify assigning him a salary point higher than the initial, the approval of the Director General of Establishments should be obtained before reversion. He should not, in any case be allowed on reversion a salary higher than the salary he would have drawn had he continued in the post without relinquishing.

6:4 When an officer who has been released on grounds of public policy for service outside the Public Service, reverts to his substantive post, he will be placed on the salary he would have drawn had he continued in his substantive post, and earned the increments on the salary scale of that post, provided that he has passed in due time any Efficiency Bars that may be stipulated (see, Section 2 of Chapter V).

6:4:1 If he has not satisfied the requirements for passing any Efficiency Bar, he will not be placed on a salary above that Efficiency Bar and Section 15 of Chapter II will apply. (The Provisions in Chapter X, Volume I of the Procedural Rules of the Public Service Commission shall be effective for officers in Central Government from 02.04.2009)

6:4:2 If, however, the circumstances of his release so warrant it, he may, on the recommendation of the Appointing Authority and the approval of the Director General of Establishments, be granted further time in which to pass that Efficiency Bar. If he does so within the extended time allowed, he will be restored the salary he would have drawn had he passed that Efficiency Bar in due time but such restoration will not have retrospective effect and he will not be paid any arrears of salary.

6:5 When an officer who has been released on grounds other than public policy for service outside the Public Service reverts to his substantive post, he will be placed on the last salary he drew at the time of his release. The period of such release will not have any incremental value. (see Section 2 of Chapter V). (The Provisions in Chapter XII, Volume I of the Procedural Rules of the Public Service Commission shall be effective for officers in Central Government from 02.04.2009)

7. Salary on Interdiction

7:1 When an officer is interdicted, Sections from 31:11 to 31:17 of Chapter XLVIII (Volume II of the Establishments Code) shall be applicable in respect of the salary to be paid to such officer.

7:2 The Disciplinary Authority can make an order to pay an amount exceeding one half of the emoluments considering the special reasons in respect of the officer concerned.

7:3 If an officer, who has been interdicted, fails to make explanations regarding the charges levelled against him within the given period or if he fails to appear for the inquiry on due date without acceptable grounds, the Head of the Department should take action to suspend the payment of emoluments approved to such officer under the Sub-sections mentioned above until the officer makes explanations regarding the charges or appears for the inquiry.

7:4 If the proceedings against an interdicted officer result in his dismissal, he will not be paid any emoluments withheld.

7:5 If the proceedings result in any less punishment than dismissal, the payment of the emoluments withheld or of a portion of them, will be decided by the Disciplinary Authority ordering the punishment and the decision will be stated in that order

7:6 If the proceedings result in the exoneration of the officer from the charges brought against him, he will be paid the emoluments withheld.

7:7 This Section will not apply to a temporary officer or to a casual officer. If in the opinion of the Appointing Authority the charges warrant interdiction had he been holding a permanent appointment, such temporary or casual officer should not be interdicted pending inquiry, but should be discontinued in accordance with the terms of his employment. He may be re-employed on completion of any inquiry if the circumstances of his case justify re-employment. If for special reasons it is necessary to retain some degree of control over the officer which would be lost if he were discontinued, the Director General of Establishments should be consulted.

7:8 An officer's "emoluments" means the emoluments of his substantive office, and comprise his new consolidated salary, cost of living allowance and any other allowances. It should not include an allowance in the nature of a duty allowance, or a reimbursement of expenditure incurred on official duty such as travelling, transport and combined allowance.

8. Salary on Re-employment, Alternative Employment and on Release

Revision

8:1 An officer whose prior service under Government has been terminated by resignation, termination of his probationary appointment, vacation of post, dismissal or termination of service for unsatisfactory work or conduct, will not, if he is subsequently re-employed, be entitled to any benefit for any period or periods of service prior to that event. His salary will be determined as for a first appointment.

8:2 An officer who is released from a post he holds in the Public Service to enable him to accept an appointment to some other post in the Public Service, will on appointment to the post for which he is released, be entitled to incremental credit for his past services in accordance with the rules in Section 9.

8:3 If an officer who has retired from the Public Service is re-employed on a pensionable basis, his pension or retiring allowance, if any, will cease from the date of his re-employment and his salary will be determined as per 8:4 and 8:5 below.

8:4 If he is re-employed in a post or grade other than that from which he retired, he will be granted incremental credit for his past services in terms of and subject to the provisions of Section 9 and his salary on re-employment and the future date of increment will be determined under the provisions of that Section.

8:5 If he is re-employed in the post or grade from which he retired, he will be paid the salary he drew at the time of retirement and his future date of increment will be the date of re-employment.

8:6 At such instances where an officer retired from Public Service is reemployed on contract basis, the salary to be paid to such officer will be determined on the conditions and provisions prevailing at the time of re-employment.

8:7 When due to suppression of a post or redundancy, an officer is granted alternative employment in another post with the approval of the Appointing Authority, his salary will be determined under Section 9.

8:8 When an officer confirmed in his post, is subsequently found to be unfit for service in that particular post by a Medical Board, and is granted alternative employment in another post with the approval of the Appointing Authority, his salary will be determined under Section 9.

8:8:1 If an officer has been declared unfit due to an accident whilst on duty or due to causes directly attributable to the nature and conditions of his employment, and the salary determined in terms of Section 9 results in an appreciable reduction in his salary with consequent hardship, an application may be made to the Director General of Establishments to determine the salary in terms of Section 4, subject to such conditions as may be appropriate. However, he is not entitled to receive more than the maximum of the post in which he is granted alternative employment.

New Inclusion

9. Incremental Credit

9:1 When an officer who has had prior service under Government, whether in a permanent or temporary capacity, secures a fresh appointment under the Government, he may be given incremental credit for the prior service as follows :

9:2 No incremental credit will be granted for the following periods of service :

9:2:1 Any period of prior service which forms part of the qualifications stipulated for the new post to which he is appointed,

Example

One of the qualifications stipulated for a post is five (05) years' experience as a Mechanic Grade II. "A" has served seven (07) years as a Mechanic in Grade II. "A" may be allowed incremental credit for two (02) years of service only.

9:2:2 Any period or periods of service prior to retirement for inefficiency, resignation, termination of a probationary appointment, vacation of post, dismissal or termination of service due to unsatisfactory work or conduct,

Example

"B" held an appointment in the Public Service from 28.04.1974 to 07.10.1976 on which date his probationary appointment was terminated. He is re-employed

on 25.07.1977 and serves till 01.07.1981, on which date he resigns. If he receives another appointment subsequently, he will not be entitled to incremental credit for either of the two periods of prior service.

9:2:3 Any period of service which has been reported as unsatisfactory (i.e. a period during which an increment has been suspended, reduced, stopped or deferred),

9:2:4 Any period of service which is shorter than the break which follows it,

9:2:5 Any period of service less than six (06) months,

9:2:6 Any period of service in a post which is inferior to the new post to which the officer is appointed,

9:2:7 Any period of service during which the officer received a salary which was less than the initial of the salary scale which prevailed at that time for the new post to which he is appointed,

9:3 Incremental credit may be granted only for past services in a post which is superior to or comparable with the new post to which the person appointed.

9:4 When an officer moves from one post to another without any break in service, and the salary scale of his previous post is not "superior" to or "comparable" with that of the new post to which he is appointed, incremental credit may be granted for the following period of service in the previous post :-

9:4:1 For period of service on a fixed salary higher than the initial of the new post.

9:4:2 For period of service on the initial and on salary steps higher than the initial of new post.

Example

“A” has 10 years’ service in a post with a fixed salary of Rs. 7,230.00 per annum. He is appointed without a break in service, to a post carrying the scale Rs. 6,600-8x90-7,320 per annum. The fixed salary is more than the initial of the scale and therefore the period of service on the fixed salary may be counted for incremental credit.

“B” has 8 1/2 years’ service in a post carrying the scale Rs. 6,780-8x90-7,500.00 per annum and was drawing the salary of Rs.7,410.00 per annum. He is appointed without any break in service to a post carrying the salary scale of Rs.7,320-2x90 & 6x120-8,220.00 p.a.

The first five years in the former post were on salary steps below the initial Rs. 7,320.00 and will, therefore, not count for incremental credit. The 6th year onwards may be counted.

9:5 Incremental credit may be granted for such periods of prior service as are admissible under Sub-sections 9:3 to 9:4 only via the salary scales that were in force for the new post to which the officer is appointed during those particular periods i.e. the salary the officer would have earned had he been paid for such admissible periods on the salary scales that were in force for the new post during such periods, should be ascertained.

Example

“A” is appointed on 01.01.1981 to a post with the salary scale of Rs. 3,900-15 X 180-6,600.00 per annum. The last salary drawn in the previous post was Rs. 4,620 per annum and prior service from 01.01.1975 to 16.02.1978 is admissible for incremental credit. If the salary scale for the post during the period 01.01.1975 to 16.02.1978 was Rs.3,432- 7 X 144 & 8 X 180-5,880.00 per annum, incremental credit for that period will be granted with latter scale as follows;

01.01.1975	-	Rs. 3,432.00
01.01.1976	-	Rs. 3,576.00
01.01.1977	-	Rs. 3,720.00
01.01.1978	-	Rs. 3,864.00
16.02.1978	-	Rs. 3,864.00

Rs. 3,864.00 the salary earned.

9:5:1 If the salary scale on which the earned salary is determined has been revised, the earned salary so determined should be converted to the revised salary on the basis authorized for the particular revision of salaries.

In that event the salary obtained on such conversion will be the earned salary, to be considered for determining the salary in the new post in terms of Sub -sections 9:6 and 9:7.

9:6 For the purpose of determining the salary step on which an officer should be placed in his new post, the salary to be reckoned is the last salary drawn in the previous post, or the salary earned in terms of Sub-section 9:5 whichever is lower.

Example

In the above example- Last salary was Rs. 4,620.00 per annum. Salary earned was Rs. 3,864.00 per annum. Therefore the salary to be reckoned is Rs. 3,864.00.

Chapter VII]

9:7 The salary step on which an officer is to be placed in a new post to which he is appointed, is determined as follows;

9:7:1 If the salary to be reckoned in terms of Sub-section 9:6 is below the initial of the new post, he will be placed on the initial.

The date of appointment to the new post will be the future incremental date.

9:7:2 If the salary to be reckoned in terms of Sub-section 9:6 is equal to any salary step of the new post, he will be placed on the next salary step. The date of appointment to the new post will be the future incremental date.

9:7:3 If the salary to be reckoned in terms of Sub-section 9:6 is also the last salary drawn and it is not a step in the salary scale of the new post, he will be placed on the next higher step. His date of increment will be the date of appointment to the new post.

9:8 In application of these provisions with regard to incremental credits, followings should be taken in to consideration.

9:8:1 No officer should be paid less than the initial of the post to which he is appointed.

9:8:2 No officer should be paid more than the maximum, the post to which he is appointed.

9:8:3 No officer, appointed to a post inferior to that which he held previously, should be paid more than what he would have been paid had all his service (admissible under Sub-sections 9:3 and 9:4) been in the inferior post.

9:9 An officer in a permanent and pensionable post in the Local Government Service who is released to enable him to accept an appointment in the Public Service, may be granted incremental credit under these provisions on appointment to the post for which he is released, deeming his service in the Local Government Service as service in the Public Service.

10. Increments

10:1 An officer is not entitled to draw an increment as of right. He is required to earn it by the efficient and diligent discharge of his duties and by serving the incremental period in full (see Sub-section 10:9). A certificate to that effect should be signed by the appropriate authority, before an increment is paid.

The period of evaluation relevant to the Staff Officers shall be one calendar year (e.g.:- From 01.01.1998 to 31.12.1998) and the period of evaluation for the other

officers shall be the period of twelve months immediately preceding the date of increment.

The order of paying the increment to a Staff Officer whose increment date falls in the first half of the year, depends on the final evaluation in the previous year. The order of paying the increment to Staff Officers whose increment date falls in the second half of the year depends partly on the midterm evaluation of the same year and the final evaluation in the previous year.

The order of paying an increment to all officers is made through Form General 232.

10:2 If such a certificate cannot be granted in respect of any officer, his increment is disallowed. The disallowance may take one of the following forms: "Suspension", "Reduction", "Stoppage", "Deferment" of that increment.

"Suspension of Increment" means the withholding of an increment for a specified period at the end of which, if the increment is restored, the officer will be paid that increment from the date on which it fell due. Suspension may be either a suspension of the last annual increment already granted or the suspension of an increment falling due.

"Stoppage of an Increment" means the withholding of an increment for a specified period at the end of which the increment, if it is sanctioned, is paid, but without the amount withheld during the period of stoppage.

"Reduction of an Increment" means the stoppage of an increment already paid as distinct from an increment due to be paid.

"Deferment of Increment" means a permanent setting back or postponement of an increment. The consequent loss of pay is continuous until the officer reaches the maximum salary of his post or grade.

Example

"A" is on a salary of Rs, 13,990.00 per month; his next increment is Rs, 145.00 per month; it is due on the 1st of July, 2010.

- (i). *Suspension of increment due* - If the increment due to him on the 1st of July is suspended for three months, he will continue to receive a salary of Rs.13,990.00 until the 1st of October. If it is decided to pay him that increment on 1st October, he will be paid a salary of Rs. 14,135 per month from the 1st of July, and the amount of the increment withheld in the months of July, August and September (145 x 3) i.e. Rs. 435.00 will be paid to him.

- (ii). *Suspension of increment already allowed* - If it was decided to suspend his increment for three (03) months in July 2010, his salary with effect from 1st July, 2010 would have been reduced from Rs. 14,135.00 to 13,990.00. If at the end of the three months it is decided to pay him the increment withheld, he will be restored to the salary of Rs. 14,135.00 and he will also be paid the amount of the increment withheld during the period of 3 months, i.e. Rs. 435.00

In either case he suffers no financial loss and his date of increment remains unchanged.

- (iii). *Stoppage* - If the increment due to “A” on the 1st of July 2010 had been stopped for three (3) months instead of being suspended, and the increment is sanctioned at the end of that period, he will receive a salary of Rs. 14,135.00 from the 1st October, but he will lose the amount of Rs. 435.00 being the amount of the three increments payable for the months of July, August and September 2010. His date of increment will remain unchanged.

- (iv). *Reduction* - If it is decided to reduce his increment for three (03) months in August 2010, his salary will be reduced to Rs. 13,990.00 from 1st August 2010. He will be restored to his salary of Rs. 14,135.00 from November 2010.

He loses the amount of the increment reduced from his salary over the three (03) months that is Rs. 435.00

- (v). *Deferment* - If the increment falling due on the 1st of July 2010, is deferred by six (06) months, and the increment is sanctioned at the end of that period, he may be placed on the next step of Rs. 14,135.00 only from 1st January 2011. His future date of increment will be 1st of January.

Example

“A” and “B” are appointed to a post on the salary scale of Rs. 13,990-145X10 – 15,440.00.00, with effect from 01.07.2010.

They are entitled to the salary step of Rs. 14,135.00 with effect from 01.07.2011. The increment payable to “A” on 01.07.2011 is deferred for a period of six (06) months. The salary payable to “A” and “B” should then be as follows:-

A	B
01.07.2010 – 13,990	01 .07.2010 - 13,990
01.07.2011 – 13,990	01.07.2011 – 14,135
01.01.2012 – 14,135	01.07.2012 – 14,280
01.01.2013 – 14,280	01.07.2013 – 14,425

01.01.2014 – 14,425	01 .07.2014 – 14,570
01.01.2015 – 14,570	01.07.2015 – 14,715
01.01.2016 – 14,715	01.07.2016 – 14,860
01.01.2017 – 14,860	01.07.2017 – 15,005
01.01.2018 – 15,005	01.07.2018 – 15,150
01.01.2019 – 15,150	01.07.2019 – 15,295
01.01.2020 – 15,295	01.07.2020 – 15,440

Thus the salary step of Rs. 14,135.00 given to “B” on 01.07.2011 should be given to A on 01.01.2012.

10:3 The choice of the form which the disallowance of the increment should take, depends on the circumstances of each case, and the following is a guide:-

Suspension is appropriate when the authority responsible for the issue of the increment certificate is unable, on the facts before him, to sign it, but desires to place the officer under close observations before making a final order. It may also be ordered when stoppage of an increment is considered too severe and suspension is likely to produce an improvement.

Stoppage is appropriate for a specific offence and in the case of general inefficiency for which deferment is regarded as too severe.

Reduction is appropriate where the decision of stoppage would not take effect within one month of the decision.

Deferment is appropriate when the quality and output of an officer's work or his conduct since his last incremental date has generally been below the standard required of an officer of his incremental state, and stoppage is considered inadequate. It should be ordered in all cases where an officer fails to pass an Efficiency Bar or does not qualify for confirmation by the due date.

10:4 Stoppage, Reduction and Suspension may be ordered for any number of months from one to twelve; but the period at any one time should not exceed twelve (12) months or extend beyond the next incremental date of the officer. Deferment may be ordered only for a period of six (06) months or twelve (12) months at a time.

10:5 Where an increment is deferred for failure to qualify for confirmation or to pass an Efficiency Bar, the period of deferment will be the period taken in excess of the normal time allowed for such purpose.

If the date of increment does not fall on the last date by which the Efficiency Bar should have been passed, the increment that falls due immediately after the last date by which the Efficiency Bar should have been passed, should be deferred by the period taken in excess of the period allowed to pass the Efficiency Bar.

Example

“B” is on a salary of Rs. 14,280.00 on the salary scale Rs. 13,990-145 x 10—15,440.00 His next increment is due on 01.01.2009.

He had time till 01.03.2008 to pass the Efficiency Bar before Rs. 14,425.00

He passes the Efficiency Bar only on 10.06.2008. He had taken 101 days in excess of the time allowed, e.g.

March	31 days
April	30 days
May	31 days
June	09 days
Total	<u>101 days</u>

The increment which falls due on 01.01.2009 should be deferred by 101 days

January	31 days
February	28 days
March	31 days
April	11 days
Total	<u>101 days</u>

He will, therefore, be placed on Rs. 14,425.00 per month on 12th April, 2009 and his future incremental date will be 12th April.

10:6 If at the end of a period of suspension the officer's work and conduct have been satisfactory, the increment should be paid with effect from the date on which it fell due.

10:6:1 If the officer's work or conduct during the period of suspension has been below the standard that is expected of him, the certificate of increment, will not be issued; instead, the suspension will be converted to stoppage or deferment as from the date on which the increment fell due.

10:7 When stoppage is ordered for inefficiency, the order will be made on the distinct understanding that if the officer does not show any improvement in his work and conduct, the order of stoppage may be extended for a further period and/or may be converted to one of deferment. This should be explained to the officer at the time the stoppage is ordered.

10:7:1 If at the end of period of stoppage, the officer's work and conduct show no improvement, the period of stoppage may be extended and/or converted to deferment as from the date on which the increment fell due.

10:8 In every case where an increment is disallowed, the officer concerned should promptly be informed whether the increment has been suspended, stopped, reduced, or deferred, the period for which such disallowance will operate and the reasons therefore. Such disallowance of increment should be recorded in the officer's History Sheet.

10:9 An increment should be granted only if the full incremental period has been served. Any period of leave with full pay or half pay will count as service for increments.

10:9:1 If an officer is on no pay leave for over a period of six (06) months, that period of leave in excess of six (06) months will not be reckoned as service for increments unless such leave is granted for reasons outside the officer's control (e.g. illness) or has been granted at the interest of the Government. His increment would thereby be deferred by a period equal to the period by which the no pay leave exceeds six (06) months.

Example

“A” is on a salary of Rs. 14,280.00 on the scale Rs. 13,990- 145 x 10—Rs. 15,440.00 having received his last increment on 25.07.2008. He proceeds on eight (08) months of no pay leave commencing from 01.05.2009 for study on a scholarship obtained at his own interest.

The increment due to him, falling on 25.07.2009, by which he has been on less than six (06) months leave, can be granted on the basis of his work and conduct in the incremental period prior to his departure on leave. When he resumes duties on 01.01.2010 he can therefore be placed on the salary of Rs. 14,425.00 per month. The next increment due, falling on 25.07.2010 will be deferred by sixty-one (61) days, which is the period in excess of the six (06) months on no pay leave. (25.07.2010 to 23.09.2010-61 days.)

He will consequently be placed on the next step of Rs. 14,570.00 only on 24.09.2010.

His future date of increment will be 24th September.

10:9:2 Notwithstanding the provisions of Sub-section 10:9:1, if it is considered that frequent absence on leave necessitated by ill health have so impaired an officer's usefulness that, in the opinion of the Appointing Authority the payment of the increment cannot be justified, he will make an order in terms of Sub-section 10:2.

10:9:3 No pay leave granted after 12th March, 1980 for study or employment, or study and employment abroad, can be reckoned for the purpose of increments. An officer will be placed, on his return, on the salary point he

would have reached provided that, the authority that would normally have granted him his increment, has no report regarding his work and conduct during the period of his no pay leave which would, under normal circumstances, have disqualified him from being paid his increment.

10:10 The Appropriate Authority for granting an increment is as follows:

- | | | |
|-----|---|--|
| (a) | For all the public officers serving in a Ministry | - Secretary of the Ministry concerned or officer delegated |
| (b) | For all public officers released for service in a Provincial Council | - Chief Secretary of the Provincial Council or officer delegated |
| (c) | For all the public officers who are seconded for service in a Corporation, Board etc. | - Secretary of the Ministry to which the Corporation, Board, etc. is attached or officer delegated |
| (d) | For all public officers who serving in a Government Department | - Head of Department or officer delegated |
| (e) | For a Head of the Department | - Secretary of the Ministry concerned |

For this purpose, a copy of the increment certificate in respect of officers belonging to the Sri Lanka Administrative Service, Sri Lanka Engineering Service, Sri Lanka Architectural Service and Sri Lanka Scientific Service, should be sent to the Secretary of the Ministry in charge of the subject of Public Administration if he is not the specified Appropriate Authority. Similarly, in the case of officers of other all-island services, a copy of the increment certificate should be sent to the Secretary, of the Ministry in charge of the relevant service if he is not the specified Appropriate Authority.

10:11 The Appropriate Authority for disallowing an increment is as follows:-

- | | | |
|-----|--|--|
| (a) | An officer in the Sri Lanka Administrative Service, Sri Lanka Engineering Service, Sri Lanka Scientific Service, Sri Lanka Architectural Service | - Secretary to the Ministry of Public administration |
| (b) | Public Officers in the other all Island Services | - Secretary of the Ministry in charge of the relevant service. |
| (c) | Any other public officer in the staff grade | - Secretary to the Ministry concerned |
| (d) | All other Public Officers serving under a department | - Head of the relevant Department |

- (e) All other Public Officers serving - Secretary to the Ministry
in a Ministry

Any person who is not satisfied with an order for rejection of a salary increment can appeal to the public service commission. Provincial Public Service Commissions/ Governors of each provincial council may act as appellate authority for the officers of provincial Councils.

10:11:1 When the authority for disallowing an increment is not the same as the authority for issuing the certificate of increment, the latter should forward to the authority for disallowing the increment, a report with reasons containing:-

his recommendation as to whether the increment should be suspended, stopped, reduced or deferred,

the period for which such suspension, stoppage, reduction or deferment should operate.

10:11:2 The said Sub-section will not apply in a case where the increment is suspended, stopped or deferred owing to failure to pass a prescribed Efficiency Bar or other examination. In such a case the authority empowered to grant the increment certificate, should inform the officer of the consequence of such failure, with a copy to the authority specified in Sub-section 10:11.

11. Salary of a Deceased Officer

11:1 The salary and allowances due to a deceased officer should be paid to his widow or next of kin as though he had served up to the last day of the month in which he died, provided that he was not on no pay leave at the time of his death; his salary at the time of death does not exceed Rs. 20,030.00 per month; a death gratuity is not payable under Section 2B of the Minutes on Pensions.

11:2 In all other cases, the salary and allowances due to him up to the date of his death will be paid to his estate, if administrable or to his legal heirs.

12. Acting Pay and Special Additional Remuneration

12:1 Definitions – For the purpose of this section “Acting Pay” means the remuneration which an officer is entitled to in terms of the rules in this section for acting in a post, or for attending to the duties of a post. “Special Additional Remuneration” means the extra payment approved by the Director General of Establishments. (see Sub-section 12:3)

12:2 Instances where an acting pay is allowed - If an officer holding a substantive post in the Public Service is appointed to act in another post, he will be entitled to "Acting pay" provided that

12:2:1 the post in which he is appointed to act is superior to the substantive post he holds, or

Chapter VII]

12:2:2 if it is a post "comparable" to the substantive post he holds, he acts in it, in addition to his substantive duties;

12:2:3 the post in which he is appointed to act is a full time office to which it is anticipated that a full time officer will be appointed in the near future;

12:2:4 the post in which he is appointed to act is vacant or the holder of that post is absent;

12:2:5 he has been formally appointed by the respective Appointing Authority (Departmental arrangements to cover up the duties of a vacant post do not entitle an officer covering up those duties, to acting pay or to any additional remuneration).

12:2:6 the approval of the Secretary to the respective Ministry has been obtained for the payment of acting pay.

12:3 Attending to the duties of a post.—If the holder of a substantive post is appointed to act in a post for which a full time officer is not required or if he is appointed to "attend to the duties" of a post, he will not be entitled to acting pay. Such an officer should be paid two third of the additional remuneration he will receive had he been appointed to act in that post.

12:4 Period for which acting pay is payable.

12:4:1 Acting pay is only payable for a continuous period of not less than one (01) month during which an officer acts ;

in a post for which there is no substantive holder or the holder is absent ;

or

in a succession of posts in addition to his substantive duties ; or

in a post under a combination of the circumstances referred to above.

12:5 The rate of acting pay should, subject to the limits stipulated in Sub-section 12:6 be determined as follows;

12:5:1 If the salary of an officer in his substantive post is less than initial salary of the post in which he acts, he should be paid half the initial salary of the post in which he acts and half the initial salary of his substantive post, together with all the increments he has earned on the salary scale of his substantive post. He will, in addition, be paid any personal allowance to which he may be entitled.

12:5:2 When an officer is appointed to act in a superior post and is in receipt of a salary which is equal to or more than the minimum salary of the acting post, he should be paid either his salary and two increments in his

substantive salary scale or the maximum salary of the acting post, whichever is less.

12:5:3 When an officer acts continuously for a period of one (01) year or more in a post for which there has been no substantive holder during the whole of that period, he may be paid the initial salary of the post in which he acts (if it is more than the emoluments of his substantive office) for the whole of that period.

12:5:4 If an officer acts in a post while holding a substantive post, he should be paid as follows.

If he is required to perform the full duties of both posts, 25% of the initial salary of the office in which he acts together with the whole of his emoluments in his substantive office. In the case of a post where a salary has not been prescribed, the 25% will be of a hypothetical salary to be determined, on application made by the Secretary to the Ministry of Public Administration in consultation with the Secretary to the Treasury after receiving a request in this regard.

12:6 Overriding Limits – The acting salary which an officer could draw under the provision of this Section is subject to the following limits.

12:6:1 If the acting officer falls within the category of the Sub-section 12:5:4, payable amount should not exceed 25% of the initial salary of the acting post.

12:6:2 If acting officer falls under the category of Sub-section 12:5:1 or 12:5:3, payable amount should not exceed the initial salary of the post in which he acts.

12:7 Allowances - An officer should be paid the allowances to which he is eligible on his substantive salary.

12:8 Public Corporations – A public officer temporarily released to a Public Corporation or acting in a post in a Public Corporation should be paid acting salary in terms of Section 12 of this Chapter.

12:9 Commissions and Committees —When it is considered necessary to pay any additional remuneration to a public officer who serves on or with a special Commission or Committee of Inquiry, the amount should be determined in consultation with the Director General of Establishments.

CHAPTER VIII

OVERTIME, HOLIDAYS AND HOLIDAY PAY AND ALLOWANCES

1. Financial Provision and Authority for expenditure on overtime
2. Control of overtime
3. Circumstances under which overtime is payable
4. Categories not eligible for overtime
5. Periods to be counted
6. Rate of Payment
7. Limits
8. Holidays
9. Holiday Pay
10. Payment to certain grades for working on weekends and Public Holidays
11. Cost of Living Allowance
12. Station Allowance

CHAPTER VIII

OVERTIME, HOLIDAYS AND HOLIDAY PAY AND ALLOWANCES

1. Financial Provision and Authority for expenditure on overtime

1:1 This is a subject of the Ministry in charge of the subject of Finance. The following rules are subject to any instructions that may be issued by the respective Ministry.

1:2 Overtime may be authorized without reference to the Treasury only where there is specific financial provision for such expenditure in the Estimates and provided funds are available.

1:3 In regard to activities financed from Advance Accounts, Other Charges etc., the amount expendable as overtime should previously have been determined by the Director General of National Budget. In all such cases, expenditure on overtime can be approved by a Head of Department subject to the limit in sub section 7:1 in consultation with the Secretary to the Ministry concerned. A Secretary may, at his discretion and subject to any safeguards considered necessary, dispense with such consultation.

1:4 The provision allowed in the Estimates and the amounts sanctioned under Advance Accounts, Other Charges, etc., should be regarded as the maximum amount that may be spent during a year on overtime and no supplementary funds should be allowed by a Secretary for the purpose, save in very exceptional cases. A Secretary and a Head of Department should take steps to ensure that a strict and continuous check on expenditure is maintained.

1:5 Expenditure on overtime sanctioned for covering the work of a vacant post should normally be debited to savings on the item which contains provision for the vacant post. Details of such expenditure should be recorded.

2. Control of overtime

2:1 The Head of Department or a responsible officer deputed by him should personally satisfy himself that overtime has been actually and fairly earned. For this purpose it is incumbent on the Head of the Department to devise and maintain a system of checks and records to ensure a proper output of work as well as to avoid payment for idle time.

3. Circumstances under which overtime is payable

3:1 Expenditure on overtime should be incurred only in exceptional circumstances, where no other means of getting the work done are available, e.g., where internal departmental arrangement cannot be made.

3:2 Overtime is payable only for work which has been specifically ordered, falls quite outside the normal work, is urgent and cannot possibly be performed within the normal office hours.

3:3 Overtime is not payable for work which constitutes part of the normal work of a Department and for work which has accumulated as a result of failure to carry it out at the proper time through negligence on the part of the officer or through lack of method or disregard of systems.

3:4 Overtime should not be authorized when an officer is called upon to perform a few hours extra work in an emergency, but only when an appreciable amount of work outside normal office hours is necessary over a period of time, and that too, to complete some special work which has to be done expeditiously.

3:5 Where overtime work is a regular feature and it is not possible to eliminate payment of overtime by any internal arrangements or employment of additional staff, payment at casual rates should not be allowed. Instead, application should be made to the Director General of Establishments for fixing a commuted overtime allowance.

3:6 Payment of overtime for covering the duties of a vacant post should not follow automatically on an officer going on leave or on the mere fact that a post is vacant. Each case should be decided on its merits. A Head of Department should, wherever possible, make standing arrangements for covering up the work of an absent officer, instead of ad-hoc arrangements on an overtime basis.

4. Categories not eligible for overtime

4:1 The following categories of officers are not eligible for overtime:-

A Staff Officer,

A Field Officer; e.g. an officer whose work lies mainly in the field, is not confined to one particular place, involves regular attendance at work sites beyond the strict confines of any office; whose duties are of a supervisory nature and who is expected to undertake inspections, visits, etc.

A Part-time officer

and

An officer of any other category in a Department which is not regarded as eligible for overtime by the Head of Department

4:2 The fact that an employee is temporary, casual or daily paid will not by itself render him ineligible for overtime.

4:3 The prior approval of the Director General of Establishments should be obtained before eligibility for overtime is extended to any new post, class or grade of officers.

5. Period to be counted

5:1 Overtime may be paid for work done outside the normal hours of work subject to the following rules :-

5:2 An officer should have performed a full turn of duty for the day. In case of late attendance or leave of any nature, e.g. half day's leave, special leave for religious observances, etc., the time lost by such late attendance or leave should be set off against the work outside office hours for the day and only the balance time should be regarded as overtime work and remunerated as such.

5:3 No payment should be made for less than half an hour's work at a stretch or for less than an aggregate of one hour's overtime work for a day. No fraction of an hour less than a quarter of an hour should be counted in the aggregate of overtime work done at any stretch.

5:4 Time spent on travelling on duty outside normal hours should not be regarded as work for purposes of payment of overtime unless such traveling time—

Involves the actual performance of duty (e.g., Driver, A Railway Guard) or involves continuous alertness, not permitting any rest or relaxation (e.g. a Shroff when carrying cash).

5:5 Where such travelling time involves only work of an intermittent nature, it should be regarded as stand-by duty and count only as half time for overtime purposes.

5:6 Overtime should normally be reckoned on the basis of the hours worked in excess of the normal hours of duty for each day. Where, however, the hours of duty are fixed on a weekly basis (e.g. an officer on a roster or a shift who is expected to do a certain minimum number of hours for the week) it should be calculated on the basis of the hours worked in excess of the number of hours prescribed for the week.

6. Rate of Payment

6:1 **Normal Rate:-** The normal rate of payment of overtime per hour will be one-eighth ($1/8$) of a day's pay. A day's pay in the case of a monthly-paid officer should be reckoned as one-thirtieth ($1/30$) of the monthly consolidated salary. The cost of Living Allowance should not be reckoned for calculation of overtime rates.

6:2 **Stand-by Rate:-** The rate of overtime for stand-by duty is half the normal rate.

Stand-by duty means duty where the amount of actual work to be done is negligible but during such time the officer is required to be at a defined post of duty. It also includes cases in which an officer is required to sleep in his work place so as to be readily available, if needed.

In the case of a driver or a cleaner of a motor vehicle, "Stand-by duty" is that period of duty during which he, though temporarily discharged and free to return to his quarters, is liable to be called up at any time in case of need. It does not include a period during which he is temporarily discharged and is not liable to be suddenly recalled to duty though he is expected to report for duty again at a specified time. A driver who has necessarily to remain by his vehicle during a period of temporary discharge and who has, therefore, no freedom of movement should be reckoned as on full time active duty.

In the reckoning of a period spent on stand-by duty, less than half an hour should not be taken into account.

7. Limits

7:1 No officer may be paid overtime that exceeds twenty (20) hours per month inclusive of overtime work for covering up the duties of a vacant post.

7:2 In exceptional cases the Secretary may authorize the payment of overtime in excess of the limit of twenty (20) hours, to any officer.

8. Holidays

8:1 Public Holidays under the Holiday Act, No.29 of 1971 are as follows :-

Sundays;

Full Moon Poya Days;

Any other Public Holiday declared under the Act.

8:2 For the purpose of these rules, Sunday will generally be regarded as the "weekly off-day". The Full Moon Poya Days and Holidays declared under the Act will be regarded as Public Holidays.

8:3 The Public Holidays (and not the weekly off days) referred to in Sub-section 8:1 will be applicable to all grades of public officers, including casual and daily-paid officers other than those employed on roster or as relief or substitutes for a few days. Part-time officers are, however, not eligible for Public Holidays.

9. Holiday Pay

9:1 An Officer required by his conditions of service to work on a Public Holiday will be paid on the following basis for work on a Public Holiday:

If he is on daily pay, he will be paid a day's pay provided he has had an attendance of one day on the working day either immediately preceding or succeeding the Public Holiday. But if he has been on sick leave, medical leave, or no pay leave, both on the working day prior to and on the working day succeeding the Public Holiday, he will not be eligible for a day's pay. Absence on this day can however, be counted against paid leave in cases where he is eligible for such leave.

If he is on monthly pay, he will not be entitled to any additional remuneration.

9:2 An officer not required by his conditions of service to work on a Public Holiday may avail himself of one or the other of the following concessions at his option.

If the officer is on daily pay he may opt for either :-

A day's leave with pay, to be taken whenever the employee can conveniently be spared;

A day's pay at the normal rate in addition to the pay actually earned for that day.

If the Officer is on monthly pay but is not a Staff Officer, Field Officer, or an officer ineligible for overtime, he may opt for either leave in lieu of the day worked, or an additional day's pay calculated at one-thirtieth (1/30) of the monthly salary.

9:3 A Staff Officer, Field Officer or other Officer not eligible for overtime pay, will only be permitted leave in lieu of the holiday on which he works, but will not receive any extra remuneration on that account.

9:4 Where any officer is required to work only for a part of a holiday the additional pay or lieu leave as provided for above, should be allowed only for the actual number of hours worked. The hours that may be reckoned for this purpose are only those falling within the normal working hours of the officer concerned.

9:5 Any lieu leave accruing under this section should be availed of before the lapse of one year from the date of such lieu leave being earned.

9:6 Travelling on duty on a Public Holiday should not be regarded as work done for the purpose of payment of holiday pay but there is no objection to grant of lieu leave provided the travelling is done specifically for the performance of an official duty.

9:7 The additional pay is chargeable to the provision under which overtime and holiday pay is included. However, if any officer who is eligible for holiday pay is specifically ordered to work outside his normal hours on a Public Holiday, such extra hours should be remunerated as overtime and such expenditure should be charged to the normal overtime provision.

9:8 Holiday pay should not be aggregated with normal pay for purposes of recovery of rent of Government Quarters, W&OP contributions, Public Service Provident Fund etc.

9:9 If a Public Holiday falls on the normal weekly off-day of an officer (whether it is Sunday or any other day) and he is required to work on such a day, he will be entitled to such concessions, as are granted in respect of work done on off-days and not those granted for work done on a Public Holiday, e.g. if an officer is required to work on a Public Holiday, which falls on a Sunday and Sunday is the normal off-day of that officer, he should not be paid holiday pay, but only granted such concessions as are normally given for work done on Sundays, e.g. overtime in the case of a monthly-paid officer eligible for overtime. If, however, a Public Holiday falls on a Sunday and Sunday is a normal working day of an officer, the provisions of this section will apply.

10. Payment to certain grades for working on weekends and Public Holidays

10:1 Notwithstanding anything stated in sub section 4:1 above, a Staff Officer or a Technical Officer who is not entitled to claim overtime and who is called upon to work on a Saturday, Sunday or a Public Holiday in connection with a programme of work which is of a priority and continuous nature (not routine Departmental work) requiring a period of three (03) or more months for completion or in connection with work of an emergency nature resulting from drought, floods, civil commotion etc., is eligible in respect of each such day for a payment amounting to (1/20) of the officer's consolidated monthly salary, subject to the following :-

[Revision](#)

- (a) he should work for not less than eight (08) hours a day;
- (b) the maximum number of days for which payment can be made in a month is 01 day; and
- (c) subject to the approval of the Secretary to the Ministry.

10:2 A Register should be maintained including other particulars relevant to all the payments made in the said manner. This Register should be made available at any occasion on the request of the Director General of Establishments or an officer authorized by him for inspection.

11. Cost of Living Allowance

11:1 A Cost of Living Allowance to every Public Officer (including a daily-paid officer) and Government Pensioner including a Pensioner in receipt of a Widows'/ Widowers' and Orphan's Pension is payable.

11:2 The allowance is as follows :-

- (a) Rs. 6,600.00 per month to all monthly-paid public officers;
- (b) Rs. 3,175.00 per month to all public pensioners.

11:3 In calculating of Cost of Living Allowance related to officers on Daily Pay, it is Rs. 220 per day subject to maximum of thirty (30) days.

Above Cost of Living Allowance is subjected to amendments time to time, as per the policy decisions of the government.

11:4 When an officer avails himself of no pay leave, the allowance payable for the month will be proportionately reduced by the number of days of no pay leave availed of by the officer. For the purpose of this section half pay should be converted to no pay leave to effect the necessary reduction.

11:5 The Cost of Living Allowance is separate from and should not be aggregated with the salary/wages for purposes such as computing overtime, holiday pay.

12. Station Allowance

12:1 A Station Allowance at the rate of 8% of an officer's consolidated salary is payable to every officer, who serves in a station at an elevation of over 5000 feet.

Form

I,
(Name)

.....
(Designation)

Declare that:

- (i) I am unmarried*
- (ii) I am married and my spouse is not employed*
- (iii) I am married and that my spouse is employed at
.....in the Government Sector*/a Bank*/a public Corporation*/a
Statutory Board*/ in the Private Sector* where Cost of Living Allowance
is payable*not payable*,
- (iv) I am a Widow/widower*
- (v) I am a re-employed pensioner*
- (vi) I undertake to inform the Paying Officer of any change that affects the
payment of the increased Cost of Living Allowance immediately such
achange occurs.

.....
(Signature)

.....
(Date)

Note. * *Delete* whichever is inapplicable.

CHAPTER IX

FEEES

1. Fees for services to Government
2. Fees for services rendered to Public Bodies or Private Parties
3. Broadcast/Telecast talks and Lectures
4. Valuation Fees
5. Service by Registrar of Fingerprints
6. Fees in District Court, Magistrates Court, etc.
7. Search Fees and Translation Fees in Kachcheries and other Departments
8. Copying fees in the Excise Department
9. Copying Fees under Section 3 of the Proof of Public Documents Ordinance (Cap.15)
10. Fees for Bail Reports
11. Fees to Medical Officers for Judicial work
12. Fees to Medical Officers for service in connection with Workmen's Compensation
13. Fees for the services of Medical Boards in special cases
14. Accounting

CHAPTER IX

FEEES

1. Fees for services to Government

1:1 No fees may be drawn by any officer in respect of any Public Service he renders except in the following cases:-

1:1:1 Customs overtime fees.

1:1:2 The setting and correction of examination papers.

1:1:3 Broadcast/Telecast fees for purposes wholly unconnected with an officer's post and duties.

1:2 Fees for other services to government with the prior sanction of the Director General of Establishments.

2. Fees for services rendered to Public Bodies or Private Parties

2:1 If a Public Officer is permitted to undertake any work for a private party or Local Body or Public Corporation in terms of Chapter XXX, the Secretary concerned will determine what percentage of the fee should be credited to the Consolidated Fund, the balance being appropriated by the officer, provided that the officer, should in all cases appropriate at least Rs. 250.00 or the whole fee if it is less than Rs.250.00

2:2 The Secretary will be guided by the following criteria in fixing the percentage to be credited to the Consolidated Fund and the percentage which the officer may be allowed to appropriate.

Unofficial work done outside official hours, without interference to normal duty, not using special knowledge gained or connected with Government employment the officer may be allowed to appropriate the full fee. Unofficial work done without interference, outside official hours, using skill obtained from Government employment, 10% of the fee should be credited to the Consolidated Fund. Unofficial work done without interference, but possibly within official hours, using knowledge connected with Government employment though not necessarily derive from Government employment, ten percent 10% of the fee should be credited to the Consolidated Fund.

Unofficial work done without interference but possibly within official hours, using skill obtained from Government employment, 25% of the fee should be credited to the Consolidated Fund.

Where interference is caused, the percentage credited to the Consolidated Fund should be 25% or more, increasing with the degree of interference.

2:3 An officer may be allowed to draw fees as a Visiting Lecturer of a University or College at the rate approved by Director General of Establishments, provided the lectures are delivered entirely outside office hours and without any interference to his official duties.

2:4 Where special services are required by a Local Authority or a Public Corporation these services should be sought from the Department concerned and should be rendered by the Department for a fee the whole of which should be credited to the Consolidated Fund.

3. Broadcast/Telecast Talks and Lectures

3:1 No fee should be paid either to a Public officer employed in the preparation or delivery of a lecture or talk, or to the Department which he represents, in connection with lectures or talks which are part of his ordinary duties or necessary or desirable in order to enable a Department to carry out its normal functions.

Example :

The publication of weather intelligence; or on the occasion of a census, the publication of information regarding the procedure to be followed in filling up census returns; or talks on agriculture by officer whose duty it is to propagate new methods of agriculture, etc., are all part of the ordinary duty of a public officer and are merely a means of enabling a Department to perform its normal functions.

4. Valuation Fees

4:1 Fees will be recovered for the services described below and the whole of such fees should be credited to the Consolidated Fund.

4:1:1 Valuation for Local Government Authorities and Public Corporations other than for rating purposes may be undertaken by the Chief Government Valuer at a rate prescribed by him on the value of the property, with a refund of the Valuer's travelling expenses at approved rates.

4:1:2 Valuation for a Loan Board or the National Savings Bank, may also be undertaken for fees authorized by the rules of these bodies.

4:1:3 Valuation for the Public Trustee may be undertaken at his request for a fee to be fixed by agreement between him and the Chief Government Valuer.

5. Services by Registrar of Fingerprints

5:1 A private party may send documents or articles bearing finger impressions for the expert opinion of the Registrar of Fingerprints. The documents or articles for examination should be sent to the Registrar of Fingerprints together with a fee of Rs. 100.00 authorised by the appropriate authority. The Registrar of Fingerprints will return the documents or articles with his report direct to the applicant.

The applicant will be liable to prepay the cost, if any, which is likely to be incurred in delivering any article to a place other than at the office of the Registrar of Fingerprints.

5:2 If the opinion of the Registrar of Fingerprints is required on any document or article by a party to a pending case, other than a public officer the Court may, on application made to it by the party, and on a deposit being made of the Registrar's fee authorised by the appropriate authority and such further sum as may be necessary to cover the cost of transport of such document or article to and from the office of the Registrar of Fingerprints, accept such article or document and forward it to him for examination and report. The Court should at the same time inform the Registrar of Fingerprints of the amount deposited to cover the fee and the expenses.

If a sufficient sum has been deposited to cover the fee and the expenses, the documents or articles will be examined by the Registrar of Fingerprints and the report forwarded to Court together with the documents or articles.

5:3 All fees recovered under this section should be credited to the Consolidated Fund and the sums deposited to cover the expenses of returning documents or articles to Court should be remitted by Court to the Registrar of Fingerprints.

6. Fees in District Court, Magistrate's Court, etc.

6:1 In every District Court, Magistrate's Court, notices in Sinhala, Tamil and English must be posted up detailing the fees payable to the officers of the Court for specified services, with the addition of a note to the effect that no other fees of any kind are authorized, and that their recovery is forbidden.

6:2 Fees may be recovered for the following services only :-

- Searching for documents over a year old on private application;
- Binding records;
- Making copies of records;
- Translating documents;
- Drawing Cattle Vouchers;
- Withdrawing documents filed in civil cases in the District Court, etc.,
- Administering affirmation/oath;

6:2:1 The recovery of fees for any other services is prohibited.

6:3 The recovery of fees for searching of documents over a year old on private applications should be made at the rates authorized by the appropriate authority, the whole of which should be credited to the Consolidated Fund.

6:4 The authorized fees for binding records should be recovered as provided for in the statute or as determined by the appropriate authority.

6:4:1 Binding fees are payable in stamps. Parties should affix a stamp or stamps to the value of the fee when filing their respective pleading or application. Not more than one fee is payable in respect of the same action except in the event of an appeal.

6:4:2 The fee on appeal must be paid by the applicant on completion of security.

6:4:3 No fees for binding records are leviable in the Criminal Courts

6:4:4 No binding fees are payable by the Government.

6:5 The maximum fee for making copies of records, etc., in criminal cases is the rate prescribed in the statute or the rate authorized by the appropriate authority for a page of 120 words in English. (see, Section 434 of the Criminal Procedure code (Cap. 20).)

6:5:1 Registrars of District Courts, Magistrate's Courts etc., are prohibited from charging fees for certifying copy decrees when such copies are produced by Attorney-at-Law with their Writs or with orders to sell under the Mortgage Ordinance (Cap. 89). But when a certified copy decree is supplied the fee may be charged. No fee may be charged for certified copies of decrees in Waste Lands Ordinance cases required by the Settlement Officer to be filed of record in his office. (For copying fees in Civil Courts, see Section 3 of the Proof of Public Documents Ordinance (Cap. 15) and Section 205 of the Civil Procedure Code (Cap. 101).)

6:5:2 The fees paid for copying documents in District Courts, Magistrate's Courts may be appropriated by the copying officer provided the copying is done out of office hours. An account of the hours worked in making the copies must be kept.

6:5:3 The fees recovered in terms of the Civil Appellate rules for making copies of cases in appeal should be paid promptly to the Bank Account maintained by the individual Court where amounts should be held in deposit. At the end of each month, payment should be made from this deposit to the

officer concerned at rates approved by the Director General of Establishments and the balance should be credited to the Consolidated Fund. An account must be maintained at each Court of the fees recovered and the payments made therefrom.

6:5:4 No fees should be charged for copies of documents required for the official use of any Government Department.

6:6 The authorized fee for translation of documents is at the rates prescribed in the statute or by the appropriate authority for a page of 120 words. The fee should be credited to the Consolidated Fund.

6:7 The authorized fees for withdrawing documents filed in Civil cases are at the rates 95 provided for by the statute or by the appropriate authority.

6:8 In any instance where a Court authorizes a Public Officer to administer an affirmation/oath under Sections 8 and 9 of the Oaths Ordinance (Cap. 17) and orders a fee to be charged for this service, the officer may, if he administers the affirmation oath out of office hours and at a distance from the Court, be allowed to draw the whole or part of the fees ordered up to a maximum amount provided for in the statute or as approved by the appropriate authority. The officer may, in addition, appropriate a further sum, if any further sum is available from the fee ordered by Court, as travelling expenses at the authorised rates for Government Officers when he has to travel more than two miles each way for the purpose or administering the oath. Any balance of the fee ordered to be charged should be credited to the Consolidated Fund.

7. Search Fees and Translation Fees in Kachcheries and other Departments

7:1 Fees may be levied at the rates prescribed in the statute or as approved by the appropriate authority for the services connected with searching of records and translation of documents, the whole of which should be credited to the Consolidated Fund.

	Rs.c.
For searching the records of one year or under	.. 2.50
For each additional year	.. 1.25
For searching a register, sale list, ledger or counterfoil	
book for one year	.. 5.00
For each additional year	.. 2.50
For translation of documents per folio of 120 words	.. 2.50

8. Copying fees In the Excise Department

8:1 The authorized fee for copying documents in the case of the Excise

Department is at the rate provided for in the statute or as approved by the appropriate authority for a page consisting of 120 words. The fee may be appropriated by the copying officer on the following conditions: -

That the copying is done out of office hours; and

That an account of fees recovered and hours worked is kept.

9. Copying Fees under Section 3 of the Proof of Public Documents Ordinance (Cap.15)

9:1 Copying fees recovered under section 3 of the Proof of Public Documents Ordinance (Cap. 15) may be appropriated by the copying clerk if the Head of the Department is satisfied that the work is in the nature of extra work, and has to be performed out of office hours, or is such as to require overtime to be worked to make up for office hours devoted to the work.

9:2 Copying fees at the rate provided for in the statute or as approved by the appropriate authority for a page consisting of 120 words should be charged for authorized written information, exceeding a single folio in volume, supplied to the public on application, where such supply entails the copying of records prepared for official purposes, such as statistics, returns, lists of taverns with areas for local option polls, etc. A copying fee at the rate provided for in the statute or as approved by the appropriate authority should be charged for each copy of a counterfoil receipt or other printed form, such as electricity bill in the appropriate printed form. This fee covers charges and the cost of the printed form.

9:2:1 The appropriation of such fees will be governed by the provisions of Sub-section 9:1.

9:3 No additional fee will, as a general rule, be paid for any subsequent report on the same document.

10. Fees for Bail Reports

10:1 Fees may be charged at the rate provided for in the statute or as approved by the appropriate authority of the value for the issue of reports on the value of sureties who furnish bail to Court.

10:2 An officer making such a report will be held personally responsible for the accuracy of the statements contained in the report. In appraising value, he should mention not only the value of the property under normal conditions, but also what it is expected to command in the open market under any peculiar attendant circumstances.

10:3 When the applicants are professional bailsmen, or men of unruly character, who are likely to intimidate should be purchasers, that fact should be brought to the notice of the Court.

10.4 The officer accepting bail is expected to consider all facts and decide whether the security offered is satisfactory.

11. Fees to Medical Officers for Judicial work

11:1 In this section the term "Police" includes Grama Niladharis in unpoliced areas; the term "Police Officer" means an Officer-in-Charge of a Police Station.

11:2 The scale of fees payable to a Government Medical Officer for Judicial Work is shown in Schedule I of this Chapter.

11:3 A Post-mortem examination should not be undertaken on the instructions of an Inquirer unless such Inquirer has been specially empowered by the Minister of Justice to order such an examination.

11:4 The Voucher to be used in making payment in respect of a Judicial Medical Examination is General 35. The Certificates of receipt of Medical Report duly signed by the Magistrate, Judicial Officer, Inquirer into Sudden Deaths or Authorized Officer of Court, should be forwarded together with form General 35 for payment.

In cases where two different Judicial or Police Officers have requisitioned the services of two different Medical Officers, separate vouchers should be submitted, one for each such service. Each voucher should be certified by the Judicial Officer.

11:4:1 All examinations of persons or articles produced in connection with assault, rape, or other case of injury will entitle the Medical Officer to one fee only except in cases mentioned in Note (1) and Note (2) to paragraph 2 of Schedule I. Similarly a post-mortem examination and all supplementary examinations or articles, secretions, organs, parts of the body, etc., pertaining to the same inquiry, will entitle the Medical Officer only to one fee of Rs. 100.00

11:4:2 When two Medical Officers on requisition attend an inquiry in the same case in which a post-mortem examination has been held, the one who actually held the examination and signs the report is entitled to the fee of Rs. 100.00, and the other can claim the fee of Rs. 50.00 under paragraph 1 of Schedule I provided he has not already claimed a fee in connection with assault, etc. When no post-mortem examination is held, the officer can claim a fee of Rs. 50.00 each.

11:5 In 'hurt' cases in which an injured party is sent to a Medical Officer by the Police, it is the duty of the former to note briefly on the Medico Legal Examination Form accompanying the parties, the nature of injuries, whether they are grievous or non-grievous, and any other information he thinks helpful to the Police. For this Report the Medical Officer is not entitled to a fee.

11:5:1 If the Police proceed with the case the Medical Officer will be cited to give evidence and will furnish a detailed report. The Medical Officer will be entitled to the usual fee according to the scale laid down in Schedule 1. If the Police do not proceed with the case, but the injured party decides to do so, and requires the evidence and certificate of the Medical Officer, he is entitled to charge him his usual fees, but he cannot charge the fees to Government.

12. Fees to Medical Officers for service in connection with Workmen's Compensation

12:1 The scale of fees payable to a Government Medical Officer for his services in connection with Workmen's Compensation is set out in Schedule II.

13. Fees for the services of Medical Boards in special cases

13:1 Where a Medical Officer of the Department of Health attends a Medical Board a disciplinary or other inquiry, at the request of a Local Government Body or Public Corporation or other Non-Governmental Institution, he may charge a fee as for a private patient. Such a party will further be liable to reimburse the Medical Officer his cost of travelling to and from the place where the Board or inquiry is held, at the usual rates allowed to such a Medical Officer when he is travelling on Government Duty.

14. Accounting

14:1 The following procedure connected with the accounting of fees should be adopted :-

A page or a set of pages, in the fee book should be reserved for each officer, and all fees received by him should be entered therein.

Receipts on form General 172 should be issued to parties who pay fees, signed by the officers receiving them.

The hours during which the work has been done should be stated.

The duplicate receipts should be checked into the fee book by a superior officer and the entries initialed by him. The account should be kept in the form annexed.

Name of Officer	Salary Rs.c.	Date when work was done	Hours during which work was done	Nature of work done	Fee received	Number and date of receipt issued

Schedule I

(Sub section 11:2)

Rs. c.

1. For attendance and examination at inquest where no Post-mortem examination was made by the Medical Officer, but yet the Magistrate, or Inquirer holding such inquest felt that the evidence of such Medical Officer was necessary at such inquest irrespective of whether such officer had attended on the deceased at his death or at any time before that. 50.00

2. **Post-mortem examination** -For making a post-mortem examination, making a report and giving evidence thereon (see Sub-section 11:4). 100.00

Note.-(i) In the case of two or more post-mortem examination in the same Magistrate's Court case a fee of Rs. 100.00 should be paid for each post-mortem examination and report,

(ii) Payment of a fee of Rs. 100.00 to a Medical Officer for a post mortem examination does not preclude him from drawing if the same case, a fee of RS. 15 if he is otherwise entitled to such a fee of Rs.15.00 and payment of a fee of Rs. 15.00 under 5, to a Medical Officer does not preclude him from drawing in the same case, the full fee of Rs. 100.00 for a post-mortem examination, if he is otherwise entitled to such fee of Rs.100.00

3. **Analyses**- For making a complete analysis of the contents of the stomach or intestines or of any of the internal organs, organs, and drawing up Report thereon and giving evidence before the Inquirer if so desired. 50.00

4. **Scientific examinations**.-For the examination (Physical, chemical and microscopical) of any substance or instrument sent to the Medical Officer, and for drawing up a report thereon and giving evidence before the Inquirer, if required. 50.00

5. **Hurt**.- In a Magistrate's Court case in which the Police are prosecuting (See Sub-section 11 : 6) for the examination of, and for supplying a detailed report to Court on all cases of inquiry which are sent for examination and report to the Medical Officers by Magistrates Justices of the Peace, Inquirers into Sudden Deaths, Police Officers or Grama Niladharis in unpoliced areas. 15.00

6. **Special Examination in a Hurl Case**.-For the examination of and for supplying a detailed report to Court on all cases of an exceptional nature such as concealment of birth which do not come under the definition of the term simple or grievous hurt and which are sent to Medical Officers by Magistrates, Justices of Peace, inquirers into Sudden deaths, Police 15.00

Officers or Grama Niladharis in unpoliced areas for examination and report.

Note.-(i) This fee is payable for an examination and report to Court, whether the Police proceed with the case or not, if the Magistrate considers that the examination and report were necessary.

7. **Insanity.**-For examining and certifying in case of insanity. 15.00

Note.- (i) Only one fee of Rs. 15.00 is payable to a Medical Officer for observing and reporting on a case of suspected mental illness. Although the Court may order a further period of observation and further report, no second fee is payable.

15.00

Schedule II

(Sub-section 12:1)

*Rate of fee
for each
day
Rs. C.*

- | | |
|---|---|
| 1. Cases where a Medical Officer examines a workman and attends an inquiry to give evidence, | 25.00 |
| 2. Cases where a Medical Officer who possesses qualifications which in the opinion of the Director General of Health Services entitle him to a fee as an expert and examines a workman, attends to give or gives evidence, or when a Medical Officer is summoned to give evidence when there is a conflict of medical evidence, | 50.00 |
| 3. When a Medical Officer who knew the condition of a deceased workman, attends to give or gives evidence on the state of his health, | 25.00 |
| 4. When a Medical Officer who possesses qualifications which in the opinion of the Director-General of Health Services entitle him to a fee as an expert and knew the condition of a deceased workman, attends to give or gives evidence on the state of his health and when such Medical Officer attends to give or gives evidence when there is a conflict of medical evidence, | 50.00 |
| 5. When a Medical Officer sits with the Commissioner for Workmen Compensation and asks questions from the witness and assists the Commissioner under Section 32 of the Workmen's Compensation Ordinance (Cap. 117), | 100.00 for the first day and Rs.50.00 for each day thereafter |

For issuing of reports to the Commissioner at his request a fee of Rs. 15.00 is payable. Payment of travelling expenses will be governed by Chapter XIV,

CHAPTER X

PAYMENTS TO JURORS, WITNESSES, UNOFFICIAL MAGISTRATES, INQUIRERS AND FOR MISCELLANEOUS SERVICES

1. Payments to Jurors and Witnesses
2. Payments to Unofficial Magistrates
3. Payments made to Inquirers into Sudden Deaths
4. Payments for miscellaneous services

CHAPTER X

PAYMENTS TO JURORS, WITNESSES, UNOFFICIAL MAGISTRATES, INQUIRERS AND FOR MISCELLANEOUS SERVICES

1. Payments to Jurors and Witnesses

1:1 The payments which may be made to jurors and witnesses for attendance at Court in connection with criminal cases are prescribed by the regulations made under Section 243(1) of the Code of Criminal Procedure Act No.15 of 1979, the substance of which is reproduced at the end of this Chapter.

1:2 A public officer serving as Juror, or who attend to give evidence of facts which have come to his knowledge, or of matters with which he has had to deal in his public capacity, will draw the combined allowance and transport allowance in accordance with the regulations and rates laid down in Chapter XIV, instead of the amounts payable in terms of Sub-section 1:1.

1:2:1 Retired public officer attending to give evidence of facts which come to his knowledge, or of matters with which he has had to deal in his public capacity before his retirement, may draw expenses at his option either in terms of sub section 1:1 on the basis of his income or profession after retirement, or in accordance with the regulations and rates laid down in Chapter XIV on the basis of his salary and office at the date of his retirement.

2. Payments to Unofficial Magistrates

2:1 Payment of acting allowances to a member of the Bar or an officer who acts when judicial officer goes on leave is as follows:

(a) District Judge	Rs. 500.00 per day
(b) Magistrate	Rs. 450.00 per day
(c) Primary Court Judge	Rs. 400.00 per day

2.2 For any journey or part of a journey along a route on which a public conveyance (bus or train) is available, first class fare by such public conveyance will be allowed, mileage at the rate laid down in Sub-section 2:3 may, however, be claimed in lieu of travelling by bus or a motor car is actually used.

2:3 For any journey or part of a journey along a route on which a public conveyance is not available, mileage at Rs. 6 per mile may be allowed.

2:4 Subsistence Allowance will be paid at the rates shown below:

- | | |
|---|----------------------|
| (a) High Court Judge | - Rs. 500.00 per day |
| (b) District Judge and Family Court Judge | - Rs. 500.00 per day |
| (c) Magistrate and Primary Court Judge | - Rs. 500.00 per day |

The claim in all instances must be supported by a certificate on honour that detention was actually necessary.

2:5 For attendance in the Magistrate's Court in summary cases to give evidence of facts which have come to his knowledge in the course of an inquest or inquiry, travelling and subsistence allowances may be paid as in the preceding Sub-section.

2:6 For attendance in non-summary cases in the Magistrate's Court, and in trials before the High Court, payments will be made in accordance with Section 1 of this Chapter.

2:7 Claims for travelling expenses must be submitted within thirty days of the completion of the journey.

3. Payments made to Inquirers into Sudden Deaths

3:1 Inquirers into Sudden Deaths appointed under Section 108 of the Criminal Procedure Act No. 15 of 1979 and who are unsalaried officers of government will receive a fee of Rs. 500.00 (Including postage & stationary expenses) per inquest on the certificate of a Magistrate that the inquest was necessary and that it was carried out in a satisfactory manner.

3:2 No fee will be paid when an inquiry only is made or a dying deposition is taken and no inquest is held.

3:3 For any journey or part of a journey along a route on which a public conveyance (bus or train) is available, second class fare by such public conveyance will be allowed.

3:4 Rs. 10.00/- per mile as mileage shall be paid for any journey or part of a journey along a route on which a public conveyance is not available and Rs. 6.00 per mile as mileage shall be paid for any journey or part of a journey on which a public conveyance is available.

3:5 Subsistence allowance shall be granted to inquirers who are unsalaried officers of government in accordance with the rates shown below for periods of necessary absence from home for conducting an inquest.

For each complete period of 24 hrs. -	Rs, 500.00
For a period not less than 12 hrs. -	Rs, 500.00
For a period not less than 6 hrs -	Rs, 250.00

3:6 For attendance in the Magistrate's Court in summary cases to give evidence of facts which have come to his knowledge in the course of an Inquest or Inquiry, travelling and subsistence allowances may be paid as in the previous Sub-section.

3:7 For attendance in non-summary cases in the Magistrate's Court, and in trials before the High Court, payment will be made in accordance with Section 1 of this Chapter.

3:8 Subsistence allowance will be paid to Inquirers who are salaried officers of government at the rate applicable to them under Chapter XIV.

3:9 Claims for travelling expenses must be submitted within thirty (30) days of the completion of the journey.

4. Payments for miscellaneous services

4:1 Fees for miscellaneous services such as those incurred by Grama Niladhari in hiring escorts for suspected lunatics or accused persons in custody, watching and burial of unclaimed dead bodies, transport of wounded or sick or accused persons, attendance on sick and injured persons, feeding of accused persons in custody, etc., may be paid at rates to be determined at the discretion of the District Secretary/ Government Agent, subject to the provisions in the following Sub-sections and to any instructions issued from time to time by the Ministry of Home Affairs.

4:1:1 Escorts may be engaged in the case of a violent lunacy suspect or when the accused is charged with a serious offence, or when he is a person of a violent character and is likely to attempt to escape, or when there are more than one accused.

4:1:2 A wounded or sick person, or an accused in custody should normally be conveyed by train or bus, or by cart; if train or bus is not available, the fare or hire and other expenses must be paid by the persons so conveyed, except when he is a destitute person, or when circumstances render it necessary that such expenses must be defrayed for him.

4:1:3 If in the opinion of the Grama Niladhari the life of the wounded or sick person will be unavoidably endangered if a car is not used as a means of conveyance and the person concerned is either destitute or, if not destitute unable or unwilling to pay the hire of the car, the Grama Niladhari may engage a car and claim a refund from Government.

4:1:4 In every case where the fare or hire and other expenses cannot be recovered from the person concerned, a certificate from the Grama Niladhari must be attached to his claim, countersigned by the Divisional Secretary stating that the wounded or sick person is destitute, or stating the circumstances in which the expenses were defrayed by the Grama Niladhari and giving the amount which cannot be recovered.

Chapter X]

4:2 Meals for accused persons in custody may be charged as per the approved rates.

4:2:1 No meals are to be supplied except to a destitute person or when special circumstances render it necessary that meals should be supplied. In every such case a certificate must be attached, countersigned by the Divisional Secretary that the accused person in custody is destitute, or stating in detail the special circumstances in which meals were supplied.

4:3 An officer in charge of a Police Station or railway routes may issue railway warrants to witnesses attending Court, and to informants, identifiers, and other persons brought before them in connection with inquiries into crime, &c. in accordance with the Regulations under Section 243(1) of the Criminal Procedure Act, No. 15 of 1979.

4:4 Claims under this Section must be supported by under receipts and should be submitted within thirty (30) days.

Rates at which travelling expenses, batta, etc., are paid to Witnesses and Jurors for attendance at Court.

The Rules governing payment of batta, etc., to Witnesses and Jurors, are to be found in the Regulations made under Section 243(1) of the Criminal Procedure Act, No. 15 of 1979.

4:5 All payments under this Chapter shall be made from their own votes by the Registrar at the respective stations to which witnesses or jurors were summoned.

REGULATIONS

1. These regulations may be cited as Payment to Witnesses and Jurors Regulations.

2. Any person attending and giving evidence where he is summoned to give evidence in any trial before the High Court or at the inquiry preliminary to any such trial and certified by the Magistrate to be a material witness or in any trial before the Magistrate's Court for any offence under the Bribery Act, shall, subject to the provisions of the succeeding regulations, be entitled to receive the following payments upon his attendance in Court:

- (a) a subsistence allowance calculated at Rs. 35.00 per day ; and
- (b) a travelling allowance calculated at the rate of Rs. 1.50 per mile.

Provided however, that a person who attends Court merely as a witness to character shall not be entitled to receive any such payments unless the Court at its discretion otherwise orders.

3. Every person summoned to serve on a Jury in the High Court shall subject to the provisions of the succeeding regulations be entitled to receive Rs. 75.00 per day upon his attendance in Court:

Provided however, that where a person is summoned to serve on a jury in the High Court held in a Judicial Zone outside the zones in which he resides he shall be entitled to receive an additional subsistence calculated at the rate of Rs.5.00 per day.

4. Notwithstanding the provisions of regulation 2, no travelling allowance other than the fare shall be payable for any portion of the journey to the Court, House or place where the trial or inquiry is held which might reasonably have been performed by public transport.

5. All payments under these regulations shall be made by the Court to which the witnesses or Jurors are summoned.

6. A witness who lives within 5 miles of the Court to which he is summoned shall be entitled to only half the subsistence allowance specified in regulation 2.

7. Where a witness or juror appear in Court on consecutive days or over a period which includes a Saturday, Sunday or a Public Holiday necessitating his residence for such period in the town where such Court is held such witness or Juror shall be entitled to receive an additional subsistence allowance of Rs. 40.00 per day in lieu of the travelling allowance and such Juror shall be entitled to receive an additional payment of Rs. 40.00 per day.

8. For the purposes of calculating payments to witnesses and Jurors under these regulations, any period commencing and terminating before 12 noon on the same day and any period commencing after 12 noon on any day terminating on the same day shall be reckoned as half day and the payments of the subsistence allowance to witnesses and the payments to Jurors shall be made accordingly.

9. Public officers who attend to give evidence of facts which have come to their knowledge or information with which to deal in their official capacity shall be entitled to the payment of travelling and subsistence allowance in accordance with the provisions of the Establishments Code in lieu of the amounts payable under the preceding regulations.

10. The provisions of paragraph 9 of the regulation shall also apply to retired public officers who attend Court to give evidence which have come to their knowledge or of matters which they had to deal in their official capacity prior to retirement, and to witnesses summoned to give expert evidence that is to say persons who in the opinion of the Court have such special knowledge, skill, experience, training or education as is sufficient to qualify them as experts on the subjects to which their testimony is required.

CHAPTER XI

REIMBURSEMENT AND COMPENSATION

1. Advances to meet expenditure in Civil Proceedings
2. Reimbursement of expenses in Civil or Criminal Proceedings
3. Reimbursement of expenses on Entertainment of Foreign Visitors
4. Compensation for Loss or Damage to Property
5. Compensation for injury to Person

CHAPTER XI

REIMBURSEMENT AND COMPENSATION

1. Advances to meet expenditure in Civil Proceedings

1:1 An officer against whom a civil action has been brought in a matter arising from the discharge of his official duties may be granted an advance for meeting the legal expenses of defending such an action, in cases where the Attorney General does not undertake the defense of that action. (See Sub-section 6:4 of Chapter XXXIII).

1:2 If this advance is sought prior to the conclusion of the Civil Proceedings, the Head of the Department should forward to the Secretary;

a report setting out in full the facts of the case and a statement prepared by the officer's lawyer showing the amount required by way of an advance and the make-up of this amount.

1:3 These documents should be forwarded to the Attorney-General by the Secretary, together with his recommendation.

1:4 Payment of the advance will be made in such sum as the Attorney General may advise.

1:5 Before any such advance is paid, the officer will be required to enter into a bond, which will make possible the recovery of the sum advanced, or part of it from the officer if he is unsuccessful in the litigation, or if he is able to recover as costs all or part of his reasonable expenditure.

1:6 It is the duty of the Head of the Department to ensure that recovery of the advance is made at the conclusion of the proceedings. He should, for that purpose, forward to the Secretary of the relevant Ministry, at the conclusion of the case, a statement prepared by the officer's lawyer showing;

the expenditure incurred by the officer;

the amount, if any, recovered by way of costs; and

the expenditure borne by the officer and not recovered by way of costs.

1:7 The Secretary of the relevant Ministry should forward this statement to the Attorney-General with his recommendation.

1:8 The Attorney-General will advise as to whether recovery of the sum advanced, or any part of it should be made from the officer, and the terms on which such recovery should be effected.

2. Reimbursement of expenses in Civil or Criminal Proceedings

2:1 If a public officer seeks reimbursement of his expenses at the conclusion of any legal proceedings whether Civil or Criminal, the Head of the Department should forward to the Secretary of the relevant Ministry; a report setting out the full facts; a statement prepared by the officer's lawyer containing the same particulars as are required to be furnished under Sub-section 1:6.

2:2 The Secretary will forward these documents to the Attorney-General with his recommendation.

2:3 The Attorney-General will advise as to whether the officer should be reimbursed the full amount or any part of the expenses which he has not recovered by way of costs.

2:4 No advance or reimbursement will be made if legal proceedings, whether Civil or Criminal, have been initiated against the officer by or at the instance of government.

2:5 If, however, the prosecution is made in respect of an action of an officer proved to be a legitimate action and during the lawful exercise of his duties and the proceedings end in his acquittal, with no departmental action contemplated against him, he may be reimbursed as advised by the Attorney-General in accordance with this section.

3. Reimbursement of expenses on Entertainment of Foreign Visitors

3:1 A Secretary, a Head of Department or a Government Agent/ District Secretary who has necessarily, in his official capacity, to incur expenditure on the entertainment of a foreign visitor may be reimbursed such expenditure.

3:2 The entertainment for which reimbursement is claimed should, as far as possible, be limited to tea, lunch or dinner and be confined to the officer acting as host, his spouse, the visitors and their spouses and not more than five other persons.

3:3 A Secretary to a Ministry should obtain the prior approval of the Minister and, a Head of Department, the prior approval of the Secretary for such entertainment on Government account.

3:4 The approving authority will determine the nature and the extent of the entertainment to be provided.

3:5 The bills should be paid direct by the Government if a hotel or caterer does the catering. Where a private arrangement for entertainment is made at home, the maximum rate at which re-imbursement should be made is as follows:-

Tea	Rs. 10.00 per head
Lunch	Rs. 25.00 per head
Dinner	Rs. 40.00 per head

Claims may be made on a certificate of honour signed by the Officer.

3:6 The giving of a party other than the limited entertainment referred to above, in honour of foreign visitors on government account, should have the prior approval of the Minister concerned and will be allowed only in very special circumstances. Full details of the proposal and its cost should be submitted by the Secretary concerned to the Minister.

3:7 The re-imbusement of entertainment expenses in terms of this section will not affect the allowance at present granted to the Secretary to the Ministry of Foreign Affairs who will not be entitled to any further benefits under this section.

4. Compensation for Loss or Damage to Property

4:1 An officer has no right to compensation for loss or damage to private property by fire, theft, civil commotion or other cause sustained in the course of his service.

The Secretary to the Ministry in charge of the subject of Public Administration may however consider the grant of compensation as an act of grace in special cases. This concession will not be extended if, in the opinion of the Secretary, the loss or damage is due to negligence on the part of the officer or could reasonably have been covered by insurance.

4.2 An appeal for compensation will not be entertained unless a complaint has been recorded by the Police immediately after the alleged loss or damage and the appeal is forwarded to the applicant's Head of Department within two (02) weeks of the event.

4.3 An appeal should be sent to reach the Director General of Establishments within one (01) month of the occurrence of the loss or damage.

4.4 Where damage has been sustained as a result of fire, etc. the officer in charge of the office or worksite should make a prompt and full inquiry recording the evidence of all the witnesses and all persons likely to make any claims. He should also immediately inspect and assess the extent of the damage and furnish a detailed report to the Head of the Department.

4.5 If an ex-gratia payment is considered, it will be limited to an amount sufficient to enable the officer to re-equip himself with essential requirements only, and will not in any case exceed one (01) month's salary.

5 Compensation for injury to Person

5.1 If an officer is injured in an accident which is likely to give rise to a claim under Section 30 or 31A of the Minutes on Pensions whether on his eventual retirement from service or earlier, the circumstances should be investigated immediately by a Board duly constituted for the purpose. The investigation should have special reference to following aspects :-

whether the injury was sustained in the actual discharge of the officer's duties;

whether it was specifically attributable to the nature of his duty;

whether it was through no fault of his own.

The result of the investigation should be reported forthwith to the Director General of Establishments.

The report to be made under this regulation is for pension purposes. A separate report of any serious accident should be made forthwith to the Secretary to the Ministry.

5.2 In a case of an accident met with by a “workman” as defined in the Workmen’s Compensation Ordinance (Cap. 139) as amended by the Workmen's Compensation (Amendment) Act, No. 31 of 1957, the following action should be taken :-

The accident should be reported by or on behalf of the workman (Section 16-18).

A medical examination by a Government Medical Officer should be arranged by the Staff Officer in charge of the injured workman (Section 21).

A report should be made by the Head of Department or by the Staff Officer in charge of the injured workman to the Commissioner Workmen's Compensation, within a period of fourteen days reckoned from the date on which the accident occurred (Section 57(1)). An information copy should be sent to the Director General of Establishments.

A report should be made by the employing department to the Director General of Establishments, regarding the liability to pay compensation (Section 3) and the amount of compensation payable (Section 6 and 7). If death results from the injury, the names and addresses of the dependents should be furnished (Section 10).

CHAPTER XII

LEAVE

1. General
2. Authority for granting leave
3. Leave of absence from station
4. Leave for part of a day
5. Casual Leave
6. Sick Leave
7. Lieu Leave
8. Vacation Leave
9. Accident Leave and Special Sick Leave
10. Lapsed Leave
11. Leave preparatory to retirement
12. Special Leave
13. Duty Leave
14. Full-Pay Study Leave
15. No-Pay Study Leave
16. No-pay leave for study and/or employment abroad
17. Earned Leave
18. Maternity Leave
19. Leave to attend a Government Examination
20. Compulsory Leave

21. Half-pay Leave
22. No-pay Leave
23. Leave to be spent out of the Island
24. Leave to Teachers
25. Leave to a Subordinate Officer
26. Leave to a Minor Employee
27. Leave to a Daily-paid Officer
28. Leave to a temporary officer serving under contract for a definite term
29. Leave to a temporary officer not serving under contract for a definite term
30. Leave to Police Sergeants and Constables
31. Leave to a Prison Officer below the rank of Jailor
32. Leave to an Apprentice/ Trainee
33. Leave to a Casual Officer
34. Leave to an Officer released for service in a Public Corporation
35. Short Leave
36. No-pay Leave for a Spouse of an Officer Posted abroad
37. Leave to an officer re-employed after retirement

CHAPTER XII

LEAVE

1. General

1:1 Leave is a privilege, and not a right. It is granted subject to the exigencies of service and may be curtailed or cancelled at any time by the authority granting the leave.

1:2 An application for leave must be made on the proper form,-

In the Island-Form General 125a.

Out of the Island-Form General 126.

1:3 An application for leave must normally reach the office of the authority granting leave at least seven (07) days before the date from which the leave is to commence.

1:4 An application for leave out of the Island should, when possible, be made not less than three (03) months before the date from which the leave is to commence.

1:5 An officer who desires a reply by telegram should pre-pay the reply.

Revision

1:6 A telephone call requesting leave which is not duty leave is “Private” and must be paid for by the caller.

1:7 A register of leave granted should be kept in Form General 190.

1:8 A return of leave granted to an acting officer during which he is not entitled to draw the acting pay or additional remuneration normally payable to him, should be rendered to the Auditor General monthly on Form General 196 (suitably amended, where necessary).

1:9 When an officer is transferred, the Head of the Department from which he is transferred should furnish to the Head of the new Department :-

the total vacation/sick leave, leave on half-pay and leave on no pay availed of by the officer during each year since his first appointment; and all casual leave taken by him during the year.

1:10 In calculating Casual Leave, Public Holidays, Saturdays and Sundays should be excluded. Vacation leave when it is to be spent outside the island includes Saturdays, Sundays and Public Holidays falling within the period of such leave.

1:10:1 A Saturday, a Sunday or a Public Holiday falling within a period of leave on half-pay or no-pay will be counted as on half-pay or no-pay respectively.

1:10:2 When public officers who are required to report five and half days (5½) per week for duty, obtain leave on Saturday, only half days' leave should be deducted from their annual leave.

New Inclusion

2. Authority for granting leave

2:1 A Head of Department may grant to a subordinate, leave of absence on full-pay to be spent in the Island in accordance with the provisions of this Chapter, provided that proper arrangements are made for the performance of his duties, which, it is expected, will be carried out by the other officers of the Department. The Head of the Department is responsible for making satisfactory arrangements for the performance of the absent officer's duties.

2:2 Leave to a Head of Department will similarly be granted by the Secretary concerned.

3. Leave of absence from station

3:1 An officer may not absent himself from his station, without leave.

3:2 An application for leave of absence from station should be made to the authority granting leave, even though permission may have been obtained verbally or demi-officially, and although the day for which leave of absence from station is sought a holiday.

4. Leave for part of a day

4:1 The shortest period of leave to be granted is short leave (see Section 35).

4:2 If an officer works a minimum of three and a half hours (whether in the morning session alone, or in the afternoon session alone, or in the morning and afternoon sessions together), exclusive of his lunch interval, and is on leave for the rest of the day, his leave for that day should be counted as a half day. If he works for less than three and a half hours, it would count as one day's leave.

4:3 Sub-section 4:2 will apply to an officer whose working hours are from 8.30 a.m. to 4.15 p.m.

5. Casual Leave

5:1 The Head of the Department may grant casual leave to be spent in the Island in periods of not more than six (06) days at a time up to a maximum of twenty one (21) days in the year.

5:2 Casual leave will be in addition to the vacation leave under Section 8.

5:3 Casual leave is intended to enable an officer to be absent, for short periods at a time as necessitated by purely casual circumstances. It should not, except in unavoidable circumstances, precede or follow a spell of vacation leave or half-pay leave.

5:4 The Head of the Department is responsible for ensuring that the grant of such leave does not affect the work of the Department.

5:5 An officer newly appointed to the Public Service should not be required to serve a minimum period to become eligible for the casual leave of that year as in the case of vacation leave. However, the authority granting leave will be guided by the rules in Sub-section 5:3 above in granting leave.

6. Sick Leave

6:1 When leave is requested on grounds of illness or when an officer cannot attend office on account of illness for more than two (02) days, the officer must have himself examined by the nearest Medical Officer. Where the Medical Officer who examines the officer is a Government Medical Officer, such Medical Officer will forward a certificate on Form Medical 70 or Ayurveda 44, or where the Medical Officer who examines the officer is a Private Medical Practitioner registered under the Ayurveda Act or Medical Ordinance, such Medical Practitioner will forward a certificate on a form specially prepared by him, to the Head of the Department or Sub-office in which the officer works.

6:1:1 Sick leave on full-pay, half-pay or no-pay for any period may be granted on a medical certificate mentioned in the preceding Sub-section.

6:1:2 Instructions regarding medical certificates are issued by the Department of Health Services.

Revision

6:2 A short period of leave up to six (06) days at a time on account of illness may, if the officer so desires it, be counted against casual leave.

The Head of the Department may decide in any particular case, to deduct any short period of absence from an officer's vacation leave.

6:3 A Head of the Department or the Authority, granting leave is empowered, where he deems it necessary in regard to an officer's leave, to call for the submission of a medical certificate from a Government Medical Officer, where under normal circumstance such a medical certificate is not necessary.

7. Lieu Leave

7:1 If the Head of the Department considers it necessary that an officer should perform his duties on any Public Holiday or a "weekly-off-day", the officer may be granted, at the discretion of the Head of the Department, leave of absence in lieu of, and not exceeding the term of, such a Public Holiday or "weekly off-day". Leave so granted will not be counted against the leave for which the officer is ordinarily eligible. A Head of Department who finds it necessary to work on a Public Holiday or "weekly off-day" and intends to claim lieu leave must report the facts to the Secretary.

7:1:1 Where an employee is required to work only for a part of a Public Holiday or a "weekly off-day" lieu leave as provided for above, should be allowed only for the actual number of hours worked. The hours that may be reckoned for this purpose are only those falling within the normal working hours of the officer concerned.

7:2 Leave should not be granted in lieu of any public holiday unless during that holiday,-

the officer concerned actually attended his office or other place of work, or was compelled to remain in his station and hold himself available for duty.

7:3 The Head of the Department is responsible for seeing that the grant of lieu leave does not involve any expenses to Government, or interfere with the normal work of the Department.

7:4 Lieu Leave should be availed of within one (01) year of the holiday in respect of which it was earned, and will lapse thereafter.

7:5 Lieu Leave may be combined with either casual or vacation leave to be spent within the Island but not with any form of leave to be spent out of the Island.

8. Vacation Leave

8:1 An officer may be granted a maximum of twenty-four (24) days vacation leave each year. In respect of officers who are required to work seven (07) days per week (e.g.:- Medical Officers, Nurses, Police Officers, Prison Officers etc.), it should be a maximum of twenty-eight (28) days.

8:2 He may be allowed the accumulated vacation leave of two years, that is, the unused leave of the year in which he takes the leave and of the preceding year. He will thus be entitled to a maximum of forty-eight (48) days leave in a year.

Revision

8:2:1 A Staff Officer may be allowed the accumulated leave of three years, that is the year in which he takes the leave and of the two preceding

Revision

years if the leave is to be spent out of the Island. He will thus be entitled to a maximum of seventy-two (72) days leave.

8:3 A Saturday, Sunday or a Public Holiday falling within a period of vacation leave will not be counted as leave, if the vacation leave is to be spent within the Island, but will be counted if the leave is to be spent outside the Island. (See also Sub-section 1:10)

8:4 An officer who has availed himself of his accumulated vacation leave under the preceding Sub-sections in any year may, nevertheless, subject to Sub-section 8:8, be granted vacation leave in respect of twenty-four (24) working days.

8:5 An officer who returns to duty after leave out of the Island and desires to avail himself again of leave out of the Island in the year in which he returns to duty or in the following year and before he has completed the period of nine (09) months continuous duty specified in sub section 8:6 may be granted leave as follows :-

Proportionate vacation leave at the rate of one-ninth (1/9)th of a year's vacation leave for each month of service, performed, in the year in which he returns from leave, provided that he has not already availed himself of any vacation leave of that year, plus one-third (1/3rd) of one year's vacation leave for every complete month's service performed in the following year, up to a limit of twenty-four (24) days leave in respect of that year.

8:6 An officer on first appointment should serve for nine months before twenty-four (24) days vacation leave on full-pay can be allowed. An exception may, however, be made in cases of illness medically certified, or in other cases of grave urgency, when the Head of Department may allow in the first year of service proportionate vacation leave at the rate one-ninth (1/9th) of an year's vacation leave for every month's service.

8:7 On completion of two (02) years' service from the date of appointment, an officer may be allowed, during the remainder of the calendar year in which he completes such service, proportionate vacation leave calculated at the rate of one-twelfth (1/12th) of an year's vacation leave for each month of service up to the end of that year. The officer's vacation leave should, from 1st January of the following year, be computed on the basis of the calendar year.

Example

An officer is appointed on 15.03.2009 and completes two years' service on 14.03.2011. For the period from 15.03.2011 to 31.12.2011 he may be granted nineteen (19) days vacation leave. From 01.01.2012 his leave will be on the basis of the calendar year.

8:8 Subject to Sub-sections 8:6 and 8:7, vacation leave in respect of a year cannot ordinarily be granted unless the officer has performed the duties of his office for at least three (03) months during that particular year. If, however, the grant of leave before completion of three months is considered necessary, proportionate leave at the rate of 1/3rd of a year's vacation leave for each month of service may be allowed by the Head of the Department.

9. Accident Leave and Special Sick Leave

9:1 Accident Leave

9:1:1 Accident Leave may be granted by the Secretary to the Ministry concerned, up to one year on full pay and a further six (06) months on half pay, according to the nature of injury and the recommendations of the Medical Board, to a public officer or a judicial officer (other than a member of the Armed Services), whether holding a permanent and pensionable appointment or not,.

- (a) while on duty,
or
- (b) while not on duty, but in the performing an act which is within the scope of his ordinary duties,
or
- (c) in consequence of any act performed in the execution of his duties,
or
- (d) while on a journey -
 - (i) from his place of residence to his place of work to report for duty,
or
 - (ii) from his place of work to his place of residence after duty,
or
- (e) while on a journey from his place of work to attend to official work, or while on the return journey to his place of work, provided that the officer-
 - (i) has not met with the injury acting in violation of any law or departmental rule or regulation;
and/or
 - (ii) there is no contributory negligence on the part of the officer.

9:1:2 The leave so granted should not be deducted from the normal leave of the officer.

9:1:3 In addition to the one year leave prescribed under 9:1:1 above, the officer has the permission to obtain his lapsed leave.

9:1:4 An application for Accident Leave should be made on Form General 5.

9:2 Special Sick Leave

9:2:1 An officer who contracts an illness in the actual discharge of his duties, may be granted special sick leave up to six (06) months on full-pay and a further six (06) months on half-pay provided that the Secretary to the Ministry concerned is satisfied on a certificate furnished by a Government Medical Officer that the illness was contracted;

in the actual discharge of his official duties without his own default;

and in the circumstances specifically attributable to the nature of his official duties.

9:2:2 The leave so granted should not be deducted from the normal leave of the officer.

9:2:3 Secretary to a Ministry may grant special sick leave on full pay according to the recommendation of a Medical Board to a public officer, judicial officer or a police officer, who is holding a permanent and pensionable appointment or not, who suffers injury in an unforeseen disaster whilst not on duty if the Director General of Establishments decides that such disaster warrants the grant of such concession.

9:2:4 The leave so granted should not be deducted from the normal leave of the officer.

10. Lapsed Leave

10:1 If an officer who has exhausted all the vacation leave under Sub-section 8:2 requires further leave, he may be allowed, at the discretion of the Head of the Department, the unused vacation leave of any period of two years, subject to the following Sub-sections.

10:1:1 If an officer requires to obtain further leave on medical grounds, the total of balance lapsed vacation leave of whichever past two (02) years (consecutive or not) that is beneficial to him could be granted.

10:1:2 If an officer requires to obtain further leave on non-medical grounds, the total of balance lapsed vacation leave of whichever past two (02) consecutive years could be granted.

10:1:3 In any one year, an officer can avail himself of the lapsed leave of such period of two years only.

10:1:4 The total of lapsed leave so granted to an officer during two (02) consecutive years should not exceed his normal leave for two (02) years, viz., forty-eight (48) days.

Revision

10:1:5 If an officer, whose attendance otherwise has been regular and whose work and conduct have been good, requires a leave due to an illness or an accident caused to him, the Secretary may, if he is personally satisfied with the *bona fides* of the case, at his discretion allow the officer to avail himself of a second period of unused lapsed leave of two years during any one year.

10:1:6 In such circumstances, the total lapsed leave granted to an officer during two consecutive years should not exceed his normal leave for four years viz., ninety-six (96) days.

[Revision](#)

10:2 Lapsed leave under the preceding Sub-section may be granted only for the following reasons :-

- Illness of the officer;
- Illness in the family;
- Death in the family;
- Religious ceremony in connection with any of the above;
- Officer's marriage;
- Infectious disease in the office's household;

To attend court on summons in a case not arising out of the actual discharge of official duties.

10:3 In an application for lapsed leave the period of two years (which is consecutive or not) against which the leave applied for is to count and the amount of leave available in that period should be clearly stated.

10:4 When lapsed leave is granted, a Head of Department should ensure that a note is made in the officer's leave record of the grant of the lapsed leave against the years on account of which it was granted, the period being finally marked-off when all the leave has been used up.

10:5 Reference should always be made to any previously sanctioned applications for lapsed leave which was set-off against the period of two years against which the leave applied for is to count.

10:6 Lapsed leave should not be granted to an officer who will not return to duty at the end of such leave for a reasonably long period, for further service under Government. If an officer to whom lapsed leave has been granted, retires or is compulsorily retired without returning to duty, or having returned to duty, retires or is retired before completing a period of service which is not less than the period of the lapsed leave granted, the lapsed leave so granted should be converted to half-pay leave unless the lapsed leave was granted on account of sickness.

10:6:1 A Head of Department should obtain instructions on all such cases from the Secretary before submitting the pension papers of the officer concerned.

10:6:2 When lapsed leave is converted into half-pay leave under this Sub-section, the half salary to be refunded may be deducted from any pension or retiring allowance for which the officer may be eligible, in such installments as the Director General of Establishments may direct.

11. Leave preparatory to retirement

11:1 A public officer eligible to obtain vacation leave under Section 8 and a Minor Employee who is granted leave under Section 26 of this Chapter can be granted Vacation/ Medical Leave available in any two preceding years as leave preparatory to retirement, at the time of his retirement.

11:2 He can be also granted Vacation/ Medical Leave to which he is entitled in the current year in addition to leave preparatory to retirement.

11:3 At the time of retirement, a Daily Paid Public Employee who is granted leave under section 27 of this Chapter can be granted Medical Leave available in the year of his retirement and the preceding year under above section, as leave preparatory to retirement. If he has worked during the year of retirement, he can be granted all unused casual leave available in the year in addition to the above leave.

11:4 An officer who is retired for inefficiency is not eligible for leave preparatory to retirement, unless special circumstances exist which would make it equitable or desirable to grant him such leave. In such a case an application for the grant of such leave should be forwarded to the Secretary with an explanation of the circumstances, which justify it.

11:5 An officer who has tendered his resignation from his appointment is not eligible for any vacation leave or casual leave from the date he tenders his resignation.

12. Special Leave

12:1 Special leave not exceeding two hours, commencing at 1.00 p.m. may be granted at the discretion of the Head of the Department, and subject to the exigencies of service, to a Muslim Public Officer for the purpose of religious observance on Fridays.

Revision

12:1:1 This special leave is granted on condition that the officer may, if necessary, be required to work outside normal office hours to make up from the time spent on such special leave.

12:1:2 In the case of an officer engaged in an essential public utility or allied service, the grant of this concession will be subject to the over-riding consideration of the need for the officer's service on such a day.

12:2 Permission may be granted at the discretion of the Head of the Department to an officer to attend study classes at a recognized Institution during office hours without such absence being debited against his leave, provided that,

the total amount of leave does not exceed 1 hour on any day;

the leave does not extend beyond 9.30 a.m. or commence earlier than 3.15 p.m.;

the officer is held responsible for all the work entrusted to him; (The concession should be withdrawn if it is found that the work of the officer is adversely affected);

the number of officers seeking such leave at a particular time is not excessive;

the circumstances of each individual case should be such as to merit the concession;

the officer gives an undertaking to work, if so required, outside office hours for a period equivalent to the period of his absence.

12:2:1 The concession granted in sub section 12:2 can be extended to an officer attending a study class conducted by a Trade Union, Welfare Society, or an organized group of Public Officers, to sit an Examination for promotion, provided the arrangement is approved by the Head of the Department.

12:3 A public officer, including a casual officer should be granted special leave without loss of pay for such a continuous period as he may deem necessary, to enable him to cast his vote at an Election, the minimum period being,-

Presidential Election	..	4 hours
Parliamentary Election	..	4 hours
Referendum	..	4 hours
Provincial Council Election	..	2 hours
Local Authority Election	..	2 hours

12:4 A Secretary may grant special leave on full-pay to a public officer who is selected by a Scientific or Professional Association or Institution which is recognized by the government, to represent Sri Lanka at an International Conference provided the Government has approved of his going abroad. For the purpose of this Sub-section, scientific or professional associations 'recognized by the Government' means the institutions or associations which receive aid annually by the Government.

The duration of the conference and the minimum period required for the travel should be included in the special leave granted in the above manner.

12:5 Special full-pay leave should be granted to a public officer who takes part in sports or other activities related to sports when he-

- (a) is selected to represent Sri Lanka in any branch of sport in Sri Lanka or abroad as a player;
- (b) functions as an official of a national team in Sri Lanka or abroad;
- (c) attends a coaching camp held immediately prior to an International Competition; or
- (d) attends an International Seminar or an International Course in Coaching or refereeing as approved by the Ministry in charge of the Subject of Sports.

New Inclusion

12:6 Such leave could be granted at the discretion of the Head of the Department to such a public officer when he,

- (a) as a national player, recognized as such by the Ministry in charge of the subject of sports, attends a normal training session;
- (b) takes part in a local competition organized by a Sri Lanka Government Services Sports Society; and
- (c) officiates as an Umpire or as a Referee in such a Competition,

12:7 A member of a Trade Union is eligible for leave provided for in Chapter XXV.

12:7:1 Special leave may be granted to a Trade Union Official to follow a Workers' Education Course conducted by the Department of Labor, on the days on which the lectures are held.

12:8 Officers suffering from certain illnesses are entitled to leave provided for in Chapter XXIII.

12:9 When a contact of a quarantinable disease is segregated, the necessary leave will count as special leave on full pay. (See Sub-section 13:1:2 of Chapter XXVIII).

12:10 A member of the Sri Lanka Medical Association, Institute of Engineers Sri Lanka, Sri Lanka Association for the Advancement of Science, Sri Lanka Library Association, Institute of Chemistry Ceylon, Surveyors Institute of Sri Lanka and Sri Lanka Institute of Architects, Institute of Town Planners, Institute of Engineering Diplomats of Sri Lanka, may be permitted to attend the Annual Sessions of such a body, provided he could be spared without unduly disturbing the work of the Department. Such an absence should not count against his leave. He may also be

Revision

issued a free railway warrant for the purpose, but no other travelling expenses are payable.

12:11 Special Leave may be granted to a Public Officer undergoing sterilization as follows :-

Seven (07) days leave for a female sterilization (Tubectomy)

Three (03) days leave for a male sterilization (Vasectomy)

only on the production of a Medical Certificate from a Registered Medical Practitioner that the officer has undergone sterilization.

12:12 Leave for the observance of Iddah - A Muslim married female officer in the Public Service upon the decease of her husband may be allowed, on that account, leave for a period of 04 months and 10 days, setting off such leave against her vacation leave of the relevant year as well as the unused vacation (accumulated and lapsed) leave accrued during her entire Public Service; and leave not exceeding three (03) months may be allowed upon her being divorced by her husband or upon divorce obtained by her. Any leave beyond such number of days shall be on "Half-pay".

12:13 A Public Officer, who is a member of Seva Vanitha, should be given leave of one (01) hour per month, to attend Seva Vanitha meetings.

12:14 Special Leave can be granted under this Section to a Public Officer who, having left his station after obtaining leave, finds it impossible to report for duty on the expiry of his leave owing to the military operations launched by the Security Forces of the Government. Before approving this leave, the officer approving leave should make inquiries from the respective District Secretary/Government Agent and get confirmation of the genuineness of the said situation. In case of uncertainty, the Secretary to the Ministry of Defence should be contacted.

12:15 Special leave may be approved to an officer who is attending a formal disciplinary inquiry as an accused officer but without being interdicted. This leave may be deducted from the leave to which the officer is entitled if he is not cleared and acquitted from all charges.

13. Duty Leave

13:1 Duty Leave may be granted for the period of duty and the minimum period required for travel when an officer is sent abroad by the Government strictly on Government business as, for example, attending a conference, negotiating purchases or supplies, inspection of stores and equipment, signing an agreement.

13:2 An officer who is a member of a Volunteer Force of the Sri Lanka Army, Navy or Air Force should be granted duty leave when he is called out for duty or when required to attend an annual training camp, weekend camp and military training exercises.

13:3 An officer who is a member of the Special Police Reserve should be granted duty leave when he is called out for duty or when he is required to attend a training camp.

13:4 An officer permitted to represent an accused officer at a disciplinary inquiry should be granted duty leave for attending the inquiry and also a reasonable number of days duty leave for examining the documents. An official witness summoned through the Head of Department will be granted duty leave to attend such an inquiry.

13:4:1 An officer permitted to represent an accused employee of a Statutory Board/ Public Corporation at a disciplinary inquiry conducted subjected to the rules and regulations of the said establishment should be granted duty leave for attending the inquiry and also a reasonable number of days duty leave for examining the documents, provided that, the request is received through the Head of the Institution concerned. Permission for such representation will be limited to disciplinary proceedings within the control of the Institution.

Chapter XIV Sub-section 29:8 of this Code is however not applicable to such an officer but he may obtain traveling expenses from the Institution concerned.

13:5 Duty-Leave may be granted to an officer to attend Courts when he is summoned in his official capacity and when the necessity to attend courts arises out of the officer's duties. Duty leave may also be granted to a public officer to attend Courts as a state witness.

13:6 Duty-Leave may be granted to an officer for attending a Seminar by in his capacity as a member of a Trade Union or if the Seminar is of relevance to the activities of the Department in which he is employed.

13:7 A public officer who while being a Chairman of a Gramodaya Mandalaya is appointed as a Patron of a Sub-office of a Development Council should, as long as he continues as such patron, be granted one day duty leave per week.

13:8 Duty leave not exceeding three days (03) per month may be granted to a public officer who is also a registered Ayurvedic Medical Practitioner who treats patients requiring immediate medical attention, provided the Head of Department is satisfied that the officer has actually treated such patients.

14. Full Pay Study Leave

14:1 Full pay study-leave abroad or in the Island may be granted to an officer for the period of study or training (and the minimum necessary period of travel) only under the following circumstances:

14:1:1 If he is selected under an approved Departmental Scheme of training or scholarship for the purpose of obtaining a prescribed qualification at the expense of Government;

14:1:2 If he is sent on a scholarship secured at the instance of the Government in terms of sub section 1:5:3 of Chapter XV;

14:1:3 If he is sent abroad at the expense of the Government or of a foreign Government or Agency for a Course of study/training, in terms of the scheme of recruitment/promotion applicable to his post;

14:1:4 If he secures on his own initiative a scholarship offered by a foreign Agency or foreign Government in terms of sub section 1:5:1 or 1:5:2 of Chapter XV for a course of study or training which is included in the Department's programme of training and for which the officer would have been sent in the normal course of events at the expense of the Government some time in his career;

14:1:5 For attending a Seminar, training programme, technical training course, vocational guidance course, study tour, etc., which is sponsored by a foreign Government or Agency. However full pay study leave can be granted strictly provided the invitation to participate is extended to the Government and the Government nominates that officer for the Purpose.

14:2 A temporary officer is not eligible full pay study leave. An officer on probation is also not eligible for full pay study leave except in the circumstances stated in Sub-section 14:1:3. An officer on probation may, however, be sent abroad for training in connection with the duties he is performing provided the Secretary in charge is satisfied that the provisions of sub section 14:4 and 14:5 of this Chapter and Section 4 of Chapter XV are complied with.

14:3 A Secretary may grant full pay study leave to a public officer subject to the provisions of this Section.

14:3:1 The prior permission of the Secretary to the Ministry in charge of the subject of Public Administration should be obtained in the case of an officer in a Combined Service.

14:3:2 A Head of Department not falling under a Ministry may grant such leave to an officer of his Department. When the Head of such a Department himself requires full pay study leave, the application should be referred to the Secretary, Ministry in charge of the subject of Public Administration.

14:3:3 A request for study leave with full pay which does not fall under any of the categories referred to in Sub-section 14:1:1 to 14:1:5 should be referred to the Director General of Establishments.

14:4 An officer who is granted full-pay study leave should be required to enter into an Agreement (see Section 4 of Chapter XV) before he is allowed to proceed on leave.

14:5 Before leave is granted, the authority granting leave should satisfy himself that the permission of H.E. the President/ Hon. Prime Minister/ Hon. Minister/ Hon. Governor has been obtained in terms of Section 10 of Chapter XV.

14:6 The period of obligatory service for full pay study leave within the Island should be determined as follows:-

- (i) no obligatory service for a period leave of less than six (06) months.
- (ii) in respect of a period of six (06) months and over, the period of obligatory service should be twice the period of leave subject to a maximum of five (05) years.
- (iii) the period of obligatory service should be calculated to the nearest whole month.

New Inclusion

15. No Pay Study Leave in the Island

15:1 A permanent officer is eligible for the grant of no-pay study leave for a specific course of study in the Island except for a Doctorate provided the course of study is approved by the Head of the Department who must certify that –

- (a) the officer is competent to follow the proposed course of study;
- (b) it is relevant to his field of work; and
- (c) it would be beneficial to him in the discharge of his duties.

15:1:1 However, No Pay Study Leave in the Island up to a period of three (03) years, may be granted to public officers who would study for a Doctorate after following a study course leading to a Master's degree or equivalent.

Revision

15:2 Such leave will be granted only for pursuing a regular course of study at a recognized institution, conducted during the officer's normal working hours and which he would not therefore be able to attend but for the grant of leave.

15:2:1 No-pay study leave will not be allowed for preparing for an examination, or doing reference for research studies, at home or in a library or laboratory.

15:3 The period of no-pay leave so granted should in the first instance not exceed one year but subsequent extensions not exceeding one (01) year at a time may be granted from time to time, if necessary, but such as not to exceed a total of three (03) years.

15:4 A public officer who is granted no-pay study leave for the purpose of study or training within the island should enter into an agreement to be served an obligatory service as follows:-

- I. No obligatory service for a period less than one (01) year.

- II. In respect of a period of no pay leave of one (01) year or exceeding one year period of obligatory service should be equivalent to the period of no pay leave.
- III. The period of obligatory service should be calculated to the nearest whole month.

15:5 The form to be used for the purpose of the Agreement should be that in Appendix 9. This form should not be amended without the prior approval of the Director General of Establishments.

15:6 When an extension of leave beyond the period originally allowed is granted, the period of obligatory service and the penalty stipulated in the Agreement should be proportionately increased. The officer should be informed of the corresponding amendments and his consent thereto should be obtained in writing and filed of record along with the agreement.

15:7 If the officer fails to discharge the period of obligatory service under the Agreement, he will be subjected to a monetary penalty at the rate of one third ($1/3^{\text{rd}}$) of his monthly salary as at the time of departure for each month of the undischarged obligatory period of service.

15:8 Leave under this section must be sanctioned by the relevant Secretary and in a Department not falling under a Ministry, by the Head of Department. In the case of an officer of a Combined Service, the application should be referred by the Secretary through the Director General of Combined Services/Engineering Service Board to the Secretary in charge of the subject of Public Administration.

15:9 No pay leave is granted for a specific course of study. After no pay leave is granted, an officer should not change his course of study or curtail the course of study or use the unexpired period of leave for any other purpose without the prior sanction of the Authority who granted the leave.

15:10 Before no pay leave is granted, the Head of the Department should ensure that satisfactory arrangements are made for the recovery of the monthly installments due on any loan or advance granted to the officer.

15:10:1 An officer applying for no pay leave for employment abroad should settle the loan before he is granted the leave (see Sub-section 3:18:1 of Chapter XXIV).

15:11 Before the officer proceeds on the leave the Authority granting leave should satisfy himself that relevant permission has been obtained in terms of Section 10 of Chapter XV.

15:12 The officer should be required to enter into the Agreement referred to in Sub-section 15:4 before he is allowed to proceed on leave.

16. No pay leave for study and/or employment abroad

16:1 Time periods which could be granted in respect of no-pay leave for study and/or employment abroad are as follows.

16:1:1 A confirmed Public Officer may be granted no pay leave for study or for taking up employment abroad or both (i.e. study followed by employment or vice versa) for a total period of five (05) years in his career. This concession may be extended, to an officer who is temporary or who has not been confirmed, only for the purpose of study.

16:1:2 Continuous time duration which is granted for study should not exceed three (03) years and only for employment, continuous time duration can be five (05) years.

16:1:3 However, a continuous period of up to five (05) years no pay study leave abroad may be granted to Public Officers who would study for a Doctorate, after following a study course leading to a Master degree.

16:1:4 A confirmed public officer may also be granted no pay leave for a total period not exceeding five (05) years for taking up employment in Foreign Agencies such as UNDP, WHO etc. established in Sri Lanka with the Government concurrence. This provision is also applicable to taking up employment in Foreign Funded Projects, under the Ministries approved by the Government.

16:1:5 The total number of such leave under Sub-section 16:1:1 and 16:1:4 will be limited to five (05) years in an officer's career.

16:1:6 All other conditions given under Section 16 in respect of officers granted no pay leave for taking up employment abroad are applicable to officers when granting no pay leave under Sub-section 16:1:4.

16:1:7 No-pay foreign leave may be granted to Buddhist Priests in Public Service who are confirmed in their posts, subject to a maximum period of two (02) years to engage in Buddhist missionary activation abroad.

Revision

16:1:8 All other conditions stated under Section 16 in respect of granting no-pay foreign leave for employment abroad shall also be applicable for, when granting leave under Sub-section 16:1:7.

New Inclusion

New Inclusion 2

16:2 In the case of no pay leave for study abroad, the Head of Department should certify that :-

Revision

- (i) the training/study is required for due performance of the Departmental work or for the promotional prospects of the officer;
- (ii) no scholarship arrangements for the purpose is available in the Department;
- (iii) no facilities are available in the country for the purpose.

16:2:1 Such leave will be granted only for pursuing regular course of study at a recognized institution.

Revision

New Inclusion

16:3 Before an application for study leave abroad under this provision is considered, the Head of Department should satisfy himself, after consulting the Controller of Exchange, that the applicant for study leave will be granted the foreign exchange necessary for the purpose.

16:4 When leave is granted for the purpose of study or includes a period of study, the officer is entitled to the earned leave of Section 17 of this Chapter for the whole or part of the study leave. The period of earned leave is not liable to obligatory service but should be reckoned to form part of the leave entitlement given under this section.

16:5 The officer should be called upon to sign an Agreement as in Appendix 9 if the leave is granted for the purpose of study or as in Appendix 10 if the leave is for the purpose of employment; the form to be used when the leave is for the combined purpose of employment and study will be as in Appendix 11.

Revision

16:6 Where the leave is granted to an officer who is temporary or who has not been confirmed, he should be called upon to enter into a bond as provided for under sub section 4:2 of Chapter XV in addition to the Agreement as in Appendix 9.

16:7 Leave given in terms of the above rules may be reckoned for purposes of increments. An officer may be placed, on his return, on the salary point he would have reached had he not gone abroad, provided that the Authority that would normally have granted him his increments has no report regarding his work and conduct during the period of his no pay leave which would, under normal circumstances, have disqualified him from being paid his increments.

16:8 The period of leave given in terms of this section should, however, not be reckoned for pension purposes.

16:9 An officer on no pay leave granted under this section should not be considered for promotion to any vacancies which may arise during the period of his no pay leave.

16:10 Where a scheme of recruitment specifies a minimum period of service as a qualification for promotion, the period of no pay leave so granted should not be reckoned for computing the minimum period of service.

16:11 Where a scheme of recruitment stipulates that a certain salary point should be reached for eligibility for consideration for promotion, any increment granted in terms of Sub-section 16:7 above should not be taken into account in reckoning the salary point for purposes of promotion.

16:12 The provisions in Sub-sections 16:9, 16:10 and 16:11 should not apply to any part of leave which is treated as Earned Leave, under Sub-section 17:2 above.

16:13 Each Ministry/Department will formulate its own scheme for release of officers and each such release will be subject to the exigencies of service and the approval of the relevant Minister.

16:14 When a request for no pay leave from an officer under Sub-section 16:1 above, is made, the letter conveying the consent of the relevant Minister on such a request, be signed personally by the Secretary to a Ministry.

16:15 The obligatory period of service should be twice the period of no pay leave taken by an officer. However, the obligatory period of service should be reduced by one (01) month in respect of each complete year of permanent and pensionable service of the officer as at the time of availing himself of the no pay leave subject to-

- (i) the reduction being in respect of years of such service in which no pay leave has not been taken; and
- (ii) there being a minimum period of one (01) year of obligatory service.

New Inclusion

17. Earned Leave

17:1 An officer entitled to obtain no pay study leave under section 15 and 16 may utilize, in lieu thereof or of a portion thereof, any earned leave available to him.

17:2 "Earned Leave" for the purpose of this section only, is as follows :-

17:2:1 In the case of a subordinate officer "Earned Leave", whether to be spent in Sri Lanka or abroad, will be the available vacation leave of the current year and of the year preceding, together with any lapsed vacation leave of a period of two (02) consecutive years.

17:2:2 In the case of a Staff Officer, "Earned Leave", if to be spent abroad, will be the available vacation leave of the current year and of the two (02) preceding years, together with any available commuted half pay leave under Sub-section 21:4:1 subject to a maximum of six (06) months.

17:2:3 If the leave is to be spent in Sri Lanka, the "Earned Leave" of a Staff Officer will be, the available vacation leave and lapsed leave as in Sub-section 17:2:1; or

17:2:4 Vacation leave under sub section 8:3 and commuted half pay leave under sub sections 21:4:1 and 21:4:3 to which he is eligible provided that the period of leave so allowed does not exceed three (03) months,

Any unused vacation leave of the current year and of the two (02) preceding years is first utilized before commuted half pay leave is availed of.

18. Maternity Leave

18:1 Female Public Officers whether permanent, temporary, causal or trainee are entitled to maternity leave under this section.

18:2 Maternity Leave with Full Pay

18:2:1 A female officer is entitled to eighty-four (84) working days of full pay leave in respect of every live childbirth and they will not be allowed to resume duties before the expiry of four (04) weeks after the date of birth of the child. For the purpose of obtaining leave under this section a medical certificate or the birth certificate of the child should be produced.

18:2:2 In calculating maternity leave, Public Holidays, Saturdays and Sundays falling within such period should not be included.

18:2:3 This period of leave should not be set off against the balance leave available to the officer, and should be treated as special leave with full pay.

18:2:4 In the case of a stillbirth or the death of the child before the expiry of 6 weeks from the childbirth, six (06) weeks leave from the date of childbirth should be granted as special full pay leave on the production of the death certificate of the child or a medical certificate.

18:3 Maternity Leave on Half Pay

18:3:1 After the exhaustion of leave in terms of sub section 18:2:1 above, the officer is entitled to eighty-four (84) days leave on half pay for her to look after the child.

18:3:2 Public holidays, Saturdays and Sundays falling within the period of half pay leave should be treated as half pay leave.

18:4 Maternity Leave on No Pay

18:4:1 After the end of leave approved under Sub-section 18:3:1 above, it is possible to grant eighty-four (84) days no pay leave only if such leave is required for the purpose of looking after the child.

18:4:2 When calculating leave under this section, Public Holidays, Saturdays and Sundays falling within that period should be included.

18:4:3 Before granting this leave the Head of Department should satisfy himself that satisfactory arrangements have been made to recover without interruption any monthly installment in respect of loans or advances granted to the officer.

18:5 In the case of a miscarriage, the officer can avail herself of the vacation leave that she is entitled to on the production of a medical certificate.

18:6 After the expiration of the maternity leave obtained under Sub-section 18:2:1, the officer should be allowed to leave office one (01) hour before the normal time of departure enabling the officer to breastfeed the child provided no leave mentioned in sub section 18:3:1 has been availed of. This concession should continue only till the child completes the age of six (06) months.

18:7 Further, when the officer reaches the fifth (05) month of pregnancy she should be allowed to attend office half an hour later than the normal time of attendance and leave office half an hour before the normal time of departure. This concession is available only till maternity leave is granted.

18:8 Leave referred to under Sub-sections 18:3:1 and 18:4:1 is granted only when the child is alive. However if the child dies for some reason or other, such leave will be cancelled after seven (07) days of such death as such leave has been granted for the purpose of looking after the child.

18:9 Leave granted in terms of sub sections 18:3:1, 18:4:1 above should not have any adverse effect on salary increments and pensions. Also such periods of leave should not adversely affect the filling of vacancies and granting of promotions occurring during such period of no pay leave.

18:10 If the officer wishes to get a portion of the leave under Sub-sections 18:3:1, 18:4:1 cancelled and to report for duty, she can do so after informing the Head of the Department.

18:11 Paternity Leave

18:11:1 A permanent, temporary, casual or trainee public officer is entitled to a period of three (03) working days paternity leave in the occasion of the birth of a child to his wife.

18:11:2 The leave available under 18:11:1 above should be made use of within a period of three (03) months from the date of birth of the child.

18:11:3 The officer who obtains leave under Sub-section 18:11:1 should get confirmed the rights for such special leave, with submission of the marriage certificate of the officer, the medical certificate relating to the birth of the child or the birth certificate of the child, later.

New Inclusion

19. Leave to attend a Government Examination

19:1 An officer who is required to sit an examination such as an Efficiency Bar Examination may be granted duty leave for the period of the examination but for the

first sitting only. He will not be entitled to the reimbursement of travelling expenses or for the payment of any combined allowance. If he fails to pass the examination at the first sitting he will not be allowed duty leave for any subsequent attempt. If the subjects in the examination are taken separately, duty leave may be granted for the first time an officer sits for such subject.

20. Compulsory Leave

20:1 Where on medical or other special grounds it is considered that it is not in the public interest that an officer should continue to exercise the functions of his office, the Appointing Authority personally may place the officer on compulsory leave.

20:2 The leave will first be set off against any available leave, any leave thereafter will be on full pay.

21. Half pay Leave

21:1 When an officer has exhausted his normal vacation leave and requires further leave on grounds of illness, leave on half pay may be allowed subject to the following rules.

Revision

21:2 The maximum amount of half pay leave which may be allowed under this section is one sixth (1/6th) of the officer's total service.

21:3 Half pay leave should not ordinarily be granted for more than twelve (12) months at a time.

21:4 A Staff Officer may be permitted, subject to the exigencies of service, to avail himself of such half pay leave for leave outside the Island, after he has exhausted the accumulated leave under Sub-section 8:2:1.

21:4:1 At the request of such an officer the authority granting leave may, solely at his discretion commute the whole or any portion of leave on half pay available to him, into one half the period on full pay.

21:4:2 Commuted half pay leave should not be granted to be spent in Sri Lanka except as provided for in Sub-section 21:4:3.

21:4:3 Commuted half pay leave may be allowed to be spent in Sri Lanka as an alternative to leave abroad on the following conditions:

that the whole period of leave including vacation leave and commuted half-pay leave so allowed does not exceed three (03) months; and

any unused vacation leave of the current year and of the two (02) preceding years is first utilized before commuted half pay leave is availed of.

21:4:4 When an officer retires or otherwise ceases to be in service, while on leave, he will be liable to be called upon to refund the half salary in respect of any commuted half pay leave taken since his last period of service.

21:5 A Head of a Department may allow a subordinate officer leave of absence on half-pay to be spent in Sri Lanka, on account of sickness on a medical certificate from a Government Medical Officer up to the limit to which he is eligible under Sub- section 21:2 and in no case for more than twelve (12) months at a time.

21:6 When an officer receives in addition to the salary of his appointment, an allowance granted to himself personally, and not permanently attached to his office, he may, when absent on half pay leave, draw only a half of such personal allowance.

21:7 Leave on half pay begun in one year and running into the next year must be treated as a continuous period and must be all on half pay.

21:8 A period of vacation leave on full pay cannot follow immediately upon a period of half pay leave, but half pay leave may be allowed to follow immediately a period of vacation leave on full pay.

21:9 Only half the period of any leave on half pay will be reckoned as service.

21:10 A Saturday, Sunday or a Public Holiday falling within a period of leave on half pay should be reckoned as on half pay.

21:11 Half pay leave should be reported by the Head of Department to the Auditor- General monthly on Form General 96. A similar return as regards officers in the Combined Services should be sent to the Secretary to the Ministry in charge of the subject of Public Administration or Director General of Combined Services, as the case may be. In the Remarks Column, the name of the Medical Officer certifying to the sickness and the date of his certificate must be quoted.

A “Nil” return need not be sent, but the information that there was nothing to report for the months following the date of last return, should be included in the next return.

22. No pay Leave

22:1 Leave without pay to be spent in the Island may be allowed at the discretion of the Head of the Department for a period not exceeding three months, for very urgent personal reasons or on medical grounds if supported by a medical certificate from a Government Medical Officer, provided that the Head of the Department is satisfied that the officer's services can be spared without disrupting the work of the Department.

Chapter XII]

22:1:1 Such leave may be spent abroad in exceptional circumstances with the approval of the Secretary concerned.

22:2 No pay leave will be granted only after all available full pay and half pay leave has been utilized.

22:3 A Saturday, Sunday or a Public Holiday falling within a period of leave on no pay should also be reckoned as on no pay.

22:4 All no pay leave should be reported to the Auditor General monthly on form General 96. A similar return in regard to officers of the Combined Services should be sent to Secretary to the Ministry in charge of the subject of Public Administration or the Director General of Combined Services as the case may be. In the Remarks Column, the name of the Medical Officer certifying to sickness and the date of his certificate must be quoted. A 'Nil' return need not be sent but the information that there was nothing to report for the months following the date of the last return should be included in the next return.

22:5 Leave to pursue private studies should not be granted on the ground of urgent private affairs under Sub-section 22:1 and may be allowed only in terms of section 15.

22:6 Temporary release on no pay leave for service outside the Public Service can be allowed only in terms of Sub-sections 2:2 and 2:4 of Chapter V. (Provisions in Chapter XII, Volume I of the Procedural Rules of the Public Service Commission shall be applicable for the officers in Central Government from 02.04.2009).

New Inclusion

New Inclusion 2

Revision

23. Leave to be spent out of the Island

23:1 Application for leave to be spent out of the Island must be made to the authority granting such leave through the Head of the Department on Form General 126.

23:2 Leave to be spent out of the Island to an officer of a Combined Service will be granted by the Secretary, Ministry in charge of the subject of Public Administration, if the applicant is a Staff Officer and by the Director General of Combined Services, if the applicant is not a Staff Officer. Application for such leave should be made through the Head of the Department and the Secretary to the ministry concerned. In the case of a Department not categorized under a Ministry, the application should be sent through the Head of Department.

23:3 Leave to be spent out of the Island to a Staff Officer (i.e., accumulated vacation leave under Sub-section 8:2:1 supplemented by half pay leave commuted into full pay leave under Sub-section 21:4:1 or leave on half pay under Sub-section 21:4) should not exceed six (06) months, except in cases where special reasons are adduced e.g., medical grounds.

When special reasons are urged, leave in excess of six (06) months should be granted only with the authority of the Secretary to the Ministry in charge of the subject of Public Administration and in such circumstances the period in excess of six (06) months should be on half pay or no pay as the case may be.

23:3:1 When special reasons are urged, a subordinate officer may be permitted to spend outside the Island the available vacation leave of the current year and the accumulated leave of the preceding year. In case of illness supported by a proper Medical certificate, in addition to the above, lapsed leave may also be granted.

23:3:2 A minor employee may be allowed to spend out of the island the available sick leave of the current year and the unutilised sick leave of the preceding year on full-pay.

23:4 Subject to Sub-section 23:4:1 an officer should not ordinarily be granted leave to be spent out of the Island under this Section until he has completed four (04) years' service. There should also be an interval of at least four (04) years since his last return from leave abroad before an officer is granted further long leave outside the Island.

23:4:1 However, after a less duration of service than stipulated in Sub-section 23:4, an officer may be granted such leave in case of illness or for very urgent personal reasons, if the Authority granting the leave is satisfied that such leave is essential to the officer. In case of illness, the officer's state of health and the necessity for medical treatment abroad should be certified by a Government Medical Officer, or by a Medical Board, if so required, by the Authority granting the leave. An officer who pleads urgent personal reasons must explain them (confidentially if he so chooses) to the Authority granting the leave through the Head of his Department.

23:5 The Authority sanctioning leave to be spent outside the Island should forward a copy of the letter sanctioning the leave to the Secretary to the Prime Minister. The letter should give the purpose, for which the leave has been treated, e.g. holiday, pilgrimage, conference, etc.

23:5:1 Except as provided for in Sub-section 23:5:2 an officer must not leave his station until he has handed over the public properties under his custody to the officer who has been appointed to act for him during his absence, or to some other officer authorized by the Head of Department or in the case of a Head of a Department, by the Secretary.

23:5:2 If an officer has to obtain his successor's receipt for Government cash, he may, if the arrival of his successor is delayed, hand over and account for his cash to any Staff Officer who may be in the station. The officer who has

signed the acknowledgement will, in turn, handover to the successor of the officer proceeding on leave, on his arrival and obtain an acknowledgment from him.

23:6 The leave will commence on the date of departure from the Island, provided that, not more than four (04) days elapsed since the date on which the officer handed over the duties of his office; but if the officer attends work on the day of the departure the leave will commence on the following day.

23:7 Before an officer proceeds on leave abroad, he must make suitable arrangements with his Head of Department for his salary in respect of his period of leave abroad, either to be credited to his Bank Account or to be paid to his dependant/nominee in Sri Lanka. He should also forward following documents to his Head of Department as required by F.R. 269 at the end of each month.

A "Life Certificate" attested by a responsible person to the effect that the officer is alive; and a stamped receipt for the payment.

23:8 On arrival at his destination the officer should report his arrival in person or by letter to the Mission of Sri Lanka in that country, if any, or to the approved Agent of the Government of Sri Lanka, if any, furnishing his address or a forwarding address. He should also notify immediately any change in that address. The officer should also keep his Head of the Department informed of his address and any changes therein. If a communication to an officer at the address given by him fails to reach him promptly, he should be held responsible for the consequences.

23:9 If an officer falls ill while on leave abroad for a week or more, he should report the fact to the Mission of Sri Lanka in that country, if any, or the approved Agent of the Government of Sri Lanka, if any. In case of prolonged illness, he should keep his Head of the Department also informed.

23:9:1 Any medical certificate required to be furnished by the officer to his Head of Department in support of his illness, which should be obtained at the officer's own expense, should be from a Medical Practitioner nominated for that purpose by the Mission of Sri Lanka or the approved Agent, as the case may be.

23:10 Except in unforeseen urgent circumstances, extension of leave out of the Island will not be allowed, unless the officer concerned has, before leaving the Island, obtained the consent of the Authority granting leave to apply for such an extension.

23:10:1 The officer seeking an extension must apply in sufficient time. Leave will not be extended as a matter of course, nor unless the exigencies of the service permit.

23:10:2 In the case of an application for extended leave on grounds other than ill-health, leave on half pay under Section 21 will not be granted unless the continued absence can be conveniently allowed.

23:11 An officer may be given permission to cancel a portion of the leave already granted.

23:12 When an officer retires or otherwise ceases to be in service while on leave out of the Island, the leave granted to him under Sub-section 8:3 may be cancelled and he may be granted from the date on which such leave commenced, the leave on full pay which he could have been granted under Sub-section 8:2. Similarly, any half pay leave commuted into full pay under Sub-section 21:4:1 or lapsed leave availed of as part of the leave out of the Island may be converted to half pay leave.

23:13 An officer may be required to discharge a specific duty or to go through a specified course of instructions during his leave, and will not be entitled to any additional remuneration in consideration of such work. Allowances, may however, be granted to cover necessary out of pocket expenses, and extensions of leave may be granted where appropriate.

23:14 The allowances and concessions specified below will normally be paid and granted to an officer who, while on leave, is required to undertake or who undertakes with the specific prior approval of Government, a course of instruction or a course of study designed to fit him for his specific post.

23:14:1 Tuition fees on production of a receipt.

23:14:2 Examination fees, if the officer passes an examination in connection with the approved course of study, on production of evidence of success at the examination. The fee for the certificate should be paid where such a fee is charged.

23:14:3 Third class travelling expenses between the officer's place of residence and the place where the course is held, once at the beginning and once at the end of the course.

23:14:4 Lodging allowance (to be fixed by the Director General of Establishments), if the officer has to reside away from his usual place of residence in order to follow the course.

23:14:5 Training allowance (to be fixed by the Director General of Establishments) for the full period of the course (including, if necessary, any examination). This is payable at the conclusion of the course on production of a certificate of satisfactory progress signed by a competent authority, and after signature of the agreement referred to in Sub-section 23:15.

23:14:6 As an alternative to the payments mentioned under Sub-sections 23:14:3 and 23:14:4 daily travelling expenses not exceeding the amount of those payments will be paid for every day of attendance at the course if the officer stays at his usual place of residence during the course of instruction or study.

23:15 The officer will be required to sign an Agreement with the Sri Lanka Mission or the approved Agent of the Sri Lanka Government in that Country or with the Head of his Department, in terms of which he will, in certain circumstances, be liable to refund the sums paid to him in respect of his training.

23:16 An officer returning from leave out of the Island must report his arrival either in person or by letter to the Secretary concerned. A Staff Officer of a Combined Service must, if attached to the Ministry of Public Administration while on leave, report in person to the Secretary to the Ministry of Public Administration. The date of arrival of an officer of the Sri Lanka Engineering Service and Sri Lanka Scientific Service should be reported by the Secretary of the Ministry concerned through the Director, Engineering Service Board or Secretary, Scientific Service Board to the Secretary, Ministry of Public Administration.

23:17 An officer returning to duty from leave will be entitled to draw full salary from the date of his arrival in the Island, unless he has returned before the expiration of the leave granted to him, in which event the question of the salary to be paid will be decided on a consideration of the circumstances of each individual case.

23:18 A return of leave spent out of the Island by Public Officers should be forwarded by the Head of Department concerned to the Auditor General, monthly.

24. Leave to Teachers

24:1 A Teacher will normally be entitled to vacation leave only during the school vacation, and not at any other time of the year except as provided for in the following Sub-sections.

24:2 When a Teacher is granted leave to be spent out of the Island, a period equivalent to the aggregate of all the school vacations which occur during that spell of leave, or within ten (10) months from the commencement of that leave, whichever is less may be allowed on full pay, provided that:

24:2:1 such full pay leave will be allowed only in a single uninterrupted period.

24:2:2 the full pay leave will commence from the beginning of the full period of leave allowed.

Example

A teacher wishes to obtain leave to be spent out of the Island from 01.07.1979 to 07.10.1980. Within this period there are four (04) recognized school vacations aggregating one-hundred and two (102) days.

In the period of ten (10) months commencing on 01.07.1979, there are three (03) recognized school vacations totaling seventy two (72) days, he will be entitled only to the less of the two (02) periods, viz., seventy-two (72) days.

He will, therefore, be granted seventy-two (72) days full pay leave commencing from 01.07.1979 the balance leave period being on no pay.

24:3 If leave is required for private reasons of very grave urgency or on grounds of illness, casual leave on full pay, may, at the discretion of the Head of the Department, be allowed in periods of not more than six (06) days at a time up to a maximum of twenty-one (21) days in the year.

24:4 When leave in excess of the period permitted in Sub-section 24:3 is required during a school term on grounds of illness, the Head of the Department may grant full pay leave up to a maximum of one (01) month in any one year, provided that arrangements are made to the satisfaction of the Head of the Department for covering the duties of the absent Teacher.

24:5 A teacher who has exhausted all the leave under Sub-sections 24:3 and 24:4 and requires further leave during a school term on grounds of illness, he may be allowed, at the discretion of the Head of the Department, the unused leave entitlement under Sub-section 24:4, of any one consecutive period of two (02) years during any one (01) year.

24:6 Except as provided for in the preceding Sub-sections, leave granted during a school term on grounds of illness or for any other purpose will be on no pay.

24:7 A teacher may be allowed accident leave and leave for illness contracted in the course of his duties in terms of Section 9.

24:8 In the case of a female teacher, provisions of Section 18 of this chapter are applicable for the purpose of maternity leave.

24:9 A Muslim widow teacher is entitled to leave under Sub-section 12:12 to observe "Iddah".

25. Leave to a Subordinate Officer

25:1 The provisions of Section 8 other than of the Sub-section 8:2:1 are applicable to a subordinate officer.

25:2 A subordinate officer should be allowed casual leave as in Section 5.

25:3 Lapsed leave should be granted to a subordinate officer as in Section 10.

25:4 Leave on half pay should be granted to a subordinate officer as in Sub-section 21:5.

25:5 A subordinate officer should be granted Accident leave and leave for illness contracted in the course of his duties as in Section 9.

25:6 Leave preparatory to retirement to a subordinate officer should be granted as in Section 11.

26. Leave to a Minor Employee

26:1 A Minor Employee on a monthly salary, whose services warrant the concession may, at the discretion of the Head of the Department, be allowed sick leave on full pay up to a maximum of twenty four (24) days in a year.

When leave is required on account of sickness for more than two (02) days, the provisions of sub sections 6:1 and 6:2 should apply.

26:1:1 If a Minor Employee has exhausted the leave for which he is eligible under the preceding sub section and he requires further leave on account of illness medically certified, he may be allowed any unused sick leave of the previous year, and the lapsed sick leave of any two (02) consecutive years. A Minor Employee cannot, however, in any one year avail himself of the lapsed leave of more than one such period of two (02) consecutive years. The total of such lapsed sick leave granted to minor employee during two (02) consecutive years would not exceed the employee's normal quota of sick leave for two (02) years, viz., forty eight (48) days. (See example in Sub-section 10:1:1 and 10:1:2).

26:1:2 When a minor employee is accommodated in a temporary camp he may, at the discretion of the Head of the Department, be allowed sick leave on full-pay in excess of twenty four (24) days but not exceeding one (01) month in any one (01) year.

26:1:3 During the first nine (09) months of his service, a Minor Employee will be eligible for only such proportion of his sick leave under Sub-section 26:1 as his service bears to nine (09) months.

26:2 A Minor Employee may be granted accident leave according to the provisions of Sub-section 9:1.

26:3 A Minor Employee who contracts an illness in the actual discharge of his duties may be granted special leave subject to the same conditions as in Sub-section 9:2.

26:4 A Minor Employee who has continuous service for a period of one (01) year or more and whose service warrants the concession may, at the discretion of the Head of Department, be allowed casual leave as in Sub-section 5:1.

26:4:1 Casual leave should not normally be allowed on the grounds of illness, but this rule may be relaxed at the discretion of the Head of the Department in the case of a minor employee who has exhausted his sick leave available on the Sub-sections 26:1 to 26:1:3.

Casual leave granted in such a case may follow immediately on the sick leave allowed under those Sub-sections.

26:5 A minor employee who has continuous service for a period of five (05) years or more and whose services warrant the concession may, at the discretion of the Head of the Department, be allowed half pay leave not exceeding one (01) month in any one (01) year for sickness supported by a medical certificate, when he has exhausted all the leave available under the preceding Sub-sections.

26:5:1 Leave in terms of this Sub-section may also be granted (Irrespective of the length of service) to a minor employee who is suffering from an infectious disease listed in Sub-section 13:1 of Chapter XXVIII.

26:5:2 Leave on half pay granted under this Sub-section should be reported to the Auditor General monthly, on form General 96. In the Remarks Column the name of the Medical Officer furnishing the certificate and the date of his certificate must be quoted. A 'Nil' return need not be sent but the information that there was nothing to report for the months following the date of the last return should be included in the next return sent.

26:6 The employees of this category may be granted leave preparatory to retirement as in Section 11.

27. Leave to a Daily Paid Officer

27:1 A daily paid officer who has continuous service for a period of two (02) years or more and whose service warrants the concession may, at the discretion of the Head of the Department, and on the production of a medical certificate, be allowed sick leave on full pay up to a maximum of fourteen (14) days in a year.

27:1:1 If an officer has exhausted the leave for which he is eligible under the preceding Sub-section and he requires further leave on account of illness medically certified, he may be allowed any unused sick leave of the previous year, and the lapsed sick leave of any two (02) consecutive or nonconsecutive

years. An officer cannot, however, in any one (01) year, avail himself of the lapsed leave of more than one such period of two consecutive years. The total of such lapsed sick leave granted to an officer during two (02) consecutive years should not exceed the officer's normal quota of sick leave for two (02) years, viz., twenty eight (28) days, (See examples in Sub-sections 10:1:1 and 10:1:2).

27:1:2 When such an officer is accommodated in a temporary camp he may, at the discretion of the Head of the Department, be allowed sick leave on full pay in excess of fourteen (14) days but not exceeding one month in anyone year.

27:2 Twenty one (21) days casual leave in a year may be granted to a daily paid officer on the following conditions:

27:2:1 The leave will be granted as and when the exigencies of work permit, and at the discretion of the Head of the Department or Head of the Sub -office or work-site, to whom the Head of Department has delegated this power.

27:2:2 The full period of twenty-one (21) days will be granted if the officer has attended for at least two hundred and fifty (250) days, during the preceding twelve (12) months. This quota of twenty-one (21) days will be reduced by one (01) day for every period of three (03) days or part thereof by which his attendance falls short of two hundred and fifty (250) days.

27:2:3 In calculating the number of days attendance, absence on full pay (including sick leave and casual leave) owing to an injury sustained in the course of employment, and absence on the day following a night shift should be counted as attendance.

27:2:4 The leave year will be a calendar year and leave in respect of any year can be taken at any time during that year. Any casual leave unspent at the end of the year will lapse. An employee who has not completed twelve (12) months service at the commencement of the year can be granted proportionate leave in respect of the year in which he completes twelve months service, provided he completes it by the 30th September, according to the following table:-

	days
If twelve months service is completed by 31st March,	16
If twelve months service is completed by 30th June,	10
If twelve months service is completed by 30th September.	05

27:2:5 Casual leave should not normally be allowed on grounds of illness but this rule may be relaxed as in Sub-section 26:5:1.

27:3 A daily paid officer may be granted leave for illness contracted in the course of his duties, in terms of Sub-section 26:3.

27:4 A daily paid officer may be granted leave preparatory to retirement as in Sub-section 11.

28. Leave to a temporary officer serving under contract for a definite term which leave should form part of the Agreement

28:1 Except as provided for in this section, the rules in this Chapter will not apply to a temporary officer serving under a contract for a fixed term.

28:2 The provisions of section 1 will apply to such an officer.

28:3 He will not be entitled to leave on half pay or commuted half pay leave out of the Island unless-

he is subsequently appointed to the permanent establishment, whereupon service under the agreement will be included as service for the purpose of Section 21,

or

under the original agreement or the combined period of the original agreement and any immediately subsequent agreement or agreements he serves for more than five (05) years without interruption.

28:3:1 In such a case, for the purpose of return leave, but not for the purposes of leave on termination of employment, an officer may be granted half pay leave up to a limit which together with any half pay leave previously taken should not exceed one-sixth of the officer's service.

28:3:2 The Secretary, may at his discretion, commute the whole or any part of such leave on half pay, into one half the period on full pay, provided the total period of commuted and uncommuted leave together with any period of vacation leave, which may be granted, does not exceed six (06) months at a time.

28:4 An officer qualified under the preceding Sub-section for half pay or commuted leave out of the Island, may, for the purposes of returning from leave, but not for the purposes of leave on termination of employment, be granted in addition, vacation leave under Sub-section 8:1 to 8:3 less any leave taken under Sub-section 28:5 during the current and the two previous years.

28:5 In case of illness, or on the certificate of the Head of the Department that the leave is deserved and desirable in the interests of government, leave to be spent in the Island not exceeding one month in all in any one (01) year may be granted by the

Head of the Department. Such leave will be on full pay, unless additional expense is thereby caused to Government, in which case it will be on half pay. This leave cannot be accumulated.

28:5:1 Leave in terms of this Sub-section may, with the sanction of the Secretary, be spent out of Sri Lanka.

28:6 In addition to leave under Sub-section 28:5 leave on half pay, on account of sickness certified by a Government Medical Officer may be granted up to a limit which, together with any half pay leave previously taken, does not exceed one sixth of the officer's total service under the Agreement.

28:7 An officer of this category is eligible for casual leave as in Section 5.

28:8 An officer of this category may, at the discretion of the Secretary be granted full pay leave preparatory to the termination of his agreement at the rate of two weeks for each year of service, subject to a maximum of two (02) months.

28:8:1 If such an officer has taken, return leave out of the Island, under sub section 28:3:1, 28:3:2 and 28:4 the amount of full pay leave available to him as leave on termination of employment under this sub section will be computed on the period of his service in Sri Lanka since the date of his return from such leave.

28:8:2 An officer who determines his Agreement before the expiry of the full period of the agreement is not entitled to any leave under this Sub-section.

29. Leave to a Temporary Officer not serving under contract on definite terms

29:1 A temporary officer (other than a minor employee, daily paid employee and casual employee) whose conditions of employment are not determined by Agreement, may be granted leave on full pay and half pay in terms of sub sections 28:5 and 28:6 respectively, provided he has continuous service of over nine (09) months.

29:2 Casual leave may be granted to such an officer in terms of Section 5.

29:3 An officer of this category may be allowed leave for illness contracted in the course of his duties in terms of Sub-section 9:2.

30. Leave to Police Sergeants and Constables

30:1 A Police Sergeant/ Police Constable is eligible for vacation leave under Section 8.

30:2 A Police Sergeant/ Police Constable is not eligible for casual leave under Section 5.

30:3 A Police Sergeant/ Police Constable, who is hospitalized may be allowed leave on full-pay up to two (02) month in any year, provided he has not taken any vacation leave. If he had taken any vacation leave, it will be reduced from the period of two (02) months to which he is entitled.

30:3:1 A Police Sergeant/ Police Constable who is ill and who is allowed to be off-duty to take ayurvedic treatment may be allowed his vacation leave and such half pay leave as he is eligible for.

30:4 A Police Sergeant/ Police Constable is eligible for leave on half pay under Sub-Section 21:5.

30:5 A Police Sergeant/ Police Constable is eligible for lapsed leave under section 10, but subject to the following additional conditions:

30:5:1 Lapsed leave may not be granted except as an alternative to hospital leave, that is, in a case where an officer is actually unfit for duty owing to illness but cannot for some good and sufficient reason enter Hospital or is taking treatment out of hospital, with the approval of the Inspector General of Police.

30:5:2 The total hospital leave plus vacation leave and/or lapsed leave granted should not exceed two (02) months in any one (01) year.

30:6 A Police Sergeant/ Police Constable is eligible for accident leave and leave for illness contracted in the course of his duties in terms of Section 9.

30:7 Leave preparatory to retirement should be allowed to a Police Sergeant/ Police Constable as in Section 11.

31. Leave to a Prison Officer below the rank of Jailor

31:1 Sub-sections 30:1, 30:2, 30:3, 30:4, 30:6, and 30:7 are applicable to a Prison Officer below the rank of Jailor.

31:2 A Prison Officer below the rank of Jailor is not eligible for lapsed leave under Section 10.

32. Leave to an Apprentice/ Trainee

32:1 An Apprentice/ Trainee who is paid an allowance during the period of training is eligible for seven (07) days casual leave and fourteen (14) days sick leave a year on completion of nine (09) months service.

32:2 An Apprentice/Trainee whose apprenticeship or training is less than nine months will not be eligible for any paid leave during the period of apprenticeship or training.

32:3 An Apprentice/ Trainee following lectures should not be allowed leave during term time.

33. Leave to a Casual Officer

33:1 A casual officer may be granted casual leave and sick leave as in Section 27.

33:2 A Casual officer is not entitled to accident leave under Sub-section 27:3 or Section 9.

A Casual Officer is however, entitled to claim half pay for a period of temporary disablement following an accident arising out of and in the course of his employment but subject to a limit of six (06) months,

33:3 No compensation is paid for the waiting period of seven (07) days. He may be granted any available earned leave in terms of Sub-section 33:1 to cover that period.

34. Leave to an Officer released for service in a public Corporation

34:1 A Public Officer released for service in a Corporation is not eligible for leave in terms of this Code while in the service of the Corporation. He will have to earn leave by service in the Corporation according to the leave regulations of the Corporation and will have no claim for any leave earned in the Public Service before his employment in the Corporation.

34:2 On his reversion to the Public Service, he will have no claim for any leave earned while in the service of the Corporation.

35. Short Leave

35:1 An officer may be granted short leave not exceeding one and half hours on each occasion, subject to the number of occasions being restricted to two (02) per month.

36. No pay leave for a spouse of an officer posted abroad

36:1 Where a spouse of a confirmed public officer posted abroad for duty, is granted no pay leave for the purpose of joining the officer.

36:1:1 The leave should be reckoned for the purposes of increments. Such officer should be placed, on his return, on the salary point he would have reached had he not gone abroad, provided that the authority that would normally have granted him the increments has no report regarding his work and conduct during the period of his no pay leave which would, under normal circumstances have disqualified him from being paid his increments.

36:1:2 No arrears should be paid in respect of the increments obtained during such period of no pay leave.

36:1:3 When the period of no pay leave given in terms of this Section, exceeds the gross service of twenty (20) years, only such period of service exceeded may be set off in respect of no pay leave and be reckoned for pension purposes.

For instance, a spouse of a confirmed Public Officer posted abroad on duty, having a gross service period of twenty-eight (28) years, if having gone on no pay leave for a period of ten (10) years would have eight (08) years to officer's credit be reckoned for pension purposes and the balance two (02) years will not be reckoned for such purposes.

36:1:4 Subject to the following provisions, the seniority of such an officer will not be affected as a result of obtaining this no-pay leave.

- (i) an officer who is granted no pay leave under this Section should not be considered for promotion to any vacancies which may arise during the period of his no pay leave.
- (ii) where a scheme of recruitment specifies a minimum period of service as a qualification for promotion, the period of no pay leave granted under this section should not be reckoned for computing the minimum period of service.

36:1:5 Where a scheme of recruitment stipulates that a certain salary point should be reached for eligibility for consideration for promotion, any increment granted in terms of Sub-section 36:1:1 should not be taken into account in reckoning the salary point for the purpose of promotion.

37. Leave to an officer re-employed after retirement

37:1 An Officer, re-employed after retirement,

37:1:1 Without a break in service may be granted,

- (i) in the calendar year of re-employment, the balance leave from the post he held before re-employment, and
- (ii) in subsequent calendar years, the leave relevant to the post.

37:1:2 with a break in service may be granted,

- (i) the proportionate leave of the post for the period of re-employment in the calendar year of re-employment, and,
- (ii) in subsequent calendar years, the leave of the post.

CHAPTER XIII

RAILWAY WARRANTS

1. General
2. Purposes for which a Warrant May Be Issued
 - 2:1 Government Purposes
 - 2:2 Other Purposes on Funds Deposited
 - 2:3 President and Prime Minister
 - 2:4 Members of Parliament
 - 2:5 Conveyance of Poor Persons to Hospital, etc.
3. Preparation of a Warrant
4. Unused Warrant or Ticket
5. Conveyance of Packages and Baggage
6. Card Passes - Concession Periodical Tickets

CHAPTER XIII

RAILWAY WARRANTS

1. General

1:1 The President, the Prime Minister, and members of their families may travel on the railway without a pass or ticket.

1:2 Any other person entitled on any occasion to travel free on the railway on duty or on holiday, should be issued a railway warrant on Form General 162 for each such occasion, in accordance with the provisions in Chapter XIV and XVI etc. unless he has been issued a pass under the authority of the General Manager of Railways.

1:3 A railway warrant cannot be used as a ticket. It only entitles the holder, upon handing it over at a railway ticket counter, to obtain a ticket without payment of the fare.

1:4 A warrant can only be exchanged into a ticket either from the station mentioned thereon as the starting point to the destination thereon, or from a station in between the starting point and the destination. When exchanging warrants which mention Colombo as the starting point or the destination, tickets can be issued from or to Maradana, Colombo Fort, Slave Island railway stations as per the request of the holder of the warrant.

1:5 A warrant will be issued to a Public Officer by the Head of his Department, but it may be signed by an officer authorized by him.

1:6 Any alteration to a warrant should be authenticated by the officer making it. He should sign his name against each alteration, and note his full name and designation below his signature.

1:7 A rubber stamp should not be used for signature on Warrant.

1:8 The acceptance of a ticket issued in exchange for a warrant should be taken as evidence of an agreement with the Government that the latter is relieved of all pecuniary and other responsibility for personal injury or delay, or for loss of, or damage to property, however caused, that may be sustained by any person whilst using the pass or ticket.

1:8:1 Provided, however, that a person travelling on Government duty on a warrant or a periodical card or paper pass or concession ticket may be paid compensation for any loss of, or damage to property, sustained by him, subject

to the provisions of Rule 33 (m) of the rules made under Section 5 of Ceylon Railway Ordinance.

1:9 Any pass and ticket of any kind is liable to be examined by a Ticket Collector as in the case of an ordinary ticket. Each holder of a pass or ticket who is unable to produce it when travelling and when called upon to do so by an authorized railway official, will be required to pay the full fare in the same way as an ordinary passenger who is unable to produce his ticket, and the refund of the amount so paid may be refused.

2. Purposes for which a Warrant May Be Issued

2:1 **Government Purposes:** - A railway warrant must only be issued for a Government transport service and for the journeys provided for in Chapters XIV and XVI, subject to Sub-section 2:2. Charges due for such services will be debited against the issuing department or against the department liable for payment as endorsed by the issuing department.

2:2 **Other Purposes on Funds Deposited:** - A warrant may, however, be issued for a transport service other than that described above, when the value of the warrant is recoverable from funds deposited with the Government. A warrant issued under this Sub-section will be in form General 162 and 162A.

2:3 **President and Prime Minister:-** The Secretary to the President or Private Secretary may issue a warrant for the conveyance of the staff and cars of His Excellency's establishments.

The Secretary to the Prime Minister may issue a warrant for the conveyance of the staff and cars of the Prime Minister's establishments.

2:4 **Members of Parliament:-** A Member of Parliament is entitled to a warrant for the free transport of his car by rail between his home or constituency and Colombo while travelling to attend or returning from a meeting of Parliament or of a Committee of Parliament. He will also be entitled to a free third class warrant for a driver or servant to accompany the car on such a journey. A warrant as provided for in this section will be issued to any part of the Island, whenever a Member of Parliament, has to travel on business of Parliament.

2:4:1 A Member of Parliament residing outside his constituency is entitled to a Railway Warrant to transport his car between his home and constituency provided the distance by rail exceeds fifty (50) miles.

2:4:2 A Member of Parliament owning a car may, if he so desires, notify the Secretary General of Parliament and forego the right of transporting his car as provided for in Sub-section 2:4 and claim instead an allowance of Rs. 75.00 per month, provided the distance between his home or constituency and

Colombo exceeds 20 miles. A Member of Parliament owning a car may also draw an allowance of Rs. 75.00 per month, in lieu of the privilege under sub section 2:4:1. A member in receipt of such an allowance should attach to the payment voucher a certificate that the car has been actually maintained and used.

2:4:3 In addition to the privileges in Sub-sections 2:4 to 2:4:2 available to him as a Member of Parliament, a Minister is entitled to a railway warrant for the free transport of his car and third class warrant for a servant or driver to accompany the car when travelling on Ministerial business. A Minister is not entitled to draw the car allowance provided for in this Section in lieu of transporting his car.

2:5 Conveyance of Poor Person to Hospital, etc. – A Government Agent/District Secretary is authorized to issue a third class railway warrant for the conveyance of a person who cannot afford to pay the cost of the journey to a hospital or other medical institution, or to his home, and also to a relative or other interested person to escort a destitute patient to a medical institution and to return home after having done so when, in the opinion of a Medical Officer, it is essential to provide an escort.

2:5:1 An Officer in charge of a Government Hospital and such institution as a Mental Hospital, a Leprosy Hospital, etc., may similarly issue a warrant to a discharged destitute patient to return to his home when he is satisfied that he cannot afford to pay the fare. He may also issue a warrant to enable an attendant to escort a patient when, in the opinion of the Medical Officer, removal from one medical institution to another (e.g. for surgical treatment) if necessary, and when that officer considers that the escort of such patient by an attendant, is essential.

2:5:2 The Officer in charge of a Mental Hospital, may issue a warrant to a female attendant of the Mental Hospital when escorting an infant child of a patient of the Hospital to any other institution to whose custody he is to be handed over.

3. Preparation of a Warrant

3:1 A Warrant should be filled up carefully, showing clearly the date and office of issue, particulars of the service, purpose for which it is issued and the person to whom it is issued. In the case of a warrant issued under Chapter XVI, the purpose of the journey must be indicated in the space provided by the word "Holiday" and under Chapter XXV, as indicated in Section 3 of that Chapter. The identification number assigned to each Department should be placed on the railway warrant when it is issued and for this purpose a rubber stamp may be used.

3:2 In the case of a warrant issued under Sub-section 2:2, the funds from which the cost of the warrant is payable and the purpose of the journey must be clearly indicated in the spaces provided for such particulars.

3:3 Where a warrant is issued on behalf of another Department it should be endorsed on the top in red ink " Payable by ----- "

4. Unused Warrant or Ticket

4:1 Refund must not be claimed from the General Manager for any failure to obtain, or having obtained, to use a warrant or any ticket issued on a warrant. Any unused warrant must promptly be returned to the Head of the Department who issued it. The non-use of a ticket or the use of a ticket partly, must also be reported to the Station Master in charge of the station at which the journey (either outward or return) is to commence or if the journey is curtailed at an intermediate station, to the station master in charge of the terminal station thereon, and an endorsement by the Station Master obtained on the ticket "Cancelled", "Not used" "Not used beyond the station --_." which should also bear the signature of the Station Master and the date and time of such entry. Thereafter the Form Railway 123 should be duly completed and certified by the Station Master, and the officer is required to forward it promptly to the Head of the Department who issued the warrant stating circumstances under which it was not used. If the officer who first obtained the warrant wishes to make an application for the issue of another warrant in place of the warrant already issued, he should pay in cash to the Station Master the cancellation fee and obtain a receipt for the same which should be forwarded to the General Manager through his Head of Department.

4:2 **Credit on unused Tickets:-** Application for credit of the value of an unused ticket obtained on a warrant should be made by the Head of the Department to the General Manager in good time giving the full circumstances relating to the non-use. If the latter is satisfied that the ticket has actually not been used, he should issue a separate credit voucher to the Department concerned, who will return it duly signed and stating the particulars of the Expenditure Head to which it should be credited. However, no refund will be made for a ticket of which the face value is Rs. 4 or less.

5. Conveyance of Packages and Baggage

5:1 The holder of a pass, concession ticket or ticket issued in exchange for a warrant under these regulations will be entitled to the free conveyance of the same quantity of luggage as any ordinary passenger travelling on the Railway.

5:2 The following items may be conveyed free on the Railway.

5:2:1 All luggage, cars, animals, etc., belonging to the establishment of or addressed to the President or the Prime Minister.

5:2:2 Food stuffs, clothes, books, newspapers, etc., to the institutions mentioned in the Railway Coaching Regulations Section: 32(13) provided such luggage is accompanied by a signed certificate stating that the contents are gifts for the use of inmates of those institutions.

5:2:3 Bicycles of officers holding periodical card passes as authorized by the General Manager of Railways.

5:3 All luggage conveyed free under the preceding Sub-section should be invoiced or way-billed, and any attempt to send any article not invoiced or not way - billed, will be fraud.

6. Card Passes - Concession Periodical Tickets

6:1 A periodical pass or a Government concession periodical ticket is issued by the General Manager of Railways and entitles the holder to travel at any time within the date and between the stations specified thereon.

6:2 Every such pass and ticket except a complimentary one and others as authorized by the Government should be stamped **“For use on Government duty only”** or **“For use on duty only”** as the case may be.

6:3 The officers entitled to periodical card passes or Government concession periodical tickets are shown in the Appendix 12.

6:4 Each holder of a card pass or concession ticket must return it to the General Manager of Railways on ceasing to hold the office entitling him to the pass or concession ticket, or upon going on leave necessitating the appointment of a substitute or on expiration of the time for which the pass or concession ticket was granted.

6:5 A pass or concession ticket can only be used by the persons specified in Appendix 13 and within the limits of distance and time specified thereon. It is not transferable.

CHAPTER XIV
TRAVEL ON DUTY WITHIN THE ISLAND

1. General
2. Point of Commencement of a Journey
3. Economy
4. Combined Allowance
5. Mode of Travel
6. Travel by Road instead of by Railway
7. Travel by Private or Hired Vehicle instead of by Public Conveyance
8. Mileage : Cars
9. Mileage : Other Conveyances
10. Use of borrowed Cars
11. One Vehicle Used by more than One Officer
12. Commuted Allowance
13. Fixed Transport Allowance
14. Labourers' Charges
15. Transport of Conveyance by Rail
16. Other Expenses Incidental to Travel
17. Class of Travel on Railway
18. Railway Warrants
19. Chauffeurs, KKS and Servants
20. Travelling Expenses on Change of Station: Combined Allowance

21. Travelling Expenses on Change of Station : Transportation of Officer and his family
22. Travelling Expenses on Change of Station : Transportation of Furniture etc.
23. Transport to Home Station
24. Transfers, Deferment and Cancellation at Short Notice
25. Transfers on Grounds of Misconduct
26. Members of Commissions and Special Committees
27. Advances to Meet Travelling Expenses
28. Travelling Claims
29. Certain Types of Official Travel
30. Persons other than Public Officers
31. Members of Parliament

CHAPTER XIV

TRAVEL ON DUTY WITHIN THE ISLAND

1. General

1:1 A Public Officer who is required to travel in execution of his duties will be paid his travelling expenses in accordance with the following regulations.

1:2 This payment is in the nature of a reimbursement to meet the cost of travelling actually done, or the upkeep of a conveyance maintained for the Public Service and is not a personal emolument.

1:3 Definitions in this Chapter :-

"**Combined Allowance**" is the reimbursement for expenditure incurred on lodging and subsistence. "**Incidental Expenditure**" is the amount set out in Section 16.

"**Mileage**" may be either car mileage, motor cycle mileage, or bicycle mileage.

"**Salary**" unless otherwise described means the new consolidated salary of a substantive post or the new consolidated initial salary of an acting post, whichever is higher.

"**Travelling Expenses**" refers to "Mileage" which is the reimbursement for expenditure incurred on transportation by road (rail transport being provided free of charge on warrants) and is determined at the appropriate rate in accordance with the number of miles travelled.

"**Urban Authority**" means a Municipal Council or Urban Council.

1:4 A travelling claim should be submitted on the printed form provided for it. The mode of conveyance and its registered number must be stated on the claim.

2. Point of Commencement of a Journey

2:1 The point of commencement of an official journey is the officer's place of work subject to Sub-section 2:2.

2:2 His residence may be regarded as the point of commencement if he actually starts from his residence provided that his residence is within the area of the Urban Authority within which his place of work is situated; or his residence is within four (04) miles of his place of work; or his residence is nearer to his destination than his place of work.

3. Economy

3:1 Official travelling must be done in the quickest manner as circumstances permit, by the shortest possible route and in a manner involving the least expense to the Government.

3:2 If circumstances require otherwise, the necessity for any detour or detention must be shown on the travelling claim.

3:3 Should an officer travel by a route or in a manner involving greater expense to the Government than is necessary, he will be paid only the amount that would have been payable to him had he travelled in the most economical manner.

4. Combined Allowance

4:1 **Payable Instances:-** Subject to the provisions of Section 12, an officer travelling on duty will be paid an allowance to cover the combined cost of his subsistence and lodging as prescribed in Sub-section 4:5 and 4:6 for periods during which he is absent from his station on official duty, provided that the total distance travelled exceeds seven (07) miles.

4:1:1 Public Officers participating in Training Programmes which require them to be residential participants and participate beyond normal duty hours could draw the combined allowance as per Sections 4:4 and 4:5 of that Chapter in addition to the financial benefits granted as incentive by the Training Institute and the Travelling Allowance as per Section 1, only if the following requirements are fulfilled.

- (a) The maximum period of training for which combined allowance is paid should be two (02) weeks.
- (b) The distance between the place of residence and the Training Institute should be more than seven (07) miles.
- (c) Travelling Expenses should be paid only for one journey in respect of up and down travelling.

4:2 **Duty Allowance:-** An officer who is paid a "Duty Allowance" in lieu of a combined allowance for a night spent on duty at his place of work may draw that allowance irrespective of the distance between his residence and place of work.

4:3 **Journey within Town:-** The combined allowance is not payable for a journey lying wholly within the limit of an Urban Authority area unless such a journey necessarily involves absence from home for a night.

4:4 **Payable Time Periods:-** The full Combined Allowance is payable at the rates prescribed in Sub-section 4:5 for each complete period of twenty-four (24) hours and on a proportionate basis as laid down below for any part thereof :-

For a period not less than twelve (12) hours, full combined allowance.

For a period not less than six (06) hours, half (1/2) combined allowance.

4:4:1 No combined allowance is payable for a period of less than six (06) hours.

4:4:2 The combined allowance is payable only for a continuous and uninterrupted period of absence, and not for an aggregate of interrupted periods of absence.

4:4:3 When an officer spends more than twenty-four (24) hours away from the office he could be paid all additional 25% of the combined allowance for each period of twenty four (24) hours up to a maximum period of three (03) weeks. The additional allowance of 25% of the combined allowance is not payable for any period less than twenty-four (24) hours.

[Revision](#)

4:4:4 Drivers and cleaners are also entitled to receive the additional allowance mentioned in Sub-section 4:4:3.

4:5 **Rate:-** The rate of combined allowance payable will be based on the officer's monthly salary (See Sub-section 1:3) as follows:-

[Revision](#)

<i>Monthly salary</i>		<i>Combined Allowance for each complete Period of 24 hours</i>	
		<i>Rs.</i>	<i>Cts.</i>
Rs.15,839.00 and less	-	350	00
Rs.15,840.00 to Rs.21,044.00	-	400	00
Rs. 21,045.00 and above	-	500	00

4:5:1 Actual expenses incurred by the President, Prime Ministers, Ministers, Members of Parliament, Judges of the Supreme Court and the Judges of the Courts of Appeal for travelling and subsistence should be reimbursed.

4:6 **Daily Paid Officer:-** The monthly salary of a daily paid officer is his daily rate of pay multiplied by 30.

4:7 **Detention:-** When an officer is detained at any place beyond three (03) days, he must show on the travelling claim the necessity for such detention. No allowances for any period in excess of three (03) days may otherwise be paid.

4:8 **Protracted Detention:-** Where an officer's detention at a place is necessarily protracted, he may be paid full combined allowance for the period of

detention, subject to a maximum of three (03) months, provided that the Head of the Department is satisfied that the detention is justified.

5. Mode of Travel

5:1 When permitted to travel by road instead of by rail-an officer travelling on duty (whether or not he is entitled to mileage) is required to travel by rail on any journey or part of a journey, which can be performed by rail. He will be issued railway warrants for the purpose. Mileage will not be paid in respect of such a journey or a part of it, except in circumstances provided for in Sub-sections 6:1 to 6:8.

5:2 When permitted to travel in a private or private hired vehicle instead of by public conveyance - for any journey which can be wholly performed by public conveyance, mileage may not be paid except as provided for under Sub-sections 7:1 to 7:7.

5:2:1 A vehicle of the Sri Lanka Transport Board plying on hire or, other vehicle, steamer or boat which regularly plies for hire (but not the railway) is deemed to be a public conveyance.

5:3 **Travel by Internal Air Service:-** If it is necessary to make a firm reservation, the Head of the Department may authorize an officer to purchase a ticket on payment of cash and may reimburse him the cost of that ticket, provided that;

it is a matter of special importance or urgency, such special reasons being recorded by the Head of the Department when granting such permission, or,

the cost of travel by air including the air fare, combined allowance and incidental expenditure, is less than the combined allowance and incidental expenditure (but not the value of the Railway warrant) that would be incurred if the officer were to perform that journey by train.

5:4 **Restriction of Use of a Hired Car:-** An officer entitled to motor car mileage who has regular and extensive travelling to do monthly over routes not covered by the railway should be required by the Head of the Department to keep a conveyance and be paid a fixed transport allowance as provided in Section 13, instead of the hiring car mileage. The Head of Department should ensure that an officer does not draw large sums as hiring car mileage month after month.

5:5 **Government Vehicles:-** A private or a private hired vehicle should not be used on a journey for which a government vehicle is available.

5:5:1 A government vehicle should not be used on a route served by the Railway, except as provided for in Section 6.

6. Travel by Road instead of by Railway

6:1 An officer whose inspecting duties make it necessary for him to travel by road rather than by rail may claim mileage at the appropriate rates laid down in Sub-Section 8:2 or 9:1.

6:2 A Minister, Deputy Minister, Secretary, the Deputy Secretary to the Treasury, may travel by road, on a journey undertaken in the performance of his official duties, and claim mileage at the rates laid down in Sub-section 8:2.

6:3 If the total mileage and any combined allowance and incidental expenses payable for a journey by road, are altogether less than the combined allowance and incidental expenses (but not the cost of rail travel) that would be payable if an officer travels by train, he may be paid mileage at the appropriate rates laid down in Sub-section 8:2 or 9:1, if he actually travels by road.

6:4 When an officer is entitled under Section 15 to a railway warrant for the conveyance of his motor vehicle, he may, instead of transporting his vehicle travel in it by road and claim mileage at the appropriate rates laid down in sub section 8:2 or 9:1 provided that the distance by rail for the single journey does not exceed 50 miles; or the distance by road is less than two-thirds of the distance by rail.

6:5 If he is entitled to a railway warrant for the conveyance of his motor vehicle but travels in it by road instead, over a distance exceeding 50 miles, he may be paid mileage at the rate of Rs. 12.00 per kilometer for a petrol motor vehicle, Rs. 8.00 per kilometer for a diesel motor vehicle, and Rs. 2.00 per kilometer for a motor cycle, provided that the distance travelled does not exceed 130 miles.

6:6 An officer entitled to car mileage under Sub-section 8:1 may travel by car and claim mileage for a journey to points accessible by railway as follows :-

6:6:1 At the appropriate rate in Sub-section 8:2 if the distance to be travelled by rail for the single journey does not exceed 32 kilometers.

6:6:2 At Rs. 12 per kilometer for a petrol motor vehicle and Rs. 8.00 per kilometer for a diesel motor vehicle, if the distance to be travelled by rail for the single journey exceeds 32 kilometers, but does not exceed 80 kilometers (this does not prejudice an officer's right to claim expenses under Sub-section 6:8).

6:7 The Head of the Department may, at his discretion, authorise an officer to travel by road on a route served by the railway, if he considers it necessary to do so in the public interest. On such authority, the officer will be entitled to full mileage notwithstanding any prohibition in these rules.

6:7:1 Where such authority is granted, the Head of the Department should record his reasons in full and forward copies of the authority and reasons to the Secretary and the Auditor General.

6:7:2 This authority must be exercised personally by the Head of the Department or, where it is in respect of the Head of the Department himself, by the Secretary.

6:8 **Hypothetical Claims:-** An officer who travels by car but who is not entitled to claim mileage under any of the preceding sections may claim the combined allowance and incidental expenses as though he had travelled by train, unless the mileage and combined allowance for the journey by car is less than the hypothetical expenses payable for a journey by train. In such a case he should be paid only the lesser amount.

6:8:1 Incidental expenses will consist of the hypothetical motor car mileage between his home (or "point of departure") and the nearest railway station, any fraction of a mile being reckoned as one mile, and hypothetical reasonable conveyance hire between his temporary residence and the railway station nearest to it up to the maximum of Rs.5.00/- laid down in Sub-section 16:2. If however, the journey from the railway station to his temporary residence exceeds 4 miles, he may be paid at the rates laid down in Sub-section 8:2.

6:8:2 What constitutes reasonable conveyance hire is left to the judgment of the Department taxing the claim and should be decided with reference to the circumstances of each case. E.g. types of conveyance available, quantity of luggage, if any, carried, distance, etc.

7. Travel by Private or Hired Vehicle instead of by Public Conveyance

Travel by private vehicle or private hired vehicle instead of by public conveyance may be permitted and mileage paid in the following cases:-

7:1 An officer who draws a monthly initial salary of not less than Rs. 20,030.00 provided that the journey is performed in the officer's own private conveyance.

7:2 An officer whose duties make it impracticable for him to perform the journey by public conveyance.

7:3 An officer though not entitled to mileage under Sub-section 8:1 may be paid mileage at the rates laid down in Sub-section 8:2 according to the nature of conveyance used, if he is obliged to take with him such an amount of luggage as necessitates the use of a special conveyance.

7:4 Motor cycle or bicycle mileage may be authorized in lieu of the fare by public conveyance, at the discretion of the Head of the Department.

7:5 In case of riot, civil commotion, fire or calamity, a subordinate of the Police or Prisons Department may be reimbursed the fare of any conveyance actually

used, on the personal certificate of the Superintendent or Assistant Superintendent of Police/ Prisons that the use of such conveyance was actually necessary.

7:6 When conducting a surprise raid or carrying to Court productions which cannot be taken by public conveyance without serious inconvenience or risk of damage, an officer of the Police Department or Excise Department not entitled to mileage under Sub-section 8:1 may be allowed mileage at Rs. 12.00 per kilometer for a petrol motor vehicle and Rs. 8.00 per kilometer for a diesel motor vehicle and Rs. 2.00 per kilometer for a motor cycle at the discretion of the Head of the Department.

7:7 A Customs Officer not below the rank of a Tide Surveyor while engaged in the detection of smuggling may be paid mileage under Sub-section 7:6.

7:8 Where an officer travels by public conveyance he will be reimbursed the actual fare.

8. Mileage: Cars

8:1 An officer who draws a monthly initial salary of not less than Rs. 20,030.00 is entitled to car mileage. This concession may be extended to an officer who was entitled to mileage as at 31.12.1981 as personal to him.

8:1:1 An Officer Entitled to Car Mileage:- An officer drawing a fixed travelling allowance under Sub-section 12:3 is not entitled to mileage except as specifically provided for.

8:1:2 An officer not entitled to car mileage under Sub-section 8:1 but, who is required, with the approval of the Secretary, to maintain a car for the efficient discharge of his duties, may be paid car mileage, subject to Sub-section 8:2:1.

An officer should not, as a general rule, be required to maintain a car under this Sub-section unless he :-

is required to travel regularly, over long distances as part of his official duties; or,

is required to regularly transport substantial sums of cash or bulky or delicate equipment required for official duties; and,

has the private funds necessary to meet loan repayments on the car and is able to maintain without financial embarrassment, a motor car.

8:1:3 An officer not entitled to car mileage under Sub-section 8:1 but eligible to travel first class in the railway, (see Section 17 and 18) may be allowed car mileage where a public conveyance is not available subject to Sub-section 8:2:1.

8:2 Rates for Private Cars:- An officer entitled to mileage under Sub-section 8:1 will be paid Rs. 12.00 per kilometer for a petrol motor vehicle, Rs. 8.00 per kilometer for a diesel motor vehicle and Rs. 2.00 per kilometer for a motor cycle.

8:2:1 An officer who becomes entitled to mileage under Sub-section 8:1:2 or 8:1:3 will be paid at the rate prescribed above.

8:2:2 **Travel Risks** - The rate of motor mileage fixed takes into account the premia payable on a comprehensive policy of insurance covering all risks. The Government will not, therefore, entertain any claims for compensation for damage caused to a private motor vehicle when being used on duty except where such damage is the result of a civil commotion or riot.

8:2:3 **Empty Running:-** No mileage is payable when an officer's car or a borrowed car travels empty. The Secretary may, however, authorize the payment of mileage in a case where an officer finds it necessary, for the proper performance of his duty, to send his car by one route while he himself travels by some other unmotorable route or in other circumstances, which appear to justify the concession.

8:3 Rates for Hired Cars.

8:3:1 **Full Running:-** When an officer hires a car he may be reimbursed the actual hire subject to a maximum of Rs 1.75 per quarter mile; where the journey is less than one mile he will be entitled to a maximum reimbursement of Rs.7.00

8:3:2 **Detention:-** When the return of an officer who travels by a hired car is necessarily delayed, and the payment of detention charges is more economical than the payment of mileage for an empty return or a hired car, detention charges may be paid at the rate of Rs. 5.00 per hour up to a maximum of Rs. 25.00 per day. The approval of the Secretary is required to make the payment for detention in excess of one day.

8:3:3 **Empty Return:-** Where payment for empty return is more economical than payment of detention charges, mileage for the "empty return running" of the car may be paid at half (1/2) the appropriate rate per mile, provided an "empty return journey" is actually done.

8:3:4 **Receipts:-** Reimbursement of hiring car charges should be supported by receipts which should be attached to the claim.

9. Mileage for Other Conveyances

9:1 **Motor Cycle:-** Motor cycle mileage may be drawn by an officer who is eligible to travel in a higher class than the second class on the railway, at Rs. 2.00 per kilometer, for the use of a motor cycle on routes not served by railway or by public conveyances, subject to the exceptions in Section 6 and 7.

9:2 **Public Conveyance:-** The mileage rate payable to an officer who has been awarded a commuted allowance on the basis that he travels by public conveyance is eighty five (85) cents per kilometer.

9:3 **Bicycles:-** Bicycle mileage may be drawn at the rate of thirty five cents (.35) per kilometer.

9:4 **Travel on foot:-** No allowance is payable for a journey on foot, unless the officer is obliged to use a conveyance or labourers for the transport of his luggage, in which case labourers' charges may be claimed under Section 14.

9:5 When an officer who travels by motor cycle or bicycle necessarily uses a separate conveyance to transport his baggage, he may claim mileage in respect of such conveyance instead of claiming motor cycle or bicycle mileage.

10. Use of Borrowed Cars

10:1 An officer who has regular and considerable travelling to perform on official duty, may be allowed to use a borrowed car for a maximum period of one year by the Head of the Department, and for a further period of one (01) year by the Secretary, and to claim mileage for its use, in instances where his own car is under repair; or from the date of his appointment until he purchases a car; or between the sale of one car and the purchase of another by him.

10:2 An officer entitled to mileage, who is required to travel only occasionally, may be allowed to use a borrowed car and claim car mileage for its use.

10:3 Mileage for the use of a borrowed car is payable at the rate appropriate to the borrowed car or to the officer's own car (when his car is under repairs), whichever is less.

10:4 If the officer does not own a car, mileage for a borrowed car should be paid at the rate prescribed in Sub-section 8:2.

10:5 An officer using a borrowed car and claiming mileage for its use should furnish the following with each travelling claim.

10:5:1 If the owner of the car, is a public officer:-

- (a) his department and designation,
- (b) a certificate from him that he will not claim mileage for the same journey.

10:5:2 his own certificate that the car was used specifically and only for the purpose stated in the claim.

10:5:3 A copy of each claim for mileage for journeys performed in a borrowed car must be sent by the officer certifying the claim to the Head of the Department in which the owner of the borrowed car serves where applicable. The word "PAID" should be clearly and conspicuously stamped on such copies.

10:6 An officer who uses a borrowed car does so at his own risk and the Government will not accept any liability arising from its use.

11. One Vehicle Used by more than One Officer

11:1 If two or more officers travel together in one vehicle on an official journey, only one of them should prefer a claim for mileage. If one of them is the owner of the vehicle and is entitled to mileage, he alone should claim mileage. If the owner is not entitled to mileage, any other officer who travelled in the vehicle on the same journey and who is entitled to claim mileage for the journey may make a claim.

11:2 If two or more officers use a borrowed or hired vehicle simultaneously for an official journey, only one of them can claim mileage for that journey.

12. Commuted Allowance

In the case of an officer who has extensive travelling to perform in the ordinary course of his duties, the Head of the Department may, with the approval of the Director General of Establishments, assign him a fixed allowance on the basis of the mileage rates specified in Sub-section 8:2 or 9:1. The officer will not be eligible to draw combined allowances at the rates specified in Sub-section 4:5, except in accordance with such general or special conditions as may from time to time, be approved by the Director General of Establishments.

12:1 A commuted allowance is an allowance which covers the cost of transport, combined allowance, and all personal expenses of an officer travelling on duty in accordance with the terms of which the allowance is granted.

12:2 The receipt of a fixed allowance should not affect an officer's right to transport services by rail.

12:3 An officer in receipt of a fixed allowance is not entitled to the free use of a government vehicle.

12:4 **Certificate.**- The payment voucher on which a commuted allowance is drawn must embody a statement of journeys performed and the mileage done on each journey, and bear a certificate from the Head of the Department that the necessary amount of travelling to qualify for the allowance has been done, exclusive of any special journey for which a separate claim has been submitted.

12:5 Where the necessary amount of travelling has not been done, a proportionate reduction will be made.

13. Fixed Transport Allowance

A fixed transport allowance of Rs. 30.00/- per month may be paid to an officer required by the Head of the Department to keep a bicycle to cover his transport expenses in respect of all travelling within a defined area.

13:1 **Certificate:-** An officer in receipt of this fixed transport allowance must attach to the payment voucher a certificate that the bicycle for which the allowance is granted has actually been kept and used.

13:2 **During Leave:-** This allowance cannot be drawn for any period of an officer's absence on leave other than on casual leave, or leave on account of illness, unless the bicycle is placed at the disposal of the officer's substitute.

14. Labourers' Charges

An officer travelling by a route along which no conveyance can be taken, and remaining off the road for one or more nights, may claim :-

14:1 Actual labourers' charges for the transport of tents or other government property necessarily taken on the journey; and,

14:2 Actual labourers' charges for the transport of personal effects up to the following limits for each mile travelled along such route :-

	Per mile Rs. c.
Officers drawing monthly initial salaries of not less than Rs. 20,030.00	6.00
Public Management Assistants/ Clerk or	
Interpreter accompanying Superior Officers and the	
Interpreter Mudaliyar and Reference Case Clerks of the Land Settlement Department.	
Itinerant Officers	3.00

14:3 The authority of the Director General of Establishments should be obtained for classing an officer as an itinerant officer for purposes of this section.

14:4 A claim under this section must show the number of labourers actually employed.

15. Transport of Conveyance by Rail

15:1 A railway warrant may be issued for the transport of an officer's private conveyance by rail in the following cases:-

15:1:1 To a Member of Parliament travelling on Parliamentary duty, in terms of Chapter XIII.

15:1:2 To an officer who is entitled to car or motor cycle mileage under Sub-sections 8:1:1 or 9:1 or to an officer who is required to keep a motor car for the efficient discharge of his duties under Sub-section 8:1:2, if it is essential that he should have his car or motor cycle to be used at his destination on the railway to carry out his duties.

Example

An officer visiting Jaffna from Colombo with the object of making a few relatively short journeys would not be entitled to a railway warrant for the free transport of his car by rail; he should travel by rail and hire a car at Jaffna. If however the officer's stay at Jaffna is necessarily long and/or involves extensive journeys he would be entitled to a railway warrant to transport his car.

15:2 When sending his conveyance by rail, an officer should himself travel to the station in the said conveyance and travel in the same train, in which event he will be entitled to reimbursement for expenses incurred for the journey between his residence and the railway station under Sub-section 16:2.

15:2:1 Where this is not possible, he may claim, mileage for the empty running of his car to the station, and for himself separately under Sub-section 16:2

16. Other Expenses Incidental to Travel

16:1 Transport of Luggage:- An officer of any grade will be allowed a warrant or a refund of the actual freight paid, in respect of such quantity of luggage taken by him on the railway or by other public conveyance as the Head of the Department considers to be reasonable taking into account the duration and nature of the journey.

16:2 Incidental Expenses:- When an officer travelling on duty requires conveyance or uses labourers between his residence and a railway station or bus-stand, he may be paid a sum of Rs. 5.00 for a distance not exceeding 1 mile and Rs. 10 where the distance is more, to cover incidental expenses, portage, etc., subject to the exception in Sub-section 16:3.

16:3 Ferry Tolls:- An officer travelling on duty will be entitled to a refund of any ferry tolls paid by him for himself and his vehicle.

16:4 A government vehicle should be exempted from the payment for providing parking space within the limits of any Local Authority unless otherwise specifically provided for the purpose.

17. Class of Travel on Railway

The class of accommodation to which an officer is entitled when travelling by railway is as follows:-

- Primary Grade - 2nd Class
- Secondary Grade - 1st Class
- Staff Grade - 1st Class

18. Railway Warrants

18:1 Free transport service (e.g. conveyance of passengers, luggage, furniture, etc.) will be rendered by the Railway only on production of a Railway Warrant which should be obtained from the Department to which the officer belongs.

18:2 A Railway Warrant is to be issued only when a Public Service is performed, and in no case must it be issued for the transport of any person or property whose cost of travel is not covered by these provisions (see Chapter XIII).

19. Chauffeurs, Karyala Karya Sahayakas (KKS) and Servants

19:1 **KKS and Servants**:- Combined allowance and free transport by rail or the cost of transport by public conveyance may be allowed for K.K.S. or servants accompanying any public officer as follows :-

<i>Number of K.K.S. and Servants (not including a Chauffeur)</i>		
Judge of the Supreme Court	- 4	} Provided the officer has to camp out and a servant is necessary for purposes of fixing tents, cooking etc.
Public Officer drawing a salary of not less than Rs. 20,030.00	- 1	
Divisional Secretary travelling on duty outside his/her division	- 1	

19:1:1 If it is necessary for a servant or KKS of a public officer to travel in advance for the purpose of making preparations for a circuit, or when at the close of a circuit it is necessary for such servant or KKS to remain behind to pack and to transport an officer's baggage, he may be considered to be accompanying the officer within the meaning of this regulation.

19:2 **Chauffeurs**:- A chauffeur accompanying an officer who is entitled to car mileage under Sub-section 8:1 and who uses his private car on Public Service, may be paid batta at the rate of Rs. 60.00 per diem.

19:2:1 An officer in receipt of a fixed allowance granted specially to cover all expenses of travel except rail-fare and the batta of one servant is not entitled to draw batta for a chauffeur in addition to batta for a servant.

19:2:2 An officer not eligible to motor car mileage under Sub-section 8:1:1 but required to keep a car for the efficient discharge of his duties under Sub-section 8:1:2, is not entitled to take a chauffeur with him at public expense.

20. Travelling Expenses on Change of Station: Combined Allowance

20:1 An officer transferred from one station to another may claim the full Combined Allowance for himself, his wife and each of his children over the age of twelve (12) and half the combined allowance for each of his children between the ages of three (03) and twelve (12) for every day or part of a day actually spent on travelling and necessary detention on the road. The combined allowance is not payable in respect of a son over the age of twenty-one (21), or a child under the age of three (03).

20:1:1 He may also claim combined allowance for servants and a house maid allowable under Section 22 at the lowest rate in Sub-section 4:6 for the time actually spent on travelling and necessary detention on the road.

20:2 An officer transferred from one station to another on promotion will, for the purpose of Sections 21, 22 and 23 be deemed to have taken over the duties of his new office and his salary will be the salary of his new office. If on transfer, he is appointed to act in a higher post, the salary will be his substantive salary.

20:3 Where the transfer is to an office within a distance of more than five (05) miles and less than fifteen (15) miles of his former office, reimbursement of his expenses will be only in respect of transport and packing and incidentals on the goods actually transported in terms of Sub-section 22:6. He will not be entitled to any combined allowance.

20:3:1 Where the transfer is to an office within a distance of five (05) miles of his former office, reimbursement of his expenses will be considered only under Sub-section 22:20. He may however, with the prior authority of the Secretary also be allowed a reasonable sum for incidental expenses necessarily incurred.

20:4 At the beginning and end of journey:- journey, if an officer has to vacate his house before starting his journey in order to have his baggage sent ahead, or if he is unable to occupy his new house on arrival because his furniture has not arrived in time, he may be paid the combined allowance for himself and his family (in terms of Sub-section 20:1) from the date before the furniture is handed over to the railway station of dispatch provided that he actually vacates his quarters on that date, to the day after the furniture arrives at the railway goods station to which they are consigned, both days inclusive.

20:4:1 Any period for which an allowance is claimed under Sub-section 20:1:1 will be excluded from the period computed under Sub-section 20:4:2.

20:4:2 The combined allowance will also be paid for a period not exceeding one (01) month after the arrival of the furniture if during such time, the quarters assigned to the officer's post cannot be occupied either because it is certified by the Department responsible to be under repair or because it has not been vacated by the out-going officer. In the latter case, the full combined allowance or a part thereof will be surcharged to the outgoing officer unless the delay is due to reasons beyond his control. The Secretary should decide on the quantum of recovery depending on the circumstances of each case.

20:5 Where an officer receives less than a calendar month's notice of transfer and is, for this reason, compelled to proceed to his new station ahead of his furniture, he may draw combined allowance in respect of himself for the full period allowable under Sub-section 20:4 at the time of the removal of his furniture notwithstanding that he may have previously drawn combined allowance under Sub-section 20:1 at the time of his own move.

20:6 The combined allowances under Sub-section 20:4 are conditional on the transport of at least four (04) cwt. of furniture.

20:7 No allowance is payable under Sub-section 20:4 for any period during which an officer is on leave. This will not, however, debar payment to the members of his family.

20:8 If an officer receives a calendar month's notice or more of transfer but does not move his furniture at the time of his own move, he will not be eligible to claim the combined allowances under Sub-section 20:4 in respect of himself. His family, however, will be entitled to claim their allowances if his furniture is transported within the period of twelve (12) months prescribed in Sub-section 22:19 or within any extensions thereto allowed by the Head of the Department.

21. Travelling Expenses on Change of Station: Transportation of Officer and His Family

21:1 In addition to the combined allowance, an officer may be allowed railway warrants, and where the railway is not available, the fare by public conveyance for himself and members of his family dependent on him.

21:2 Transport expenses between his residence and a railway station or bus stand may be allowed as provided for in Section 16 subject to the sums of Rs. 5.00 and Rs.10.00 being varied as follows when more than two persons in the family are involved.

21:2:1 Where the distance does not exceed one mile, a further allowance of Rs. 3.00 may be allowed for the next two persons or less, and Rs. 1.00 for a further additional person subject to a maximum of Rs. 5.00 in all.

21:2:2 Where the distance is more than one mile, a further allowance of Rs. 3.00 may be allowed for the next one or two persons, and Rs. 1.50 for a further additional person subject to a maximum of Rs. 10.00 in all.

21:2:3 For purposes of these regulations, "family" does not include a son over twenty-one (21) years of age or a child under three (03) years of age.

21:3 For any part of the journey which cannot be performed by rail, mileage may be claimed as laid down in Sub-section 8: 2 but will only be allowed in respect of the officer himself unless it can be shown that additional expenditure was incurred in the transportation of his family, in which case a reasonable allowance to cover such additional expenditure may be granted.

21:4 An officer who is entitled to railway warrants for the conveyance of a motor vehicle under Section 22 may, instead of conveying it by rail, travel in it himself with his family on change of station and claim mileage for the journey at the appropriate rate in terms of Sub-sections 6:5 and 6:6 provided that he does not apply for railway warrants for the transport of himself or any member of his family.

21:4:1 Where he claims mileage under Sub-section 6:6 the limit of 130 miles in that section will not apply when he travels on change of station.

22. Travelling Expenses on Change of Station: Transportation or Furniture, etc.

22:1 An officer drawing a salary of Rs. 20,030.00 per month and over (See Sub-section 20:2) is entitled to:-

22:1:1 railway warrants and fare by public conveyance for two (02) servants and for one housemaid, if accompanying a child under three (03) years of age.

22:1:2 a railway warrant for transporting a car or a motor cycle belonging to him.

22:2 An officer drawing a salary of Rs. 13,990.00 per month and over (See Sub-section 20:2) and an officer entitled to 1st class travel on the railway (See Section 17) will be entitled to:-

22:2:1 The same concessions as under Sub-section 22:1:1 for one servant and for one house-maid, if accompanying a child under three (03) years of age.

22:2:2 A railway warrant for transporting a car or a motor cycle belonging to him provided he is required by the Government to maintain such a conveyance for the efficient discharge of his duties.

22:3 A railway warrant for the servants will be for travel by third class and for the house-maid accompanying a child, for travel by the class next lower to that in which the officer is entitled to travel.

22:4 Any other officer will not be entitled to free transportation of servants or motor vehicles.

22:5 An officer is entitled to free transportation of household furniture and baggage (including bicycle), to packing and incidental expenses, and to reimbursement of the actual lorry hire incurred on transportation of these goods between the residence and the railway goods station at both ends, subject to Sub-section 22:8 and 22:11 and within the following limits :-

<i>Salary</i>	<i>Maximum quantity of luggage for which free rail transport will be allowed</i>
Officer drawing a salary of Rs. 36,755.00 per month and over ..	8 tons
Officer drawing a salary of Rs. 36,495.00 per month and over ..	6 tons
Officer drawing a salary of Rs. 20,030.00 per month and over ..	4 tons
Officer drawing a salary of Rs. 15,390.00 per month and over and an officer entitled to second class travel by rail before 28.02.1979 as personal to him ..	2 tons
Officer drawing a salary of less than Rs. 15,390.00 (See Sub-section 20:2) ..	1 tons

22:6 An officer will also be entitled to reimbursement of packing and incidental expenditure on the goods actually transported up to the maximum quantity of luggage that each officer is allowed to transport by rail at Government expense, at the following rates :

	<i>Rs</i>
4 cwt, and over	30 . 00
2 tons and over	60 . 00
4 tons and over	80 . 00

22:7 The weight of the goods actually transported will be ascertained from the documents issued by the Railway such as railway invoices, etc. Where goods are transported entirely by lorry and reimbursement is claimed as provided for under

these regulations, the Head of the Department paying the claim should satisfy himself as to the weight of the goods transported, by obtaining a list of the goods from the officer and verifying it.

22:8 A railway warrant will be issued to or from the railway goods station nearest to the home of the officer concerned, provided he resides within the area of the urban authority within which his office is situated or within four (04) miles of his office (see Sub-section 22:11:1.).

22:9 If an officer chooses to reside outside these limits, railway warrants will be issued to the railway goods station within these limits, nearest to his residence.

22:10 Where rail transport is available for the whole or part of the distance, furniture and household goods should be transported by rail over that distance. An officer may also be allowed to transport his furniture and household goods by lorry belonging to a government department or public corporation/organization on a hire charge basis, where such a vehicle is available and can be released without disruption to normal work.

The maximum hire rates payable for using a vehicle belonging to such an organization are as follows :-

	<i>Weightage Rate per Mile</i>
Not exceeding one (01) ton	- Rs.4.96 per ton per mile
Exceeding one (01) ton, but not exceeding two tons	- Rs.4.62 per ton per mile
Exceeding two (02) tons, but not exceeding four (04) tons	- Rs.4.10 per ton per mile
Exceeding four (04) ton, but not exceeding six (06) tons	- Rs.3.59 per ton per mile
Exceeding six (06) tons	- Rs.3.25 per ton per mile

22:10:1 Hypothetical or actual lorry hire for only such part of the journey which cannot be performed by rail, subject to the limits in Sub-section 22:11.

22:10:2 combined allowance under Sub-section 20:4 for a maximum period of three (03) days.

22:11 Lorry hire for transportation of furniture between the railway station and residence at each end will be payable only if the residence is situated within the urban area in which his old or his new place of work, as the case may be, is situated, or is within four (04) miles of that place of work.

22:11:1 For the purpose of Sub-section 22:8 and 22:11, the urban limits of Colombo are an area within a 20 miles radius of a place of work, situated within the Colombo Municipal limits.

22:11:2 When an officer resides outside these limits, lorry-hire will be paid between the officer's residence and the nearest railway goods station only up to a maximum distance of four (04) miles.

22:12 If an officer receives less than one calendar month's notice of his transfer and owing to his inability to procure a house at his new station;

22:12:1 He leaves his furniture at his old station with a view to removing it at a subsequent date, he may be allowed a free railway warrant to and from the old station to attend to the removal of the furniture but not any combined allowance.

22:12:2 If in such circumstances he removes it to a place of temporary storage he may be allowed a warrant and/or the cost of transport permissible under these regulations for transporting his goods from the railway station of the destination to the place of temporary storage and thence to his house, when he secures one, provided that the same limitations on the situation of his house as stipulated in Sub-sections 22:8 and 22:11 will apply to the situation of the place of temporary storage.

22:13 The rates of lorry hire payable to an officer are as follows :-

	<i>Weightage Rate per Mile</i>
Not exceeding one (01) ton	- Rs. 3.60 per ton per mile
Exceeding one (01) ton, but not exceeding two (02) tons	- Rs. 3.35 per ton per mile
Exceeding 2 tons, but not exceeding four (04) tons	- Rs. 3.00 per ton per mile
Exceeding four (04) ton, but not exceeding six (06) tons	- Rs. 2.60 per ton per mile
Exceeding six (06) tons	- Rs. 2.35 per ton per mile

22:14 An under-receipt must be furnished in respect of every claim for lorry hire.

22:15 When applying for railway transport for a vehicle under this section, full particulars of the weight and dimensions of the vehicle should be given to the Railway. Should failure to comply with this requirement result in the provision of an unsuitable truck, the officer will not be paid mileage for a journey by road.

22:16 Cart hire will not be payable for transport of furniture unless the Divisional Secretary of the area certifies that; the furniture cannot be transported by a motor vehicle over any part of the journey, in which case cart hire would be payable for only that part of the journey, or a motor vehicle cannot be engaged in that area for the purpose, taking into consideration the weight of furniture to be transported and the distance to be traversed, or the overall cost of transport by cart is cheaper than by motor vehicle.

22:16:1 The rate of cart hire (whether double bullock cart or single bullock cart) is Rs. 2.50.

22:16:2 The number of carts for which cart hire may be paid will be at the rate of one double bullock cart or two single bullock carts per half ton of furniture transported. Double bullock-carts should be engaged only if single bullock-carts cannot be engaged.

22:16:3 Under-receipts should be produced for payment of cart hire.

22:17 Reimbursement of all expenditure connected with the transportation of furniture and baggage such as on lorry hire, cart hire, packing and incidental expenses, etc., will be limited to the maximum weight of baggage that an officer is entitled to transport by rail at Government expense in terms of Sub-section 22:5.

22:18 **Special Transport:-** When an officer's family or his furniture is transported either from his old station to a place other than his new station or to his new station from a place other than his old station, he may be allowed transport by rail for his family and his furniture to a distance such that the cost of transport does not exceed that for the distance between the old and new stations. No combined allowance, lorry hire, packing or other expenses will be allowed in respect of such transport.

22:18:1 Where his old or new station is not directly served by the Railway, the hypothetical cost of transportation of his family and furniture by road between such station and the nearest railway station may be taken into account in arriving at the cost of free transport by rail allowable under Sub-section 22:18.

22:19 **"12 months" Rule:-** The expenses of removal of an officer's family and furniture are not payable, unless he transports them within twelve (12) months of the date of his first appointment or transfer, or within any extended period allowed by the Head of the Department on prior application made by the officer.

22:19:1 In such a case the officer's own claim should be forwarded in duplicate, within thirty days, with a statement that a further claim in respect of his family or furniture will follow.

22:20 **Change of Quarters within a Station:-** If an officer is obliged to occupy or vacate Government quarters specially attached to a post, on appointment to a new post which does not involve a change of station, he will be entitled to reimbursement of transport expenses only. He will not be entitled to the Combined Allowance or packing expenses. If he vacates or moves into Government quarters for any other reason, he will not be entitled to any reimbursement.

22:21 The regulations in this Chapter apply to a monthly paid officer and a daily paid officer, whether on the fixed establishment or otherwise, transferred by official order from one station to another.

23. Transport to Home Station

23:1 When an officer proceeds on transfer from one station to another, in the following circumstances, he will be entitled to the following concessions notwithstanding anything in the preceding sections.

23:2 If he is unable to remove his family and/or his furniture to his new station owing to the difficulty in securing accommodation, he will be paid change of station travelling expenses for transporting his family and furniture to his or his wife's home station.

23:3 He will also be paid these expenses on transporting them at a subsequent date to his new station.

23:4 If he does not transport his family and furniture to his new station, he may on his next subsequent transfer, be paid change of station travelling expenses for transporting them to the station to which he is next transferred.

23:5 The concessions under this Section will be available only once in an officer's career.

23:6 When an officer avails himself of this concession, a record to that effect should be made in his personal file. When a claim is made under this Section, a certificate should be obtained from the officer that he has not availed himself of this concession before.

24. Transfers, Deferment and Cancellation of Transfers at Short Notice

24:1 **Settling-in-Allowance:-** Where an officer receives less than a calendar month's notice of transfer, he will be entitled to a settling-in-allowance at the rate of half the combined allowance appropriate to him. (He will in addition be entitled to the benefits in Sub-sections 20:5 and 22:12).

24:2 This settling-in-allowance is payable for the period by which the notice of transfer falls short of thirty (30) days.

24:3 For the purpose of Sub- section 24:2 above, the relevant dates will be the date of the notice of transfer as appearing thereon and the date on which he actually assumes duties at his new station.

24:4 When the settling-in- allowance is payable, the additional 25% of the combined allowance under Sub-section 4:5:3 can be paid only up to a maximum period of one (01) month.

24:5 The authority ordering the transfer should ensure for this purpose that, a transfer order is dated on the day on which it is mailed or delivered and that it is served on the officer with the least possible delay.

Example

By a letter dated 10th March an officer is transferred with effect from 1st April and assumes duties on that date. The rate of combined allowance payable to him is Rs. 500.00. He would be entitled to a settling-in-allowance calculated as follows:
 $(30-20) \times \text{Rs. } 500 \times \frac{1}{2} = \text{Rs. } 2,500.00$

If he assumes, duties on 5th April - $(30-25) \times \text{Rs. } 500 \times \frac{1}{2} = \text{Rs. } 1250.00$

24:6 The settling- in - allowance is not payable when a transfer is expedited at the officer's own request, or is made on grounds of misconduct.

24:7 The settling-in- allowance is payable only to the officer and not to any other member of his family.

24:8 Where a transfer is cancelled or deferred within three (03) days of the date on which it is to take effect, a reasonable amount to reimburse the officer for any expenditure actually and necessarily incurred by him may be authorized by the Head of the Department on satisfactory proof being furnished that such expenditure was actually and necessarily incurred.

24:9 The reimbursement will be only for expenditure incurred on packing and transport. In addition, a combined allowance maybe paid to the officer and his family for a period not exceeding two (02) days if his furniture and goods had been packed or were in transit during the period.

24:10 The reimbursements under Sub-sections 24:8 and 24:9 are not payable if a transfer is deferred or cancelled at the officer's own request or on disciplinary grounds.

24:11 The authority ordering, cancelling or deferring the transfer should bear in mind the extra cost to government of a transfer, deferment or cancellation at short notice and ensure that no transfers are ordered, cancelled or deferred at short notice except in very urgent circumstances.

24:12 The order of transfer, cancellation or deferment should also bear a certificate by the Head of Department that the short notice was unavoidable and was made in circumstances of urgency, or in the alternative, that it falls under Sub-section 24:6 or 24:10 and should state whether or not the expenses under Sub-section 24:8 or 24:9 are payable.

24:13 Where a short notice of transfer or of its deferment or cancellation is attributable to omission or neglect on the part of any officer, he will be surcharged the additional cost to the Government caused thereby.

25. Transfers on Grounds of Misconduct

Where a transfer is ordered on grounds of misconduct, an officer will not be entitled to any reimbursement of the expenses incurred by him on change of station. The information as to whether or not such expenses are payable by the Government should be included in the monthly return of changes forwarded to the Auditor-General.

26. Members of Commissions and Special Committees

26:1 Travel by Train:- A member is entitled to a first class railway warrant for himself and a warrant for the conveyance of his car if he chooses to travel by train or is required to travel by train under Section 5.

26:2 Travel by Car:- A member serving in an honorary capacity will not be subject to the provisions of Section 5 and may be paid full mileage for any journeys performed by car from his residence to the place of the sitting at the appropriate rates laid down in Sub-section 8:2. If a combined allowance is not payable and the car mileage payable is less than Rs. 5.00, he will be paid a minimum of Rs. 5.00 for attending each sitting.

26:2:1 A paid member will be subject to the provisions of Section 5 and, when entitled to car mileage, will be paid in accordance with Sub-section 8:2 for a journey performed by car. Where he is not entitled to mileage under Sub-section 6:5 because the journey exceeds 130 miles, he may be paid in lieu thereof, the first class train fare that would have been incurred on such a journey (exclusive of the cost of sleeping berths.)

26:3 Reimbursement of Subsistence and Lodging Expenses:-

An honorary member will be reimbursed the actual cost of his basic hotel or rest house charges supported by a receipt or will be paid a combined allowance in terms of Sub-sections 4:5 and 4:6 at his option. The rates applicable are those in Sub-section 4:6 for officers drawing a salary of over Rs. 21,045.00 per month.

26:3:1 A paid member will be entitled only to the combined allowance in terms of the same sub sections and at the same rates.

26:4 A Public Officer, who is a member of a Commission or Committee, and a Secretary of such a Commission or Committee when accompanying it, will be paid travelling and combined allowances on the same basis.

26:5 A Secretary when not accompanying a Commission will be paid in terms of Sections 1 to 11.

27. Advances to Meet Travelling Expenses

27:1 Authority:- Token provision is made by the Ministry of Finance and Planning in the Annual Estimates for the payment of advances to meet travelling

expenses, and a Head of Department is authorized to grant advances under this provision by a circular which is issued by the Ministry of Finance and Planning at the commencement of each financial year.

27:2 An advance should be regarded as being personal to the officer and must be settled by him in full, normally on receiving the money from the travelling claim for the travelling in respect of which the advance is obtained.

27:3 Only an officer entitled to travelling expenses under these rules will be allowed to draw this advance.

27:3:1 The advance should be paid only on the working day prior to the commencement of the journey.

27:3:2 The advance should not exceed three quarters (3/4) of the probable expense of the journey.

27:3:3 Where such an advance is obtained by an officer for removing his family from one station to another on transfer, he should effect their removal within one month of the grant of the advance and if he fails to do so, it should be refunded in full at the expiration of one month. This advance should not be granted before ten (10) days from the date fixed for the transfer.

27:4 **Records and Recoveries:**-The officer responsible for granting these advances should maintain adequate records of the advances granted and the recoveries made, along with other relevant particulars. He should ensure that each advance is recovered in full from the travelling claims submitted by the officer for the travelling in respect of which the advance was granted.

27:5 If the travelling is not undertaken and a claim for it not made within one month of the grant of the advance, it should be recovered in full from the salary of the officer, in one lump sum. Recovery in installments is not permitted.

27:6 The Head of the Department may, in exceptional circumstances, personally allow an extension of this period for the settlement of the advance, but in no case should such an extension be granted beyond three (03) months of the date on which the advance was paid.

27:7 If an advance is not settled within the time permitted, the officer will be liable to disciplinary action, in addition to any other action that may be taken for the recovery of the advance.

27:8 An advance should not be granted to an officer where the settlement of an earlier advance is outstanding. If it is considered that this rule should be relaxed for any special reasons, the personal approval of the Head of the Department should be obtained.

27:9 A Secretary should ensure, by calling for monthly statements that no advances are in arrears for over three (03) months. The monthly statement should be on the following form :-

<i>Name and Designation of the Officer</i>	<i>Date of Payment of Advance</i>	<i>Amount of Advance</i>	<i>Travelling for which advance was granted</i>	<i>Reasons for delay in settlement of advance and steps proposed to be taken to expedite settlement</i>

28. Travelling Claims

28:1 **Form:** The forms to be used for all travelling claims are as follows :-

Change of station	..	General 178
Commuted allowance	..	General 161
Fixed transport allowance	..	General 35 (with amended certificate)
All other travelling claims	..	General 177

28:2 **Certification:-** The Head of a Department may delegate to any officer or officers of his Department the duty of examining and certifying travelling claims including fixed transport and commuted allowance vouchers. In a Department where there is no other officer of sufficient seniority, the Head of the Department may certify his own claim.

28:3 **Responsibility for Correctness:-** Responsibility for the correctness of a claim vests in the first instance on the officer making the claim, but an equal responsibility lies on the Head of the Department and the officer certifying the claim.

28:4 Any claim is subject to surcharge by the Audit. If any part of a claim is disallowed, the voucher must be amended in red ink. An appeal against a disallowance may be made to the Secretary, who may allow the claim or part of it, or impose a further disallowance.

28:5 A travelling claim should be submitted to the Certifying Officer or to the Head of the Department or to the Head of the Branch Office in which the officer works, within thirty (30) days of completion of the journey.

28:5:1 An officer who has regular and considerable travelling to perform may submit his claim in respect of a particular month within thirty (30) days of the last date of travelling done in that month, and in such case payment should be made without recovering any penalty. A claim submitted after this period of time will be treated as having lapsed.

28:5:2 The Departmental date-stamp should be affixed in every claim on the day it is presented to the Head of the Department or to the Head of the Branch Office.

28:6 A claim which has not been presented within the period allowed under Sub-section 28:5 may, however, be paid subject to F.R. 115, with the following deductions:-

<i>Period of Lapse</i>		<i>Rate of Deductions</i>
Not more than one (01) month	..	3% of the total claim
Not more than two (02) months	..	10% of the total claim
Not more than three (03) months	..	12 % of the total claim
More than three (03) months	..	15% of the total claim

28:6:1 No claim which has lapsed for more than three (03) months may be paid without the personal authority of the Head of the Department.

28:6:2 Where the failure to present a claim within the stipulated period is due to circumstances beyond the officer's control and it is presented at the earliest possible opportunity, the Head of the Department may authorize payment of the claim without any deduction.

28:7 **Claims at End of Financial Year:-** A claim on account of travelling in the last month of the financial year must, where possible, be presented in time to admit of payment before the end of the financial year.

29. Certain Types of Official Travelling

29:1 An officer proceeding to take up his first appointment in the Public Service will be entitled to the free transport of himself, his family, servants, household furniture, baggage (including bicycles) and conveyance from his home in Sri Lanka to the place of his first appointment in accordance with the rules in this Chapter. He will not be entitled to a combined allowance or the Allowance for packing or incidental expenses.

29:2 **Return from Leave out of the Island:-** An Officer returning from half-pay or commuted half-pay leave to the station from which he went on leave may claim free transport for himself, his family and baggage from the port of arrival to his station, in terms of the rules in this Chapter.

29:2:1 An officer returning from vacation leave to the station from which he went on leave may not claim free transport or any reimbursement of the expenses of his journey.

29:2:2 An officer returning from vacation, half pay, or commuted half pay leave to a station other than that from which he went on leave may claim free transport for himself, his family and baggage, from the port of arrival to this new station. He will also be entitled to free transport of baggage and vehicle from the old to the new station, provided that the total baggage transported to the new station does not exceed the quantity allowed under Section 22.

29:2:3 No combined allowance or allowance for packing or incidental expenses may be claimed by any officer returning from leave.

29:3 Travelling Expenses on Retirement:- An officer who retires on account of age ill-health, or abolition of office, but not compulsorily retired on disciplinary grounds, may be allowed travelling expenses under these rules for the transport of himself, his family, servants, household furniture, baggage (including bicycles) and conveyance, to his home in Sri Lanka, but no combined allowance will be paid.

29:3:1 An officer must avail himself of this concession within one (01) month of the date of his retirement, but in special cases this period may be extended by the Head of the Department to any reasonable period on application made by the officer.

29:4 Widow of an Officer Dying in Service:- The widow of an officer who dies while in service may be allowed the same concession as under Sub-section 29:3.

29:5 An Officer Presenting Himself for a Departmental Examination:- An officer presenting himself for a Departmental examination in Colombo or any other centre will be entitled to draw travelling expenses only once in respect of a particular examination and on furnishing satisfactory proof of having passed the whole examination.

29:5:1 The travelling expenses so payable will consist of reimbursement of the actual fare by public conveyance, together with mileage, etc., as laid down in these rules in respect of any part of the journey which cannot be performed by public conveyance, and the combined allowance payable under these Rules.

29:5:2 The railway must be used where it is available. For this purpose he should not be issued railway warrants but he must pay the fare, which will be refunded to him in case of his passing the examination or furnishing the certificate referred to above.

29:5:3 No refund of rail fare will be made unless an officer has actually travelled by train.

29:5:4 Every claim must be made within thirty days (30) of intimation of the results of the examination.

29:5:5 These regulations do not apply to any type of competitive examination free transportation or reimbursement of travelling expenses will not be provided for any competitive examination.

29:6 Officer Summoned as Witness by Court:- An Officer summoned to give evidence of facts which have come to his knowledge or of matters with which he has had to deal with in his capacity, as a public officer either in a Criminal Case, or in a Civil Case, to which the Government is a party and in which he is a witness for the Government will be paid travelling expenses in accordance with these rules. An officer summoned to give evidence under other circumstances is not entitled, by reason of his being a public officer, to any allowances other than those admissible under Chapter X of this Code.

29:6:1 A District Judge or Magistrate, should insert in the certificate of attendance issued by him to a public officer the time at which he was discharged by court.

29:7 Officer Summoned to a Disciplinary Inquiry:- An accused officer summoned to appear at a Disciplinary Inquiry or permitted to examine documents connected with such an Inquiry will not be entitled to claim any expenses under these regulations should he be found guilty of the charges against him. He may, however, be given free railway warrants to enable him to travel from his station to the place at which the inquiry is held or documents are to be examined. Should the inquiry result in an acquittal, the officer may claim reimbursement of his expenses in accordance with these rules.

29:8 An Officer Representing Another at Disciplinary Inquiries:- An officer in the Public Service or retired from the Public Service permitted to represent another officer at a Disciplinary Inquiry is entitled to duty warrants and travelling expenses in accordance with these Rules. The officer may also be allowed similar concessions at the discretion of the authority holding the Inquiry, for journeys undertaken for the purpose of examining documents, etc., prior to the formal Inquiry.

29:9 An Officer Summoned as a Witness at a Disciplinary Inquiry:- An officer summoned through the Head of his Department either for the Government or for the accused officer to an inquiry will be entitled to duty warrants and travelling expenses in accordance with these Rules.

30. Persons other than Public Officers

Where any person who is not a public officer is summoned to attend any meeting of a Commission of Inquiry, or of a Board, Conference, Committee, or a Departmental Inquiry, convened under proper authority, or is required to perform

Revision

any public duties in an honorary capacity not covered by Section 26, he may be reimbursed his travelling expenses in accordance with the appropriate rules under Chapter X of this Code.

31. Members of Parliament

31:1 A Member of Parliament is entitled to concessionary tickets for travel by rail, on business of Parliament and to Railway Warrants for his wife in terms of the instructions that will be conveyed to him by the Secretary-General of the Parliament.

31:2 He will also be entitled to warrants for transporting his car, or to an allowance in lieu thereof as provided for in Chapter XIII, Sub-section 2:4.

CHAPTER XV

TRAVEL ABROAD FOR STUDY, TRAINING OR ON DUTY

1. Definition
2. Trainings and Study Programmes
3. Eligibility
4. Agreement and Bond When on Full-Pay Study Leave
5. Agreement When on No-Pay Study Leave
6. Scholarship, Training Allowances etc.
7. Subsistence Allowance - for a period not exceeding one month
8. Subsistence Allowance - for a period exceeding one month
9. Warm Clothing Allowances and Advances
10. Procedures to Be Followed in Granting Approval for Public Officers to Travel Abroad
11. Class of Travel
12. Mode of Travel
13. Transport of Unaccompanied Baggage
14. Insurance - Air Risks
15. Medical Examination

CHAPTER XV

TRAVEL ABROAD FOR STUDY, TRAINING OR ON DUTY

1. Definition

1:1 For the purpose of this chapter, "Study or training" includes a scholarship, fellowship, study tour, observation tour, travel grant, seminar or any award which contains an element of training and/or enhances an officer's qualifications, knowledge or experience. It does not include travel abroad for a purpose which is directly a part of an officer's duties, such as for a conference on behalf of the Government or for transacting Government business, signing an agreement, contract or for purchase of supplies.

1:2 A public officer proceeding abroad for study or training will do so :-

1:2:1 at his own expense; or

1:2:2 at the expense of a foreign Government or Agency; or

1:2:3 at the expense of the Government of Sri Lanka.

1:3 In every such case, the grant of leave will be determined by Sections 14, 15 and 16 of Chapter XII.

1:4 He will also be required to sign an Agreement and/or Bond in terms of Sections 4 and 5.

1:5 Where the study or training and travel is at the expense of a foreign Government or Organization, an officer may be selected in one of the following ways:-

1:5:1 by advertisement or notice, which is open to the general public and is not confined to public officers,

1:5:2 by selection made by the sponsoring body,

1:5:3 by the Government of Sri Lanka nominating a public officer for such study, training or travel which is offered to the Government of Sri Lanka in the form of a scholarship or grant.

1:6 Only a public officer, falling within the terms of Sub-section 1:2:3 or 1:5:3 is entitled to payments and allowances under this Chapter.

2. Trainings and Study Programmes

2:1 Training programmes abroad should be coordinated by the Secretary. Training in Public Administration and Management will be dealt with by the Governing Council of the Sri Lanka Institute of Development Administration and co-ordinate by the Secretary to the Ministry of Public Administration.

2:2 **Types of Training or Study:-**Trainings or Study Programmes will generally fall into one of the following groups :-

2:2:1 In a specialized field relevant only to a particular Ministry or Department, e.g., Co-operative Development, Immigration Procedures, Customs Administration.

2:2:2 In a field common to more than one Ministry or Department, e.g., Public Administration, Development Economics, Project Formulation and Evaluation, Personnel Management, Supplies Management.

2:3 **Formulation of Programmes:-** It is the responsibility of the operating Ministry and Department to assess the total training and career development needs of their staff and program such training.

2:3:1 A training programme of the type referred to in Sub-section 2:2:1 will be arranged by the Ministry concerned with the Department of External Resources of the Ministry of Finance and Planning. A training Programme of the type referred to in Sub-section 2:2:2 will be arranged by the Governing Council of the Sri Lanka Institute of Development Administration together with the Department of External Resources of the Ministry of Finance and Planning.

2:3:2 Ministries should forward to the Director of the Sri Lanka Institute of Development Administration in the form in Appendix 14 before 31st October each year their training needs in respect of the fields referred to in Sub-section 2:2:2. This information will be matched with the foreign training facilities available and a list of officers to be trained will be prepared in order of priority and nominations will be made as opportunities become available.

2:4 **A Field Relevant to a Particular Department:-** The selection of an officer for study or training in a specialized field of the type in Sub-section 2:2:1 will be done by the Ministry concerned. In the case of an officer of a Combined Service, such a selection will be made with the concurrence of the Secretary to the Ministry of Public Administration.

2:4:1 Where an officer of a Combined Service is selected by a Ministry, the duration of the training should not normally exceed one (01) year. The Ministry should ensure by reference to the record of the officer and in consultation with

the Secretary to the Ministry of Public Administration that the officer will be in a position to function within the specialty in which he is to be trained for a period of not less than three (03) years after completion of his training. A written undertaking should be obtained from the officer that he will serve in a post or Department to which that specialty is relevant. Particulars of all officers trained accordingly should be intimated to the Director of Sri Lanka Institute of Development Administration for purposes of record.

2:5 Fields Common to More Than One Department:- Selection for a training programme of the type referred to in Sub-section 2:2:2 will be made by the Governing Council of the Sri Lanka Institute of Development Administration. In the case of an officer of the Sri Lanka Engineering Service and the Sri Lanka Scientific Service, the applications should be made through the Director, Engineering Services Board or the Secretary, Scientific Service Board.

3. Eligibility

3:1 An officer on probation should not be sent abroad for study or training except to obtain a qualification required for confirmation in terms of his appointment.

3:2 A temporary officer should not be sent abroad for study or training.

4. Agreements and Bonds When on Full-Pay Study Leave

4:1 A Public Officer sent abroad for study or training for over one (01) month (inclusive of the time spent on travel) should be required to sign an Agreement before he leaves the Island, undertaking to serve the Government for a minimum period specified in the Agreement, hereafter referred to as the "period of obligatory service".

4:2 A Public Officer should be directed, in addition to the agreement, to enter into a Bond with two sureties, for due fulfilment of the conditions of the Agreement.

4:3 It is the responsibility of the Head of the Department to ensure that the Bonds and Agreements have been signed before the officer leaves the Island. This does not absolve the officer from the responsibility of complying with these requirements before he leaves the Island. Failure to do so may render him liable to be recalled and to be surcharged the expenditure incurred.

4:3:1 When an officer is sent abroad for study or training, it is the responsibility of the Head of the Department to ensure that the officer would have sufficient time to complete the period of obligatory service before he reaches the age of fifty five (55) years.

4:4 The periods of obligatory service should be determined as follows :-

No obligatory service for a period of leave of one (01) month or less, inclusive of minimum travel time. In respect of a period of over one (01) month, the period of obligatory service should be four times the period of leave, subject to a minimum of one (01) year and a maximum of ten (10) years.

The period of obligatory service should be calculated to the nearest whole month and the period of leave should be reckoned inclusive of minimum travel time.

Example :

An officer is granted four (04) months leave and he takes four (04) days for travel. The obligatory period of service will be four times four (04) months and four (04) days, calculated to the nearest e.g. seventeen (17) months.

4:5 Where there is any doubt as to whether or not a Bond and/or Agreement should be signed by the officer, the Director General of Establishments should be consulted.

4:6 A Bond and/ or Agreement should be entered into irrespective of whether the study or training is financed wholly or partially by the Government of Sri Lanka or by a Foreign Government or Agency.

4:7 The Agreement should provide provisions for the repayment the entire cost of training by the officer of in the event of a breach of any of its terms and conditions. However, provisions should be included in that Agreement “so that it will be possible to make the following exceptions regarding the period of obligatory service only”. The full amount of the penalty provided for in the Agreement should be recovered from officers who have not served at least half the period of obligatory service they have agreed to serve. Recovery that should be made from officers who have served half or more than half of the period of obligatory service should be an amount calculated as being proportionate to the balance period of obligatory service still left to be served.

“The cost of training” means the expenses incurred in connection with the training and includes the amount of salary and allowances paid to the trainee during the period of training, the cost of passages, any special allowances paid to the trainee while undergoing training, medical expenses and any amount paid as fees, advances and allowances to the trainee or on the trainee’s behalf for the said course of study and training.

4:8 The surety to a Bond should be a person possessing of immovable property equivalent in value to the maximum penalty provided for in the Agreement or whose annual income amounts to one-fourth (1/4) of the maximum penalty; and he should not himself be already indebted to the Government whether as principal or surety.

4:9 A Department should adhere to the forms of the Bonds and Agreements shown in the Appendices. If any amendment is necessary to suit the special requirements of a particular Department or an individual case, the prior approval of the Director General of Establishments for the amendment should be obtained. Such approval may require consultation with the Attorney General.

4:10 If an officer who is already under Agreement to serve a period of obligatory service is selected for subsequent study or training for which he has to bind himself for a further period of obligatory service, he will be released from the first Agreement. Any undischarged period of obligatory service under the first Agreement will be added to the period of obligatory service to which he finds himself under the second Agreement subject, however, to a maximum of ten (10) years.

4:11 Similarly, the cost of the first study or training will be added to the cost of the subsequent one, for purposes of the subsequent Agreement.

4:12 The form of Agreement and Bond to be used is set out in Appendices 8 (Agreement) and 15 (Bond).

4:13 Where a probationer is sent abroad, the Head of the Department should consult the Director General of Establishments as to whether his period of probation should be extended by a period equivalent to the period of leave allowed to him for the purpose.

4:14 Where an officer is released for service in a public corporation, such service will be counted as part of his obligatory service for discharging his obligations under an Agreement.

5. Agreement for No-Pay Study Leave

5:1 An officer who proceeds for study or training abroad on no pay leave for a period in excess of one (01) month, inclusive of minimum travel time should enter into an agreement to return to service under the Government at the end of his leave and to serve the Government for a period equivalent to twice the full period of no pay leave availed of by him. The Agreement form to be used for this purpose is set out in Appendix 9. Sub-section 4:9 should be observed in regard to this Agreement.

5:2 The penalty for failure to discharge the period of obligatory service will be computed at one third of the officer's new consolidated monthly salary as at time of departure for each month of undercharged obligatory service, and this amount will be shown in the Agreement. (See Section 16 of Chapter XII)

5:2:1 The amount recoverable in the case of an extension granted to an officer at a subsequent date should be on the basis of the salary he would have drawn had he continued to remain in Public Service on such date.

[New Inclusion](#)

6. Allowances, etc. When on Study or Training

6:1 An officer sent abroad on a scholarship sponsored by a Foreign Government or Agency will receive :-

the allowance or stipend granted by the sponsoring Government or Agency, (in foreign exchange) and, if he has been granted full pay leave for the purpose, his full salary and allowances (in local currency in Sri Lanka).

6:2 An officer sent abroad for study or training at the expense of the Government of Sri Lanka, will have his allowances determined by the Controller of Exchange on the basis of allowances permitted for post-graduate studies and undergraduate studies. Any exception requires the approval of the Secretary to the Ministry in charge of the subject of Finance.

6:3 None of these allowances will be payable to an officer who receives subsistence allowance while abroad.

7. Subsistence Allowance - for a Period Not Exceeding One Month Inclusive of Minimum Travel Time

7:1 "Subsistence Allowance" will be payable to an officer travelling abroad on duty who has been granted duty leave under Sub-section 13:1 of Chapter XII for any of the purposes described therein, for a duration of stay not exceeding one (01) month, at the rates fixed by the Secretary to the Ministry in charge of the subject of Finance from time to time.

7:2 An officer who attends any such seminar in a capacity other than as a representative of the Government will not be entitled to any of these allowances.

8. Subsistence Allowance for a Period Exceeding One Month Inclusive of Minimum Travel Time

Where the duration of the official business exceeds one (01) month, a commuted allowance should be fixed in consultation with the Secretary to the Ministry in charge of the subject of Finance from time to time.

9. Warm Clothing Allowances and Advances

The warm clothing allowance and/or advance, payable to an officer who proceeds to a temperate climate for purposes of study or training or on duty is as follows: -

9:1 A warm clothing allowance of the rupee equivalent of £75 is payable to an officer who is sent abroad on duty, which for this purpose is inclusive of any purpose mentioned in Section 1:1.

9:1:1 A further sum not exceeding Rs. 2,000.00 may be granted by the Secretary as an advance subject to the conditions stipulated in Sub-section 9:7. An advance of Rs. 2,000.00 may also be paid to an officer proceeding abroad for purposes other than duty.

9:2 The Chief Justice and a Minister will be entitled to 150% of the allowance referred to in 9:1.

9:2:1 The Secretary may grant an officer an advance in a further sum not exceeding the amount of the warm clothing allowance subject to the conditions indicated in Sub-section 9:7.

9:3 The warm clothing allowance is payable to an officer travelling on duty, only if the terms of the award do not contain provisions for a warm clothing allowance. If such terms contain provisions for a warm clothing allowance which is less than the amount of the warm clothing allowance, the difference is payable out of Government Funds.

9:4 Not more than one warm clothing allowance and one advance should be granted to an officer within a period of five (05) years.

9:5 If an officer has received a warm clothing allowance in respect of a journey financed by a Foreign Agency, that warm clothing allowance should be taken into account for the purpose of Sub-section 9:4.

9:6 The officer should furnish a certificate, as early as possible, to the effect that the amount of the warm clothing allowance and/or advance has been spent on items of warm clothing required for his stay abroad. The Secretary may at his discretion call for receipts.

9:7 The following conditions will apply in respect of an advance granted under this Section:

9:7:1 Interest should be charged as in the case of a salary advance granted for other purposes (See Chapter XXIV).

9:7:2 Re-payment should be made over a period not exceeding thirty six (36) months.

9:7:3 Recovery of the first installment should not be postponed beyond six (06) months from the date of payment of advance or beyond the date of return of the officer to the Island whichever is earlier.

9:8 For the purpose of these rules, countries with a "temperate climate" are—
all countries in the Northern Hemisphere North of latitude 35°N

all countries in the Southern Hemisphere South of latitude 30°S.
all places situated at an elevation of 5000 ft., above sea level.

9:9 This section will not apply to a public officer who is governed by the provisions of the Sri Lanka Overseas Service Minute.

10. Procedures to Be Followed in Granting Approval for Public Officers to Travel Abroad

10:1 A Public Officer who intends to travel abroad for any of the purposes specified below, should obtain permission in terms of the schedule given at the end of this Section, prior to departure.

- (a) For study or training or on a scholarship, on full pay or no pay.
- (b) For participating in a conference or seminar at the invitation of a Foreign Government, International Agency or a Foreign Organization.
- (c) For any official purpose other than on appointment to a Sri Lankan Foreign Mission.
- (d) To proceed as a member of a sport or cultural team representing Sri Lanka.
- (e) On a travel grant received from any Foreign Government, International Agency or a Foreign Organization.
- (f) On release to accept any assignment in a foreign country.

10:1:1 In the application for such leave, the full period of leave required for the purpose should be indicated inclusive of the dates of departure and return.

Any extension of such leave requires similar approval to be obtained on a timely application which sets out inter alia the reasons for

- (a) the extension and
- (b) failure to envisage its need at the time of the original application.

10:2 Where permission is sought to accept an invitation from a Foreign Government or a Foreign Agency, unless such invitation is one extended to a distinguished personality in the fields of Art, Science or in a professional sphere by a Foreign Agency or other Institution, such invitation should have been, in the first instance offered to the Government of Sri Lanka, and the officer in respect of whom the application is made, should indeed be the nominee of the Government of Sri Lanka. The invitation or the formal letter of award should be attached to the application.

10:3 An application in respect of an officer leaving the country should be sent at least ten (10) days before the due date of the officer's departure, and in the case of a scholarship etc., ten (10) days before the date on which the nomination is expected to reach the awarding authority.

10:4 In respect of an officer proceeding abroad for such purpose as study or training, scholarship, seminar or workshop awarded by a sponsoring Foreign Institution, the application perfected as in Appendix 16, should be addressed to the Secretary to the President/ Secretary to the Prime Minister/Secretary to the appropriate Ministry/Secretary to the Provincial Governor by the Secretary to the Ministry/Chief Secretary to the Provincial Council as appropriate. An additional copy of the application should be forwarded to the Director General of Foreign Resources.

10:5 In respect of an Officer referred to in Sub-section 10.1 above, who is specifically nominated by a Minister to proceed abroad at Government expense for purposes such as participating in an international conference and discussing and negotiating for any international agreement, the application perfected as in Appendix 16, should be forwarded by the Secretary to the Ministry/Chief Secretary of the Provincial Council as appropriate, to the Secretary concerned under 10.4 above.

10:6 When a team of representatives is participating in a foreign tour, in case any single member is required to obtain the prior approval of His Excellency the President, permission of His Excellency the President should be obtained for all members of the team at one and the same time. Moreover, in the case of such a team of representatives, permission should be obtained from the Prime Minister/Minister/ Governor as the case may be, as a team at one and the same time. In such a case, coordination of such procedures should be done by the Ministry where the leader of the team is working, or by the Ministry in charge of the subject, whichever is most appropriate. In the case of discussions and agreements to be concluded for the purpose of obtaining foreign aid for the Government of Sri Lanka, the Ministry of Finance and Planning shall be the coordinating Ministry.

10:7 As soon as permission is granted by His Excellency the President/ Honourable Prime Minister/ Honourable Minister/ Honourable Governor for a foreign tour as referred to in Sub-section 10.5 above, particulars pertaining to the officer's foreign tour, together with a copy of the service agreement he has entered into with the Government where appropriate, should be furnished by the Secretary to the Ministry/Chief Secretary of the Provincial Council, to the administrative authority of the Service to which the officer belongs.

Examples

In the case of an officer in the Sri Lanka - Administrative Service	- To the Secretary of the Ministry in charge of the subject of Public Administration
In the case of an officer in the Sri Lanka Planning Service	- To the Secretary of the Ministry in charge of the subject of Planning

In the case of an officer in the Sri Lanka Engineering Service	- To the Secretary of the Ministry in charge of the subject of Public Administration
In the case of an officer in the Sri Lanka Scientific Service	- To the Secretary of the Ministry in charge of the subject of Public Administration
In the case of an officer in the Sri Lanka Accountants' Service	- To the Deputy Secretary of Treasury
In the case of an officer of the Combined Services	- To the Director General of Combined Services

10:8 A Public officer proceeding abroad for any purpose such as spending a holiday, going on a pilgrimage or to obtain medical treatment or for any personal matter, should have his leave approved under the provisions of Section 23 of Chapter XII. No-pay leave abroad for study and / or employment abroad should be approved under the provisions of Section 16 of Chapter XII. Even in such a situation, a Head of Department or a higher officer should obtain permission to leave the country as specified in the schedule.

10:9 The Secretary to the Ministry/ Chief Secretary of the Provincial Council and the Head of the Department should satisfy themselves that the appropriate permission to leave the country has been obtained before officers in their Department / Ministry are granted leave to proceed abroad.

10:10 A copy of the letter approving leave to the officer should be forwarded to the Department of External Resources.

10:11 In the case of officers who come under Part I and Part II of the Schedule, their application for leaving the Island shall be submitted to the Minister in charge of the subject or to the Non - Cabinet Minister or to a Deputy Minister who had been delegated by the Minister for approval of such application prior to submitting it either to His Excellency the President or to the Honounrable Prime Minister.

11. Class of Travel

11:1 By Air - All Officers shall travel in Economy class.

1:2 By Sea -

11:2:1 First Class: An officer holding a post of which the initial salary is not less than Rs. 22,935.00 per month or an officer who receives a salary which is Rs. 28,095.00 or higher.

12. Mode of Travel

The mode of travel, whether by air or sea, will be determined on instructions given from time to time by the Ministry of Finance and Planning.

13. Transport of Unaccompanied Baggage

13:1 The expenses of transporting by sea the essential personal effects forming part of the unaccompanied baggage of an officer who travels abroad on study or training, on duty or on full pay study leave will be met from Government funds (unless it is met by the sponsoring authority in the case of Scholarships, etc.) in cases where:-

the officer travels by air;

and the period of duty or study leave exceeds six (06) months ;

and the baggage is shipped prior to or within one (01) month of the officer's departure at either end.

13:2 **Insurance:-** Marine insurance premium will be reimbursed up to the limits given below:-

	<i>Insurance Premium Not exceeding Rs.</i>
<i>Officer on Full Pay Study Leave :</i>	
Officer entitled to First Class Sea Passage	1,500.00
Others	750.00
<i>Officer and family travelling on first appointment, retirement or termination of service (Other than a disciplinary matter)</i>	
<i>Officer and family travelling</i>	
Officer entitled to First Class Sea Passage	5,000.00
Others	3,000.00

13:3 An officer should make his own arrangement for insurance. A claim for reimbursement should indicate the amount for which cover has been taken and the premium paid, and should be accompanied by a certified statement of the articles insured and the certificate of insurance and/or receipt from the Insurance Corporation/ Company.

13:4 For purposes of these rules " essential personal effects " include clothes, books, household linen and equipment such as used kitchen utensils, crockery and cutlery to the following limits :-

An officer entitled to first class sea passage	50 cubic feet
Others	30 cubic feet

13:5 The rules in this Section will not apply to a public officer governed by the provisions of the Sri Lanka Overseas Minute.

14. Insurance - Air Risks

14:1 A person proceeding abroad at Government expense on duty or full-pay study-leave, who insures himself against air risks may be reimbursed the insurance premium provided that it is obtained from the Insurance Corporation or Sri Lanka National Insurance Corporation and subject to the following limits:-

	<i>Rs.</i>
Minister, Deputy Minister and Member of Parliament	500,000.00
Officer drawing a salary of Rs. 30,175.00	300,000.00
Officer drawing a salary below Rs. 30,175.00	150,000.00

14:2 An officer who proceeds abroad on full pay leave at the expense of a Foreign Agency may be reimbursed the insurance premium in terms of Sub-section 14:1 if it is not met by the Sponsoring Agency.

14:3 An officer who desires cover in excess of the limits specified above should obtain the extra cover at his own expense.

15. Medical Examination

15:1 An officer or a government scholar proceeding abroad should submit himself before departure to a medical examination by a special Medical Board, for the purpose of determining fitness to undergo the course of training or study under the climatic and other conditions of the country to which he is proceeding.

15:2 Application for the appointment of a Medical Board in such cases should be made to the Regional Director/Director General of Health Services with at least four (04) weeks' notice and stating the nature, the duration of the training and the country where it is held.

15:3 If a special medical report not covered by the standard form used for a Medical Board report and X-Ray Photograph, etc. are required, they should be obtained from a Government Hospital prior to examination by the Medical Board. The fees for the examination, medical report, X-Ray photographs etc., will be payable by the Government of Sri Lanka, if they are not met by a Foreign Agency.

15:4 If the period between the date of the medical examination and the date of departure exceeds two months or if the officer/scholar falls ill during the period between the date of the examination and the date of his departure an application should be made to the Regional Director/Director General of Health Services for a fresh Medical Board.

**Schedule
(Section 10)**

Part I

Officers required to obtain approval of His Excellency the President

- Secretary to the President
- All officers of the President Secretariat
- Secretary to the Cabinet
- All officers of the Cabinet office
- Secretary to the Prime Minister
- Secretaries of Minister
- Secretary General of Parliament
- Chief Secretaries of Provincial Councils
- Chairman and Members of all Commissions appointed in terms of the Constitution
- Chairman of Public Corporations, Statutory Board and Authorities appointed by His Excellency the President
- Chancellors of Universities
- Vice Chancellors of Universities
- All officers of Ministers, Departments, Corporations and other Institutes directly under his Excellency the President
- All public officers appointed by His Excellency the President not otherwise specifically mentioned above

Part II

[Revision](#)

Officers required to obtained approval of the Hon. Prime Minister

- Secretary to the Leader of the House
- Secretary to the Chief Government Whip
- All Parliamentary Staff other than the Secretary General
- Additional Secretaries of Ministries
- District Secretaries/ Government Agents
- Head of Departments
- Secretaries to Governor
- Chairman of Public Corporations, Statutory Boards and Authorities and of governing boards of Public Companies whose assets are, for the most part, owned by the State (other than the Chairman mentioned in Part I of this Schedule)
- Vice Chairman of the above Institutions
- Working Directors of the above Institutions
- All other public officers of staff/ executive level (other than those employed in Provincial Councils and Local Government Institutions) and officers in Public Corporations/ Statutory Boards/ Companies whose assets are for the most part, owned by the State.

Part III

Officers required to obtain approval of the relevant Minister

All other public officers (other than those serving in Provincial Councils and Local Government Institutions) and officers in Public Corporations/ Statutory Boards and Companies whose assets are for the most part, owned by the state (ie. Officers below staff/ executive level)

Part IV

Officers required to obtain approval of the relevant Governor

Offices serving in Provincial Councils and Local Government Institutions other than those listed in any other part of this Schedule. (including Secretaries of Provincial Ministries)

CHAPTER XVI
HOLIDAY TRAVEL

1. Entitlement
 - 1:1 Annual Quota
 - 1:2 Class of Travel
 - 1:3 Families
 - 1:4 When Both Spouses Are Public Officers
 - 1:5 Legally Separated Spouses
2. Application for and Issue of Warrants
3. Unused Warrants and Tickets
4. Misuse of Warrants and Tickets
5. Records and Accounting Procedure

CHAPTER XVI

HOLIDAY TRAVEL

1. Entitlement

“**Entitlement**” in this Chapter means the class of travel and the annual quota of warrants to which a public officer is entitled for travel, on the Sri Lanka Government Railway.

1:1 Annual Quota:- A public officer in a Government Department other than the Railway is entitled to the following quota of holiday warrants in each financial year for journeys between any two stations of the Railway :-

An officer appointed to a permanent post in the Public Service: three warrants for double journeys or six warrants only for single journeys. (e.g. three sets)

A temporary officer, who draws a monthly salary and has completed one (01) year’s satisfactory service, irrespective of the fund from which the salary is paid : one double journey or two single journeys (i.e. one set);

An officer on daily pay, who is eligible to get casual leave or a casual officer, irrespective of the fund from which his/her salary is paid : one double journey or two single journeys (e.g. one set);

A pensioner who is re-employed in the Public Service and members of his family : three double journeys on the same terms and conditions as applicable to other public officers ;

A pensioner and members of his family : two double journeys (e.g. two sets).

[Revision](#)

1:1:1 A warrant issued for a single journey may not be exchanged for a ticket for a double journey upon payment of the difference in fares.

1:1:2 Dating:- A warrant must be dated with the date of issue before it is issued. Each warrant will be reckoned against the financial year of the date of issue.

1:1:3 For part of a year:- The number of sets of holiday warrants which may be issued to an officer in the financial year in which he is appointed to the permanent establishment should be proportionate to the number of months remaining in that financial year, e.g. an officer eligible for three sets who is appointed in or after the eighth month of any financial year should be issued only one set of warrants.

1:1:4 The number of sets of holiday warrants which may be issued to an officer who will be retiring in the course of a financial year should be proportionate to the number of months served in that financial year up to the date of his actual retirement, e.g. an officer eligible for three sets who retires from the service before the fifth month of any financial year should be issued only one set of warrants and if he retires before the ninth month, only two sets.

1:1:5 **Interdicted Officers:-** An officer under interdiction should not be given holiday warrants during or in respect of the period of interdiction unless and until he is reinstated in office.

1:2 *Class of Travel:-* The class of accommodation to which an officer is entitled is the same as in Section 17 of Chapter XIV.

1:2:1 An officer entitled to travel in a particular class may obtain a ticket for a higher class on payment of the difference of the fare in cash. He may also obtain warrants for travel by a class lower than that to which he is entitled.

1:2:2 An officer entitled to travel by first or second class is entitled to sleeping berth accommodation, subject to the availability of such accommodation and to the Railway rules in regard to the provision of such accommodation.

1:2:3 An officer entitled to travel by first class is eligible for accommodation in an air-conditioned Saloon or Observation Saloon when available, subject to the Railway rules in regard to the provision of such accommodation. The warrant should carry an endorsement at the top right-hand corner "For Air-Conditioned Travel" or "For Observation Saloon Travel" and the words "Sleeping Car Tickets" in the warrant should be deleted and the words "Air-conditioned Tickets" or "Observation Saloon Tickets", as the case may be, substituted.

1:3 **Families:-** Each member of the family of a permanent officer has the same entitlement to railway warrants as the officer himself.

1:3:1 "Family" for this purpose means the spouse, and children dependent on the officer.

1:3:2 An officer who is unmarried or is a widower or widow, may be issued warrants for a father/mother and/or brother/sister actually dependent on him, each of them receiving the same entitlement as defined in Sub-section 1:1 above, subject to the total number of warrants issued to all such dependents being limited as follows :-

An officer appointed to a permanent post in the Public Service: three sets or six single warrants.

1:3:3 Only one officer may obtain the entitlement under 1:3:2, in respect of any one family.

1:3:4 Dependence means regular and substantial dependence on the officer which is to be determined by the Head of the Department, on the applicant satisfactorily establishing that the major responsibility of maintenance falls on the officer in that the officer lives with the father/mother, brother /sister and there being adequate proof of fairly regular remittances in their favour;

Possession of movable or immovable property; the value and income derived therefrom; the question of whether there is no other member in the family in the Public Service or elsewhere capable of supporting the father/mother, brother /sister will affect the question of dependence.

This concession will not ordinarily be granted if the father or mother or father and mother jointly are in receipt of an income of Rs. 300.00 a month or over, or if the brother/sister is employed. The family circumstances should be reviewed annually by the Head of the Department, or a responsible officer acting on his behalf, to see whether the concession should be continued.

1:3:5 The term “sister” does not include a widowed sister.

1:3:6 A step mother, step father or a step child not dependent on the officer is not entitled to holiday warrants. An adopted child should be given holiday warrants only if the Head of the Department is satisfied that the adoption is bona fide.

1:3:7 For the financial year in which an officer appointed to a permanent post in the Public Service marries, he may be issued one set of holiday warrants for the spouse for each complete period of four (04) months or a fraction thereof remaining in that year as at the date of the marriage, provided that any sets so issued for the spouse together with any sets already issued for the officer's father /mother, brother/sister, earlier in the year under Sub-section 1:3:2 should not exceed his total entitlement for that year.

1:3:8 When an officer is granted leave abroad, his family remaining in Sri Lanka will be entitled to holiday warrants in terms of Sub-section 1:1, and the officer himself may be allowed holiday warrants upon his return to Sri Lanka.

1:4 When both spouses are Public Officers- If each of them is entitled to warrants for himself/herself, and one or both are entitled to warrants for their spouses, one or both may opt for their entitlement as a spouse instead of their entitlement in their own right. This option should be exercised at the beginning of each financial year and will be irrevocable during that year.

Example

If the husband is entitled to First (1st) Class travel and one set of warrants and the wife to Second (2nd) Class travel and three (03) sets of warrants, the option cannot be exercised to obtain the advantages of both. For instance the wife cannot opt to

receive warrants for First (1st) Class travel while retaining at the same time her right to three (03) sets of warrants.

1:4:1 An officer may not receive both his own entitlement as well as his entitlement as a spouse, but only one of them.

1:4:2 If the husband and wife are both temporary officers or on daily pay, and each of them is entitled to a different class of travel, the higher of the two classes may be allowed to both for any journey on which both husband and wife travel together. When one travels alone, he/she will be entitled only to the class for which he/she is eligible in his/her own right. A child of a temporary or daily paid officer is not entitled to holiday warrants.

1:4:3 The above provisions will apply to a public officer whose spouse is employed in a Local Government Institution or a Public Corporation, where he is entitled to Holiday Warrants.

1:5 **Legally Separated Spouses** : A legally separated spouse will be treated as an unmarried person. When he applies for a warrant he should declare the fact of separation. A child of such parents will receive the entitlement only of the parent in whose legal custody he is.

2. Application for and Issue of Warrants

2:1 **Form of Application:-** Application for a holiday warrant must be made on form General 21 by the officer to the Head of his Department. An application for a warrant for an officer's family must be accompanied by a certificate that the persons named are entitled in terms of these regulations to the warrants applied for.

2:2 *Where both spouses are Public Officers:-* Applications, whether from the husband or the wife, for railway warrants for themselves or their children should be made to the Head of the Department in which the husband serves.

2:3 **Children:-** A holiday warrant must not be issued for a child under three years of age, and a warrant for a half ticket only must be issued for a child over three but under twelve (12) years.

2:4 A separate warrant must be issued for each separate trip even though outward and inward trips form part of the same journey.

2:5 Each warrant should specify the date of travel; the interval between the date of issue and the date of travel should not exceed fourteen (14) days, subject to the exception in Sub-section 2:7.

[Revision](#)

2:6 A warrant may, however, be utilized within seven (07) days before or seven (07) days after the "date of travel" specified in the warrant.

[Revision](#)

2:7 Where accommodation can be reserved in advance (e.g. in a sleeping car, observation saloon, air-conditioned coach, etc.) a warrant issued for the return trip of a journey may specify a date of travel which is not later than the 28th day from the date of issue, to enable the holder to reserve accommodation for the return trip at the time he reserves accommodation for the outward trip.

[Revision](#)

2:8 Travel on railway warrants will be subject to Railway Regulations.

3. Unused Warrants and Tickets

3:1 An unused warrant must be returned to the issuing officer not later than three days after the last date for which it is valid.

3:2 An unused ticket must be returned to the officer issuing the warrant not later than the day after the issue.

A ticket issued in exchange for a warrant and not used is reckoned as having been used. A fresh warrant may, however, be issued in lieu of an unused ticket for which credit has been obtained from the General Manager of Railways under Sub-section 4:2 of Chapter XIII of this Code. Sub-Section 4:1 of the same Chapter, requires endorsement of an unused ticket by the Officer in charge of the Station, without which no credit will be allowed by the General Manager of the Railway on an unused ticket issued on a holiday warrant. In such a case, a cancellation charge, if any, payable to the Railway, should be met by the officer.

3.3 **Partial Usage:** - A warrant must not be made out for more than the number of individuals actually travelling or beyond the points to which they intend to travel. Should, however, owing to unforeseen circumstances, a less number of individuals than the number authorized on the warrant are travelling, the holder of the warrant must endorse on the face thereof the number of individuals actually travelling and sign it. The officer on whose application the warrant is issued, is responsible for bringing this requirement to the notice of the holder of the warrant, if the officer himself is not the holder.

3.4 No refund will be allowed in respect of a holiday warrant.

4. Misuse of Warrants and Tickets

4:1 *A ticket is not transferable:-* A ticket issued in exchange for a warrant can only be used by the persons whose names are entered on the warrant and within the limits of distance and time specified therein.

4:2 The misuse of a ticket or warrant, either by transferring, or using beyond the date of its validity or on a portion of the railway over which it is not valid, will render the user liable to prosecution and to disciplinary action.

4:3 The misuse of a ticket or warrant by the dependant of a public officer will render that dependant liable to loss of the next three sets of holiday warrants to which he would become entitled and, under any circumstance, a warrant will not be issued to him for a period of one (01) year from date of default. A dependant of a public officer entitled to only one set of warrants, will be deprived of a set in the next financial year.

4:4 The misuse of a ticket or warrant by a public officer will, if the offence is not sufficiently serious to merit dismissal, render the officer liable (in addition to any other punishment) to the loss of the next three sets of holiday warrants to which the officer would become entitled. A warrant should not be issued for a period of one (01) year from the date of default. A public officer entitled to one set of warrants will be deprived of a set in the next financial year.

5. Records and Accounting Procedure

5:1 It is the duty of the Head of the Department to keep an accurate and complete Register of holiday warrants issued to each officer of the Department.

5:1:1 **Transferred Officers:-** When an officer is transferred to another department, the Head of the Department from which the officer is transferred must inform the Head of the new Department, of the Holiday Warrants issued to the officer in the current financial year. The number and date of the letter conveying the information must be noted in the register kept in the Department from which the officer is transferred, and the information conveyed must be posted in the register kept in the Department to which he is transferred.

5:2 **Rendering of Bills:-** The Railway must send weekly to the Head of Department liable for payment, the warrants for which tickets have been issued, together with a bill in duplicate on form Railway AF. 204, which should bear on the right-hand top corner the total amount due and the serial number of the bill register kept by the Railway.

5:2:1 The Warrants chargeable to funds deposited with Government (see Sub-section 2:2 of Chapter XIII) should be sent separately in the same manner as other warrants.

5:2:2 A warrant issued by a local authority should be sent to the local authority concerned in the same manner.

5:3 **Payments:-** On receipt of the warrants and bills from the Railway, the Head of the Department must cause all the warrants and bills to be carefully checked and, in the case of holiday warrants, also compared with the register prescribed in Sub-section 5:1. The correctness of the rates charged by the Railway should be checked with the Passenger Fares Book or the Goods Rate Book as the case may be; it should be sufficient if only a test check is carried out and the serial numbers of the warrants and bills so checked are noted in a Register maintained for the

purpose. "A" Departments must then bring their bills to account in their monthly summaries. Other Departments must return the original bills to the Railway with a transfer order on form General 122 specifying the head, programme, project, object code and apportionment to which the amount is chargeable; and the Railway must then bring them to account in the monthly summary and intimate all the debits to the Departments concerned. The transfer order must, as far as practicable be used as a schedule. The full amount of each bill must be brought to account at one and the same time.

5:3:1 It is not intended that the settlement of bills should be made weekly. It would suffice if all the bills received in one (01) month are included in the departmental summaries or transfer orders (as the case may be) for that month.

CHAPTER XVII
CONCESSIONARY SEASON TICKETS

1. Eligibility
2. Surrender of Season Ticket and Period of Non-use
3. Workmen's Tickets
4. Misuse of Tickets

CHAPTER XVII

CONCESSIONARY SEASON TICKETS

1. Eligibility

1:1 A permanent officer entitled to first, second and third class travel on the Railway under Section 17 of Chapter XIV, can be issued a concessionary season ticket for travel between his home and place of work. The tickets should be to the closest Railway Station at either end and the officer may be issued concessionary season tickets at his option to travel in a class lower than that to which he is entitled. However, he is not entitled to obtain concessionary season tickets for travel by any class higher than to which he is entitled.

1:2 A temporary officer who has completed one year's satisfactory service and a daily paid and casual officer entitled to casual leave may be allowed the concessions appropriate to their class of travel.

1:3 A concessionary season ticket for travel between the residence and place of work is issued for three months, where the distance is less than 20 miles. A monthly ticket may be issued where the distance is more than 20 miles. Only a monthly ticket is issuable to a temporary, daily paid or casual employee.

2. Surrender of Season Ticket and Period of Non-use

2:1 A concessionary season ticket should be surrendered to the Head of Department when an officer is transferred from one station to another or when he retires or proceeds on leave preparatory to retirement or in other circumstances necessitating absence from office for an appreciable period (e.g. interdiction, leave exceeding two (02) months, etc.). The Head the of Department should transmit the surrendered ticket to the General Manager of Railways claiming a refund of the amount due for the period of non-use.

2:2 Of the total amount available as refund, the amount due to the Government will be credited to the Consolidated Fund, (Head II Sundries), in the case of an officer paid from General Estimates; and to the appropriate item of Advance Account or Loan Fund in the case of one paid from Advance Account or Loan Fund. The balance will be refunded to the officer.

2:3 The General Manager of Railways will authorize the refund to be made at the Railway Station at which the officer obtained the ticket and the officer will be informed by him accordingly. No refund will be made for unused periods of monthly tickets.

3. Workmen's Tickets

3:1 A workman's ticket at a special rate may be issued to a daily paid or monthly paid labourer employed in Colombo and working under " factory" conditions.

4. Misuse of Tickets

4:1 A Season Ticket and a Workmen's Ticket should only be used by the officer in whose name the ticket is issued and within the limits of distance and times specified on the ticket. This ticket is not transferable. The holder of a Concessionary Season Ticket should have in his possession the special folder issued by the Department of Railway when such ticket is used for travel by railway.

4:2 Any misuse of this ticket will result in the concession being immediately withdrawn. The officer will be debarred from enjoying this concession for a period of at least one (01) year, in addition to any penalties that may be imposed under the rules of the Railway Department and by Departmental disciplinary action.

4:3 The General Manager of Railways will report to the respective Head of the Department for disciplinary action in any case of misuse of a concessionary season ticket or workmen's ticket.

CHAPTER XVIII
OFFICIAL RESIDENCES

1. President, Prime Minister and Speaker
2. Chief Justice

CHAPTER XVIII

OFFICIAL RESIDENCES

1. Maintenance

1:1 The Official Residences of the President, the Prime Minister and the Speaker should be maintained and kept in good condition throughout, at the cost of the Government. They should also be furnished and supplied with plates and table ornaments, crockery, glass, cutlery and kitchen utensils to a reasonable amount at Government expense.

1:2 **Replacement of Broken Items:-** All furniture and effects supplied at the public expense should be kept whole, and any article lost or damaged otherwise than by fair wear and tear during the occupation of these residences by any person should be made good at his expense.

1:3 Inventory and Inspection

1:3:1 **President's and Prime Minister's Residences:-** An accurate inventory of all furniture, effects and other items provided at public expense at the residences of the President and the Prime Minister, should be made and kept by the Director of Government Supplies, who should, at least once in every two (02) years, inspect the furniture and effects and prepare a list of all deficiencies which the person responsible should there upon make good at his own expense. "Fair wear and tear" may be held to include breakages or deficiencies of crockery or similar small or fragile articles, but a reasonable limit must be placed upon the amount allowed in this respect, based as far as possible upon previous experience. Whenever a President or Prime Minister vacates office, a similar inspection should be made.

1:3:2 **Speaker's Residence:-** The Secretary - General of Parliament is responsible for the custody and maintenance of furniture, equipment and other items at the residence of the Speaker. The Director of Government Supplies should, however, maintain an inventory of the furniture, equipment and other items and carry out periodical test checks and an annual verification and report any discrepancies to the Secretary-General of Parliament. The Secretary General of Parliament should provide the Director of Government Supplies with a copy of the inventory and should keep him informed of all additions and deletions. Losses reported by the Director of Government Supplies to the Secretary General of Parliament should be taken up by him with the Speaker.

1:4 **Administration of Votes:-** The provision made in the Estimates for the purchase of furniture, effects and other items for these residences should be administered in accordance with the directions given from time to time by the President, the Prime Minister or the Speaker as the case may be.

Chapter XVIII]

1:5 No rent is recoverable from the President, the Prime Minister, the Speaker and the Chief Justice in respect of their official residences.

2. The Chief Justice's Residence

2:1 The Chief Justice should pay one percent (1%) of his salary as rent for the furniture in his official residence.

2:2 The provisions of Sub-sections 1:2 and 1:3:1 will apply to the residence of the Chief Justice.

CHAPTER XIX

GOVERNMENT QUARTERS

1. Classification
2. Construction of Quarters
3. Grading of Quarters
4. Allocation
 - 4:1 Eligibility
 - 4:2 Criteria for Selection
 - 4:3 Method of Selection
 - 4:4 Housing Committees
5. Rent
6. Conditions of Tenancy
7. Penalties
8. Maintenance of Inventories
9. Recovery of Possession

CHAPTER XIX

GOVERNMENT QUARTERS

1. Classification

The term "Government Quarters" includes any type of accommodation at the disposal of the Government and allocated for the purpose of residence. All Government Quarters fall under the classification "Scheduled Quarters" or "General Service Quarters".

1:1 *Scheduled Quarters*:- Those assigned to a particular post or grade within a Department.

1:2 *General Service Quarters*:- Quarters which are not Scheduled Quarters.

2. Construction of Quarters

2:1 The construction of General Service Quarters outside the city of Colombo should be under the direction of the Government Agent/District Secretary of the relevant District, who should, in consultation with the local Heads of Departments, submit, from time to time, to the Secretary to the Ministry in charge of the subject of Public Administration, proposals for the construction of General Service Quarters to meet the requirements of Public Officers stationed within his District. The construction of General Service Quarters within the city of Colombo is a function of the Secretary to the Ministry in charge of the subject of Public Administration.

2:2 The construction of Scheduled Quarters is a function of the particular Department concerned.

2:3 All Government Quarters should conform to the type of plan given in Section 2:3:1 appropriate to their grade.

2:3:1

<i>Type of Plan No.</i>	<i>Grade</i>	<i>Area in sq. ft.</i>
57588	1	403
57587	2	552
57586	3	732
57068	4	1,326
57063	5	1,699
57512	5A	1,991

3. Grading of Quarters

All Government Quarters will be graded in relation to the categories of officers, who are eligible for them,

Grade 5A - Officers whose salary exceeds Rs, 30,175.00;

Grade 5 - Staff Officers whose monthly salary does not exceed Rs.30, 175.00;

Grade 4 - Public Management Assistants and other officers of parallel grades whose monthly salary exceeds Rs. 18,750.00;

Grade 3 - Public Management Assistants and other officers of parallel grades whose monthly salary exceeds Rs.16,310, but does not exceed Rs. 18,750.00;

Grade 2 - Public Management Assistants and other officers of parallel grades whose monthly salary does not exceed Rs. 16,310.00;

Grade 1 - Officers in Primary Grades whose monthly salary does not exceed Rs. 14,360.00.

4. Allocation

General Service Quarters and, as far as possible and applicable, Scheduled Quarters should be allocated on the following principles:-

4:1 **Eligibility** - The following categories of officers will not generally be entitled to General Service Quarters, unless any quarters are available after the demands of the other officers have been met.

An officer eligible for Scheduled Quarters;

A field officer who needs not be based at his Headquarters Station;

A single officer (i.e., a bachelor, a widower with no children, a legally separated officer not having custody of any children;

An officer who owns, or whose spouse or minor child owns a house within a certain radius of his station (to be determined by each allocating authority in relation to transport facilities, etc., in different districts);

A non-transferable officer; and

A married officer whose family is not residing with him, unless the officer intends to bring his family into residence in the quarters on it being allocated

to him. (In such an event a condition of the allocation should be that he will bring his family into residence within a stipulated period; he should be ordered to vacate, if he fails to do so).

4:1:1 An officer will not be considered eligible for a grade of quarters higher than that appropriate to him in terms of Section 3.

4:1:2 An officer may be allocated quarters of a grade not appropriate to him if there is no other eligible applicant.

4:2 Criteria for Selection:- Subject to conditions prevailing in each district :-

Period of time on the waiting list,

Number of children (sons under 18 years of age and unmarried daughters only).

Living conditions, if particularly bad, and the distance from place of work of an officer living in a rented house,

Whether the officer's normal duties require him to reside in close proximity to his place of work, or be available regularly or frequently at night,

Whether the officer is permanent or temporary,

A serious physical impediment, which makes it difficult for an officer to walk or travel,

All other things being equal, seniority will be the deciding factor.

4:2:1 The Allocating Authority should devise a scheme of points resembling the one in Appendix 18, to give effect to these considerations.

4:2:2 Government Quarters falling under the Grades 5A, 5, 4, 3 and 2 situated in Colombo and controlled by the Secretary to the Ministry in charge of the subject of Public Administration will be allocated according to the order in the waiting list maintained in respect of each grade of quarters.

4:3 Method of Selection:- A standard application form should be devised by the Allocating Authority so as to elicit information on all the matters to be considered in the selection as listed above and any other specific matters applicable to each region. They should be made available to all Departments and Sub-Offices in the district.

4:3:1 An application should be made through the Head of the Department or Sub-Office where an officer is employed and it will be the responsibility of that Head to certify the accuracy of the particulars furnished.

4:3:2 The application form should provide for a declaration by the officer to the effect that the particulars furnished by him are correct, and that he is aware of his liability to disciplinary action for making a false declaration.

4:3:3 Every application should be registered on a "Waiting List" by the Allocating Authority as soon as it is received.

4:3:4 A separate waiting list should be maintained for each different grade of quarters.

4:3:5 Registration should not be made of applications submitted in anticipation of an appointment, promotion, transfer or increase of salary or before an officer actually assumes duties in a new post, grade or station.

4:3:6 When an officer on the waiting list for a particular grade of quarters becomes eligible for quarters of a different grade by virtue of increase in salary, etc., he should apply to have his name transferred to the waiting list appropriate to his new position. He will carry with him the number of points earned by him for the period of waiting on the original waiting list (that is to say that the date of registration on the new list should be the same as the date of registration on the original list).

4:3:7 The points an officer has earned according to the scheme should also be shown on this register and aggregated immediately before any quarters are due to fall vacant.

4:3:8 This register should be made available for inspection before a selection is made so that an officer can ascertain for himself the correctness of the points allotted to him and the particulars registered. It will be his responsibility to bring to the notice of the Allocating Authority any change regarding himself or any wrong information supplied by another applicant.

4:3:9 If an officer refuses to accept quarters allotted to him, he should be placed at the bottom of the waiting list.

4:4 **Housing Committee:-** The Allocating Authority may, if he considers it necessary, constitute and consult a Housing Committee in the matter of making selections.

The Housing Committee may recommend deviations from the point system only where the mechanical application of the system results in a grave and obvious injustice.

4:4:1 The Allocating Authority may deviate from the principles of selection outlined above for very special reasons with the prior approval of the Director General of Establishments.

5. Rent

5:1 Rent for the occupation of Government Quarters will be recovered from the salary of the officer as follows :-

5:2 An officer not entitled to Scheduled Quarters.

5:2:1 *Permanent Quarters* - A married officer - twelve and half percent (12 ½%) of the salary. An unmarried officer - Seven and half percent (7 ½%) of the salary.

5:2:2 *Semi-permanent Quarters* - Whether the officer is married or not, the assessed rent of the quarters.

5:2:3 *Chummeries* - The economic rent in equal shares from each occupant.

5:2:4 *Temporary Quarters, such as tents* - No recovery.

5:3 An officer entitled to Scheduled Quarters

5:3:1 A married officer – ten percent (10%) percent of the salary. An unmarried - officer five percent 5% per cent of the salary.

5:3:2 If in lieu of quarters being provided, an officer is paid a special rent allowance, or is reimbursed the expenditure actually incurred by him on house rent, a recovery should be made from him as mentioned under Sub-section 5:3:1.

5:3:3 Such an officer may opt to forego the reimbursement or special rent allowance referred to in Sub-section 5:3:2 and draw his full salary instead.

5:4 Where husband and wife, both Public Officers are in occupation of Government Quarters; if not entitled to Scheduled Quarters, twelve and half percent (12 ½%) of the salary of the higher paid officer, plus 5% of the salary of the lower paid officer.

[Revision](#)

5:4:1 Where one or both of them are entitled to Scheduled Quarters, ten percent (10%) of the salary of the higher paid officer plus two and half (2 ½%) of the salary of the lower paid officer.

[Revision](#)

5:5 Officers Sharing Quarters - Two or more officers can be allowed to share government quarters at the discretion of the Allocating Authority. Rent to be recovered on the following basis:-

5:5:1 Ten (10%) percent of the salary from each officer sharing the quarters. Rent should be recovered from the Chief Occupant under Sub-sections 5:2:1 or 5:3:1 as appropriate.

5:6 Economic Rent:- If the rent deduction from an officer's salary exceeds the fair economic rent of the quarters allotted to him, by any considerable amount, the permission of the Secretary should be obtained to recover a fixed rent instead of a percentage of the officer's salary. Application may also be made to the Secretary for reduction of rent in the case of quarters of which a portion is used for public purposes. In all such cases, the report of the Chief Valuer should be obtained before the rent is fixed.

5:7 Refusal of Quarters Attached to a Post- When an officer refuses to occupy quarters attached to a post, the rent should be recovered from him as though he was in occupation, unless the Allocating Authority approves of the quarters being occupied by some other officer instead. In such an event, the rent to be recovered should be the rent that was payable by the officer holding the post to which the quarters are attached or by the officer in actual occupation of it, whichever is higher.

5:8 Payment for Water, Electricity and Gas - Any such charges should be paid by the officer.

5:9 At the instances where a public officer occupying a Government Quarters, is released for the service of a project on the requirement of the Government, the rent shall be recovered based on the salary received by him for the post in the project.

5:9:1 At an instance where the officer is released to serve in a project at his own request he shall vacate the quarters occupied by him.

5:9:2 In case where the officer occupies a Scheduled Quarters, he shall vacate the quarters even if such officer is released on no pay to the project on the requirement of the Government.

6. Conditions of Tenancy

6:1 The period of tenancy of all quarters, except the quarters attached to a particular post, will be five (05) years.

6:1:1 An officer who has enjoyed the privilege of occupying Government Quarters in a station for more than half of the full period permitted in this Chapter, would not be eligible to be considered for such quarters in the same station until a period of five (05) years has elapsed from the date of completion of the earlier period of occupation of the quarters.

6:2 Government Quarters may be allocated only to a public officer. A re-employed public officer is not eligible for Government Quarters, and if he/she is in occupation of a Government Quarters at the time of retirement, he/she should vacate them on retirement.

6:3 A Government Quarters may be occupied only by the officer to whom it is allocated and by his wife, children and dependants. No portion of any Government

Quarters may be regularly occupied by any others, without the specific approval of the Allocating Authority.

6:4 Subletting quarters or keeping of paying guests and boarders is prohibited.

6:5 When an officer intends to vacate his quarters, he should give at least one (01) calendar month's notice of his intention to vacate quarters to the Allocating Authority. An officer who fails to give notice will be charged rent for the period between the date of actual vacation and end of the calendar month in which notice was given or the date of occupation by another officer, whichever is earlier. This section will not apply in the case of an officer obliged to vacate quarters by reason of transfer at short notice. In such a case, the Allocating Authority should be informed by the officer, within five (05) days of the receipt of the transfer order.

6:6 An officer allotted Government Quarters should report to the Head of his Department and to the Allocating Authority the date on which he occupies and vacates.

6:7 He should inform the District Engineer, Buildings, or the Head of the Department maintaining the Quarters or the Head of its local office of the date on which he intends to vacate the Quarters, so that the inventories may be checked and quarters taken over before he vacates it. Similar intimation should also be given to the Regional Engineer, Ceylon Electricity Board, in charge of maintenance of electrical installations and equipment and the Authority in charge of Water Supply and Drainage.

6:8 The outgoing occupant will be charged the cost of replacing missing or damaged fittings and any other damage to the Quarters not attributable to fair wear and tear.

6:9 Where two or more officers have been permitted to share Quarters, the officer to whom the Quarters was originally allocated or if both were allocated the Quarters simultaneously, one of them, as may be named by the Allocating Authority, should be held responsible as the tenant of the Quarters for compliance with all the conditions on which the Quarters were allocated. All correspondence in regard to the Quarters should be conducted only with that officer.

6:10 When an officer's service is terminated or if he dies while in service, the Quarters may be retained by him or by his family, as the case may be, up to the end of the calendar month following the calendar month in which the event took place.

6:11 If an officer retired on medical grounds is entitled to leave preparatory to retirement extending beyond the date up to which occupation is allowable in terms of Sub-section 6:10, he may continue in occupation till the end of his leave preparatory to retirement.

Chapter XIX]

6:12 The Allocating Authority may, in very special circumstances, grant an extension of the period of occupation.

6:13 An officer leaving the island on long leave should vacate his Quarters unless there are special reasons for his being unable to do so (i.e., because his family continues to be in occupation, etc.). In such a case the Allocating Authority may consider waiving this condition, taking into account the circumstances of the case. An officer may arrange, with the approval of the Allocating Authority, for the officer acting for him or for another officer to occupy the Quarters during his absence.

6:13:1 When an officer in occupation of Government Quarters, is granted no pay leave to take up an employment abroad, he should, before leaving the Island, deliver vacant possession of such Quarters to the Allocating Authority.

6:14 An officer in occupation of Quarters should inform the Allocating Authority when he ceases to be eligible to continue in occupation, as a result of transfer, retirement, etc. Failure to do so would subject him to the penalties in Section 7, as from the date on which he ceased to be eligible.

6:14:1 The Allocating Authority may permit such an officer to continue in occupation up to the full period of original tenure specified in Sub-section 6:1, provided the Quarters are not attached to a post which the officer has ceased to hold.

6:15 An officer should vacate Quarters at the end of the period of tenure or when ordered to do so by the Allocating Authority.

7. Penalties

7:1 If an officer fails to vacate Quarters when ordered to do so, he should be evicted under the Government Quarters (Recovery of Possession) Act No. 7 of 1969, as amended by Act No.3 of 1971 and Act No.40 of 1974.

7:2 He should be charged for the period he overstays his tenure, a penal rent, a sum equivalent to the current open market rent of the quarters as assessed by the Chief Valuer plus eight percent (8%) of the officer's salary.

7:3 A report in relation to this matter should also be entered in the officer's personal file.

8. Maintenance of Inventory

8:1 An inventory of electrical fittings should be maintained by the Regional Engineer of the Ceylon Electricity Board, if it is not maintained by the Department concerned.

8:2 A similar inventory should be maintained for other fittings and equipment by the authorities responsible for maintaining the Quarters.

8:3 Such an inventory should be checked when an officer vacates Quarters for action under Section 6:8.

8:4 Similar inventories should also be maintained in respect of a government building and a rented or leased building occupied as an office, by the Department concerned, where the electrical or other equipment or fittings have been installed at government expense.

8:5 When a leased or rented building is vacated by the Department occupying it, the Regional Engineer of the Ceylon Electricity Board and the Authority maintaining the building should be given due notice, so that the installations, fittings and equipment installed at government expense could be removed, unless the terms of the lease provide otherwise.

9. Recovery of Possession

9:1 The Government Quarters (Recovery of Possession) Act No.7 of 1969 as amended by Act No.3 of 1971 and Act No. 40 of 1974 provides for the ejectment of any occupant of Government Quarters. The competent authority in relation to Government Quarters under the Act, is the Secretary to the Ministry in charge of the subject of Public Administration, who has delegated his powers to the Director General of Establishments and all Government Agents/District Secretaries and, in appropriate instances, on request, to other Secretaries of Ministries, Heads of Departments or Local Heads of Departments.

9:2 The Director General of Establishments will take action under the Act, in respect of all General Service Quarters under the control of the Ministry in charge of the subject of Public Administration. A Government Agent/District Secretary or a Head of Department will do so, in respect of all Government Quarters, whether scheduled or otherwise.

CHAPTER XX
HOLIDAY BUNGALOWS

1. Bungalows Available
2. Applications
3. Eligible Grades
4. Maximum Period of Occupation
5. Allocation
6. Rent
7. Breakages and Damages

CHAPTER XX

HOLIDAY BUNGALOWS

1. Bungalows Available

The following bungalows, when not required for official purposes, are available to permanent public officers to spend holiday on payment of rent.

1:1 Two Government Bungalows in Nuwara Eliya:- The Old Bungalow, behind the old Railway Station is available to any staff grade officer in the Public Service. The New Bungalow could be obtained by any Public Officer, and three sections, A¹, A² and B of the said bungalow could be obtained, even on individual basis.

1:2 Two Government Bungalows at Diyatalawa above the railway line: Bungalow "A", which is the largest, is available to any staff grade officer in the Public Service. Bungalow "B" close to the Haputale Road is available to any public officer.

1:3 Two Government Bungalows in Bandarawela, at Bindunuwewa Road: available to any public officer.

2. Applications

2:1 Application as in Appendix 19 for bungalows at Nuwara Eliya, Diyatalawa and Bandarawela should be made to the Director General of Establishments. Application for the use of holiday bungalows during the month of December/January, April/May and August/September should be made at least three (03) months in advance.

3. Eligible Grades

Where there is no request by an officer of an eligible category, a Bungalow may be allocated to some other officer.

4. Maximum Period of Occupation

The maximum period of occupation during seasons when these bungalows are in demand will be one (01) week, at other times, they will be available for periods up to one (01) month.

A bungalow will not be available for occupation for more than one (01) month except for very special reasons and with the approval of the Director General of Establishments.

5. Allocation

The applicant must inquire the Director General of Establishments on whether the Bungalow is allocated to him. If allocated, the due rent should be paid to the Chief Accountant of the Ministry of Public Administration and the receipt of payment should be submitted to the Director General of Establishments to obtain the letter of allocation.

Where there is a high demand for a bungalow, applications will be considered on a point system as follows:-

One point for each year of service, in the grade appropriate to the bungalow applied for.

Two points each for the first 2 children and 1 point for the next children up to 6 points.

Two points for an officer, who is regularly on night duty.

Two points for health reasons supported by a medical certificate.

An applicant who has had the use of a holiday bungalow in the preceding three years will take a lower position than others. Other things being equal, seniority will be the deciding factor.

6. Rent

6:1 *Rate* – the rent for occupation is as follows.

Nuwara Eliya (Old Bungalow)	Rs 500.00
Nuwara-Eliya (New Bungalow) A ¹	Rs 1000.00
Nuwara-Eliya (New Bungalow) A ²	Rs 1000.00
Nuwara-Eliya (New Bungalow) B	Rs 750.00
Diyathalawa “A”	Rs 500.00
Diyathalawa “B”	Rs 400.00
Bandarawela - 01	Rs 400.00
Bandarawela – 02	Rs 400.00

Electricity Charges :-

Electricity Charges up to six (06) Units of the Meter reading consumed per day are included in the daily rent. According to the Electricity Board charges, payments for additional units consumed should be paid to the Bungalow keeper before leaving and a receipt should be obtained.

Telephone Charges & Laundry Charges

A receipt should be obtained from the Bungalow Keeper, after making payments in cash for Telephone and Laundry charges as prescribed from time to time.

7. Breakages and Damages

The bungalows are furnished and the officer occupying one must satisfy himself as to the condition of the equipment, and before vacating it, furnish the bungalow keeper a list showing the breakages and damages during his occupancy, the value of which will be recovered by the Director General of Establishments, who will replace such damaged items.

CHAPTER XXI

PROTECTIVE CLOTHING AND UNIFORMS

1. Principles Governing Issue
2. Common Grades
3. Quota
4. Other Grades

CHAPTER XXI

PROTECTIVE CLOTHING AND UNIFORMS

1. Principles Governing Issues

The issue of protective clothing and uniforms is governed by the following general principles.

1:1 Uniforms may be issued to officers whose duties are such that they need to be readily identified with the performance of those duties.

1:2 Protective clothing may be issued to officers whose duties are such that they are performed essentially out-of-doors and cannot be interrupted even under adverse weather conditions;

protective clothing is required in order to prevent their own clothes being soiled or damaged;

they are injurious to health or are otherwise physically dangerous unless performed under the protection of special clothing or other devices such as masks, eye shields, etc.

2. Common Grades

The following grades, which are common to several Departments, should be issued uniforms and/or protective clothing in accordance with the following section, provided they are permanent officers or are temporary officers with at least one year's service, who are likely to be retained for at least another year.

3. Quota

Sanitary Laborers - Blue Drill combination overalls (Shorts) consisting of a pair of shorts with an attached half-sleeved shirt. - 2 pairs per annum.

Drivers of Motor Cars/ Vans/ Jeeps - Two sets of uniforms each consisting of a short sleeved white shirt with a left pocket, white buttons and a tunic collar, and a pair of black trousers should be supplied per year. As an alternative to the pair of black trousers a white sarong may be supplied.

K.K.S. - In attendance on a Minister, Supreme Court Judge and the Arachchi to the Cabinet Office-3 coats, 3 cloths per annum.

In Ministries and Head Offices and in attendance on Government Agents- 2 coats 2 cloths per annum.

Other K.K.S.s - 2 coats.

Watchers - 2 Khaki coats per annum and 1 rain cape and Cap.

Cycle Orderlies - 2 Khaki Coats or Shirts, 2 pairs Khaki shorts, and 2 pairs hose per annum, 2 pairs shoes as an initial issue and 1 pair per annum. Subsequently, 1 Hat once in 2 years. 1 Rain Cape and Cap.

Duplicating Machine Operators - 2 Blue Drill Aprons per annum.

Lorry Cleaners - 1 Rain cape and Cap

4. Other Grades

The nature, quantity and frequency of issue of uniforms and protective clothing to any other Grades of officers should be determined in consultation with the Director General of Establishments.

CHAPTER XXII
WELFARE AMENITIES

1. Financial Provision
2. Mode of Application
3. Priority
4. Inventories, etc.
5. Electricity for Canteens
6. Items of Expenditure not permitted

CHAPTER XXII

WELFARE AMENITIES

1. Financial Provision

Financial provision is made annually for welfare amenities to public officers. This will be allocated among the various Departments by the Director General of Establishments.

2. Mode of Application

An application for an allocation should be made to the Director General of Establishments at least one (01) month before the end of the Financial Year, with the inclusion of following matters among other things.

2:1 The precise purpose for which funds are required and the need and urgency for it.

2:2 The amount required and the makeup of that amount.

2:3 The number of public officers likely to be benefited by it.

2:4 In the case of canteen facilities, whether it is for starting a new service or for a service already in existence.

2:5 If for a service already in existence, the date of commencement of that service, together with a copy of the latest accounts and balance sheet duly audited,

2:6 A report on the existing welfare, recreational or canteen facilities.

2:7 The manner in which any allocation granted during the previous two years was utilized, with an explanation for any under-expenditure.

2:8 Whether the service is to be run by Departmental officers or under contract; if under contract, whether in the case of supply of meals, Department supplies the uncooked provisions to the contractor.

2:9 Where funds are required for the purchase of equipment, a list of the available equipment and the new items proposed to be purchased, with a full explanation of the need for them.

3. Priority

All requests should be placed in an order of priority. Variations in the items listed in the application will not be permitted after an allocation has been granted save in very exceptional circumstances.

4. Inventories, etc.

Equipment supplied by Government should be entered in the Departmental Inventory and verified in accordance with Stores Regulations of Government. Government procedures should be followed with regard to the purchase, accounting losses, breakages, etc. of Stores.

5. Electricity for Canteens

Electricity to a canteen will be supplied from the Votes of the Department concerned and where canteens are run under contract, the tender should be on the basis that electricity will be supplied to the contractor free of charge.

6. Items of Expenditure not permitted

Items for which expenditure may not be incurred against the welfare allocation.

Canteen

Construction and repairs to a canteen building,
Cashier's table,
Table cloth;
Oil and plastic cloth;
Licensing fees;
Lunch carriers;
Equipment to record receipt of cash.

Recreation

Radio, Television, Video Equipment, Radio Cassette, Cassette Recorder, Iron
Washing Machine, Dish Washer, Newspaper:
Recrrrent issue of balls and racquets
Tennis-All equipment except the net;
Recurrent issue of shuttlecock and racquets
Hockey-All equipment:
Football-Jersey, Boots:
Weight-lifting equipment:
Playing card:
Cinema and projector equipment.

General

Mosquito net,

Mirror,

Playground equipment e.g., swing and see-saws

Repairs to furniture,

Notice Board,

Umbrella,

Bed, mattress, pillow,

Cover and bed sheet.

CHAPTER XXIII

SPECIAL CONCESSIONS AND CONDITIONS REGARDING OFFICERS SUFFERING FROM CERTAIN TYPES OF ILLNESSES

1. Special Full pay leave
 - 1:1 Tuberculosis
 - 1:2 Leprosy
 - 1:3 Cancer
2. Leave exhausted
3. Periodic Examinations
4. Congenial Climate and Light Duty
5. Rehabilitation

CHAPTER XXIII

SPECIAL CONCESSIONS AND CONDITIONS REGARDING OFFICERS SUFFERING FROM CERTAIN TYPES OF ILLNESSES

1. Special Full pay leave

A permanent public officer and a temporary officer who has completed one (01) years' service either on monthly pay or daily pay or both and a casual employee who has completed one year's continuous service, suffering from Tuberculosis, Leprosy or Cancer and who is considered by a Medical Board to have a reasonable chance of recovery; may be granted special full pay leave as follows.

1:1 **Tuberculosis** - Special full pay leave for two interrupted periods of four (04) months each, that is, four (04) months in the first instance and after such employee has served for not less than four (04) years after resumption of duty, a second spell of four (04) months.

1:2 **Leprosy** - Special full pay leave for a total period not exceeding twenty two (22) months.

1:3 **Cancer** - Special full pay leave for a total period not exceeding six (06) months.

[Revision](#)

1:4 Special full pay leave up to six (06) months may be granted on recommendation of a Medical Board in the case of similar illness mentioned in sub sections 1:1, 1:2 and 1:3, above and for post operation care, if recommended by a Medical Board.

1:4:1 In approving such leave all the provisions mentioned in this chapter should be applied.

2. Leave exhausted

Such special full pay leave should be granted only after the officer has exhausted all the full pay leave to which he is ordinarily entitled and provided the requirements in sub sections 2:1 to 2:5 are satisfied.

2:1 On receipt of the first medical certificate indicating that an officer is suffering from Tuberculosis, Leprosy, or Cancer, the Head of Department should send him before a Medical Board to determine whether or not he has a reasonable chance of recovery.

2:2 The officer should take the course of treatment recommended by the Medical Board.

2:3 In the case of Tuberculosis the treatment should, as far as possible, be carried out in the following manner and in that order of preference: -

in a Sanatorium, or;
in a T.B. ward of a local hospital, or;
in a local hospital.

at home (Domiciliary treatment) under the guidance and with the advice of a Tuberculosis Specialist or if no such Specialist is at hand, of any other qualified Medical Officer.

2:4 Every period in respect of special full pay leave granted should be covered by either a proper medical certificate or a report of a Medical Board.

2:5 Shortly before an employee completes the full period of special leave granted under section 2:2 or 2:3, a report should be obtained from a Medical Board stating whether or not the employee has a reasonable chance of recovery and whether he is fit for further service.

2:6 When the full pay leave available under this Chapter has been exhausted, the officer may be allowed his available half pay leave under the normal leave regulations.

2:7 If all the full pay leave and half pay leave available in terms of this Chapter is exhausted, the officer will be placed on no pay leave. At this stage, the Medical Board should be requested to make a definite pronouncement as to whether further leave on no pay is justifiable, taking into consideration the interests both of the officer and of the Administration, or whether the officer should be retired on medical grounds.

3. Periodic Examinations

3:1 When an officer resumes duty after any period of absence on account of Tuberculosis, he should report for examination every three (03) months at least (or earlier if he takes other sick leave), to the nearest Chest Clinic or Sanatorium and obtain a "clear" certificate at every such examination from the Medical officer in charge.

3:2 If necessary, an officer, presenting himself for such a periodical examination may be granted duty leave together with free railway warrants for travelling to the Clinic or Sanatorium. No travelling expenses are payable.

4. Congenial Climate and Light Duty

Where an officer is certified by the Medical Board as being free from infection and fit to resume duty but on certain conditions as, for example being

assigned light duties or a station with a congenial climate, he should be assigned duties or posted as recommended by the Board.

This concession may be extended to an officer who is subject to Asthma on a Government Medical Certificate.

5. Rehabilitation

Since rehabilitation is an integral part of the treatment, the fact that he has been a patient should not be allowed to stand in the way of the performance of his normal duties. The Head of the Department should do everything possible to assist his rehabilitation in so far as his official life is concerned.

CHAPTER XXIV

SALARY LOANS AND ADVANCES

1. General
2. Purposes for which loan advance may be granted
3. General conditions on which loans are granted
4. Officers Retiring, Dying and whose service terminate during pendency of a loan, and officers released to Corporation
5. Authority for sanctioning loans
6. Responsibilities of officer making payment of a loan
7. Grant of loans for the purchase of a motor vehicle , through banks
8. Grant of loans for the purchase of as motor cycle/ scooter, through banks.
9. Loan for purchase of a Foot-Bicycle
10. "Distress" and other loans
11. Grant of Property Loans through Banks
12. Loan to relieve Indebtedness
13. Festival Advance
14. Salary advance to public officers who suffer property damage and/or loss of movables as a result of the disturbances that occur in the country

CHAPTER XXIV

SALARY LOANS AND ADVANCES

1. General

1:1 In this Chapter " salary" means the consolidated salary unless otherwise stated.

1:2 Provision to grant salary loans to Public Officers under these regulations, is made in the Annual Estimates of Revenue and Expenditure in Part II - Advance Accounts, under the caption ' Advances to Public Officers'. The prior approval of the Cabinet is necessary for exceeding the prescribed limits.

1:3 The authority granting a loan will decide, on the eligibility of an applicant and the bona fides of the application.

1:4 The loan should be granted only for one of the specific purposes permitted under section 2.

1:5 The grant of a loan will be subject to the general terms and conditions in section 3 and 4 and the special conditions applicable to the different categories of loans in section 7 to section 12.

1:6 When an officer is transferred, the Department or Office from which he is transferred should promptly furnish in the prescribed forms to his new Department, all particulars of loans or advances outstanding against him and obtain an acknowledgement that the particulars have been duly noted for recovery by the officer's new Department.

The outstanding balance of the loan/advance sought to be paid to the Department releasing him by the Department taking him in, debiting "Advance to public Officers" account.

1:7 Documents such as an Agreement, Surety Bond, Power of Attorney, Title Deed, should not be forwarded to the new Department but should be kept in the custody of the Department in which the officer obtained the loan. They should be released only after the loan has been settled in full, together with interest and insurance premium (where applicable).

2. Purposes for which a loan/advance may be granted

for purchase of a Motor Car (Section 7)

for purchase of a Motor Cycle/Scooter (Section 8)

for purchase of a foot-bicycle (Section 9)

to alleviate pecuniary distress and for other specified purposes (Section 10)

for the acquisition of a building site or a house property (Section 11)

for relieving indebtedness (Section 12)

for the celebration of an annual festival (Section 13)

Salary advance for the public officers for the damages to immovable properties and/ or for the loss of movable properties due to the internal troubles (Section 14)

3. General conditions on which loans are granted

3:1 The full amount of the loan must be applied promptly for the specific purpose and that purpose alone, for which it is granted.

3:1:1 If the amount of the loan, or any part of it, is not utilized for the specific purpose for which it is granted, the full amount, or any unspent balance, as the case may be, must be repaid forthwith.

3:1:2 When a loan is granted for the purchase of a vehicle, building site or house property, and the purchase is not completed and the necessary documents required to be furnished in proof thereof not furnished within a fortnight of payment of the loan, the sum loaned should be repaid to Government forthwith.

3:1:3 If an officer fails to repay immediately the full loan or the unspent balance, as the case may be, the authority granting the loan should forthwith double the rate of monthly installment and increase the rate of interest by five percent (5%) until the amount due from the officer is repaid in full. Disciplinary action should also be instituted against the officer.

3:2 **Supporting Documents:-**All necessary documents (Such as estimates, bills, receipts, proof of ownership) required to be furnished, whether before or after the loan is granted, should be furnished by the officer promptly.

3:3 **Limited to Actual Cost:-** The amount of a loan will be subject to the maximum amounts specified for each category of loan but should in any case not exceed the actual cost of the article or property purchased, or, the expenditure actually incurred on the purpose for which the loan is granted.

3:4 “Cost” in the case of a vehicle should not include the cost of license fees, insurance or repairs.

3:5 **Limit on Total Monthly Deductions:** The total monthly deductions on account of installments of loans, together with other deductions made on an officer's

pay sheet (excluding the deductions indicated in Appendix 20) should not, exceed forty percent (40%) of such salary.

3:5:1 A loan should not be granted if it would result in these limits being exceeded.

3:6 All the loans granted to an officer should be consolidated as one amount and the installments for the recovery of a loan should be calculated as follows:

<i>Amount of Loan</i>	<i>Percentage of Monthly salary</i>
Ten months' salary or less	10
Over ten months' salary and up to twelve months salary	15
Over one year's salary and up to two years' salary	20
Over two years' salary and up to three years' salary	25
Over three years' salary and up to four years' salary	30
Over four years' salary and up to five years' salary	35
Five years' salary and over	40

3:7 The recovery of loans should commence from the month immediately following the month in which the loan is granted. Interest should be recovered from the date of payment of loans.

3:8 Interest should be charged on all loans (except the festival advance and loans granted by banks) at 4.2% and should be recovered monthly.

3:8:1 The quantum of interest to be recovered each month will be calculated as in Appendix 21. If a loan is settled in a less number of installments than that on which the monthly interest recoverable was originally calculated, or is prematurely settled in full, the amount of the total interest to be recovered should be a total re-calculated as indicated in Appendix 21.

3:9 Until the full amount of a loan and the interest thereon have been fully settled, the government has a lien on any vehicle, house or land in respect of which the loan is granted. It should not be sold, mortgaged or otherwise disposed of without the prior approval of the authority, who sanctioned the loan.

3:9:1 Where, with such approval, any transfer, sale or disposal takes place the outstanding balance on the loan should be paid up immediately by the officer.

3:9:2 The authority who sanctioned the loan may, however, authorize an officer to utilize an outstanding balance from a loan granted for the purchase of a motor vehicle, for the purchase of another vehicle instead of refunding it. The Head of the Department is responsible for ensuring that the value of the motor vehicle so purchased exceeds the outstanding balance on the loan. This

concession will not be allowed in the case of any loan other than a loan granted for the purchase of a motor vehicle.

3:10 Any vehicle purchased on a loan, should be comprehensively insured against all risks, with a Government Insurance Corporation, for a sum not less than the full amount of the loan or for so much of it as remains unsettled.

3:11 Neither the officer nor his surety is absolved of the liability to settle in full the sum loaned, together with interest thereon and insurance premium (where applicable) by reason of any accident, damage or loss from any cause whatsoever to any vehicle, house or property in respect of which the loan was obtained, or by loss of the money loaned before it could have been utilized.

3:12 No loan for the purchase of a vehicle should be granted to an officer already in possession of one, unless definite and final arrangements have been made for its disposal either by outright sale or by part exchange for another vehicle.

3:13 Applications for loans should be made on the forms prescribed below:

Form Appendix 26: for purchase of building site or house property

Form Appendix 31: for purchase of a motor vehicle or foot-bicycle

As designed by the authority granting the Loan: For all other purposes

3:14 An agreement should be entered into on the forms prescribed below, before any loan is granted.

Form General 251 : for purchase of a foot-bicycle

Form General 272 : for all other loans, except the loans granted by the Banks

3:14:1 The agreement should be stamped to the value of Rs.1.00 if a surety bond is not executed along with the Agreement.

3:15 A Surety Bond, when required, should be executed on the form prescribed below, and signed before an Attorney-at-Law where so required, before the loan is granted.

Form General 158 : for all other loans, except the loans granted by the Banks

3:16 Surety Bonds should be stamped to the value prescribed under the Stamps Duty Act, No. 43 of 1982. If the value of the stamp is Rs. 50.00/- or more it must be cancelled by cutting or punching.

3:17 Where a surety is required under these regulations, the Head of Department should satisfy himself that the proposed surety is a fit and proper person to be surety and that he is capable of fulfilling the terms of the bond, in the event of its being enforced against him.

3:17:1 No officer should be accepted as a surety if the principal debtor is in a position of authority over him.

For Example, a minor employee or a subordinate officer should not be accepted as surety for a Staff Officer.

3:17:2 An officer should not be accepted as a surety if his total liabilities to Government and to the Lady Lochore Loan Fund, both as principal debtor and as surety (in respect of any other outstanding loans for which he has stood as surety), together with the proposed new liability, are in the aggregate, more than his five (05) years' salary or, if the total monthly deductions in respect of all such liabilities and in respect of the proposed new liability cannot be accommodated within the permissible limits laid down in sub section 3:5.

3:17:3 An officer whose services are due to terminate, whether by retirement or any other cause during the pendency of the loan, should not be accepted as surety unless the borrower furnishes a written undertaking that he (the borrower) will furnish before such retirement or termination of service another acceptable surety.

3:17:4 If a surety is dismissed or dies, or his services terminated by any other cause, another acceptable surety should be furnished within a month.

3:17:5 If the principal debtor fails to furnish another acceptable surety as required under the two preceding sub sections, he should be ordered to repay the balance outstanding forthwith. Until he repays the balance or furnishes another acceptable surety, the monthly installments should be doubled and the rate of interest increased by five (05) percent.

3:17:6 If there is a protracted delay in complying with the preceding sub- sections, the Head of the Department should take steps to dispose of any property in respect of which a Power of Attorney has been executed.

3:17:7 No officer who has stood as surety should be granted permission to resign or retire on his own volition, or be released from service, or be relieved of his obligations as surety until and unless the principal debtor furnishes another acceptable surety.

3:17:8 A new surety who is substituted for an earlier surety should or secured to the extent indicated below.

Other loans except loans obtained from banks:- for the balance outstanding at the time of substitution.

3:17:9 The old Surety Bond should be cancelled only after the new Surety Bond has been executed.

3:17:10 The cancellation will be in the form of an endorsement as indicated in Appendix 22, made on the Bond itself and signed by the borrower and the surety and on behalf of the Government.

3:18 Before no pay leave for purposes other than employment abroad is granted to an officer who has obtained any loan, the Head of the Department should ensure that the officer has made satisfactory arrangements for the payment, during the period of such leave, of the monthly installments due on the loan. This does not absolve the officer himself, on whom the primary responsibility rests, from making such arrangements.

3:18:1 An officer applying for no pay leave for employment abroad should settle the loan before he is granted the leave.

3:19 Where an officer though not confirmed in service is eligible for a loan under these regulations, the Head of the Department should certify that his work and conduct have been satisfactory and that there is no reason to expect that he will not be confirmed in service.

3:20 Other Conditions:-All other special conditions stipulated in the following sections in respect of the various categories of loans should also be complied with.

3:21 A breach of any of the rules or conditions under which a loan is granted will debar an officer from any further loan and will also render him liable to disciplinary action. He may also be required forthwith to repay the full amount of the loan.

3:21:1 However, after taking into consideration the nature of the fault, Loan Authorizing Officer could approve a further loan with the concurrence of the Secretary to the relevant Ministry, in accordance with the existing regulations, if the relevant loan has been recovered in full.

3:21:2 An officer who has breached any of the relevant rules or conditions under which a loan is granted for the second time too, should be deprived of a further loan.

4. Officers Retiring, Dying and whose services terminate during pendency of a loan, and officers released to a Public Corporation

4:1 Where it is anticipated that an officer's services may terminate or where they are due to terminate by retirement or any other cause, the recovery of a loan may be completed in a smaller number of installments than stipulated in order to accommodate the officer, provided the permissible limits on deductions laid down in sub section 3:5 are not exceeded.

4:1:1 Subject to the exception in sub section 4:2, a loan will not be granted, if the full amount cannot be so recovered before the officer's services terminate.

4:2 An officer due to retire may be granted a loan under section 13 even though recovery cannot be completed before the officer retires subject to sub sections 4:2:1 to 4:2:5.

4:2:1 Recovery of a loan so granted may be made in the number of installments as stipulated for each category of loan or in a smaller number of installments at the officer's choice; and,

4:2:2 The total amount of loan so granted and the rate of recovery should be such that the balance that would be outstanding at retirement together with any other liabilities to Government or to the Lady Lochore Loan Fund will not exceed the approximate commuted pension that would be payable to the officer on retirement, (the Director General of Pensions may, if necessary, be consulted as to the approximate amount of commuted pension likely to be payable to the officer on retirement); and,

4:2:3 The officer should give an irrevocable undertaking in the form shown in Appendix 23, he will either settle the loan in full before retirement or that on retirement he will commute his pension and authorize the Director General of Pensions or the Head of the Department, to recover any outstanding balance from his commuted pension.

4:2:4 When an officer is due to retire, the Head of the Department should furnish to the Director General of Pensions details of all loans outstanding from him in addition to any other monies due to Government as well as liabilities to the Lady Lochore Loan Fund.

4:2:5 Such outstanding balances on loans remaining unsettled and all other dues to Government or to the Lady Lochore Loan Fund will be recovered in full by the Director General of Pensions from the commuted pensions or gratuity of the officer. If the commuted pension is not sufficient, the officer's monthly pension and allowances thereon will be appropriated in full until all dues to Government have been recovered.

4:3 If an officer's services terminate earlier than anticipated, action should be taken as in sub sections 4:2:4 and 4:2:5.

4:4 If an officer dies before recovery of any loan can be completed, the Director General of Pensions should forthwith be requested to recover all dues to Government from any monies payable to the heirs.

4:4:1 If all outstanding dues cannot be so recovered, the Attorney General should be consulted with a view to recovery from heirs.

4:5 Where any dues to Government cannot be recovered from the principal debtor, it should be recovered from the surety, in the same manner as provided for in the case of the principal debtor.

4:6 Where dues to Government cannot be recovered from the principal debtor or surety, or if the principal debtor is dead, from his heirs, the advice of the Attorney-General should be sought without delay.

4:7 No loan, except to purchase a building site or house property should be granted to a public officer while he is under temporary release for service in a Public Corporation/a Statutory Board. Acquisition of a building site or house property of such officer should be according to the provisions of section 11.

4:8 A public officer, who has outstanding balances in any category of loans obtained by him should not be released out-right for service in a Public Corporation until he has settled in full all such outstanding balances. The Department from which the officer is released is responsible for recovering such balances before he is released.

5. Authority for approving loans

- | | |
|---|--|
| (i) Loan to relieve indebtedness (Section 12) | – Secretary to the Ministry/
Additional Secretary to the
Ministry |
| (ii) All other loans | – Head of Department or an
officer to whom
he delegates his functions
under F. R. 135 |

6. Responsibilities of Officer making payment of a loan

6:1 The officer making the payment of a loan should ensure before payment is made, that all necessary conditions for the payment of the loan have been satisfied including the following.

6:1:1 That the borrower has executed all the necessary documents as required under these regulations.

6:1:2 In the case of a loan granted for the purchase of a building site, house property or vehicle, that the borrower is ready to complete the purchase immediately the loan is paid to him.

6:1:3 In the case of a, purchase of a building site or a house property, that the borrower produces a letter from the Attorney-at-Law or Notary executing the transfer, to the effect that the Attorney-at-Law or Notary is ready to execute the deed of transfer immediately on receipt of the amount to be paid on the transaction.

6:1:4 That where the amount of the loan is less than the purchase price, the borrower has with him sufficient funds to supplement the loan.

6:2 After payment is made, the officer who authorized the payment should satisfy himself that the loan has been applied in full for the purpose for which it was granted, and that any unspent balance is promptly refunded.

6:3 If there is a loss to Government as a result of neglect or lapse on the part of the officer or officers responsible for the grant or payment of a loan, such officers will be liable to disciplinary action in addition to having to make good the loss to Government.

7. Grant of loans for the purchase of a motor vehicle , through banks

7:1 Purposes for which a loan may be granted

7:1:1 For the purchase of a petrol driven motor car of a maximum of 1500cc or a diesel driven motor car of a maximum of 2200cc, or a petrol driven motor van of a maximum of 1500cc or a diesel driven motor van of a maximum of 2200cc.

7:1:2 For the payment of customs duty, landing charges, agency charges and import permit charges in respect of a motor vehicle which conforms to 7.1.1 above acquired by the officer and imported to Sri Lanka.

7:2 Eligibility

7:2:1 Should be a permanent officer of the Public Service or the Provincial Public Service

7:2:2 Should be an officer eligible for motor car mileage in terms of Subsection 8:1:1 of Chapter XIV of the Establishments Code and required to undertake official travelling regularly.

or

7:2:3 Should be an officer required to maintain a motor vehicle for the performance of his official duties.

or

7:2:4 Should be an officer who has obtained a loan for the purchase of a motor cycle/ scooter in terms of section 8 below, and is eligible in terms of sub section 7.2.2 above, by virtue of a promotion or a new appointment.

7:2:5 A vehicle loan under this scheme may be obtained only once in five (05) years and a previous vehicle loan should be repaid in full.

7:3 Amount of the loan

7:3:1 The maximum amount of the loan the officer is entitled to shall be his consolidated salary of five (05) years exclusive of allowances, or the total amount spent in terms of Section 7.1 above, whichever is less.

7:3:2 In case the officer eligible under 7.2.4 above does not repay the outstanding balance of the loan obtained by him under section 8, he shall be paid only the difference between the loan he is entitled to for the purchase of a motor vehicle and the balance outstanding on the previous loan.

7:3:3 If an officer wishes to obtain any loans beyond the limits set out in 7.3.1. or 7.3.2 above causing no liability to the Government, he may do so on an agreement with the Bank subject to the general conditions laid down by the Bank.

7:4 Interest

7:4:1 The General Treasury shall inform Ministries and Departments the interest rate applicable for the respective year on an annual basis, in the month of January.

7:4:2 The interest will be calculated on the diminishing balance of the loan.

7:4:3 The loan installment recoverable from the officer and the monthly installment inclusive the interest of 7:4:1 calculated under 7.4.2 above shall be recovered in equal installments until the total amount of the loan is repaid in full.

7:5 Security

The motor vehicle purchased under 7.1 above shall be mortgaged to the bank.

7:6 Documents to be produced

7:6:1 Declaration from the seller of the vehicle.

7:6:2 A certificate of valuation of the vehicle obtained from a garage recognized by the Government.

7:6:3 The vehicle insurance certificate.

7:6:4 Registration certificate of the vehicle.

7:6:5 Revenue licence in respect of the vehicle for the current year.

7:6:6 Certificate issued by the Head of the Department to the effect that the vehicle purchased under 7.1. above is fit for use by the applicant for his official duties.

7:6:7 The officer obtaining the loan should obtain a Comprehensive Insurance Policy for each year from the date of purchase of the vehicle, and a copy thereof should be forwarded to the Bank every year, through the Head of the Department prior to the expiry of the policy.

Unless the Comprehensive Insurance Policy is renewed each year, the loan subsidy on the interest payable by the Government shall not be granted.

This Insurance Policy should also cover eventualities such as strikes, riots, civil commotion and acts of terrorism and natural disasters.

7:7 Recovery and remittance of loan installments.

7:7:1 The institution in which the officer serves should monthly remit to the relevant Bank, the installment of the loan as recommended by the Bank as well as the interest deducted from the officer's salary, together with the interest borne by the Government.

7:7:2 The amount of the interest borne by the Government on behalf of the officer should be accounted as Government expenditure as instructed by the Treasury.

7:8 Arrears of loan installments

7:8:1 In the event that the officer is not paid his salary owing to any service problem, the Head of the Institution should promptly inform the relevant Bank of such non- recovery of the loan installments.

7:8:2 In instances of vacation of post or dismissal from service, the general rules and regulations of the Bank should be followed.

7:8:3 In instances such as vacation of post, dismissal from service, interdiction or retirement from service the applicant should personally pay to the relevant Bank the loan installment inclusive of the difference in interest borne by the Government, in accordance with the rules and regulations of the Bank.

7:8:4 In the event that an officer who is interdicted is subsequently reinstated, action will be taken to reimburse the interest paid by the Government in respect of the loan installments paid by such officer during the period of his interdiction, subject to the following conditions.

7:8:4:1 In the event that the interdicted officer is reinstated after exoneration, the interest paid by the government in respect of the loan installment paid by him should be reimbursed to him in full.

7:8:4:2 In the event that the officer has been reinstated subject to any punishment, only one half of the interest paid by the government in respect of the loan installment paid should be reimbursed notwithstanding the nature of the punishment.

7:8:5 The loan installments and interest in respect of an officer who has been sent on compulsory leave should be remitted to the Bank as is normally done and the difference in the interest will be borne by the Government.

7:8:6 When any officer is paid half the salary, the general rules of the Bank should be followed in the recovery of the loan installments and interest.

7:8:6:1 However, in the case of a female officer on maternity leave who is paid half the salary, the loan installment and the interest should be personally remitted to the bank and the difference in interest will be reimbursed by the Government.

7:8:7 In the case of an officer who is on no pay leave, the general rules and regulations of the Bank should be followed in the recovery of the loan installments and interest.

7:8:8 In the event of the death or the total incapacity of an officer or in the event of his committing suicide while in service the outstanding balance of the loan as at that date should be recovered by the Bank according to the normal rules of the bank.

7:9 General conditions governing the grant of loans

7:9:1 In recommending the loan to be granted to the officer subject to interest borne by the government, the Ministry/Department should take the following matters into consideration.

7:9:1:1 In the case of any problems arising or any loss sustained by the government through negligence in recommending the loan, steps will be taken to take action against the officer who recommended the loan, and such loss will be recovered from that officer.

7:9:2 The amount of the loan to be granted to an officer should be recommended within the limit of 40% of his salary excluding allowances.

7:9:2:1 The maximum amount of the loan should be subject to Sub-section 7.9.1.1 taking into consideration the obligatory deductions and any other deductions from his salary.

7:9:3 In the case of an officer who has been transferred from the institution from which he obtained the loan, the Ministry/Department concerned should convey the information of such transfer to the Bank which granted the loan, and the relevant information should also be furnished to the institution to which he has been transferred, in accordance with Appendix 25. The Head of the Institution should ensure that there would be no lapse in the recovery of the loan installments and no delay in the remittance of the loan installments to the Bank as a result of such transfer.

7:9:4 Where an officer who has been recommended to the Bank for a loan has been interdicted, dismissed from service or sent on compulsory leave before he obtains the loan, it shall be the responsibility of the Head of the Institution to report such circumstances promptly to the Bank before the loan is obtained from the Bank.

7:9:5 In the event that there is a delay in the recommendation of a Department or a Ministry to the Bank in respect of an officer entitled to a loan, or in case of an inordinate delay in obtaining the loan from a Bank, it should be brought to the notice of the Director General of the Department of National Budget in the Treasury, in writing.

7:9:6 A Head of Department should not recommend the grant of a loan for the purchase of a motor vehicle which immediately prior to its purchase by the officer belonged to such officer's spouse, father, mother, brother, sister, or a child or which at any time within six (06) years immediately preceding the application for the loan belonged to such officer or the officer's spouse.

7:10 The mode of application and recommendation of loan applications

7:10:1 An applicant for a loan should prepare the application in duplicate according to Appendix 31 and submit same to the Head of the Department.

7:10:2 The Head of the Department should register the loan application concerned in the waiting list; determine the amount of the loan that can be granted in terms of section 7.3 and take action to refer it to one of the Banks mentioned in Appendix 32 as preferred by the applicant, within one week.

7:10:3 The applicant should, furnish to the Bank, the necessary information in terms of the rules and regulations of the Bank and the Circular instructions, before the expiry of three (03) months, and take action to inform the Ministry / Department through the Bank once the loan is sanctioned.

7:10:4 Once the loan is released by the Bank the Treasury and the relevant Ministry/Department should be informed of such fact in terms of Appendix 27.

7:11 The period of recovery of the loan

7:11:1 The period of recovery of the loan shall be determined on the period it would take for the loan to be recovered in full based on the loan installment and the interest calculated within the limit of 40% of the monthly consolidated salary or the period it would take for the officer to reach the age of sixty (60) years whichever occurs first.

7:11:2 In the case of officers on the verge of retirement, the amount of the loan shall be determined on the basis of the number of installments that can be paid up in full.

8. Grant of loans for the purchase of a motor cycle/ scooter, through banks

8:1 The purposes for which loans can be granted.

8:1:1 For the purchase of a motor cycle or a scooter.

8:1:2 For the payment of customs duty, landing charges, agency charges and import permit charges in respect of a motor cycle/scooter acquired by the officer and imported to Sri Lanka.

8:2 Eligibility

8:2:1 Should be a permanent officer of the Public Service or the Provincial Public Service.

8:2:2 This loan should be granted to an officer who is required to engage in field duties.

8:2:3 Under this Scheme a loan for the purchase of a Motor Cycle/scooter can be obtained only once in five (05) years, but the total amount of the loan obtained previously should have been fully settled.

8:3 Amount of the Loan

8:3:1 The maximum amount of the loan that an officer is entitled to obtain shall be either Rs. 100,000.00 the amount spent for the purposes mentioned in 8.1 above whichever is less.

8:3:2 If any officer wishes to obtain any loan beyond the limit set out in 8.3.1.above causing no liability to the government, he may do so on an agreement with the Bank subject to the general conditions laid down by the Bank.

8:4 Interest

8:4:1 The General Treasury shall inform Ministries and Departments the interest rate applicable for the respective year on an annual basis, in the month of January.

8:4:2 The interest will be calculated on the diminishing balance of the loan.

8:4:3 The loan installment recoverable from the officer and the monthly installment inclusive interest calculated under 8.4.2 above shall be recovered in equal installments until the loan is repaid in full.

8:5 Surety

The motor cycle or the scooter purchased under 8.1 above shall be mortgaged to the Bank.

8:6 Documents to be produced

8:6:1 Declaration form the seller of the motor cycle/scooter

8:6:2 The Certificate of Valuation of the motor cycle/scooter

8:6:3 The Certificate of Insurance in respect of the motor cycle/scooter

8:6:4 The Registration Certificate of the motor cycle/scooter

8:6:5 The revenue license in respect of the motor cycle/scooter for the current year.

8:6:6 Certificate issued by the Head of the Department to the effect that the motor cycle/scooter purchased under 8.1 above is fit for use by the applicant for his official duties.

8:6:7 The officer obtaining the loan should obtain a Comprehensive Insurance Policy for each year from the date of purchasing the motor cycle/scooter, and a copy thereof shall be forwarded to the Bank every year, through the Head of the Department, prior to the expiry of the insurance policy.

Unless the Comprehensive Insurance Policy is renewed every year the loan subsidy on the interest paid by the Government shall not be granted.

This Insurance Policy should cover eventualities such as strikes, riots, civil commotion, acts of terrorism and natural disasters.

8:7 Recovery and remittance of loan installments

8:7:1 The institution in which the officer serves should monthly remit to the relevant Bank, the installment of the loan as recommended by the Bank as well as the interest deducted from the officer's salary, together with the interest borne by the Government.

8:7:2 The amount of the interest borne by the Government on behalf of the officer should be accounted as Government expenditure as instructed by the Treasury

8:8 Arrears of loan installments

8:8:1 In the instance that the officer is not paid his salary owing to any reason, the Head of the Institution should promptly inform the relevant Bank of such non- recovery of the loan installments.

8:8:2 In instances of vacation of post or dismissal from service, the general rules and regulations of the Bank should be followed.

8:8:3 In instances such as vacation of post, dismissal from service, interdiction or retirement from service the applicant should personally pay to the relevant Bank the loan installment inclusive of the difference in interest borne by the government, in accordance with the rules and regulations of the Bank.

8:8:4 In the event that an officer who is interdicted is subsequently reinstated, action will be taken to reimburse interest paid by the Government in respect of the loan installments paid by such officer during the period of his interdiction, subject to the following conditions.

8.8.4.1. In the event that the interdicted officer is reinstated after exoneration, the interest paid by the government in respect of the loan installment paid by him should be reimbursed to him in full

8.8.4.2. In the event that the officer has been reinstated subject to any punishment, only one half of the interest paid by the government in respect of the loan installment paid should be reimbursed notwithstanding the nature of the punishment.

8:8:5 The loan installment and the interest in respect of an officer who has been sent on compulsory leave should be remitted to the Bank as is normally done and the difference of the interest will be borne by the Government.

8:8:6 When any officer is paid half the salary, the normal rules of the Bank should be followed in the case of the recovery of the loan installments and interest.

8.8.6.1. However a female officer on maternity leave who is paid half the salary, the loan installment and interest should be personally remitted to the Bank and the difference in interest will be reimbursed by the Government.

8:8:7 In the case of an officer who is on no pay leave, the general rules

and regulations of the Bank should be followed in the recovery of the loan installments and interest.

8:8:8 In the event of the death or the total incapacity of an officer or in the event of his committing suicide while in service the outstanding balance of the loan as at that date should be recovered by the Bank according to the normal rules of the Bank.

8:9 General conditions governing the grant of loans

8:9:1 In recommending the loan to be granted to the officer subject to interest borne by the government, the Ministry/Department should take the following matters into consideration.

In the case of any problems arising or any loss sustained by the government through negligence in recommending the loan, steps will be taken to take action against the officer who recommended the loan, and such loss will be recovered from that officer.

8.9.1.1. The amount of the loan to be granted to an officer should be recommended within the limit of 40% of his salary excluding allowances.

8.9.1.2. The maximum amount of the loan should be recommended to the Bank taking into consideration the obligatory deductions and any other deductions from his salary.

8:9:2 In the case of an officer who has been transferred from the institution from which he obtained the loan, the Ministry/Department concerned should convey the information of such transfer to the Bank which granted the loan, and the relevant information should also be furnished to the institution to which he has been transferred, in accordance with Appendix 25. The Head of the Institution should ensure that there would be no lapse in the recovery of the loan installments and no delay in the remittance of the loan installments to the Bank as a result of such transfer.

8:9:3 Where an officer who has been recommended to the Bank for a loan has been interdicted or dismissed from service or sent on compulsory leave before he obtains the loan, it shall be the responsibility of the Head of the Institution to report such circumstances promptly to the Bank before the loan is obtained from the Bank.

8:9:4 In the event that there is a delay in the recommendation of a Department or a Ministry to the Bank in respect of an officer entitled to a loan, or in case of an inordinate delay in obtaining the loan from a Bank, it should be brought to the notice of the Director General of the Department of National Budget in the Treasury, in writing.

8:9:5 A Head of Department should not recommend the grant of a loan for the purchase of a motor bicycle which immediately prior to its purchase by the officer belonged to such officer's spouse, father, mother, brother, sister, or a child, or which at any time within six (06) years immediately preceding the application for the loan belonged to such officer or the officer's spouse.

8:10 The mode of application and recommendation of loan applications

8:10:1 An applicant for a loan should prepare the application in duplicate according to Appendix 31 and submit same to the Head of the Department.

8:10:2 The Head of Department should register the loan application concerned in the waiting list; determine the amount of the loan that can be granted in terms of section 7.3 and take action to refer it to one of the Banks mentioned in Appendix 32 as preferred by the applicant, within one week.

8:10:3 The applicant should furnish to the Bank, the necessary information in terms of the rules and regulations of the Bank and the Circular instructions, before the expiry of 03 months, and take action to inform the Ministry / Department through the Bank once the loan is sanctioned.

8:10:4 Once the loan is released by the Bank the Treasury and the relevant Ministry/Department should be informed of such fact in terms of Appendix 27.

8:11 The period of recovery of the loan

8:11:1 The period of recovery of the loan shall be determined on the period it would take for the loan to be recovered in full, based on the loan installment and the interest calculated within the limit of 40% of the monthly consolidated salary or the period it would take for the officer to reach the age of sixty (60) years, whichever occurs first.

8:11:2 In the case of officers on the verge of retirement, the amount of the loan shall be determined on the basis of the number of installments that can be paid up in full.

The secretary to a Ministry should furnish, to the Banks specified in Appendix 32, a list of the Departments and Head of Institutions under his Ministry that would be recommending loan applications to the Bank as indicated in sections 7.10 and 8.10 above.

9. Loan for purchase of a Foot Bicycle

9:1 **Eligibility:** - A permanent officer in the subordinate or minor grades who requires a bicycle for travelling between his residence and place of work.

9:2 **Amount of the loan:-** Rs. 6000.00/- or the value of the cycle, whichever is less

9:3 **Sureties:** - If the officer has not less than ten (10) years' pensionable service, no surety is required. If no such a service, a surety who is a public officer with not less than 5years' pensionable service.

9:4 **Other Conditions:**-The loan should be granted for the purchase of a new bicycle only, which should be purchased outright and not on hire purchase.

9:5 **Frequency:** - As in sub section 7:2:5.

10. "Distress" and other loans

10:1 *Purpose:*-The loan is payable for anyone of the following purposes provided a declaration on honour by the applicant is produced in support of the genuineness of the application and of the fact that financial embarrassment to the officer has been caused by circumstances beyond his control:-

- relief of distress caused by fire, flood or similar natural calamity;
- medical expenses, hospital or nursing home charges;
- indebtedness caused by illness in the officer's family;
- house rent arrears, if such arrears have resulted from expenditure on illness in the officer's family;
- funeral expenses in respect of a member of the officer's family;
- essential repairs to a house owned by an officer or his spouse and in which he or his family is resident;
- essential repairs to a motor vehicle owned by an officer who is required to use it for his official duties;
- purchase of Mosquito nets as a preventive against malaria and filarial;
- purchase of school books (including mathematical instruments, slide rules, boxes of weights etc.) for a dependent child ;
- initial house rent advance to rent a house for officer's immediate occupation;
- expenses payable to a Government institution in connection with a housing loan sought by the officer;
- cost of passage for travel abroad for an officer and his family provided that the officer is on full pay leave for the period of travel and absence out of the Island;
- purchase of Computers and Accessories;
- Such other purposes as may in the opinion of the Head of Department, deserve financial assistance.

10:2 **Eligibility:**- A permanent and pensionable officer and a permanent or temporary officer who is contributor to the PSPF (subject to sub section 10:3:1).

10:3 Amount of the loan:- The amount of the loan will be the expenditure actually incurred or to be incurred subject to a maximum of ten (10) months' salary.

10:3:1 In the case of a temporary officer, the amount of the loan together with any other outstanding liabilities should not in any case exceed the total of his own contributions to the PSPF.

10:3:2 In the case of a loan for a house rent advance, the amount should not, in any case, exceed three (03) months' authorized rent.

10:4 Sureties:-

In respect of permanent and pensionable officers possessing less than ten (10) years' service, one surety having not less than ten (10) years of service and who is permanent and pensionable, is required or, two sureties of not less than five (05) years' service each, and who are permanent and pensionable, are required. Sureties are not required in respect of permanent and pensionable officers possessing more than ten (10) years' service.

10:4:1 Regarding an officer who has contributed to the loan guarantee scheme of Agrahara Insurance Scheme, the certificate of that loan guarantee scheme can be presented instead of sureties as mentioned under sub section 10:4.

10:5 A salary loan may be granted at any time provided that no other loan under this category has been availed of during the previous six (06) months. A subsequent loan should in no case exceed the difference between the amount the officer is entitled to under section 10: 3 and the balance outstanding on the previous loans under this category.

In the case of an applicant who has obtained more than one loan/advance, the amount recovered should be calculated as follows:

When an officer has obtained more than one category of loan, the computation of settle of loan in each of the categories will be a detailed below for the purpose of granting a fresh loan.

First 5% of the new consolidated salary will be in respect of the salary loan. Every next five percent 5% of the new consolidated salary up to forty percent 40% should be apportioned in repayment of the other categories of loans in the following order of priority:

1. Transport loan
2. Loan to relieve indebtedness
3. Property loan

After allocating in this manner, the entire balance should be treated as settlement in respect of the last category of loan the member has obtained.

A member may however, opt to repay a larger amount in respect of any particular category of loan, subject to the limit referred to in sub section 3:5 of the circular.

Rescheduling recovery when a fresh loan is granted should be made as follows;

One month's consolidated salary or less	- 5% of consolidated salary
Over one month's consolidated salary and up to two months consolidated salary	- 7 ½% of consolidated salary
Over two months consolidated salary and up to three months consolidated salary	- 10% of consolidated salary

In arriving at the monthly installment recoverable the amount should be rounded to the nearest rupee avoiding the need to recover part of a rupee. Part of a rupee, if any, should be recovered with the first installment.

10:6 For the purpose of a loan under this section, an officer's family will include the officer's parents, parents-in-law, un married sisters, and brothers, under the age of eighteen (18), provided they are dependent on the officer.

11. Granting Property Loans through Banks

11:1 Purposes for which a loan may be granted

11:1:1 Purchase of a suitable building site

11:1:2 Construction of a new house in a land owned by the applicant

11:1:3 Purchase of a land with a house/flat

11:1:4 Effecting improvements and making additions to a house already constructed

11:1:5 Completion of work of a semi - constructed house

11:1:6 For the purchase of a suitable building site, and the construction of a house in such site

11:1:7 For the construction of a new house/ for effecting improvements to a house/ for making an addition to a house/ for completion of work of a semi-constructed house in a land belonging to the spouse of an applicant

11:1:8 For the construction of a house/ improvements to a constructed house/ any new additions to a house/ completion of the remaining work of a semi-constructed house, in a land received as a Swarnabhoomi/ Jayabhoomi Grant or a land granted under the Land Reforms Commission.

11:2 Eligibility

11:2:1 Should be an officer of the Public Service or the Provincial Public Service

11:2:2 Should be an officer with five (05) years' service entitled to a pension, confirmed in the appointment.

Note

An officer, who has been confirmed in a pensionable post in the Public Service with five (05) years' service and appointed to a new post but not been confirmed in the new post, shall be entitled to obtain property loan up to the limit of his/her previous post.

11:2:3 Where the husband and wife are both public officers, each of them will separately be entitled to the loan

11:2:3:1 If both spouses are public officers, one who had not obtained a property loan, may obtain a loan for the construction of a house/ effecting improvements to a house already constructed/ making additions to a house/ completion of work of a semi-constructed house, in a land purchased on a loan already obtained by the other from the bank which had granted property loan on a joint account. However, if the previous loan has been obtained at the rate of interest prevailed prior to 01.01.2005, cost of the interest borne by the government shall not be applicable for such previously obtained loan.

11:2:3:2 In the event that both spouses are both Public officers, both may obtain a loan under a joint account for the construction of a house/ for the purchase of a suitable building site and the construction of a house/ for the purchase of a land with a house flat.

11:2:4 Officers who are temporarily released for service in a Public Corporation/ Statutory Board are eligible in terms of 11:2:1 and 11:2:2 above.

11:2:5 Notwithstanding that the spouse of the applicant for the loan is not a Public Officer, a loan may be obtained under a joint account for the construction of the house on a land owned by the spouse.

11:2:6 Being an officer/other ranker belonging to the Armed Service/ Volunteer Force with a continuous period of service, not less than five (05) years and possessing pension rights.

11:2:7 A member of the Reserve Police certified by the Department as an officer who is possessing a continuous period of service not less than five (05) years and entitled to serve up to the age of fifty-five (55) years.

11:2:8 Property loan can be obtained strictly for once during the total period of service.

11:3 Period of recovery

The period of recovery shall be determined so as to enable the total amount of the loan to be recovered within a maximum period of twenty-five (25) years or the officer completing sixty (60) years of age, whichever occurs first.

11:4 Amount of the loan

11:4:1 The maximum amount of the loan an officer is entitled to obtain shall be the equivalent to his seven (07) years consolidated salary exclusive of allowances or Rs. 3,000,000.00, whichever is the less.

11:4:2 In the event that any officer wishes to obtain any additional loan beyond the limit set in 11.4.1 above without any liability on the part of the government, an agreement may be entered into with the bank, subject to the general conditions laid down by the bank.

11:5 Interest

11:5:1 An annual interest will be levied from the officer in respect of a loan obtained under Section 11.4.1 above, as mentioned below.

<i>Loan Amount</i>	<i>Interest Rate Payable by the Officer</i>	<i>Interest Rate Payable by the Government</i>	<i>Interest Rate Payable to the Bank</i>
Up to Rs. 500,000	4%	8%	12%
From Rs. 500,001 to Rs. 1,000,000	8%	4%	12%
From Rs. 1,000,001 to Rs. 3,000,000	11%	3%	14%

11:5:2 Interest will be calculated on the basis of the diminishing balance of the loan.

11:5:3 The loan installments levied from the officers together with the monthly installments including the interest mentioned in 11:5:1, calculated under 11.5.2 above shall be recovered in equal installments until the total amount of the loan is paid up in full.

11:6 Surety

For the purposes specified in 11:1 above, the property in respect of which the loan is applied for, shall be mortgaged to the Bank.

11:7 Recovery and remittance of the loan installments

11:7:1 The institution where the Officer serves, shall monthly remit the installment of the loan as recommended by the bank together with the interest deducted from the officer's salary as well as the interest borne by the government, to the respective bank.

11:7:2 The amount of the interest borne by the government on behalf of the officer should be brought to account as a government expenditure as instructed by the Treasury.

11:8 Arrears of loan instalments

11:8:1 In an event that the salary is not paid to the officer due to any reason, the Heads of Institutions should promptly inform the relevant bank on non-recovery of the loan installments.

11:8:2 In the case of the vacation of post or dismissal the general rules of the bank should be followed on the balance of the loan.

11:8:3 In the case of vacation of post, dismissal and interdiction, or in the case of retirement from Service, the loan installments together with the difference in the interest paid by the government should be personally paid to the relevant bank by the applicant of the loan concerned, in compliance with the rules and regulations of the bank.

11:8:4 In the event that an interdicted officer is reinstated, the interest payable by the government for the loan installments paid by the officer during the period of interdiction shall be reimbursed, subject to the following conditions.

11:8:4:1 Where the officer has been exonerated and reinstated the total amount of the interest borne by the government which is included in the loan installments shall be reimbursed to him in full.

11:8:4:2 If the officer has been reinstated subject to any punishment, notwithstanding the nature of the punishment, half only of the amount of interest borne by the government which is included in the installments already paid, shall be reimbursed.

11:8:5 In the case of an officer who has been placed on compulsory leave the installments of the loan and the interest shall be remitted to the bank in the usual manner, and the difference in interest shall be borne by the government.

11:8:6 With regard to the levying of the loan installments and the interest while an officer is placed on half pay, the general rules of the bank should be followed.

11:8:6:1 However, in an event which a female officer is paid half the salary while she is on maternity leave, the loan installments and the interest should be personally paid to the bank and the difference in interest shall be reimbursed by the government.

11:8:7 In the case of levying of the loan installments and the interest while an officer is on no pay leave, the general rules of the bank should be followed.

11:8:8 In case where the officer has demised or become totally disabled or has been sent on retirement on medical grounds, action shall be taken by the government to settle the balance of the loan as at the date of occurring of any of the above, to the bank through Loan Security Fund, in monthly installments (See the Sub-section 11:8:10).

[Revision](#)

[New Inclusion](#)

11:8:9 The loan installments and the interest payable by an officer who has been temporarily released for service in a Public Corporation or a Statutory Board and is eligible under 11.2.4 above, should be remitted to the bank through the institution where the officer serves and the difference of the interest for the relevant period shall be remitted by the institution to which the officer has been appointed on release.

11:8:9:1 In levying the loan installments and the interest from an officer who has permanently released for service in a Public Corporation/ Statutory Board, the general conditions of the bank should be followed.

11:8:10 If the officer has committed suicide due to any reason, the general rules and regulations of the bank should be followed, with regard to the recovery of the loan concerned.

[Removal](#)

11:9 Fees for processing of loan applications

In the process of obtaining a loan from recommended banks, Rs. 7500.00/- or 1% of the amount of the loan, whichever is less, should be paid for the documents to be furnished viz. the assessment report, lawyers' fees and cost of travelling.

11:9:1 The minimum fee payable by the officer as mentioned in Section 11:9 above shall be added on to the approved amount of the loan and deducted from the monthly installments.

11:9:2 The monthly installment should be decided, after adding the cost for obtaining folios from the Land Registry, the Report on Title, fees for the Survey Plan and the cost of Title Insurance to insure the shortcomings in the Title, if any, to the Loan amount.

Insuring the short comings in the Title, if any, is obligatory.

11:10 General conditions applicable to Property Loans

11:10:1 In recommending the amount of the loan to be granted to an

officer on the interest payable by the government, the following factors shall be taken into consideration by the Ministry/Department.

In the case of issues arising due to the negligence in recommending the amount of the loan, and losses caused to the government, steps will be taken against the officer who recommended the loan and any loss caused shall be recovered from such officer.

11:10:1:1 The amount of this loan shall be exempted from the maximum deductible amount of 40% from the officer's salary.

11:10:1:2 The maximum amount of the loan should be recommended to the bank subject to Section 11.10.1.1, taking the obligatory deductions as well as any other deductions from the salary of the officer into consideration.

11:10:1:3 In approving the maximum amount of the loan, it should be determined considering the possibility for deduction of both the loan installment and the interest that should be recovered from the net monthly salary of the officer, excluding allowances.

11:10:2 In the case of an officer who has been transferred out of the station at which he obtained the loan, that fact should be communicated, by the Ministry/Department concerned, to the Bank which granted the loan and the relevant information should be conveyed to the station to which the officer was transferred in the manner specified in the Appendix 25. The Head of the Institution should ensure that there would be no lapse in the recovery of the loan installments or any delay in the remittances to the Banks.

11:10:3 If any officer who has been recommended to the bank for a loan were to be interdicted or dismissed from service, or placed on compulsory leave, it shall be the responsibility of the Head of the Institution to report such circumstances promptly to the Bank, prior to the loan is granted by the Bank.

11:10:4 In the case of an officer eligible to receive a loan, if there is any delay on the part of a Department or Ministry in making the recommendation to the Bank, or any undue delay in the granting the loan by the Bank, it should be communicated, in writing, to the Director General of the Department of National Budget in the General Treasury.

11:11 The procedure for forwarding and recommending of loan applications

11:11:1 An applicant for the loan should prepare the application in terms of Appendix 26, in duplicate and submit it to the Secretary to the Ministry / Head of Department, together with the perfected application issued by the bank from which the loan is to be obtained and the relevant documents in terms of Appendix 29.

11:11:2 The Ministry / Department should take action to enter the loan application concerned in a register, determine the amount of the loan that can be granted in terms of Section 11:10:1, and forward the recommended application within one week to the bank from which the applicant has consented to obtain the loan.

11:11:3 In order to obtain the respective loan, the applicant for the loan should, in compliance with the rules and regulations of the bank concerned, and the instructions in the Circular provide the required information to the Bank, prior to completion of three months and should inform the Ministry/Department by the Bank, once the loan is approved.

11:11:4 Subsequent to release of the loan by the Bank, that should be informed to the Treasury and the Ministry/Department in accordance with Appendix 27.

11:11:5 When further clarifications are required by the bank, in respect of the loan application recommended to the bank by the Ministry / Department, the officer should furnish such clarifications. In the case of any failure to furnish such clarifications within three months, the application will be rejected. This period will on no account be extended and such applications for extension will be treated as a fresh application and placed in the waiting list.

11:11:6 Loans shall be payable only from the banks registered in terms of appendix 28.

11:11:7 A list of posts of the officers, who are under the departments/institutions coming under the purview of the Ministry and making recommendations on the loan applications in terms of Sub-section 11:11:1 above, should be submitted to the banks listed in Appendix 28, by the Secretary of the relevant Ministry.

12. Loan to relieve indebtedness

12:1 Any officer with not less than five (05) years permanent service is eligible to obtain a loan to relieve indebtedness.

12:2 The amount of the loan that may be granted should be limited to Rs.7,500.00 or the actual amount of debt, whichever is less.

12:3 Where both spouses are public officers each of them is separately eligible for this loan. This should be granted only once to an officer.

12:4 An applicant for a loan should satisfy the Head of Department as regard the genuineness of indebtedness. If he is not so satisfied, he will be at liberty to refuse the grant of the loan.

12:5 The application should indicate the following :-

- (a) full name of applicant;
- (b) designation;
- (c) date of first appointment to the permanent cadre ;
- (d) date of birth ;
- (e) monthly salary on the date of application;
- (f) total abatements from the salary that fall within the 40% of the salary as the case may be ;
- (g) cause of indebtedness ;
- (h) name and address of person or persons to whom the applicant owes money ;
- (i) date and amount of debt;
- (j) whether the loan applied for is required to -
 - (i) settle a debt;
 - (ii) redeem pawned articles;
 - (iii) redeem a mortgage.

Documentary evidence in support of the indebtedness should be furnished together with a certificate of honour regarding indebtedness.

12:6 An immovable property worth at least the amount of such loan, or an Insurance Policy covering the debt against default should be produced as a security. In lieu of security, the borrower may furnish a surety who should be a public officer with not less than five (05) years permanent service.

12:7 In case of an officer, who contributes to the Loan Grantee certificate in Agrahara, such certificate could be provided in lieu sureties.

12:8 The Secretary may sanction such a loan on the recommendation of the Head of the Department.

12:9 The Secretary should ensure –

12:9:1 That all necessary conditions for the payment of the loan have been satisfied;

12:9:2 that the borrower has executed all the necessary documents which should be prescribed by the Head of the Department.

12:10 If there is a loss to the funds of the Department as a result of any neglect or lapse on the part of any officer responsible for the grant of payment of the loan, such an officer will be liable to disciplinary action, in addition to having to make good the loss to the funds of the Government.

12:11 The Head of the Department should ensure that all legal requirements are complied with and keep his custody the Agreement, Bond and Deeds until the loan is settled in full.

13. Festival Advance

13:1 **Eligibility:-** A permanent, temporary or casual public officer is eligible to this advance. A temporary or a casual employee to be eligible should have been in continuous employment for not less than three (03) months and there should be a definite prospect of his being retained in employment for the full period during which the amount of advance is recoverable. An officer in staff grade is also eligible for this advance.

13:2 **Amount of the loan :-** An advance of Rs. 5000.00 for the celebration of any one annual festival of the officer's choice. The permissible limits on deductions referred to in sub section 3:5 will not apply to this advance. This advance is free of interest.

[Revision](#)

[Revision 2](#)

13:3 **Sureties :-** No sureties are required.

13:4 **Time of payment :-** The advance will be paid not earlier than two (02) weeks prior to the date of the festival. In the case of a festival spreading over a period of time (e.g. pilgrimage to Sri Pada, Ramazan) the advance may be paid two (02) weeks prior to the date on which it was granted in the previous year for the same festival.

13:5 The advance is recoverable in ten (10) monthly installments or earlier if circumstances require it. Should any employee's service be terminated before the full amount has been recovered, the balance outstanding, together with any other liabilities to Government, will be a first charge on any monies payable to him. Where such termination of service can be anticipated the number of installments shall be reduced so as to ensure recovery of the full amount, before termination of employment.

[Revision](#)

[Revision 2](#)

13:6 **Frequency:-** Only one such advance should be given in any period of twelve (12) months. Where the date of the festival for which the advance is sought is variable (e.g. Wesak), an advance for the same festival may be granted in a subsequent calendar year even before the lapse of twelve (12) months.

14. Salary advance to public officers who suffer property damage and/or loss of movables as a result of the disturbances that occur in the country

14:1 A public officer (and where both spouses are public officers each such spouse separately) who suffers property damage and/ or loss of movable as a result of a disturbance that occurs in any part of the country, at any time, where the secretary to the Ministry of Defense determines that a disturbance warranting such a concession has occurred, may be granted,

- (I) An advance up to a maximum of two (02) years new consolidated salary (without allowances) to a confirmed public officer with a minimum of ten (10) years' service as on the date of granting the salary advance; or,

- (II) An advance up to a maximum of one (01) year's new consolidated salary (without allowances) to a confirmed public officer who has less than ten (10) years of service; subject to the following:-
- (a) The amount of loan should be related to the extent of such damage or loss as proved to the satisfaction of the approving authority.
 - (b) The period of re-payment should not exceed eight (08) years.
 - (c) The interest should be 4.2%.
 - (d) Two personal guarantors from among confirmed public officers should be provided; (The approving authority should satisfy himself that the two (02) personal guarantors proposed are fit and proper persons in terms of the provisions in the Establishments code). The Loan Gurantee Certificate in Agrahara could be furnished in lieu of furnishing sureties.
 - (e) The amount of the advance and/ or installment should be so determined that the loan and interest can be fully recovered by the time the recipient reaches the age of fifty five (55) years.
 - (f) A public officer who is close to fifty five (55) years of age, may be granted the salary advance on an irrevocable undertaking that he will either settle the loan before retirement or, on retirement he will commute his pension and authorize the Director General of Pensions or the Head of Department to recover any out standing balance from his commuted pension or the pension. The form shown in appendix 23 of the Establishment code should be used for obtaining this irrevocable undertaking.

There is no objection to computing the re-payment installment on the basis that the re-payment of the salary advance will be spread over a period of not more than eight (08) years and;

- (g) in the event of death /retirement under any circumstances before the age of fifty-five (55) years, the advance and interest outstanding at the time of the event should be a first charge of the commuted pension and or gratuity of the officer concerned.
- 14:2 (a) This salary advance is independent of and in addition to any loan already granted to a public officer or his spouse.
- (b) the recipient and the guarantors are exempted from the 40% deduction limit stipulated in F.R.238 and Sub Section 3.5 of this chapter

- (c) An officer who has already obtained a salary advance under Public Administration Circulars 237, 250, 313, 358, 381 and 386 also may be paid the difference between the unrecovered balance and the amount he is eligible for under these provisions, if he suffers such a damage once again.

14:3 Application for this salary advance may be made on the prescribed form under Appendix 29 of the Establishments Code.

14:4 The value of stamps to be affixed to the agreement and the surety bond are Rs. 1.00 and Rs.10.00 respectively.

14:5 The salary advance of an officer of Staff Grade should be authorized by the Secretary to the Ministry and that of others should be authorized by the Head of Department concerned.

14:6 This salary advance should be operated through the individual Advance Account of each Department for Advances to Public Officers.

14:7 Action should be taken to revise the limits of the Advance Accounts where necessary, in terms of F.R. 503 and Public Enterprises Division Circular Letter No.43 of 11.09.1987.

14:8 Recovery of installment of principal should be credited to the “Advance to Public Officers Account- ‘B’ Account from which this advance is payable. Recovery of interest should be credited to Revenue Head 5: Rents, Interest, Profits and Dividends received, Sub-Head 2: Interest, Item 4: Other, and accounted for separately.

14:9 A separate Register on Form C.C.10 should be maintained for recording the payment and recovery of installments of capital and the equated monthly interest. Monthly interest should be computed on the basis of the formula in Appendix 21 of the Establishments Code.

14:10 Regarding an officer who is transferred, the procedure normally adopted in respect of recoveries of advance from Advance Account should be followed; i.e the outstanding balance of the advance should be paid to the Department releasing him, by the Department taking him in., debiting its “Advance to Public Officers Account – ‘B’ Account” and thereafter recoveries continued in installments ensuring that in any case the recoveries are completed by the specified date.

14:11 Where a public officer who obtained an advance under this scheme ceases to be in service, the Payment and Establishments Units should ensure that the balance advance outstanding (including equated interest) from such officer is recovered from his pension/ surety/gratuity or other monies payable to him from which such a recovery may legally be made.

CHAPTER XXV

CONCESSIONS TO MEMBERS OF TRADE UNIONS

1. Recovery of Subscription
2. Duty Leave
3. Railway Warrants
4. Release of an officer for Trade Union Work
5. Salary payable to an officer released for Trade Union Work
6. Trade Union Federations
7. Transfer of Trade Union Officials
8. Supply of copies of Departmental Circulars

CHAPTER XXV

CONCESSIONS TO MEMBERS OF TRADE UNIONS

1. Membership subscription, Contributions to Death Donation Schemes and other similar schemes

1:1 The Subscription of a member of Registered Trade Union of Public officers may be recovered on the pay abstract. A registered Trade Union is a Trade Union registered by the Registrar of Trade Unions and will, in this chapter be referred to as a "Union".

1:2 The Union should furnish the respective paying officers, form signed by the member expressing his consent to the recovery of the subscription on the pay abstract. The form should be filed in the officer's Department personal file.

1:3 When an officer is transferred to another Department, a note should be made in the list of recoveries furnished to the new paying officer to the effect that the option has been exercised.

1:4 An officer may revoke his option in writing to the paying officer. Where intimation of such revocation is not sent through the Union, the paying officer should inform the Union, in writing, of the date from which recovery will cease to be made from that member. An appeal from any party to stay action in order to enable it to canvass the officer will not be entertained.

1:5 A Union which collects monthly subscriptions should furnish the paying officer a schedule, in duplicate, of the recoveries to be made from each of its members, commencing from the first month of the Financial Year. The amounts to be recovered from each member in the first month of the Financial Year should be entered in the appropriate column of the schedule, both copies of which should be forwarded to the appropriate paying officer before the tenth day of that month. The paying officer will retain one copy of the schedule and return the other to the Union together with the remittances. This process will be repeated in each of the subsequent months of that Financial Year.

1:6 The paying officer will note on the copy of the schedule retained with him, any alterations made by a Union in the schedules it forwards to him each month. Similarly, any alteration made by the paying officer on his copy of the Schedule should also be entered on the copy of the schedule returned to the Trade Union.

1:7 A Union which collects subscriptions quarterly, half yearly or annually should furnish lists in duplicate before the 7th day of the first month in which those subscriptions fall due.

1:8 When an officer is transferred from one Department to another, the Department which he leaves should inform his new Department of the amount to be recovered. The new Department should make the recoveries and add the officer's name and other particulars to the schedule of that Department.

1:9 The limit on recoveries made from an officer's salary will take into account all recoveries made under these provisions (see sub section 3:5 Chapter XXIV).

2. Duty Leave

2:1 A member of a Union may, subject to the exigencies of service, be granted one day's duty leave and one set of railway warrants for the purpose of attending the annual general meeting of his Union

2:1:1 The expenses incurred by travelling in buses of Sri Lanka Transport Board by an officer who is entitled to participate in the annual general meeting of a trade union, can be reimbursed, on his personal request instead of issuing a set of railway warrants.

2:2 A member of a deputation from a Union may be allowed duty leave and railway warrants to interview a Minister, Secretary or Head of the Department, provided that the number of members forming the deputation does not exceed three and provided the Minister or the official concerned has agreed to meet the deputation.

2:3 Members of Branch Union of All Island Trade Unions recognized by the Government are entitled to obtain half a day's duty leave to participate in annual general meeting of such Branch Unions.

3. Railway Warrants

3:1 The cost of warrants issued under sub section 2: 1 and 2: 2 should be debited as directed by the Director of Accounts and Payment. Against the cage "nature of duty" in the warrant the letters "T. U." (denoting Trade Union) should be written. The specific purpose for which the warrant was issued and the name of the Trade Union concerned should also be indicated. (For example: - T.U.-Annual General Meeting ofUnion).

3:2 When a liability is so incurred, an allocation should be obtained from the Director of Accounts and Payments.

3:3 The procedure laid down by the Director of Accounts and Payments should be followed in regard to obtaining of allocations and intimation of debits raised against it.

3:4 Care should be taken to see that these concessions are not availed of by a person, who is not a registered member of a Union or whose membership has lapsed.

4. Release of an office-bearer of a Union for full time Trade Union Work

4:1 An official of a Union will be released for full time Union work, in the first instance for two (02) years or as long as he holds office in the Union whichever period is less, subject to the exigencies of service. The period of release may be extended up to four (04) years in respect of an official, at the request of the Union concerned.

4:2 If an officer is to be released, the Union should have a membership of at least 1000, where the membership is scattered, and 1,500 where it is not scattered or confined to one Establishment or station. In the case of a Union which has a membership of over 3,000 two officers could be released for full time Union work. However for a Union of which the membership is less than 1000 but is more than 500 an officer shall not be released full time for Trade Union Activities but a Chief Officer of such a Trade Union could be granted a maximum of two days Duty Leave per month for such purposes.

4:3 On request, a yearly extension of period beyond four (04) years of release may be granted with the concurrence of the Minister in charge of the Department to which the officer belongs, subject to the exigencies of the service. Any request from a Union for such an extension should be accompanied by the officer's written consent to such extension.

4:4 The prior approval of the Director General of Establishments should be obtained for the grant of these concessions.

5. Salary payable to a union official who has been released for full-time Union work

5:1 The Trade Union need not pay the pensionary contribution, even if the officer holds a pensionable post.

5:2 If he is a contributor to the Public Service Provident Fund, the Union should pay the Government's contribution to the Public Service Provident Fund.

5:3 The Government should pay the salary and the Cost of Living Allowance of such officer.

6. Trade Union Federations

6:1 Two officials from each Trade Union Federation accepted by the Government shall be released for full time Federation Work.

6:2 The Salary and allowances of an official released under sub section 6:1 will be paid by the government.

6:3 The Union officials released under sub section 6:1 should be given free Railway Warrants and free passes in the Central Transport Board buses to proceed to any station in the Island on purely Union work.

6:4 The representatives of a Trade Union affiliated to a Trade Union Federation recognized by Government may be granted one day's Duty Leave and a set of free Railway Warrants to attend Annual General Meeting of his Federation, subject to exigencies of service.

6:4:1 Whenever such officers make personal requests, the expenses incurred by traveling in buses of Sri Lanka Transport Board to participate in the annual general meeting can be reimbursed instead of issuing a set of railway warrants.

7. Transfer of Union Officials

7:1 Key office bearers of parent organization of a Union should be posted to stations where their services are required for the work of the Union, and will not be liable to transfer under the normal transfer rules. Decision for transferring them should be taken by the Secretary of the ministry.

7:2 The number and the designation of the office bearers who should be granted this concession to which union this concession will be granted and the stations to which they should be posted will be determined by the appropriate authority (as defined in sub section 7:6) in consultation with Union concerned.

7:3 An officer posted to a station under sub section 7:1 will become liable to transfer under the normal rules on his ceasing to hold the office which entitled him to the concession, or on promotion to a higher post, class or grade.

7:4 The grant of this concession should, at all times, be subject to the exigencies of the service and to disciplinary requirements. If the transfer of an officer enjoying this concession becomes necessary for such reasons, the approval of the Minister in charge of that Department should be obtained.

7:5 A Union which desires to avail itself of this concession should apply to the appropriate Authority stating;

the names of the office bearers for whom this concession is requested,
the stations to which such of them should be posted, and
the current membership of the Union.

7:6 The appropriate Authority in respect of ;

a Union of officers of a Combined Service is the Secretary to the
Ministry in charge of Public Administration.

a Union, the membership of which is confined to officers of a single Department, is the Head of the Department.

a Union the membership of which is not limited to officers of a single Department is the Secretary to the Minister of Public Administration.

8. Supply of copies of Departmental Circulars

8:1 One copy of each Department Circular, which may be of interest to a Union should be issued to that Union free of charge. While additional copies of printed Circulars could be purchased by the Union from the Government Publication Bureau, for additional copies of cyclostyled circulars the following charges should be levied:

Foolscap folio	--- 20 cts.per copy
Foolscap folio on both sides	--- 40 cts.per copy
Foolscap quarto	--- 10 cts.per copy
Foolscap quarto on both sides	--- 20 cts.per copy

8:2 If type written copies have to be made, the charges should be as determined by the Director General of Establishments.

8:3 Copies of circulars of a confidential or secret nature should not be supplied to a Union.

CHAPTER XXVI

MEDICAL ATTENTION AND MEDICAL EXAMINATION OF OFFICERS FOR PHYSICAL FITNESS

1. General
2. Rates
3. Recovery of Hospital Charges
4. Medical Examination
5. Fee for Medical Examination

CHAPTER XXVI

MEDICAL ATTENTION AND MEDICAL EXAMINATION OF OFFICERS FOR PHYSICAL FITNESS

1. General

1:1 The term "family" in this Section means, in the case of a married officer his spouse and dependent children. In the case of a widower, the children and the officer's mother or sister, if dependent on the officer.

In the case of an unmarried officer, the officer's mother/father or sister/brother, if dependent on the officer.

A married daughter is not regarded as a dependent child. A son of 18 years and over is not regarded as a dependent child, except where he is a permanent invalid.

The term " Sister" does not include a widowed sister.

The term "dependent" in so far as it applied to a mother/father/and/or sister/brother should be construed as in sub section 1:3:4 of Chapter XVI.

2. Rates

2:1 A Medical Officer is required to attend free of charge on any public officer drawing a salary of less than Rs. 18,030.00 provided he is not put to any expense thereby, when it is necessary for a Medical Officer to visit such a public officer at his house, a suitable conveyance must be supplied by the officer if the distance from the hospital to his house exceeds one mile, or he must pay mileage at the rate of Rs. 6 for each completed mile beyond the first mile.

Free medical attendance under this regulation includes bacteriological examination of faces, blood tests, chemical examination of urine and faces and similar tests necessary for a diagnosis but does not include an X-Ray examination.

2:2 A public officer drawing a monthly salary of Rs. 18,030.00 or more but less than Rs.19,710.00 will be entitled to medical attention at a station other than Colombo, Kandy, Galle and Jaffna at the rates indicated in column 3 below.

2:3 At Colombo, Kandy, Galle and Jaffna, a public officer, a pensioner and their families with the exception of a public officer entitled to free treatment under sub section 2:2 should make his own arrangements for medical treatment.

	<i>Family of a public officer drawing a monthly salary less than Rs.16,440.00</i>	<i>Family of a public officer drawing a monthly salary of Rs.16,440 or over but less than Rs.17,160.00</i>	<i>A public officer and his family drawing a monthly salary of Rs.17,160.00 or over but less than Rs.18,600.00</i>
	<i>A pensioner and his family drawing a monthly pension less than Rs.16,440.00</i>	<i>A pensioner and his family drawing a monthly pension of Rs. 16,440 or over but less than Rs.17,160.00</i>	<i>A pensioner and his family drawing a monthly pension of Rs. 17,160.00 or over but less than Rs.18,600.00</i>
	<i>Rs. C.</i>	<i>Rs. C.</i>	<i>Rs. C.</i>
For first visit	10 00	15 00	20 00
For every subsequent visit in the same case	10 00	15 00	20 00
For attending a case of confinement until convalescence (3 visits)	60 00	80 00	100 00
In the case of each visit, to a house situated beyond one mile from the hospital mileage for each completed mile beyond the first mile	10 00	15 00	15 00

2:4 Sub sections 2:1 - 2:3 do not apply to officers and men of the Police department, who are entitled to free medical attention at their homes for themselves and their families by the nearest Medical Officer or to officers of the Prisons Department of the rank of Jailor and under and their families, if such families reside within a mile of the Prison, all of whom are entitled to free medical attention at their homes by the Prison Medical Officers.

2:5 The regulations and charges applicable to the medical treatment of Government Officers and their families at Government Hospitals and Dispensaries are given in the booklet "Hospital Charges and Regulations" issued by the Department of Health.

3. Recovery of Hospital Charges

3:1 A public officer holding a pensionable post or who contributes to the P.S.P.F. and who counts not less than three (03) years' service is allowed the concession of paying his hospital charges, in monthly installments, not exceeding eighteen, provided the Head of Department is satisfied that;

The officer is unable to pay the usual charges in advance;

the officer is likely to continue to be employed in the Public Service during the period in which recovery of the charges in installments is to be made; and,

the installments to be recovered can be accommodated within the limit of the deductions permitted from an officer's salary.

3:2 A Head of Department may, at his discretion, and where the circumstances of the case merit it, extend the concession of recovery of hospital charges in installments to a public officer who does not satisfy the requirements above.

3:3 An officer desiring treatment in a Government Medical Institution and who is entitled to the concessions allowed in sub section 3:1 should obtain a letter of introduction from the Head or Local Head of the Department in the form prescribed below. Before obtaining this letter of introduction, the officer should provide an undertaking in writing to the Head or Local Head of the Department that he will pay all sums due on bills rendered by the Medical Authorities and that for this purpose he consents to recovery of such dues from his salary and allowances or any other amount due to him from Government, irrespective of any dispute that may arise between himself and the medical authorities as to the amount of the Bills etc.

The Local Head of the Department for this purpose will be the Head of a District or Divisional Officer of the Department, who has been authorized by the Head of Department to issue such letters. This should necessarily be at an office where the bill, when received, can be paid and recoveries can be deducted from the officer's salary and accounted for.

Form of Letter of Introduction referred to in sub section 3:3-

M.S./D.M.O.

Mr./Mrs./Miss..... is a
(Designation) attached to this Department and can be granted the usual concession under Chapter XXVI of the Establishments Code. The bill may be rendered to me for settlement.

.....
Head of Department/Local Head of Departments

.....
Designation

3:4 The officer in charge of the Medical Institution should forward the bill for hospital charges to the Head or Local Head of the Department in which the officer is employed. Copies should be sent to the Auditor General and to the officer either by personal delivery or under registered cover.

3:5 The Head or Local Head of the Department should settle the bill within one (01) week of its receipt. The cheque, money order etc., for the payment should be forwarded according to the instructions laid down in the bill. The amount paid should be debited to the "Advances to Public Officers Account", on which the Department concerned operates. For purposes of accounting and recovery, the amount recorded in the bill will be treated as an advance free of interest to the officer and a separate subsidiary account of such advance should be maintained in respect of the officer concerned in Form ' B ' in the Departmental books.

3:6 The amount should be recovered in eighteen consecutive monthly installments from the salary of the officer, until the full amount due on the bill is settled, the first installment being recovered not later than the month following that in which the bill is received. All such recoveries from the officer's salary should be credited to the Advance Account, and correspondingly posted to the separate subsidiary account opened in respect of the Advance (Form 'B').

3:7 If an officer's stay in the hospital extends beyond a period of four weeks, the hospital authorities should forward to the Head or Local Head of the Department, an interim bill in respect of such period. When interim bills are received, each of them should be settled in full in the same manner as in sub section 3:4 - 3:6 and recoveries made in suitable installments (not less than Rs. 25.00 each) until the final bill is received. When the final bill is received, the total amount outstanding should be recovered in suitable installment, in such a manner that the total number of installments, including recoveries already made on interim bills, does not exceed eighteen.

3:8 To ensure that the installments due on the hospital bills are regularly recovered, the Head of the Department should not permit new deductions to be accommodated on the pay abstract, which would cause an excess on the limit on deductions without the specific authority of the Secretary.

3:9 When an officer is transferred to a new Department, the balance to be recovered and the number of installments should be notified to the Department to which he is transferred. The latter Department should forward a cheque to the former in full settlement of the outstanding amount and the new Department should continue to make recoveries until the outstanding amount is settled in full. The accounting should be as laid down in sub section 3:4 - 3:6.

3:10 When an officer retires, is dismissed, or dies, steps should be taken immediately to ensure that any sum outstanding on account of hospital charges is

recovered from the last salary, pension, gratuity or provident fund or other dues payable to the officer. Where the sum to be recovered exceeds the available dues to the officer, the instructions of the Treasury should be sought.

4. Medical Examination

4:1 The appropriate authority (see Minute on Pensions) may, at any time, and should, if the officer so requests, call upon an officer to present himself for examination by an approved medical practitioner, or by a duly constituted Medical Board, with a view to it being ascertained whether the officer is physically capable of performing the duties of his appointment or of any appointment to which it may be proposed to transfer him.

4:2 For this purpose an application on form G.142, should be made to the Director of the General Hospital (Teaching) Colombo, Kandy, Peradeniya, Galle or Jaffna in respect of an officer working in the respective district. In all other instances application should be made to the Regional Director of Health Services of the area.

The Director of the General Hospital (Teaching) / the Regional Director of Health Services will arrange for a Medical Examination Board.

If no Medical Examination Boards are held in the region concerned, the officer will be referred to the Regional Director of Health Services of the adjoining or nearest region where a Board could be constituted. No Medical Officer who issues the Medical Certificates should function as a Member of the Board to examine the same patient.

4:3 The person or persons appointed to conduct the examination will have the discretion to call a specialist into consultation.

4:4 The report of the examination should be furnished to the Head of the Department or other authority concerned, as the case may be, but should not be communicated directly to the officer concerned.

4:5 The officer should, however, be informed at the earliest possible date, of the decision reached in his case by the Head of the Department or other authority, as the case may be, after consideration of the report and, if the officer is dissatisfied with that decision, he may make representations against it; in this event, the Head of the Department or other authority should decide, at his discretion, whether any further medical evidence should be called for.

5. Fee for Medical Examination

5:1 Any fee in respect of the examination inclusive of the fee of any specialist called, in the absence of any special regulations or arrangements to the contrary, should be paid by the Government.

5:2 No fee will be charged from an officer who is required or specially ordered to undergo vaccination or inoculation on first appointment.

5:3 An officer ordered into hospital by a Medical Board for observation and further examination will be charged only for extras (including wages of special attendants) and for such operation or examination as is not necessary for the investigation, but is provided at the patient's own request or on the advice of any doctor attending on him.

5:4 Where the medical examination or Medical Board is ordered by the Government, the travelling expenses incurred by an officer attending the medical examination or Medical Board will be paid from the Departmental provision for travelling as if he had travelled on duty. No such expenses should be paid if the examination or Board is held at the request of the officer.

CHAPTER XXVII
CHANNELS OF COMMUNICATION

1. The Minister
2. The Attorney - General
3. The Secretary
4. The Head of Department
5. The District Secretary/ The Government Agent

CHAPTER XXVII

CHANNELS OF COMMUNICATION

1. The Minister

1:1 A Minister corresponds directly with another Minister.

2. The Attorney General

The Attorney General corresponds directly with the President, the Prime Minister, the Speaker and Ministers.

3. The Secretary

3:1 The Secretary of each Ministry, will subject to the general direction and control of the Minister, exercise supervision over the Departments of Government grouped under his Ministry.

3:2 The Minister communicates to the Secretary the policies of Government and the Secretary is responsible for implementing them through the Heads of Departments of his Ministry.

3:3 Conclusions of the Cabinet affecting a Department will be conveyed to it by the Secretary of the Ministry, who is charged with the duty of ensuring that such a decision is given effect to.

3:4 When the Secretary minutes a departmental file to the Minister, he should record his own views and recommendations on the file. A secretary may, if he thinks it desirable, start a separate file in his own office on which he will minute to the Minister.

3:5 A Secretary is responsible generally for all establishment matters relating to a Department under his supervision.

He should perform such functions in regard to establishment matters as may be specifically or generally delegated to him by regulation or by the Secretary to the Ministry in charge of the subject of Public Administration, or the Director General of Establishments.

3:6 Where powers in establishment matters are delegated to a Head of Department by this code or by other regulations, the Secretary should, in the exercise of his general supervision over a Department, be responsible for the due observance of such regulations by his Departments.

3:7 The Secretary will correspond with the Public Service Commission as provided for in Chapter XLVIII of the Establishments Code.

3:8 A Secretary should deal personally with all important business affecting his Ministry. A large proportion of matters relating to other Ministries will fall into this category.

He may, however, authorize an Additional Secretary or a Senior Assistant Secretary to deal with matters that the latter is competent to handle, having regard to his efficiency and experience. The subjects so delegated as well as the limits of the delegation must be clearly and precisely set down. A Secretary must ensure that such a delegation of authority does not impede the orderly progress of business with other Ministries and Departments.

Such a delegation will not, however, absolve the Secretary of his general responsibility in respect of all matters falling under his control. He will also be answerable if he has wrongly exercised his power of delegation.

3:9 The normal correspondence between a Minister or Secretary and a Department under the general control of another Minister is to the Minister or Secretary concerned and not directly to the Head of the Department or other officer.

3:10 A Secretary may, however, in respect of the subjects and functions in charge of his Minister, correspond directly with and utilize the service of any District Secretary/ Government Agent, or of any head of a Department by whom such subjects or functions are administered.

A Head of Department under the control of one Minister who also administers subjects or functions which are allocated to another Minister may correspond directly with the Secretary of the Ministry in charge of those subjects and functions, unless expressly prohibited by regulation or otherwise.

4. The Head of a Department

4:1 The Head of a Department is responsible for giving effect to the policies of the Government and directions of the Minister, which will be conveyed to him by the Secretary.

4:2 When a Head of a Department raises a question requiring consideration by the Minister, or advises on any question referred to him by the Secretary, he should embody the salient facts, the issues involved and alternative courses of action, together with his recommendations in a written report, which he should forward to the Secretary.

4:3 He is responsible to the Secretary for the administration of his Department.

He should in particular, perform the functions allocated to him in the Establishments Code and in the Financial Regulations and in any other written law, regulation or order.

He is responsible for the performance of the technical duties of the Department.

It is his duty to give effect to the directions of the Minister conveyed to him by the Secretary. It is his duty, in respect of the subjects and functions administered by his Department, to assist in every way possible, other Ministries and Departments.

4:4 Before a Head of a Department which is under the general control of a Minister proceeds to do any administrative act which involves a question of principle not previously decided, or which is likely to cause public controversy, or any act of major importance not duly sanctioned, he should submit the matter to the Secretary.

4:5 Before a Head of a Department carries out any act, which affects the functions of any other Department, he should, unless otherwise directed by the Secretary, consult the Head of the Department likely to be affected.

4:6 As far as possible, a communication between the Head of a Department and the Secretary should take the form of minutes. A Head of a Department should avoid writing letters to a Secretary. The papers containing those minutes should, as far as possible, be filed in the file of the Department concerned.

A Secretary may however, maintain a separate file for the accommodation of papers, which cannot appropriately be filed in a departmental file.

4:7 Heads of the Departments may correspond directly with each other in respect of subjects or functions administered by their Departments. A proposal of a Head of a Department involving reference to the Head of another Department should be fully discussed with him before it is placed before the Secretaries concerned and the fact that this has been done should be made clear in the correspondence.

4:8 A Minister, his Deputy Minister and the Secretary of a Ministry are entitled to see any official record or file, which is kept in any of the Departments of the Ministry under their control or kept in any other Department in respect of the subjects or functions assigned to the Minister, which are administered by such other Department.

5. The District Secretary/ The Government Agent

5:1 The District Secretary/Government Agent is the representative of the Government in the District, and is responsible to and functions under the direction, and control of the Secretary to the Ministry in charge of the subject of Home Affairs.

Chapter XXVII]

5:2 He is also the Agent for a Ministry in respect of such functions as it may be assigned to him in consultation with the Secretary to the Ministry in charge of the subject of Home Affairs.

5:3 He is responsible for the co-ordination of all government activities in his district.

5:4 The District Secretary/Government Agent may correspond with the Secretary of any Ministry directly or through the Head of the Department concerned in respect of the subjects or functions allocated to that Ministry.

CHAPTER XXVIII
ADMINISTRATIVE PROCEDURES

1. General
2. Official Circuits
3. Official Correspondence
4. Taking or Issue of Copies of Official Correspondence and Official Documents
5. Representations from public officers
6. Representations from members of the Public or from public officers in their private capacity
7. Reports
8. Diaries and Reviews
9. Custody, Preservation and Destruction of Official Documents
10. Addresses of Officers and next-of-kin
11. Ceremonial Functions
12. Provinces and Districts
13. Information about diseases

CHAPTER XXVIII

ADMINISTRATIVE PROCEDURES

1. General

1:1 The general hours of business during which public officers must attend office, except where otherwise provided for, are from 8.30 a.m. to 4.15 p.m. on all working days. Government offices must remain open for cash transactions till 3.00 p.m. on all working days.

1:2 Though these are the general office hours, a Head of the Department is not restricted to employing his subordinates only within these hours when there is a necessity for their services outside these hours.

1:3 An attendance register must be kept in every office, in which his time of arrival and departure of every officer of the Department should be written, with his signature and these books must be regularly submitted to a Staff Officer for verification.

1:3:1 The register should not be so maintained that the names of officers are first entered in a particular order and the relevant officer enters the time of his arrival and departure and signs against his name.

1:4 A public office is not to be closed on a day other than a public holiday, except by permission of the Secretary.

1:5 Publication in the Gazette is sufficient notice to every Government Department and officer of the facts published. An officer should be assigned the duty of ensuring that all changes and instructions Gazetted are duly noted, and acted upon. The fact that special instructions have not been received will not be an excuse for inattention.

1:6 A Head of the Department must not permit a member of the public to enter the office for the purpose of canvassing support at an election or for a subscription or to make a collection of money from members of the staff.

1:7 Writing in green, whether in ink or in pencil on official documents is reserved for officers of the Audit, and should not be done by any other officer.

1:8 Before the 15th January of each year, every officer should furnish a statement on form General 176.

1:9 A public officer is not permitted to obtain information regarding a person's race in routine forms devised for the purpose.

2. Official Circuits

2:1 A Head of the Department before/ prior to leaving his headquarters on official business must report, confidentially, if necessary, to the Secretary to the Ministry concerned, the date of his proposed departure and the stations he intends to visit.

2:2 A Head of the Department and an Inspecting officer should, as a matter of courtesy, notify the Government Agent/District Secretary of a proposed visit to his District, except where secrecy is necessary.

3. Official Correspondence

3:1 The following rules should be observed in all official correspondence:-

- (a) Each letter must, as far as possible, be confined to a single subject;
- (b) The number and date of the letter must be placed in the right hand top corner of the letter;
- (c) A letter must be dated at the time when he subscribes his name to it;
- (d) The subject with which a letter deals must be briefly stated as a heading to it;
- (e) The corresponding with members of the public, the form of address should be:

Sir,

.....

Yours faithfully,

- (f) A letter from a member of Parliament written to an official directly, whether by designation or personally may be replied to by the official;
- (g) If a letter relates to a matter which has formed the subject of previous correspondence, that correspondence must be quoted;
- (h) The paragraphs should be numbered;
 - (i) An original should not be sent as an annex, if a copy would serve;
 - (j) An annex should be securely attached to the letter forwarding it;
- (k) If several letters on distinct subjects are forwarded under cover of one envelope, they should not be fastened together;
- (l) The name of the signatory should be given below the signature and above the designation.

3: 2 All official correspondence should be relevant, polite and clearly expressed.

3:3 A letter from a Head of Department must, in all important cases, be signed by him. When this is not possible, if the Head of the Department has either drafted the letter or specially directed the particular information to be furnished, the officer signing should insert the name of the Head of the Department above the place for signature, adding "Signed" by before it, and put his own signature and designation on the left side of the page; thus, in the case of a Government Agent/ District Secretary.

Yours faithfully,
(Signed by) C.D.
Government Agent/District
Secretary.

Signature :
Name with initials:
Office Assistant/Administrative Officer.

In other cases, the signature should be that of the individual responsible for the letter, who should sign on behalf of the Head of the Department, thus:

.....
Signature.

Name with initials and designation:
for Government Agent/ District Secretary

An officer authorized to sign for a Head of the Department may frank an endorsement letter or memorandum on minor and routine matters.

3:3:1 The procedure indicated below should be adopted if a letter to be dispatched under counter signature

- (i) Each Secretary of the Ministry/Head of the Department should issue to his officers, a list of designations the holders of which only, can have their orders/communications issued under counter signature.
- (ii) Each Secretary of the Ministry/Head of the Department should issue a list of designations of those officers only who may counter signature.
- (iii) At the appropriate places, the designation and the name of the officer whose order/communication is being conveyed under counter signature as well as the designation and name of the officer counter signing, should be given as shown in the Sub-section 3:3 above.

3:3:2 The officer whose order/ communication is permitted to be conveyed using the device of counter signature, should allow it to be adopted only where the order/communication is expressed by him in writing in definite unambiguous

form, exactly as it is to be conveyed in the counter-signed letter. Particularly where the letter is not merely a reply in the negative or in the positive it is necessary that he should give a specific draft text to be conveyed counter-signed exactly as drafted.

3:4 Correspondence with another Government or its representatives in Sri Lanka or abroad, and with a representative of the Government of Sri Lanka abroad, should be conducted through the Secretary to the Ministry of Foreign Affairs or in accordance with his instructions.

3:5 The Head of a Department is responsible for the contents of every letter which issues from his office, irrespective of signatory.

3:6 Confidential correspondence and documents should be enclosed in two envelopes, one inside the other. The inner envelope should be marked "Confidential" but the outer one should not be so marked. The inner envelope should be folded to be smaller than the other.

3:6:1 All correspondence marked "Confidential" must personally be opened by the Head of the Department or by a Staff Officer specially authorized by him to do so.

3:6:2 One officer should ordinarily be appointed in every office to deal with all the confidential work of the office.

3:6:3 Care must be exercised to ensure that the contents of confidential paper do not become known to any person other than those for whom it is intended.

3:6:4 No reference to confidential correspondence should be made in open correspondence.

3:7 Any package containing a Court record or other important document such as a deed, transmitted by post must be registered.

3:8 Any communication received from a member of the Public or another Government Department should be replied to promptly. An interim reply on Form General 108 should be sent within one week of the receipt of the communication if it is not possible to send a final reply by that time. If further delay is unavoidable, all interim replies should be sent from time to time explaining the action that is being taken and stating when a reply may be expected.

4. Taking or Issue of Copies of Official Correspondence and Official Documents.

4:1 An officer is prohibited from taking for his own purpose any copy of a letter or a report referring to himself or to any other unpublished official document.

4:2 A copy of a letter sent by one Government Department to another should not ordinarily be issued by the latter Department to any private person. If the contents are intended to be communicated, they should be embodied in a separate letter addressed to the person concerned.

4:3 A certified copy of a letter or a reply to it should not be issued to any person other than the writer of that letter except on an order of Court and on payment of the prescribed copying fees.

[New Inclusion](#)

5. Representations from Public Officers

5:1 Any officer may address an application or appeal to any duly constituted authority on any matter directly affecting his personal interests. His superior officer is bound to forward every such application or appeal.

5:2 Such an application or appeal should not be forwarded if it is couched in impolite, improper or insulting language.

5:3 If it is accepted, it should be acknowledged at once and the officer should be informed that the communication will be forwarded to its proper destination,

5:4 An application or an appeal must be forwarded through the Head of the Applicant's Department and any other appropriate authority.

Any such from an ex-public officer should, except when addressed to the Public Service Commission, be forwarded through the Head of the Department in which the officer last served.

5:5 An appeal regarding a disciplinary matter should conform to the rules in Chapter XLVIII.

5:6 The provisions of Section 6 will, in addition, apply to an application or an appeal made by a public officer.

6. Representations from a Member of the Public or from public officer in his Private Capacity

6:1 A written representation or "petition" should, as far as possible, conform to the following rules:-

- (a) It may be in manuscript, typescript or in print; if in manuscript, it must be legibly written and if it is not in the handwriting of the petitioner, it must bear the signature, in legible characters, of the person by whom it is prepared in addition to the signature or thumb impression of the petitioner. A petition must in all cases contain the full address of the petitioner or principal petitioner, and of the petition drawer, if any;

- (b) It should contain every material statement and argument relied upon by the petitioner; be confined to representations on one subject; be addressed to the recipient's official designation and not personally and should end with a specific request.

6:2 Representations will not be entertained in the following cases:-

6:2:1 When they contain an appeal against an order made more than three (03) months before and no satisfactory explanation is furnished for the delay in it;

6:2:2 If one such appeal has been made earlier to the same or higher authority and rejected; a second appeal may be entertained unless otherwise provided for, if the authority receiving the appeal is satisfied on the face of it, that there are new and material facts which might have affected the original decision and that there is sufficient reason for failure to disclose them at an earlier date;

6:2:3 When it is against a decision which is declared to be final by any law or regulation;

6:2:4 When the law prescribes a particular mode of redress e.g. by appeal to the Supreme Court;

6:2:5 Where the relief asked for is from a judgment of a Civil action or from any order in a Civil Court, in a case to which the Government or a public officer, in his capacity as such, was not a party;

6:2:6 When the request is for an inquiry or an investigation into a matter that is pending before a court of Law;

6:2:7 If they are illegibly written, unintelligible or couched in improper or impolite language;

6:2:8 When they are made in the first instance to the Secretary and it appears that they have not first been made to the Head of the Department concerned.

6:3 The President will entertain a petition, only if it relates to a subject on which he may properly be addressed under the Constitution. A petition addressed to the President on a matter falling within the functions of a Minister will be referred by him to the relevant Minister.

6:4 A letter or telegram which merely invites attention to a previous petition presented within the preceding ten (10) days need not be answered, unless the matter is sufficiently urgent and calls for early attention.

[Revision](#)

6:5 These rules do not supersede those relating to any mode of application expressly provided by the law.

7. Reports

7:1 A reporting officer is required to state his own opinion and recommendation when forwarding a communication of his subordinate or of any other person to the Secretary/Head of the Department.

7:2 A recommendation made by a reporting officer on representations addressed to Government, whether by a member of the public or by a public officer, should be treated as confidential.

7:3 A report on representations from a public officer or from a member of the public must indicate, as briefly as possible, the material allegations made in the petition, the redress asked for, and the facts of the case as ascertained by the reporting officer.

The reporting officer should add such observations and remarks as he thinks necessary or relevant to the issues and he must conclude with a suggestion as to the answer which he considers should be given to the petitioner.

7:4 A report on a petition and other representations should be made promptly and in any case not later than a month.

8. Diaries and Reviews

8:1 A diary or a review should be type written on both sides of the paper with paragraphs numbered.

8:2 It should form a record of work done, it should not be used as a medium for criticism, nor should it be encumbered with a recapitulation of facts and opinions which have already been communicated in the ordinary course of official correspondence.

8:3 They should be bound up periodically and preserved.

9. Custody, Preservation and Destruction of Official Documents

9:1 A Head of Department or the “Responsible Officer” as defined in Section 24 of National Archives Law No. 48 of 1973 is responsible for the safe custody, management and preservation of all documents or papers in such public office under his charge.

9:2 Transfer of public records not less than twenty-five (25) years old from the date of their creation, from public office to the National Archives, and the destruction of valueless and ephemeral records in public offices are governed by National Archives Law No. 48 of 1973, as amended by Act No. 30 of 1981 and by regulations made thereunder. [New Inclusion](#)

9:3 A Head of the Department should, in consultation with the Director, National Archives, prepare and update from time to time, schedules of records which should be transferred to the National Archives for permanent preservation and schedules of records which should be destroyed as valueless or ephemeral records.

9:4 The preliminary schedules prepared under Sub-section 9:3 should be sent to the Director, National Archives within a month after the completion of such scheduling for purpose of approval.

9:5 A date should be fixed by each Department for the periodical destruction of valueless records and documents approved for destruction under sub section 9:4 and the destruction of such documents should be done only on the orders and responsibility of the Head of the Department.

9:6 A descriptive record giving the following information in respect of every document or record destroyed should be kept in a suitable register which should be carefully preserved:-

1. Number and date of document or file
2. Subject
3. Period covered
4. A short précis, if the contents do not deal with routine matters
5. Reference to the letter granting authority for destruction
6. Mode of destruction (e.g. whether by shredding, burning or handing them over to the National Paper Mills Corporation etc.)
7. Date of destruction

9:7 A Head of the Department should fix a date, in consultation with the Director, National Archives, for the transfer once every year, of records and documents not less than twenty-five (25) years and which have been scheduled for permanent preservation at the National Archives, under Sub-section 9:3 or have been otherwise selected for such preservation.

9:8 The following are some documents which should not be destroyed:-

- (i) Correspondence with the Colonial Secretary's office prior to the establishment of the Parliament of ceylon 1948;
- (ii) A document or record relating to the establishment, constitution and administration of the Department, appointment of officers and its winding up;
- (iii) A specimen of every new denomination of currency note or coin and any other document declared for the purpose of permanent preservation;
- (iv) A file relating to policy matters;
- (v) A document or record relating to the implementation of the policy matters;

- (vi) A record relating to any Commission or Committee appointed under the Commission of Inquiry Act, Special Presidential Commission or any Committee of Inquiry appointed by the President or by a Minister or by any Special Act of Inquiry passed by the Parliament;
- (vii) A document or record relating to the performance of any public officer;
- (viii) A document or record relating to activities or schemes closed up by any public officer;
- (ix) Evidence of rights or obligation of or against the Government, title or property, claims for compensation not subject to a time limit;
- (x) A record relating to a well-known public or international event or celebration or to other events of National importance;
- (xi) A record relating to important scientific and technical research and development;
- (xii) A record pertaining to matters of significant local and regional interest;
- (xiii) A document relating to land and claims thereto and to the value of land and property, especially crown land, chenas, forests and other lands belonging to individuals or held in joint ownership;
- (xiv) A document required by law to be preserved;
- (xv) Any other record that may be required by the Director, National Archives.

10. Addresses of Officers and next-of-kin

10:1 Every officer must furnish the Head of his Department, the address at which any communication to him, whether he is on leave or not, could reach him.

10:2 Every officer of the Sri Lanka Foreign Service must, on taking up his first appointment under the Government, furnish the Head of his Department the name and address of a next-of-kin or relative in Sri Lanka, to whom intimation of serious illness, accident or death may be given. The particulars furnished should give precise information as to the relationship of the next-of-kin, or relative of the officer.

10:3 An address of a relative and any change in the official designation of the officer should be furnished by the Head of the Department to the Secretary for transmission to the appropriate Mission of Sri Lanka abroad, through the Ministry of Foreign Affairs or other authority concerned. This return should include the name of any officer who has died, or retired from service, or left the Island on leave preparatory to retirement or on termination of appointment, during the year for which the return is furnished.

10:4 Whenever an officer whose nearest relatives reside outside Sri Lanka is seriously ill and there appears to be any danger that the illness may terminate fatally, the Head of his Department must report the fact at once to the Secretary in order that, if necessary the appropriate Sri Lanka Mission abroad or other authority concerned may be informed and requested to communicate with the officer's relatives.

10:5 A further report as to the condition of such an officer should be forwarded to the Secretary, whenever the condition of the patient changes and if three (03) or four (04) days elapse without any alteration in his condition, a report should be made that there is no change in his condition.

10:6 In the event of death, the news together with a statement of the cause and date of death, as well as the name and address of the relative to whom the news is to be conveyed should be reported at once to the Secretary, to be telegraphed to the appropriate Sri Lanka Mission abroad or other Authority concerned, for communication to the relative of the deceased. Full details should be sent to the relatives by post by the Head of the Department in which the officer was serving or by one of his brother officers.

11. Ceremonial Functions

11:1 A Government Agent/District Secretary, a Head of the Department or other officer is not obliged to accept a formal invitation to a ceremonial function held outside his station unless his presence is required at such a function for the performance of an official act or other obligation or unless it is one that directly concerns him in his official capacity.

11:2 No public officer should accept or wear a foreign medal or decoration without having previously obtained the permission of the Government, which should be sought through the Secretary to the Ministry of Foreign Affairs.

12. Provinces and Districts

12:1 The order in which the Provinces and Districts of Sri Lanka should, as far as possible, appear for purposes of a report and in the presentation of statistics, etc., is as follows:-

Order of the Provinces

Western

Central

Southern

Northern

Order of the Districts

Colombo

Gampaha

Kalutara

Kandy

Matale

Nuwara-Eliya

Galle

Matara

Hambantota

Jaffna

Mannar

Vavuniya

Mullaitivu

Kilinochchi

Eastern	Batticaloa
	Ampara
	Trincomalee
North-Western	Kurunegala
	Puttalam
North-Central	Anuradhapura
	Polonnaruwa
Uva	Badulla
	Monaragala
Sabaragamuwa	Ratnapura
	Kegalle

13. Information about Diseases

13:1 An officer who lives in a house in which there is a person suffering from any of the following diseases must immediately notify the Head of his Department.

Quarantinable Diseases:

Cholera
Plague
Relapsing Fever (louse-borne)
Smallpox
Typhus Fever (louse-borne)
Yellow Fever

Non-Quarantinable Diseases:

Acute Anterior Poliomyelitis
Cerebro-spinal Fever
Chickenpox
Diphtheria
Dysentery
Enteric Fever
Infectious Hepatitis
Simple Continued Fever
Typhus Fevers (not louse-borne)

13:1:1 An outbreak of Small pox, Measles, German Measles (Rubella) and any other illness accompanied by a rash, anywhere in the country should also be so notified.

13:1:2 A contact of a quarantinable disease will be segregated and any leave for this purpose will count as special leave on full pay.

13:1:3 It is not necessary for an officer in contact with a person suffering from any non quarantinable disease, to keep away from his workplace.

CHAPTER XXIX

ACQUISITION OF LAND, INVESTMENTS AND MORTGAGES

1. General
2. Declaration of Assets and Liabilities
3. Acquisition of Land
4. Investments, Shares and other Interests

CHAPTER XXIX

ACQUISITION OF LAND, INVESTMENTS AND MORTGAGES

1. General

1:1 Where an officer, such as a Head of Department or Government Agent/District Secretary is the sanctioning or deciding authority under this Section, he should refer any application in which he is personally interested, to the Secretary of the Ministry concerned.

1:2 Correspondence on a matter referred to in this Chapter or copies of such correspondence should ordinarily be filed in the Personal Record File or, where a Personal Record File is not maintained, in the Personal File of the officer (See Section 3 of the Chapter VI). Copies of all such correspondence should also be sent, in respect of an officer of staff grade in a Combined Service and in respect of an officer not of the staff grade in a Combined Service, to the Director General of Combined Services and in respect of others, to the Secretary.

1:3 Papers relating to the acquisition of land, etc., by a Secretary and Head of Department not grouped under any Ministry should be forwarded by them to the Secretary of the Ministry in charge of the subject of Public Administration.

1:4 This Chapter will not apply to a casual laborer.

2. Declaration of Assets and Liabilities

2:1 Upon first appointment to the Public Service, every officer should furnish to the Head of the Department, on Form General 261 (revised) for inclusion in his/her Personal Record File or Personal File; particulars of all assets owned and liabilities incurred by him/her or his/her spouse in his/her own right or transferred or assigned to him/her in consideration of him/her marriage.

2:2 If the officer is unmarried at the time of his first appointment, he should, immediately after marriage, furnish the particulars required by the preceding sub section.

2:3 Every officer should, whenever he/she or his/her spouse acquires subsequently any new interest or asset (of the description in Sub-section 2:1), furnish in writing to the Head of the Department, for inclusion in his Personal Record File or Personal File, full particulars of the asset or interest so acquired. Any failure to do so promptly will be regarded as a breach of discipline.

3. Acquisition of Land

3:1 Acquisition of land or share in land by purchase, lease, gift, inheritance, dowry or a last will does not require the prior approval of the Government Agent of the District/District Secretary, but it must be reported within three months through the Head of the Department to the Government Agent/ District Secretary of the District in which the land is situated, who should, if the acquisition appears improper, or if he otherwise considers it undesirable, refer the matter to the Secretary of the Ministry in which the officer is serving, for such action as may be necessary.

3:1:1 An acquisition must be completed before marriage or within such period as the Government Agent/District Secretary or Secretary of the Ministry, as the case may be, may prescribe, if it is to be accepted as an acquisition by dowry.

3:2 All reports regarding acquisitions by a Head of the Department or by a member of the Sri Lanka Administrative Service should be referred to the Secretary of the Ministry in which he serves, for orders.

3:3 If, in the opinion of the Secretary, any acquisition or holding by or on behalf of any officer is improper, he may order that officer to divest himself of it to such an extent as the Secretary thinks fit.

An acquisition or holding is improper if it might bring an officer's private interests into real or apparent conflict with his public duties or in any way influence him in the discharge of his duties.

3:4 The preceding Sub-sections will apply to an acquisition whether in the officer's own name or that of any member of his family; and also to acquisition made by or on behalf of a spouse as his or her own separate property.

3:5 A non-Sri Lankan officer may not acquire any concession in the Island or any land other than a garden or ground attached to his dwelling house and not cultivated with a view to the sale of produce.

3:6 Sub-section 3:5 will apply to every acquisition of land by way of purchase or gift whether in the officer's own name or that of any other person, including the members of his family, and also to every such acquisition made by the officer's spouse as his or her own separate property.

4. Investments, Shares and other Interests

4:1 A non-Sri Lankan officer should not directly or indirectly acquire any asset or interest of the description in Sub-section 2:1.

4:2 Particulars of every investment made, and share or interest acquired, of the

description in sub section 2:1 by or on behalf of an officer or his or her spouse must be reported to the Secretary of the Ministry through the Head of the Department.

4:3 If an officer has reason to anticipate that any real or apparent conflict between his public duty and private interest may be caused by the fact that he owns or holds or proposes to acquire any shares, assets or interests of the description in Sub-section 2:1, he should report the facts of the case to the Secretary through the Head of the Department and stay all action in that case until the order of the Secretary is received. On the receipt of such an order he should comply with it forthwith.

4:4 If the Secretary has any doubt as to the order he should make in any matter referred to him under this Section, he should consult the Secretary of the Ministry in charge of the subject of Public Administration.

CHAPTER XXX

RIGHTS OF GOVERNMENT OVER ITS OFFICERS

1. Services outside an officer's Regular Employment or Office
2. Inventions and Patents

CHAPTER XXX

RIGHTS OF GOVERNMENT OVER ITS OFFICERS

1. Services outside an officer's Regular Employment or Office

1:1 The Government has a total claim to the time, knowledge, talents and skills of its officers and their salary is fixed on that assumption, unless specifically provided for otherwise.

1:2 No officer should take part in the affairs of any Commercial or Business undertaking or of any firm carrying on any description of professional work.

1:3 An officer should not undertake any service for a Local Government Body, Public Corporation or other Public Body, or for any Private Party, without previously obtaining the sanction of the Secretary. An officer will be permitted to undertake such work only if he -

possesses a special knowledge or skill which is not elsewhere available ; or is employed in Government work which can, with advantage, be amalgamated with the work of a Local Body; or is temporarily required to fill a vacancy in the staff of a Local Body, which demands a degree of ability not adequately possessed by the other members of its staff.

1:4 The permission of the Secretary is required before an officer may undertake for a fee any work outside his normal official duties. Permission will not be given unless it is shown that no other means of getting the work done are reasonably available.

1:4:1 Where permission is granted, such percentage of the fee the officer receives as the Secretary may decide on, in accordance with Section 3 of Chapter IX and with any general instruction issued by the Director General of Establishments, will be credited to the Consolidated Fund, the remainder being appropriated by the officer.

1:5 Sub-section 1:4 and 1:6 will not apply to cases authorized under Chapter IX of this Code and to officers of a Department (e.g. Health) who are governed by the regulations and instructions of that Department regarding private practice and consultation practice.

1:6 An officer should not receive any grant, reward, fee, bonus or gift from any Association or Fund either receiving assistance from public funds or which has

ex-officio on its Committee or Board of Management any public officer, without the prior approval of the Secretary.

If the payment is intended to meet or assist the officer in meeting a surcharge, such approval should not be granted without the concurrence of the authority, who raised the surcharge.

1:7 No officer on leave of absence should accept any paid employment without previously obtaining the approval of the Secretary.

1:8 An officer is not permitted to hold office as a Manager of a School, except with the approval of the Secretary.

1:9 An officer should not be recommended for appointment as an Assessor of property values if it is possible to find a competent person outside the Public Service. Where a public officer is recommended for such appointment, the special reasons for his selection should be stated.

1:10 No officer should undertake any private agency in any matter connected with the exercise of his public duties.

2. Inventions and Patents

2:1 The Government has a right over an invention made by a public officer in the course of his official duties, or with the knowledge and skill so acquired, and the facilities placed at his disposal as a result of his employment.

2:2 A patents Advisory Committee should be set up by the Minister in charge of the subject of patents to advise the Government on such inventions.

2:2:1 The Advisory Committee should be composed of the Solicitor General as Chairman and one or more members of each of the Scientific Departments interested in the invention, selected from time to time by the Minister in charge of the subject of patents.

2:3 Any officer who wishes to obtain a patent, whether in Sri Lanka or abroad in respect of any invention made by him, should forward an application to the appropriate authority with a copy to the Secretary through the Head of his Department.

2:4 The Secretary should make a recommendation to the Secretary of the Ministry concerned with the subject of patents who, in consultation with the Advisory Committee should consider the invention and its possibilities and decide on the rights, which may be allowed to, and the conditions, which may be imposed on the officer seeking the patent.

2:4:1 This decision will be communicated to the officer within two (02) months of the receipt of the copy of his application.

2:5 Pending the decision of the Secretary, all rights in the applicant's invention will be deemed to belong to the Government and to be held by the officer in trust for the Government.

2:6 The extent of the rights and the conditions on which a patent may be allowed will be settled in the following manner.

2:6:1 An applicant whose invention is in all essential matters alien to his employment or official duties will normally be permitted to retain full controlling rights in it; and, where full controlling rights are so allowed, the applicant should himself bear all the expenses of taking out a Patent.

2:6:2 In other cases, any controlling rights allowed to an applicant will be subject to conditions and limitations, in imposing which, a wide discretion will be exercised, and which may include either; the reservation of rights of user by the government free of royalty or the reservation to the government of a share of any commercial proceeds likely to be realized or both such reservations.

2:6:3 An agreement embodying the reservations so made should thereupon be signed by the officer on the one part and the Secretary on behalf of the government on the other.

2:6:4 If it is decided that no controlling rights of any kind should be allowed to an applicant, he should forthwith assign, by a duly executed document, all his rights in, and all the benefit of, the invention to the Secretary on behalf of the Government, but he may be allowed a share of the commercial proceeds of the invention and the Government should meet all expenses incurred in taking out the patent.

2:6:5 Where only limited controlling rights, or no controlling rights, are allowed, or where a reservation of any rights in favor of the Government has been made and only a share of the commercial proceeds is allotted to the applicant, or when the government reserves the right to use the invention free of royalty; he will have the right to claim an Award.

2:6:6 The claim should be made by way of application to be forwarded through the Head of the Department to the Secretary.

2:6:7 The claim for an Award will be dealt with, in the case of an application for a patent in Sri Lanka, only after the acceptance of the complete specifications by the Registrar of Patents, Sri Lanka, under the provision of Section 9 of the Patents' Ordinance (cap. 152) and in the case of an application for patent abroad, after the officer has obtained a patent and has assigned all or any of his rights to the Secretary on behalf of the Government.

2:6:8 In making the Award all reasonable expenses incurred in connection with the invention will be taken into consideration; but at the same time a set-off or deduction will be made in proportion to the value of any share allowed the officer in the commercial proceeds of the invention and the award will in no case exceed the sum of Rs. 200,000.00.

2:6:9 Any Award decided upon or any allocation made to the officer of a share in the commercial proceeds, will be subject to modification by the Secretary of his own motion, or at the request of the officer in the event of any material change in the circumstances that existed at the time of such award or allocation provided that in any such modification of the original decision, the amount of an award which has already been paid shall not be reduced.

2:7 If an officer fails within a reasonable time, to take steps to obtain a patent in respect of any invention made by him, the Secretary with the concurrence of the Secretary of the Ministry in charge of the subject of Patents will order him to make application for the patent.

2:7:1 The expenses of any application so made will, in the first instance, be met by government, but if the officer is eventually allowed full controlling rights in the invention, he should refund all expenditure so incurred unless the Secretary in charge of the Subject of Patents is satisfied that such controlling rights have no commercial value.

In all other respects the rules in the preceding Sub-sections will apply to an officer ordered to make application for a patent, in the same manner as if he had made the application on his own initiative.

2:8 Any officer who acts in contravention of these Regulations, or who, after the assignment of all his controlling rights in any invention to the Secretary as set out in Sub-section 2:6:4, communicates at any time any information, documents, sketch or model connected with the invention to any person to whom it ought not to be communicated, will be guilty of misconduct punishable with dismissal.

CHAPTER XXXI

EXERCISE OF THE RIGHTS OF ASSOCIATION AND EXPRESSION OF OPINION

1. Membership in an Association
2. Representations to Government by an Association
3. Expression of Opinion and Criticism of Government Policy or
Administrative Action

CHAPTER XXXI

EXERCISE OF THE RIGHTS OF ASSOCIATION AND EXPRESSION OF OPINION

1. Membership in an Association

1:1 An officer not entitled to the exercise of political rights in terms of Sub-section 1:1 of Chapter XXXII is prohibited from becoming a member of any political association, of any rate payers association, or any tax payers association or similar association.

1:2 Such an officer, except a member of the Police Force and Prisons staff, may form without specific authority from Government, an association which does not have political objects and which is not associated directly or indirectly with any political party or organization.

1:3 An association of officers formed under Sub-section 1:2 must be registered by the Registrar of Trade Unions under the Trade Unions Ordinance (Cap. 138) to be entitled to make representations to Government on behalf of its members.

1:4 A public officer is prohibited from becoming a member of any Trade Union registered under the Trade Unions Ordinance which permits a person who is not a public officer to be a member. No person who is not a public officer may be appointed to be a patron or office bearer or be admitted to membership of any organization of officers, except as provided for under the Trade Unions Ordinance as amended by the Trade Unions (Amendment) Act No. 24 of 1970.

2. Representation to Government by an Association

2:1 If a recognized association of public officers, whose members are all officers of one department, wishes to make representations to any authority, the representation may be made to that authority direct and a copy must be sent to the Head of the Department and the Secretary.

If the members of the Association are all officers of departments belonging to a single Ministry, a copy must be sent to the Secretary to the Ministry.

If the Association contains officers belonging to more than one Ministry, the copy must be sent to the Secretary to the Ministry of Public Administration.

If all the members of the Association are officers of a Combined Service, a copy must be sent to the Secretary to the Ministry of Public Administration.

2:2 An association of public officers should not address any communication to an authority in regard to the appointment, transfer, dismissal or disciplinary control of a public officer.

3. Expression of Opinion and Criticism of Government Policy or Administrative Action

3:1 A public officer not entitled to the exercise of political rights in terms of Chapter XXXII, should not call a public meeting to consider any action of the Government of Sri Lanka or the Government of any other country or take an active part in such a meeting unless he is authorized to do so in his official capacity with a view to discussion and settlement of points at issue with an association representing special interests.

3:2 Such a public officer should not use the medium of the newspapers, by writing an article or granting an interview to a reporter, in order to criticize the Government, or Government Department, or to publicize his grievances whether or not of an official nature (e.g. criticism or complaint regarding lack of staff to carry out his functions; criticism of the Treasury for failure to provide extra funds etc.).

[Revision](#)

3:3 A public officer irrespective of whether he is entitled to political rights or not, may express disagreement with or criticize any policy or decision of the Government affecting the pay and conditions of service of the members of any recognized association of public officers to which he belongs, provided that-

such disagreement or criticism is directed towards securing the redress of any grievance or furthering the legitimate interests of the associations;

the language of such disagreement or criticism is temperate and not abusive;

no information of a confidential nature is thereby divulged.

3:4 A public officer may express disagreement with or criticise any disciplinary action or proceeding, provided that-

such disagreement or criticism is not expressed in public or without due precautions being taken against its publication and,

that such disagreement or criticism is expressed only by the officer against whom an action or proceeding has been instituted or by an office bearer of any association of public officers of which he is a lawful member.

3:5 A Disciplinary Authority however is under no obligation to enter into correspondence with the officer or with any association representing matters on his behalf on any matter of discipline in which he exercises authority delegated by the Cabinet of Ministers.

CHAPTER XXXII

EXERCISE OF POLITICAL RIGHTS

1. Prohibition on an officer not entitled to the Exercise of Political Rights
2. Exercise of Political Rights by an officer entitled to do so
3. Concessions regarding transfer to an officer entitled to exercise Political Rights

CHAPTER XXXII

EXERCISE OF POLITICAL RIGHTS

1. Prohibition on an officer not entitled to the Exercise of Political Rights

1:1 The following are not entitled to the exercise of Political Rights:-

a member of the Judiciary;

a member of the Armed Services;

a member of the Police Force and other Peace Officer exercising Police functions under the Criminal Procedure Code (e.g., Grama Seva Niladharies)

a Prisons Officer as defined in Section 20 of the Trade Unions Act (C. 138) ;

a Staff Officer or Supervisory Officer in the Public Service;

an Officer serving in the Department of Elections (Parliamentary, Local Government, etc.) as long as he continues to serve in it.

1:2 An officer not entitled to the exercise of political rights is prohibited, on pain of dismissal, from engaging in any form of political activity except recording his vote at a Presidential Election, Parliamentary Election, Referendum or Provincial Council Election or Local Authorities Election and is prohibited more specifically from doing any of the following acts:-

1:2:1 taking any part in an election referred to in Sub-section 1:2;

1:2:2 supporting in any way the candidature of an aspirant in any election referred to in Sub-section 1:2;

1:2:3 taking any steps to secure his own nomination in any election referred to in Sub-section 1:2.

1:3 If an officer holding a post listed under Sub-section 1:1, who intends to stand for election at a future date, desires to make any preparation furthering his own candidature or for testing his chances at such a future election, he should first resign from his post in the Public Service before he proceeds or get a third party to act on his behalf on the above matter. But, such an officer who possesses ten (10) years or more of pensionable service may retire from his post before seven (07) days having given notice to his appointing authority before ten (10) days from the date of submitting nominations, if he intends to contest a Presidential, Parliamentary, Provincial Council or Local Government Election. Before such retirement, he should settle all his dues to the Government and if there is a bonded period of obligatory service, he should get clearance by paying back the bonded monetary value. An officer who retires from his post in terms of this provision is entitled to the pension and the gratuity from the date he completes his age of fifty-five (55) years.

2. Exercise of Political Rights by an officer entitled to do so

2:1 An officer except in the categories of officers declared under Sub-section 1:1 as not entitled to the exercise of political rights, may exercise fully his political rights as defined in Sub-section 2:2.

2:2 The Political rights which such a public officer is entitled to exercise are;

2:2:1 The right to membership in a political party and to participate in the work of such a party,

2:2:2 The right to express an opinion on a matter of a political nature, e.g. by writing a letter of the press or by addressing a meeting at which such a matter is discussed and;

2:2:3 The right to stand for election at Presidential Election, Parliamentary Election, Provincial Council Election or Local Authorities Election.

2:3 The exercise of these rights will be subject to the following conditions:-

2:3:1 The right to participate in the work of a political party, address a political meeting etc. will be permitted to an officer, only without prejudice to his work in the Public Service, which should at all times take precedence. Leave to participate in such an activity will be granted by the Head of the Department in his discretion, subject to the exigencies of the service;

2:3:2 An officer who intends to stand as a candidate for Presidential, Parliamentary or Provincial Council elections should give written notice to the Head of the Department of such intention at least ten (10) days prior to the date of nomination; he should be placed on no pay leave for a period commencing from one (01) week prior to the date of nomination and up to the date of Election. However, an officer who intends to stand as a candidate for Local Government Elections should give written notice of such intention to the Head of his Department at least one (01) day prior to the date of handing over his nomination paper. He should be placed on no pay leave from such date up to the date of election. However, an officer who is entitled to political rights and contesting an Election is permitted to utilize his normal untaken leave, if leave is available to his credit during the year in which such leave is sought.

New Inclusion

New Inclusion

2:3:3 If he is elected a Member of Parliament, he will be required to resign his post in the Public Service from the date of such election;

2:3:4 If he is elected as a member/ Vice Chairman of a Local Government Body, he shall be granted, subject to the exigencies of the service, five (05) days of leave with pay per month, for attending the meetings of the Local Government Body and performing the duties connected to such meetings, whilst being in the post he had already been holding in the Public Service.

Revision

If a public officer is elected as a member of Provincial Council, he will be allowed to avail himself of either of the following options:

- Option 1 - He should be released on full time basis, enabling him to serve as a member of the Provincial Council on no pay leave, as long as he continues as a member of the Provincial Council.
- Option 2 - He should be deemed to have left the Public Service on his being selected, subject to the following conditions.
 - i. If at the time of his election to the Provincial Council, his substantive post in the Public Service was a post declared to be pensionable under the Minutes on Pensions then,
 - a) He shall be eligible for such awards under the Minutes on Pensions as might have been made to him if he had retired from the Public Service on the abolition of office on the date of his election to the council.
 - b) However, such retirement benefits shall not be paid to him unless his service to the Provincial Council has been terminated on his ceasing to be a member of the council.
 - c) In the event of his death while in the service of the Provincial Council, the retirement benefits should be paid to his dependents considering he died the previous day of the election to the council.
 - ii. If at the time of his election to the Provincial Council he was a contributor to the Public Service Provident Fund under the Public Service Provident Fund Ordinance, he shall for the purpose of that Ordinance be deemed to have left the service of the Government upon the termination of his contract with the consent of the Government otherwise than by dismissal, and
 - iii. If before the time of his election to the council, he had entered into a contract with the government, by which he had agreed to serve the government for a specified period, any period of service to the council will be regarded as service to the government for the purpose of discharging any obligation of such a contract.

New Inclusion

2:4 No political meeting should be held in any Government building or other government workplace. A Trade Union meeting may however be held with the permission of the Head of the Department or office in a Government building or other government workplace either within or outside normal working hours provided that no person who is not a member of the Trade Union concerned is present at the meeting.

2:5 No canvassing for any political party is permitted in any government office or other government Institution. No political literature should be distributed in any Government Office or Institution and no poster or other symbol of a political nature should be exhibited in any Government Office or other Government Institution.

3. Concessions regarding transfer to an officer entitled to exercise Political Rights

3:1 If an officer who is entitled to exercise political rights holds office in the Central Committee of a recognized political party in any of the capacities referred to in Sub-section 3:2, he should be allowed the concession of serving in a station close to the Headquarters of the Central Committee and will not be subject to the usual transfer rules.

3:2 The offices which entitle him to this concession are;

President,
Vice-President,
Secretary,
Assistant Secretary,
Treasurer.

3:3 An officer to whom this concession is allowed becomes liable to transfer under the usual transfer rules on his ceasing to hold office in the Committee, or on being promoted to a higher post, class or grade.

3:4 The grant of this concession should, at all times, be subject to the normal departmental and disciplinary requirements.

3:5 An officer who wishes to avail himself of this concession should apply to the Head of his Department, stating :-

the designation of the office he holds in the Central Committee;

the name and address of the Political Party; and the station in which he desires to serve.

3:6 A “recognized Political Party” means unless otherwise provided, a political party recognized as such by the Commissioner of Elections.

3:7 If an officer who is entitled to exercise political rights is elected as a member of a Local Authority he should be allowed the concession of serving in a station close to the office of the Local Authority to which he is elected, subject to the exigencies of the service and disciplinary requirements. He will not be subject to the normal transfers as long as he continues to be a member of that Local Authority.

CHAPTER XXXIII

LEGAL ADVICE AND LEGAL ACTIONS

1. The Attorney General's Advice or Opinion
2. Draft Legislation
3. Subordinate Legislation
4. Institution of an action by the Government
5. Defence of an action against the Government
6. Defence of an action against a public officer in his official capacity
7. Institution of an action by a public officer in his personal capacity

CHAPTER XXXIII

LEGAL ADVICE AND LEGAL ACTIONS

1. The Attorney General's Advice or Opinion

1:1 When the advice or opinion of the Attorney General is sought, the point on which such advice or opinion is sought should be stated precisely. He should be furnished with a full and complete statement of the facts of the case together with references to the relevant pages of any office file that is forwarded.

If he has been consulted before on the same question, reference should be quoted to any previous opinions given by him.

1:2 The Attorney General should not be asked to advice on the hypothetical cases.

1:3 The Attorney General should not be asked to advice on the construction of laws, except with reference to the facts of a case that has actually arisen for decision.

1:4 The Attorney General should not be asked to approve draft contracts, leases or other instruments, the terms of which have not received the sanction of the appropriate authorities. Any request for a draft contract, lease or other instrument should be accompanied by a complete statement (in duplicate) of the terms and conditions approved by the appropriate authority,

1:4:1 Every draft contract, lease or other instrument in so far as it includes any clauses covering matters relating to income taxes, other taxes and duty exemptions has to be approved by the Secretary, Ministry of Finance and Planning before it is sent to the Attorney General for approval.

1:5 The Attorney-General should not be asked to advise on any matter which concerns a Local Authority or a Public Corporation or any Private Body unless the Government is required by statute or otherwise to make a decision thereon.

1:6 The Attorney General should not be asked to advise on legislation which is in draft but he will advise on the legal principles in any contemplated legislation.

1:7 A legal opinion expressed by the Attorney General should not be communicated to any Local Authority, Public Corporation, Private Body or individual without prior written consent of the Attorney-General.

2. Draft Legislation

2:1 A request for a draft of legislation should in all cases be accompanied by a memorandum containing the fullest possible instructions for the guidance of the Legal Draftsman in the preparation of the draft.

2:2 After the Cabinet has determined the Government's programme of legislation and the order of priority in which the several bills will be introduced, the Secretary to the Cabinet will communicate the Cabinet conclusions to each Secretary and the Legal Draftsman for their information.

The Secretary to the Cabinet will also communicate to these officers any amendment of the order of priority.

2:3 The Legal Draftsman may be requested to Draft a Bill only if-

such Bill is included in the programme or, the President has authorised the request on the ground of urgency or, the object of the Bill is an amendment of an Ordinance or Act and the amendment does not involve any question of policy that should be decided by the Cabinet.

Every request for a Draft Bill should be addressed to the Legal Draftsman through the Secretary to the Ministry of Justice by the Secretary to the Ministry making the request.

If the proposed legislation also concerns a subject or function assigned to another Ministry or to a Department not assigned to a Ministry, the request should bear on it an endorsement by the Secretary of such other Ministry or the Head of such department to the effect that he concurs in the request.

3. Subordinate Legislation

3:1 For the purpose of this Section "Subordinate-Legislation" includes a Rule, Regulation, By-law, Proclamation, Order and Notification having the effect of law.

3:2 The draft of any subordinate legislation which is required by a Ministry or other Authority should be prepared by that Ministry or other Authority.

3:3 The draft of any subordinate legislation prepared by any Ministry or other Authority should be sent to the Legal Draftsman for revision only if such subordinate legislation is not modelled on previous subordinate legislation of a similar or substantial nature revised by the Legal Draftsman.

3:4 Where any draft of subordinate legislation has to be sent to the Legal Draftsman for revision, the draft must be;

in duplicate;

printed or typewritten such that there is sufficient space between the lines of typescript for amendments to be written,

If the Attorney-General has been consulted regarding any question of law relating to such legislation, the draft should be accompanied by a copy of the Attorney General's advice and a copy of the letter by which such advice was sought. (Information as to models available for the preparation of subordinate legislation can be obtained on reference to the Annual Index of Proclamations, etc., published by the Government).

3:5 Any subordinate legislation required by a Local Authority (Municipality, Urban Council etc.) should be revised by the Legal Draftsman only if such legislation has to be approved by the President or a Minister before it becomes law. Where any request for the revision of such legislation by the Legal Draftsman has to be made under the preceding Sub-section 3:3, the request should be made by the Commissioner of Local Government in accordance with this Section.

4. Institution of an action by the Government

4:1 When the Head of a Department desires to institute a suit on behalf of the Government, he should make application to the Attorney-General.

4:2 A Government Agent may employ the service of an Attorney-at-Law within his district who is engaged to attend government work without reference to the Attorney-General when, due to the exigencies of the case, there is no time to refer the matter to the Attorney General, provided that:-

funds are available for the payment of the fees of such Attorney-at-Law. The case or matter in respect of which the service of such Attorney-at-Law is employed is not one of a trivial nature and is one in which the government has a direct and substantial interest;

the matter is not one to which the Attorney-General as such is a party;

and the matter is not one which should be supported or defended by and at the expense of a semi-government body which has a revenue of its own.

4:3 If the sanction of Government is necessary before a criminal prosecution can be instituted, the application for authority must be submitted through the Attorney General.

4:4 Application to the Attorney-General for the institution of legal proceedings, whether civil or criminal or for advice as to the charges to be made in any prosecution or for the release of an officer to conduct any prosecution or to appear at any

proceeding should be accompanied by the following documents in duplicate:-

- (a) a comprehensive statement of the facts of the case;
- (b) a list of the witnesses on whose evidence the case is based;
- (c) a list of all the relevant documents together with two copies of each of the documents; the statements of the witnesses;
- (d) a list together with copies of report of expert witnesses, such as Medical Officers, the Government Analyst, the Government Examiner of Questioned Documents or the Registrar of Finger Prints.

4:5 If a Department considers that an order of acquittal made by a Magistrate or Judge of the Primary Court in a case prosecuted by it is incorrect or that the punishment imposed by a Magistrate or a Judge of a Primary Court in a case prosecuted by it is inadequate, the Head of the Department should make a report promptly to the Attorney-General, in order that he may, if he thinks fit, appeal to the Court of Appeal against such order. If a certified or other copy of the proceedings has been obtained, it should be forwarded to the Attorney General.

5. Defence of an action against the Government

5:1 When a notice of action against the Government is served on the Head of a department or other officer, he should immediately communicate with the Attorney General, forwarding a full and complete statement of the case with reference to the relevant pages of the Departmental file, which should be forwarded at the same time.

5:2 The Head of a Department should furnish the Attorney General with all such information as may be required for the defence of any action by him.

6. Defence of an action against public officers in their official capacity

6:1 If the Head of a Department receives notice of a civil action in respect of an act purporting to be done by him in his official capacity, he should consult the Attorney General without delay, forwarding the notice of action together with the relevant departmental file and a comprehensive statement of the facts of case.

If the Attorney-General is of opinion that he should undertake the defence of that action, he will apply to Court for the substitution of the Attorney-General as a party defendant in the action in place of such public officer, or take steps to appear and defend in that action as may be appropriate.

6:2 If an officer who is not the Head of a Department receives notice of a civil action in respect of an act purporting to be done by him in his official capacity, he should communicate immediately with the Head of his Department, who should consult the Attorney-General in the same manner as in Sub-section 6:1.

If the Attorney-General is of opinion that he should undertake the defence of such public officer, he will apply to Court for the substitution of the Attorney General as a party defendant in the action in place of such public officer, or take steps to appear and defend in that action as may be appropriate.

6:3 If, in either of the cases referred to above, the Attorney General is of opinion that he should not undertake the defence of the action, he should forward the papers, along with the reasons for his opinion, to the Minister of Justice.

6:4 If the Attorney-General does not undertake the defence of a civil action against a public officer, that officer should arrange for his own defence through his lawyers, and may, where necessary, apply for re-imbursement of his legal expenses or for an advance to meet these expenses under Chapter XI.

6:5 If criminal proceedings are instituted against a public officer in respect of an act purporting to be done by him in his official capacity, he should arrange for his defence through his own lawyers and may seek re-imbursement of his expense under Chapter XI at the conclusion of the legal proceedings.

6:6 Where in proceedings for the enforcement of fundamental rights under Article 126 of the Constitution, allegations of a personal nature including allegations of torture or assault are made against any public officer, such officer should arrange for his defence through his own lawyers and may seek re-imbursement of his expenses under Chapter XI at the conclusions of such proceedings.

7. Institution of an action by a public officer in his personal capacity

7:1 No steps must be taken by an officer to institute legal proceedings in a personal capacity in connection with a matter arising out of the discharge of his duty as a public officer without the prior consent of the Secretary. The consent of the Secretary should be sought through the Head of the Department. The Secretary should, in cases of doubt, consult the Attorney General.

CHAPTER XXXVI
RELEASE OF PUBLIC OFFICERS TO THE WELFARE SOCIETIES OF
PUBLIC OFFICERS

1. Release of public officers to the Welfare Societies of Public Officers

CHAPTER XXXVI
RELEASE OF PUBLIC OFFICERS TO THE WELFARE SOCIETIES OF
PUBLIC OFFICERS

1. Release of Public Officers to the Welfare Societies of Public Officers

1:1 A public officer may be released to function as the Secretary/ Treasurer of a Welfare Society of Public Officers, constituted by an Act of Parliament and composed of members exceeding 1000.

1:2 A public officer so released will be paid by the Society the salary and the allowance he had received while in the Public Service together with an additional allowance to be decided by the Society. The allowance paid by the Society shall not exceed 25% of his consolidated salary.

1:3 The officer will be entitled to leave and other privileges he had enjoyed in the Public Service and all expenses on that account should be borne by the relevant society.

1:4 The Society shall make a monthly payment equivalent to 25% of the officer's consolidated salary to the Government as contribution towards his pension.

1:5 In accordance with Section 24 of the Minutes on Pensions, an officer will be released to work in a Society only for a period not exceeding two (02) years.

LIST OF APPENDICES

<i>Appendix</i>	<i>Chapter</i>	<i>Section or Sub-section</i>
1. List of Heads of Departments	I	
2. Form of Scheme of Recruitment	II	2 :1 : 2
3. Form of Draft Advertisement	II	3 :1
4. Form of Letters of Appointment	II	8 :1 8 :4
5. Chapter IV of the Constitution of the Democratic Socialist Republic of Sri Lanka	II	10 :11
6. Application for release/ extension of release to Statutory Boards/ Corporations	V	2 :3
7. This appendix has been removed as per the Provision of Section 31, Chapter XLVIII Volume II of the Establishments Code		
8. Form of Agreement to be signed by officers proceeding on full pay study leave	XII XV	14: 4 4: 12
9. Form of Agreement to be signed by Officers who are granted no-pay study leave	XII XV	16:5 5:1
10. Form of Agreement to be signed by officers who are granted no-pay leave for paid assignments aboard/ to take up employment abroad	XII	16: 5
11. Form of Agreement to be signed by officers who are granted no-pay leave for the combined purposes of study aboard and employment	XII	16: 5
12. Periodical card passes	XIII	6 :3
13. Government concession periodical tickets	XIII	6: 5
14. Applications for Foreign Training Facilities	XV	2: 3:2
15. Form of Bond to be executed by officers proceeding on full pay study leave	XV	4:12

<i>Appendix</i>	<i>Chapter</i>	<i>Section or Sub-section</i>
16. Application for prior permission to be obtained by public officers to travel aboard	XV	10 :4 10:5
17. This appendix has been removed by Public Administration Circular No. 21/2007		
18. Model scheme of points for the guidance of Authorities for allocating houses	XIX	4:2:1
19. Form of Applications for reservation of holiday bungalows which are under the purview of the Establishments Division of the Ministry of Public Administration and Home Affairs	XX	2:1
20. Monthly deductions on pay abstract, which are excluded in the computing of the permissible limit on deduction	XXIV	3:5
21. Calculations of Interest-Ready Reckoner	XXIV	3:8:1
22. Specimen endorsement for cancellation of a surety bond on substitution of a fresh bond (other than for building site or house property)	XXIV	3:17:10
Specimen endorsement for cancellation of a surety bond on substitution of a fresh bond (building site or house property)	XXIV	3:17:10
Specimen endorsement for cancellation of agreement, surety bond and power of Attorney on the repayment of the loan in full (This applies to loan advance obtained to acquire a building site or house property prior to the issuance of Public Administration Circular 08/2005 dated 31.03.2005, which is in effect from 01.01.2005.)	XXIV	
23. Form of irrevocable undertaking to commute Pensions Declaration	XXIV	4:2:3
24. This Appendix is cancelled by the provisions of Public Administration Circular 08/2005 dated 31.03.2005, which has been effective from 01.01.2005		

<i>Appendix</i>	<i>Chapter</i>	<i>Section or Sub-section</i>
25. Officers on transfer- communication of loan installment particulars to the Ministry/ Department to which the officer is transferred	XXIV	11:10:2
26. Form of Application for Loan	XXIV	11:11:1
27. Format for communicating to the Ministry/ Department the release of the loan of the Bank	XXIV	11:11:4
28. List of Banks for obtaining Loan	XXIV	11:11:6
29. Documents to be submitted to the bank with The loan application form of requesting property damage and/ or loss of movables as a result of the disturbances that occur in the country	XXIV XXIV	11:11:1 14:3
30. Declaration of property owner's consent to sell the property	XXIV	Section 9 of Appendix 26
31. Form of Application for Loan	XXIV	7:10:1 8:10:1
32. List of banks for obtaining Loan	XXIV	7:10:2 8:10:2

APPENDIX 1

Revision

<i>Department</i>		<i>Heads of the Departments for the purpose of the Establishments Code</i>
Prime Minister's Office	..	Secretary to the Prime Minister
Judicial Service Commission	..	Secretary
Department of Educational Publications	..	Commissioner General of Educational Publications
Court of Appeal	..	Court of Appeal Justice
Office of the Cabinet of Ministers	..	Secretary to the Cabinet of Ministers
Ministries	..	Secretary
Commission to Investigate Allegations of Bribery or Corruption	..	Director General
Department of Immigration and Emigration	..	Immigration and Emigration Controller General
Department of Imports and Exports Control	..	Imports and Exports Controller
Department of Export Agriculture	..	Director General of Export Agriculture
Office of the Chief Government Whip	..	Secretary
Department of Ayurveda	..	Commissioner of Ayurveda
Food Commissioner's Department	..	Food Commissioner
Land Commissioner General's Department	..	Land Commissioner General
Land Use Policy Planning Department	..	Director
Department of Land Title Settlement	..	Land Title Settlement Commissioner General
Department of Land Development	..	Director
Department of Upcountry Peasantry Rehabilitation	..	Commissioner
Department of Labour	..	Commissioner General of Labour
Office of the Secretary Labour Tribunals	..	Secretary
Department of Technical Education and Training	..	Director General
Department of Meteorology	..	Director General
Department of Agriculture	..	Director General of Agriculture
Department of Christian Religious Affairs	..	Director
Department of Sports Development	..	Director General

<i>Department</i>		<i>Heads of the Departments for the purpose of the Establishments Code</i>
Department of Buildings	..	Director General
Department of Agrarian Development	..	Commissioner General of Agrarian Development
Department of Census and Statistics	..	Director General
Presidential Secretariat	..	Secretary to the President
Department of National Botanic Gardens	..	Director General
Department of National Museums	..	Director
Department of National Physical Planning	..	Director General
Department of National Archives	..	Director
Department of National Zoological Gardens	..	Director
Department of Debt Conciliation	..	Secretary
Department of Valuation	..	Chief Valuer
Department of Posts	..	Postmaster General
District Secretariats	..	District Secretary/ Government Agent
District Courts	..	District Judge
Department of Fisheries and Aquatic Resources	..	Director General
Department of Railways	..	General Manager of Railways
Department of Inland Revenue	..	Commissioner General of Inland Revenue
Legal Commission	..	Secretary
Department of Legal Draughtsman	..	Legal Draughtsman
Department of Attorney General	..	Attorney General
Department of Probation and Child Care Services	..	Commissioner
Office of the Leader of the House of Parliament	..	Secretary to the Leader of the House
Department of Registration of Persons	..	Commissioner General of Registration of Persons
Department of Archaeology	..	Director General of Archaeology
Department of Community Based Corrections	..	Commissioner
Primary Court	..	Primary Court Judge
Department of Textile Industries	..	Director
Department of Police	..	Inspector General of Police

<i>Department</i>	<i>Heads of the Departments for the purpose of the Establishments Code</i>	
National Productivity Secretariat	..	Director
Department of Prisons	..	Commissioner General
Department of Buddhist Affairs	..	Commissioner General of Buddhist Affairs
Geological Survey and Mines Bureau	..	Director
General Treasury	..	Deputy Secretary of Treasury
General Treasury -	..	
Department of Investment Policy	..	Director General
Department of Management Services	..	Director General
Department of National Budget	..	Director General
Department of National Planning	..	Director General
Department of Legal Affairs	..	Director General
Department of Treasury Operations	..	Director General
Department of Fiscal Policy and Economic Affairs	..	Director General
Department of Development Finance	..	Director General
Department of State Accounts	..	Director General
Department of Public Finance	..	Director General
Department of Public Enterprises	..	Director General
Department of Management Audit	..	Director General
Department of Foreign Aid and Supervision	..	Director General
Department of External Resources	..	Director General
Department of Public Trustee	..	Public Trustee
High Court	..	High Court Judge
Magistrate's Courts	..	Magistrate
Elections Office	..	Elections Commissioner
Department of Survey	..	Surveyor General
Department of Measurement Units, Standards and Services	..	Director of Measurement Units, Standards and Services
Department of Muslim Religious and Cultural Affairs	..	Director
Department of Motor Traffic	..	Commissioner General of Motor Traffic
Department of Rubber Development	..	Director General
Department of Government Analyst	..	Government Analyst
Government Factory	..	Factory Engineer

<i>Department</i>		<i>Heads of the Departments for the purpose of the Establishments Code</i>
Department of Government Information	..	Director General of Government Information
Department of Government Printing	..	Government Printer
Public Administration -		
Establishments Division	..	Director General of Establishments
Engineering Services Division	..	Director of Engineering Services
Combined Services Division	..	Director General of Combined Services
Scientific Service, Architectural Service and Technological Service Division	..	Director
Department of Official Languages	..	Commissioner
Public Service Commission	..	Secretary
Registrar General's Office	..	Registrar General
Department of Wildlife Conservation	..	Director General of Wildlife
Department of Forest Conservation	..	Conservator General of Forests
Department of Commerce	..	Director General
Office of the Director General of Commerce and Maritime Affairs	..	Director General of Merchant Shipping
Department of Irrigation	..	Director General of Irrigation
Auditor General's Department	..	Auditor General
Department of Telecommunication	..	Director of Telecommunication
Sri Lanka Missions Abroad	..	Ambassador/ High Commissioner
Office of the Leader of the Opposition	..	Secretary
Department of Examinations	..	Commissioner General of Examinations
Department of Pensions	..	Director General of Pensions
Department of Coast Conservation	..	Director General
Department of Cultural Affairs	..	Director General
Department of Animal Production and Health	..	Director General
Department of Registrar of Companies	..	Registrar General of Companies
Department of Social Services	..	Director
Department of Co-operative Development	..	Commissioner of Co-operative Development
Co-operative Employees Commission	..	Secretary
Department of Samurdhi Commissioner General	..	Commissioner General
Department of Civil Security	..	Director General

<i>Department</i>	<i>Heads of the Departments for the purpose of the Establishments Code</i>
Department of Excise	.. Commissioner General of Excise
Department of Health Services	.. Director General of Health Services
Department of Hindu Religious and Cultural Affairs	.. Director
Sri Lanka Air Force	.. Commander of the Air Force
Sri Lanka Navy	.. Commander of the Navy
National Intellectual Property Office of Sri Lanka	.. Director General
Sri Lanka Army	.. Commander of the Army
Sri Lanka Customs	.. Director General of Customs
Department of Coast Guard	.. Director General
Supreme Court	.. Chief Justice

APPENDIX 2 (II-2:1:2)

SCHEME OF RECRUITMENT TO THE POST OF IN THE DEPARTMENT
OF

Reference No. of the Department:

Reference No. of the Director Generals of Establishments:

1. Salary Scale

Rs p.a. rising to Rs.....p.a. by
..... annual increments of Rs. with Efficiency
Bar(s) before Rs.

(Explanation -

(i) Where the Scheme of Recruitment covers several classes and/or grades of a service, the salary scale of those various grades and/or classes should be stated.

(ii) If more than one alternative salary scale depending on the qualifications of the selected candidate is attached to the post, such salary scales along with the corresponding qualifications should be stated.

(iii) Where any professional or other special qualification is required to proceed beyond a particular salary point, this fact should be stated.)

2. Age Limit

Not less than years and not more than years of age.

(Explanation -

If concessions regarding age are given to any category of candidates, such concession should be stated.)

3. Educational and other qualifications

(Explanation -

The minimum educational, technical and/or professional qualifications, experience and other qualifications should be stated precisely. If any concessions regarding such qualifications are granted to any category of candidates such as departmental employees, the minimum qualifications in each case must be stated separately.)

4. Method of Recruitment

(Explanation -

The method of recruitment may be one or more of the following methods:-

- (i) By promotion of departmental officers with the prescribed qualifications;
- (ii) By calling candidates for an interview through the Job Bank;
- (iii) By open advertisement to the public and one or a combination of more than one of the following methods:-

Interview;
Competitive Examination.

Assessment of a candidate's performance at the basic qualifying examination stipulated, for the post, i.e.- G.C.E. Ordinary Level, N.C.G.E., Degree, etc.,

Where recruitment is made from the employees already in the service as well as from the external candidates, based on a fixed ratio or percentage, such ratio or percentage should be stated.)

5. Terms of Engagement

6. Conditions of Service

(a) General conditions, (See Sub-sections 10 and 12 of Chapter II) ;

(b) Other conditions.

(Explanation -

Any special requirements such as training to be undergone, qualifications to be obtained or any other special conditions of service attached to the post should be specified under "Other Conditions")

APPENDIX 3
(II-3:1)

DRAFT OF THE ADVERTISEMENT

Specimen Draft 1

(FOR ADVERTISEMENTS WHERE THE HEAD OF DEPARTMENT IS THE
APPOINTING AUTHORITY)

DEPARTMENT OF

POST OF

Applications are invited hereby for the post ofin the Department of
Application should be in the form set out below and should reach me on or before
.....

2. Salary Scale

The salary scale attached to the post is Rs. p.a. Efficiency Bar (s) operate
(s) before salary point (s) of Rs. p.a .

3. Terms of Engagement

(The appropriate alternative, depending on the nature of the post should be applied.)

Alternative I

The post is temporary.

Alternative II

The post is permanent but non- pensionable. The appointment will be on trial for a period
of three years.

Alternative III

The post is permanent and pensionable. The appointment will be on probation for a period
of three years.

(State special conditions if any, such as training to be attended, examinations to be
passed for confirmation in the post etc. should be stipulated.)

4. Qualifications Required

Every applicant must furnish proof that he

(a) is of excellent moral character and physically sound.

(b) is not less than years and not more than years
of age as at on 20

(This age limit will not apply to those already in public service.)

- (c) (d) (e) etc. (Specify educational and/or technical qualifications and/or experience required. Care being taken to indicate alternative qualifications, where appropriate.)

(Where S. S. C./G. C. E. (Ordinary Level) is a qualification required, the following alternatives should be specified:-

- (i) Should possess the Senior School Certificate;
- (ii) Should have passed the G.C.E (Ordinary Level) examinations in six subjects including Arithmetic or Mathematics and Sinhala, Tamil or a language of his choice in not more than two sittings or;
- (iii) Should have passed an equivalent or higher examination.

5. Applicants should attach to their applications copies of-

- (i) Certificate of Registration of Birth;
- (ii) Highest educational certificate, and
- (iii) Three recent certificates of character.

These copies will not be returned.

6. Reference is invited to the General Conditions applicable to appointment to posts in the Public Service published at the beginning of Part I : Section II(a) of this Gazette.

.....
Head of Department.

Address :

Date:

FORM OF APPLICATION FOR THE POST OF

(N. B. - The envelope containing the application should be marked "Application for the Post of "in the top left-hand corner and should be sent under registered cover addressed to)

- 1. Name in Full :--
- 2. Address:-
- 3. Date and Place of Birth :-
(Copy of birth certificate to be annexed)
- 4. Nationality :-

5. Marital Status :-
6. Educational and/or Technical Qualifications:----
(Copies of certificates to be attached)
7. Particulars of employment and./or training, since leaving school :
8. If previously employed in any Government Department or Public Corporation, give cause of leaving :-
9. If you have been ever convicted of any criminal offence in a Court of Law, give particulars of the offence and punishments :-
10. Names and designations of the three persons from whom Character certificates have been furnished :

Date :- Signature.

(Delete if inapplicable.)

Specimen Draft II

**(FOR ADVERTISEMENTS WHERE THE SECRETARY OF THE MINISTRY IS
THE APPOINTING AUTHORITY)**

DEPARTMENT OF

POST OF

Applications are invited for the post of in the Department of Applications, which should be on printed forms provided by this office, should reach me on or before the following dates :-

(a) Local Applications: -20.....

(b) Overseas Applications:-.....20.....

Note.-(i) Request for printed form of application by post should accompany self-addressed unstamped envelope, not smaller than 9" X 4" in size and should also include very clearly whether the prospective candidate is an officer in the Public Service or not.

(ii) No complaint regarding loss or delay of an application form or a letter related to such form in the post will be considered. Candidates who delay their applications until the closing date will do so at their own risk.

(iii) Overseas candidates may obtain the printed form of application from the office of the Sri Lanka representative abroad. They may forward the form of application within

the prescribed time if they so desire, to the office of the Sri Lanka representative abroad assigned to or nearest to the country of their residence for transmission to

(iv) Medical Examination and Passages. - Sri Lankan Officers selected abroad for appointment under the Sri Lanka Government will be required to undergo a medical examination carried out by approved Medical Practitioners with a view to it being ascertained whether they are physically fit for service. The fee for such examination as well as the cost of their passage expenses to Sri Lanka shall be paid by the officers themselves.

2. Terms of Engagement and Conditions of Service

The appropriate alternative, depending on the nature of the post should be used.

Alternative I

The post is temporary.

Alternative II

The post is permanent but non- pensionable. The appointment will be on trial probation for a period of three years.

Alternative III

The post is permanent and pensionable. The appointment will be on probation for a period of three (03) years.

(Special conditions if any; such as training, examinations to be passed for confirmation, etc. should be stipulated.)

3. Salary and Allowances

The salary scale attached to the post is as follows :-

Rs. per annum rising to Rs. per annum by annual increments of Rs. Efficiency Bar (s) before the salary point (s) of Rs. per annum.

4. Qualifications

Every candidate must furnish satisfactory proof that he –

(a) is of excellent moral character and physically sound,

(b) is not less than years and not more than..... years of age on as at (This age limit does not apply to officers already in the Public Service.)

(c) (d), (e) etc. (As in specimen form I).

5. Candidates will be required to produce any or all of the following documents when they are directed to do so:-

- (a) Certificate of Registration of Birth (N. B. - Baptismal Certificate of Birth issued for the purposes of the Code of Registrations for Assisted Schools will not be accepted);
- (b) Degree or highest educational certificates;
- (c) Two certificates of character, one of which should be from the Director of Studies, College Tutor or Professor;
- (d) Certificates of professional and/or technical qualifications; and
- (e) Certificate of highest examination passed in Sinhala or Tamil.

Note,- (i) No documents or copies of documents should be attached to the application form.

(ii) Applications of candidates who fail to produce documents when required to do so will not be considered.

- 6. Applications from officers in the Public Service must be forwarded through the Heads of the Departments. They must, however, notify directly to this office in writing on or before the closing date, the date of dispatch by them of their applications. The printed post card (marked 'B') issued to them with the form of application may be used for this purpose.
- 7. Applications and any other communications relating thereto must be addressed to me and NOT personally to any officer in this -.....
- 8. Reference is invited to the general conditions applicable to appointments to posts in the Public Service published at the beginning of Part I : Section II(A) of this Gazette.
- 9. Candidates are required to fill in and return, as instructed therein, the printed post card (marked 'A') issued to them with the form of application, then the receipt of their application form to this office will be acknowledged. Receipt of applications of Candidates who do not comply with this requirement will not be acknowledged. Those who comply with this requirement but do not receive an acknowledgement within three weeks from the closing date, should immediately notify the fact to this office. Failure to comply with this provision will deprive the applicant of any claim for consideration.

.....
Secretary.

Address :

(Delete if inapplicable)

APPENDIX 4
DRAFT LETTERS OF APPOINTMENT
(II-8: 1)

Depending on the terms and conditions of each appointment the appropriate, specimen letter should be selected from those given below. It will be observed that in most of the specimen letters there are alternative paragraphs. Care should be exercised in selecting the correct alternative. Modifications should be made where necessary to conform with the approved scheme of recruitment and/or advertisement by which recruitment is made.

Specimen I

(FOR PERMANENT AND PENSIONABLE APPOINTMENTS ON PROBATION)

Sir,/Madam,

You are appointed to the post of in this Department/of with effect from

2. The post is permanent. It is pensionable. Unless your appointment is determined earlier you will be on probation for a period, of three (03) years or more in case it is considered expedient to extend the period of probation) from the date of appointment and until you receive a letter confirming you in your appointment .

3. You will be subject to the provisions of the Establishments Code, the Financial Regulations, Departmental Orders and any other Regulations or Orders issued from time to time by the Government.

4. Your appointment will take effect from the date on which you assume duties.

5. You should before the date, on which you are to assume duties, undergo a medical examination by a Government Medical Officer. If you are not certified as physically fit to serve in any part of the Island your appointment will not take effect. For the purpose of the medical examination, you should complete the annexed form General 169 and hand it together with the annexed Medical Examiner's Report form (Medical 169) to the nearest Government Medical Officer in Charge of a Hospital (in Colombo, to the Physician, Out Patients' Department, of the General Hospital; and in Kandy or Galle, to the Chief Physician of the Hospital.) No fee is chargeable for this examination. You should first obtain a suitable date and time from the Medical Officer concerned and then undergo the medical examination.

6. You should serve in any part of the Island in which you are called upon to serve.

7. You are bound to furnish security in terms of the public officers' (Security) Ordinance, if so required by the Head of your Department.

8. You will be required to enter into an Agreement on form General 160, before assuming duties.

9. Within one month from the date of your Appointment, you should make and subscribe the affirmation or take and subscribe the oath as provided for in the Seventh Schedule of the Constitution of the Democratic Socialist Republic of Sri Lanka. Failure to do so within the prescribed period would result in you ceasing to be in service or hold office. (Copy attached).

10. You are liable to contribute to the Widows' and Orphans' Pension Scheme/ Widowers' and Orphans' Pension Scheme at the rate of -----of your consolidated pensionable salary from the date of your appointment. The attached Initial Declaration form (General 86 a) should be perfected and forwarded to the Head of your Department for transmission to the Secretary and Accountant, Widows' and Orphans' Pension Office/ Widowers' and Orphans' Pension Office as early as possible but in no case later than three months from the date of your appointment.

11. You should also complete the attached form of Declaration of Assets (General 261) in duplicate and hand it over to the Head of your Department before assumption of duties.

12. An extract of Sub-section 29:1 of Chapter XIV of the Establishments Code is appended for your information. You should apply to the Head of your Department for any Railway Warrants you may require.

13. The post carries a salary of Rs, per annum rising to Rs. per annum by.....annual increments of Rs..... Efficiency Bar(s) will operate before the salary reaches Rs. per annum You will be placed on the salary of Rs. per annum.

14. If your medium of entry is not one of the Official Languages, you should acquire a working knowledge of one of the official languages (i.e. either Sinhala or Tamil) during the period of probation and your confirmation in the appointment will depend, *inter alia*, on the passing of prescribed proficiency tests either in Sinhala or Tamil.

15. If your services are unsatisfactory while you are on probation and/or you fail to reach the requisite standard of proficiency either in Sinhala or Tamil, you are liable to be discontinued at any time during the period of probation or at the end of it.

16. If your services during the period of probation have been satisfactory, (and) if you have reached the requisite standard of proficiency either in Sinhala or Tamil and if you have satisfied the conditions stipulated in Paragraph 17 you will be confirmed in your appointment at the end thereof under Section II of Chapter 11 of the Establishments Code.

17. You will be required to subscribe to the conditions that you will conform to the provisions of the Chapter IV of the Constitution of the Democratic Socialist Republic of

Sri Lanka and any other laws, regulations or rules which already exist and may be made from time to time, to give effect to the Language Policy of the Government.

18. (Special Conditions, if any should be stipulated.)

19. Please acknowledge receipt of this letter and state whether you accept the appointment on the terms and conditions stated herein. Your reply should be forwarded through the

Your faithfully,

.....

Appropriate Appointing Authority.

Sub section 29:1 of Chapter XIV of the Establishments Code.

An officer proceeding to take up his first appointment in the Public Service will be entitled to the free transport of himself, his family, servants, household furniture baggage (including Bicycles) and conveyance in accordance with the rules in this Chapter from his home in Sri Lanka to the place of his first appointment. He will not be entitled to combined allowance or the allowance for packing or incidental expenses.

Specimen II

(FOR APPOINTMENTS MADE ON ACTING BASIS TO PERMANENT AND PENSIONABLE POSTS WITH A VIEW TO CONFIRMATION)

(This Form would be applicable only if the Officer has already been confirmed in a Permanent and Pensionable Post)

You are appointed to the post of in this Department/in with effect from

2. The post is permanent. It is pensionable. Unless your appointment is determined earlier, you will be on acting basis for a period of years, or more in case it is considered expedient to extend such period, from the date of appointment and until you receive a letter confirming you in your appointment.

3. You will be subject to the provisions of the Establishments Code, the Financial Regulations, Departmental Orders and any other Regulations or orders issued from time to time by the Government,

4. Your appointment will take effect from the date on which you assume duties.

(Para 5 of Specimen form I will not apply here as acting appointments with a view to confirmation are given only to those who have already been confirmed in a permanent

post and such officers would have been declared physically fit on appointment to the posts held by them previously).

5. You should serve in any part of the Island in which you are called upon to serve.

6. You are bound to furnish security in terms of the public officers' (Security) Ordinance, if so required by the Head of your Department.

7. You will be required to enter into an Agreement on form General 160 before assuming duties. (A copy of the said form is attached)

8. Within one month from the date of your Appointment, you should make and subscribe the affirmation or take and subscribe the oath as provided for in the seventh schedule of the Constitution of the Democratic Socialist Republic of Sri Lanka. Failure to do so within the prescribed period would result in your ceasing to be in service or hold office. (Copy attached)

9. You are liable to contribute to the 'Widows' and Orphans' Pension Scheme/ Widowers' and Orphans' Pension Scheme at the rate of your consolidated pensionable salary.

10. You should also complete the attached form of Declaration of Assets (General 261) in duplicate and hand them to the Head of your Department before assumption of duties.

11. The post carries a salary of Rs. per annum rising to Rs. per annum by annual increments of Rs. --- Efficiency Bar (s) will operate before the salary reaches Rs. per annum.

During the period you are acting in the post, the salary payable to you will be determined in accordance with the regulations relating to acting pay.

On confirmation in the post your salary will be determined after allowing incremental credit if any,

12. If, during the period you are acting in this post, your services are unsatisfactory and/ or you have failed to satisfy the conditions stipulated in paragraph 15 below you are liable to be reverted to the previous post held by you at any time during such period of acting or at the end of it.

You may during the acting period, revert to your former post. However, if at the end of the acting period you are confirmed in this post, you will cease to be a member of your former service and will have no claim or reversion to it.

13. If, during the period you are acting in the post, your services are satisfactory and you have satisfied the conditions stipulated in paragraph 15, you will be confirmed in your appointment at the end of the acting period.

14. You will be required to subscribe to the conditions that you will conform to the

provisions of the Chapter IV of the Constitution of Democratic Socialist Republic of Sri Lanka and any other laws, regulations or rules which already exist and may be made in due course to give effect to the Language Policy of the Government.

15. (Special conditions, if any, such as training to be attended or examinations, to be passed etc, should be stipulated).

Please acknowledge receipt of this letter and state whether you accept the appointment on the terms and conditions stated herein. Your reply should be forwarded through the

Yours faithfully,

.....

Appropriate Appointing Authority

Specimen III

(FOR PERMANT BUT NON PENSIONABLE APPOINTMENTS MADE ON ACTING BASIS, WITH A VIEW TO CONFIRMATION)

(This form would be applicable only if the Officer has already been confirmed in a Permanent but Non Pensionable Appointment)

Sir/Madam,

You are appointed to the post of in this Department of with effect from-

2. The post is permanent. It is non pensionable. Unless your appointment is determined earlier, you will be on an acting basis for a period of years, or more in case it is considered expedient to extend such period, from the date of appointment and until you receive a letter confirming you in your appointment.

3. You will be subject to the provisions of the Establishments Code, the Financial Regulations, Departmental Orders and any other Regulations or Orders issued from time to time by the Government.

4. Your appointment will take effect from the date on which you assume duties.

5. You should serve in any part of the Island in which you are called upon to serve.

6. You are bound to furnish security in terms of the Public Officers' (Security) Ordinance if so required by the Head of your Department.

7. You will be required to enter into an Agreement on form General 160 (copy attached) before assuming duties.

8. Within one month from the date of your appointment, you should make and subscribe the affirmation or take and subscribe the oath as provided for in the Seventh Schedule of the Constitution of the Democratic Socialist Republic of Sri Lanka. Failure to do so within the prescribed period would result in you ceasing to be in service or hold office. (Copy attached)

9. You will be entitled to the Provident Fund under this appointment. You will be required to contribute percent of your new consolidated salary to the Public Service Provident Fund. The Government contribution will beper cent of your new consolidated salary. In addition to the compulsory contribution, you may pay a voluntary contribution of percent but no Government contribution will be paid on this account.

10. You should also complete the attached form of Declaration of Assets (General 261) in duplicate and hand them to the Head of your Department before assuming duties.

11. The post carries a salary scale of Rs. per annum rising to Rs. per annum by.....annual increments of Rs. Efficiency Bar(s) will operate before the salary reaches Rs. per annum.

During the period you are acting in the post, the salary payable to you will be determined in accordance with the Regulations relating to acting pay.

On confirmation in the post, your salary will be determined after allowing incremental credit, if any.

12. If, during the period you are acting in this post, your services are unsatisfactory and/or you have failed to satisfy the conditions stipulated in paragraph 15 below, you are liable to be reverted to the previous post held by you at any time during such period of acting or at the end of it.

You may, during the acting period, revert to your former post. However, if at the end of the acting period you are confirmed in this post, you will cease to be a member of your former service and will have no claim of reversion to it.

13. If, during the period you are acting in the post, your services are satisfactory and you have satisfied the conditions stipulated in paragraph 15 you will be confirmed in your appointment at the end of the acting period.

14. You will be required to subscribe to the conditions that you will conform to the provisions of the Chapter IV of the Constitution of Democratic Socialist Republic of Sri Lanka and any other laws, regulations or rules which already exist and may be made in due course to give effect to the Language Policy of the Government.

15. (Special conditions, if any, such as training; examinations to be passed, etc., should be stipulated)

16. Please acknowledge the receipt of this letter and state whether you accept the post on the terms and conditions stated herein. Your reply should be forwarded through the

Yours faithfully.

.....,

Appropriate Appointing Authority

Specimen IV

(FOR APPOINTMENT TO TEMPORARY POSTS)

Sir,/Madam,.

You are appointed to the post of in this Department of
with effect from

2. Your appointment is temporary and does not carry with it any claim whatsoever to any permanent employment under Government or preferential claim to any appointment in the permanent service.

3. Your appointment is terminable by the Government at its pleasure. Should you wish to resign from your employment you should give one calendar month's notice or pay a sum equivalent to one month's salary in lieu of notice.

4. You will be subject to the provisions of the Establishments Code, the Financial Regulations, Departmental Orders and any other Regulations or Orders issued from time to time by the Government.

5. Your appointment will take effect from the date on which you assume duties.

6. You should serve in any part of the Island in which you are called upon to serve.

7. You are bound to furnish security in terms of the Public Officers' (Security) Ordinance, if so required by the Head of your Department.

8. Within one month from the date of your appointment, you should make and subscribe the affirmation or take and subscribe the oath as provided for in the seventh schedule of the Constitution of the Democratic Socialist Republic of Sri Lanka. Failure to do so within the prescribed period would result in you ceasing to be in service or hold office. (Copy attached)

9. You will be entitled to the Provident Fund under this appointment. You will be required to contribute per cent of your salary to the Public Service Provident Fund. The Government contribution will be per cent of your salary.

In addition to the compulsory contribution, you may pay a voluntary contribution of per cent but no Government contribution will be paid on this account.

10. You should also complete the attached form of Declaration of Assets (General 261) in duplicate and hand them to the Head of the Department before assuming duties.

11. An extract of Sub-section 29: 1 of Chapter XIV of the Establishments Code is appended for your information. You should apply to the Head of your Department for any Railway Warrants you may require.

12. The post carries a salary scale of Rs..... per annum rising to Rs..... per annum byannual increments of Rs. Efficiency Bar (s) will operate before the salary reaches Rs.per annum.

You will be placed on a salary of Rs per annum.

13. Unless your appointment is terminated earlier, you should pass the prescribed proficiency tests either in Sinhala or Tamil within the prescribed period.

14. You will be required to subscribe to the conditions that you will conform to the provisions of the Chapter IV of the Constitution of the Democratic Socialist Republic of Sri Lanka and any other laws, regulations or rules which already exist and may be made in due course to give effect to the Language Policy of the Government.

15. Please acknowledge the receipt of this letter and state whether you accept the post on the terms and conditions stated herein; Your reply should be forwarded through the

Yours faithfully,

.....

Appropriate Appointing Authority.

Sub Section 29: I of Chapter XIV of the Establishments Code.

An officer proceeding to take up his first appointment in the Public Service will be entitled to the free transport of himself, his family, servants, household furniture, baggage (including bicycles) and conveyance in accordance with the rules in this chapter from his home in Sri Lanka to the place of his first appointment. He will not be entitled to Combined Allowance or the allowance for packing or incidental expenses.

Specimen V

**(FOR RE-EMPLOYMENT OF A PENSIONER IN THE PUBLIC SERVICE ON
CONTRACT BASIS)**

Sir,/Madam,

1. You are re-employed on contract basis in the post of for the period from..... to.....

2. Your period of service will expire on.....

3. However, your appointment may be terminated so as to be effective on a date before.....on the discretion of the Government. If you wish to resign from the service, you should give one calendar month's notice in advance. Otherwise, you are required to pay an amount equivalent to the salary of one (01) month instead of giving notice of one month.

4. (a) You will be subject to the provisions on general conduct, behaviour and discipline of the Public Officers of the Establishments Code, the Financial Regulations, Departmental Orders and any other Regulations or Orders issued from time to time by the Government.

(b) You will not be entitled to a pension, or revision of your pension as a result of such re-employment. You are re-employed on the condition that you are not entitled to the benefits of Public Service Provident Fund No. 18 of 1942.

5. Your re-employment on contract basis will take effect from the date on which you assume duties.

6. You should serve in any part of the Island in which you are called upon to serve.

7. You are bound to furnish security in terms of the Public Officers' (Surety) Ordinance, if so required by the Head of your Department.

8. You should also complete the attached form of Declaration of Assets (General 261) in duplicate and hand them to the Head of the Department before assuming duties.

9. Within one (01) month from the date of your appointment, you should make and subscribe the affirmation or take and subscribe the oath as provided for in the seventh schedule of the Constitution of the Democratic Socialist Republic of Sri Lanka. Failure to do so within the prescribed period would result in you ceasing to be in service or hold office. (Copy attached)

10. *Alternative I*

You will be paid a permanent monthly salary of Rs.'as the remuneration for your

re-employment. You are not entitled to receive any allowance other than this monthly remuneration, ²(If any pension is paid to you, it will be paid along with a certain allowance to be paid to you as a pensioner, if any, either by the Director General of Pensions or Government Agent as the case may be.)

Alternative II

You will be paid a permanent monthly salary of Rs.....³ as the remuneration for your re-employment Further you will be entitled to the following allowances in addition to the above.⁴

(a)

(b)

Alternative I

11. You are entitled to the leave granted to a public officer.⁵

Alternative II

11. You are entitled to leave on the basis mentioned below.⁶

12. You will be required to subscribe to the conditions that you will conform to the provisions of the Chapter IV of the Constitution of the Democratic Socialist Republic of Sri Lanka and any other laws, regulations or rules which already exist and may be made in due course to give effect to the Language Policy of the Government.

13. Please acknowledge the receipt of this letter and whether you accept the re-employment on contract basis subject to the terms and conditions stated herein.

Your reply should be forwarded through.....

Yours Faithfully,

.....

Appropriate Appointing Authority

Notes.

1. Indicate the salary determined in re-employing the officer on contract basis either by the Cabinet of Ministers or the Committee of Secretaries as the case may be.

2. This condition should be included as a rule in the letter of appointment when re-employing on contract basis. However, at special occasions, the alternatives may be removed with the inclusion of an appropriate alternative depending on the situation, if other allowances have been approved by the Cabinet of Ministers or Committee of Secretaries.

3. Please refer note 1.

4. Please mention precisely. These conditions should be included at special occasions depending on the situation and with the permission of either the Cabinet of Ministers or Committee of Secretaries. These conditions should not be included as a general rule. When this matter is referred either to the Cabinet of Ministers or Committee of Secretaries, the appointing authorities should confirm the appropriateness of it submitting sufficient facts.

5. As a general rule, the appointing authorities can apply the provisions, which are applicable for granting leave to public officers as per Public Administration Circular No. 329 dated 19.05.1986, also to the retired officers, who are re-employed. However, appointing authorities can reduce or limit the leave granted to a retired officer, who is re-employed, at special occasions by obtaining prior approval of the Cabinet of Ministers or Committee of Secretaries depending on the situation. For this purpose, each case should be considered separately.

6. Please refer note 5.

Specimen VI

(FOR RE-EMPLOYMENT OF A PENSIONER ON TEMPORARY AND NON- PENSIONABLE BASIS)

Sir,/Madam,

You are re-employed in the post of with effect from

2. Your re-employment is purely on temporary basis.

3. Your appointment is terminable by the Government at its pleasure. If you wish to resign from the service, you should give one calendar month's notice in advance. Otherwise, you are required to pay an amount equivalent to the salary of one month instead of giving notice of one month.

4. You will be subject to the provision of Establishments Code, the Financial Regulations or Departmental Orders and any other Regulations, or Orders issued from time to time by the Government.

5. Your re-employment will take effect from the date on which you assume duties.

6. You should serve in any part of the Island in which you are called upon to serve.

7. You are bound to furnish security in terms of the Public Officers' (Security) Ordinance,) if so required by the Head of your Department.

8. You should also complete the attached form of Declaration of Assets (General 261) in duplicate and hand them to the Head of your Department/ to me before assuming duties.

9: Within one month from the date of your appointment, you should make and subscribe the affirmation or take and subscribe the oath as provided for in the seventh schedule of the Constitution of the Democratic Socialist Republic of Sri Lanka. Failure to do so within the prescribed period would result in you ceasing to be in service or hold office. (Copy attached)

10.

Alternative I

You will be paid on re-employment on the one hand your pension (without allowance) and on the other hand, the salary of the post in which you are re-employed.

Alternative II

You will be paid on re-employment the negotiated salary plus Cost of Living Allowance.

11. You will be required to subscribe to the conditions that you will conform to the provisions of the Chapter IV of the Constitution of the Democratic Socialist Republic of Sri Lanka and any other laws, regulations or rules which already exist and may be made in due course to give effect to the Language Policy of the Government.

12. Please acknowledge the receipt of this letter and state whether you accept re-employment on the terms and conditions stated herein. Your reply should be forwarded through the

Yours faithfully,

.....,

Appropriate Appointing Authority,

Specimen VII

(FOR RECRUITMENT OF NON-CITIZENS ON CONTRACT)

Sir,/Madam,

You are appointed to the post ofin the Department of Sri Lanka. Your appointment will be on contract for a period of..... years with effect from the date of your assuming duties in

2. You are liable to serve in any part of the Island in which you are called upon to serve.

3. The post/appointment is temporary. The new consolidated salary attached to the post is per annum (fixed). Such salary will be payable monthly

whilst you are in Sri Lanka in Rupees at the end of each calendar month at the current rate of exchange. You will have no claim on the Government on account of any fluctuation in the value of the Rupee in respect of payment made to you by the Government.

4. You will be required to contribute per cent of your salary to the Public Service Provident Fund. The Government contribution will be of per cent of your salary. In addition to the compulsory contribution, you may pay a voluntary contribution of per cent, but no Government contribution will be paid on this account.

5. Your appointment is terminable by giving three (03) months' notice or three (03) months' salary in lieu of notice. Should you desire to resign from your post, you could do so after the expiration of three (03) months from the date of assumption of duties on giving three months' notice or paying to the Government a sum equivalent to three (03) months' salary in lieu of notice. In the event of your resigning from your post before the expiration of (03) months from the date of assumption of duties, you will be required to pay to the Government three months' salary as liquidated damages in addition to the payment of the cost of passage referred to in Paragraph 12 and 13 of this letter and in addition you will lose all rights and benefits reserved to you by this letter.

6. Except as regards leave and passages, you will be subject to the provisions of the Establishments Code, the Financial Regulations, Departmental Orders and any other Orders or Regulations issued from time to time by the Government.

7. Within one (01) month from the date of your appointment, you should make and subscribe the affirmation or take and subscribe the oath as provided for in the Seventh Schedule of the Constitution of the Democratic Socialist Republic of Sri Lanka. Failure to do so within the prescribed period would result in you ceasing to be in service or hold office. (Copy attached)

8. As regards leave, you will be governed by the Rules of the Establishments Code applicable to temporary employees serving under contract for a definite term of years.

9. (i) On the appointment to the post, the Government will provide you with a passage from to Sri Lanka for yourself, and, if married, for your wife and children (if any) including unmarried dependent daughters but not sons over 18 years of age, not exceeding four (4) persons besides yourself, provided that they either accompany you to Sri Lanka or proceed to join you within twelve (12) months of the date of your departure from

(ii) On the satisfactory termination of your appointment, the Government will provide you with a passage from Sri Lanka to for yourself, and if married for your wife and children (if any) including unmarried dependent daughters but not sons over 18 years of age, not exceeding four persons besides yourself, provided that they came to Sri Lanka and the Government met the cost of their tickets in accordance with Paragraph 9(i) above, and provided that you claim and avail yourself of such passage within one (01) month of the termination of your appointment.

(iii) When required to travel by air, you will be eligible for the transport of luggages by ship not exceeding 50 cubic feet per adult and 25 cubic foot per child.

10. You shall, if so required by the Government, furnish security in such amount and in such manner as the Government may decide upon for the faithful and honest discharge of your duties and any premium payable in respect of such security shall be deducted from your salary by the Government.

11. You may resign or be compelled by Government to retire should a Board of Medical Officers duly appointed for the purpose by the Government or a consulting Physician in Sri Lanka appointed by the Government certify that you are incapable, by reason of ill health or by reason of infirmity of mind or body, of rendering further efficient service in the Island. If such illness or infirmity has not been caused by your misconduct, the Government shall, if you are in the Island at the time of resignation or retirement, pay your salary up to the date of your departure from the Island, furnishing you at the same time with free passages to for yourself, and if married, for your wife and children (if any), including unmarried dependent daughters but not sons over eighteen (18) years of age, not exceeding four persons besides yourself, provided that they either accompanied you to the Island or proceeded to join you within twelve (12) months after the date of your departure from and provided that you claim and avail yourself of such return passages within one month of resignation or retirement but you shall have no further claim on the Government.

12. If you shall at any time neglect or refuse or from any cause (excepting ill-health or infirmity of mind or body not caused by your misconduct as provided in paragraph 11) become unable to perform any of your duties or to comply with any orders or shall disclose any information respecting the affairs of the Government to any unauthorized person, or shall in any matter misconduct yourself, you may be dismissed from service and on such dismissal, all rights and benefits reserved to you by this letter shall cease and you shall be liable to repay on demand the amount paid for the passage to Sri Lanka for yourself and your wife and children (if any).

13. In the event of your resigning from your post other than by reason of ill-health or by reason of infirmity of mind or body as provided for in paragraph 11 above or terminating it before the expiry of the period referred to in paragraph I you will forfeit all rights and benefits reserved to you by this letter and you will also be liable to repay on demand the amount paid by the Government for the passages to Sri Lanka for yourself and your wife and children (if any).

14. You are required to furnish a Medical Certificate from a qualified Medical Officer approved by the High Commissioner/Ambassador for Sri Lanka in that you are physically fit for service in Sri Lanka before proceeding to Sri Lanka to take up your appointment. The fee for such examination is payable by you.

15. Please state, in writing, within ten days of the receipt of this letter, whether you are prepared to accept the appointment on the above teams. Your reply should be transmitted to the Secretary through the High Commissioner/Ambassador for Sri Lanka in,

Yours faithfully,
.....
Secretary

**APPENDIX 5
(II-10:11)**

**THE CONSTITUTION OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

CHAPTER IV

Language

18. (1) The Official Language of Sri Lanka shall be Sinhala. Official
Language
(2) Tamil shall also be an official language.
(3) English shall be the link language.
(4) Parliament shall by law provide for the implementation of the provisions of this Chapter.
19. The National Languages of Sri Lanka shall be Sinhala and Tamil. National
Languages
20. A Member of Parliament or a member of a Provincial Council or a Local Authority shall be entitled to perform his duties and discharge his functions in Parliament or in such Provincial Council or Local Authority in either of the National Languages. Use of National
Languages in
Parliament,
Provincial
Council
and Local
Authorities
21. (1) A person shall be entitled to be educated through the medium of either of the National Languages:
- Provided that the provisions of this paragraph shall not apply to an institution of higher education where the medium of instruction is a language other than a National Language. Medium of
Instruction
- (2) Where one National Language is a medium of instruction for or in any course, department or faculty of any University directly or indirectly financed by the State, the other National Language shall also be made a medium of instruction for or in such course, department or faculty for students who prior to their admission to such University, were educated through the medium of such other National Language:
- Provided that compliance with the preceding provisions of this paragraph shall not be obligatory if such other National Language is the medium of instruction for or in any like course, department or faculty either at any other campus or branch of such University or of any other like University.
- (3) In this Article “University” includes any institution of higher education.

Language of
administration.

22. (1) Sinhala and Tamil shall be the languages of administration throughout Sri Lanka and Sinhala shall be the language of administration and be used for the maintenance of public records and the transaction of all business by public institutions of all the Provinces of Sri Lanka other than the Northern and Eastern Provinces where Tamil shall be so used:

Provided that the President may, having regard to the proportion which the Sinhala or Tamil linguistic minority population in any unit comprising a division of an Assistant Government Agent, bears to the total population of that area, direct that both Sinhala and Tamil or a language other than the language used as the language of administration in the province in which such area may be situated, be used as the language of administration for such area.

(2) In any area where Sinhala is used as the language of administration a person, other than an official acting in his official capacity, shall be entitled:

(a) to receive communications from and to communicate and transact business with, any official in his official capacity, in either Tamil or English;

(b) if the law recognizes his right to inspect or to obtain copies of or extracts from any official register, record, publication or other document, to obtain a copy of, or an extract from such register, record, publication or other document or a translation thereof, as the case may be, in either Tamil or English;

(c) where a document is executed by any official for the purpose of being issued to him, to obtain such document or a translation thereof, in either Tamil or English.

(3) In any area where Tamil is used as the language of administration, a person other than an official acting in his official capacity, shall be entitled to exercise the rights and to obtain the services, referred to in sub paragraphs (a), (b) and (c) of paragraph (2) of this Article, in Sinhala or English.

(4) A Provincial Council or a Local Authority which conducts its business in Sinhala shall be entitled to receive communications from and to communicate and transact business with, any official in his official capacity, in Sinhala and a Provincial Council or a Local Authority which conducts its business in Tamil shall be entitled to receive communications from and to communicate and transact business with, any official in his official capacity, in Tamil:

Provided, however, that a Provincial Council, Local Authority, Public Institution or any official receiving communications from transacting business with any other or Provincial Council, Local Authority, Public Institution or an official functioning in an area in which a different language is used as the language of administration shall be entitled to receive communications from and to communicate and transact business in English.

(5) A person shall be entitled to be examined through the medium of either Sinhala or Tamil or a language of his choice at any examination for the admission of persons to the Public Service, Judicial Service, Provincial Public Service, Local Government Service or any public institution, subject to the condition that he may be required to acquire a sufficient knowledge of Tamil or Sinhala, as the case may be, within a reasonable time after admission to such service or public institution where such knowledge is reasonably necessary for the discharge of his duties:

Provided that a person may be required to have a sufficient knowledge of Sinhala or Tamil, as a condition for admission to any such service or public institution where no function of the office or employment for which he is recruited can be discharged otherwise than with a sufficient knowledge of such language.

(6) In this Article-

“Official” means the President, any Minister, Deputy Minister, Governor, Chief Minister or Minister of the Board of Ministers of a Province, or any officer of a public institution, local authority or Provincial Council; and

“Public institution” means a department or institution of the Government, a public corporation or a statutory institution.

23. (1) All laws and subordinate legislation shall be enacted or made and published in Sinhala and Tamil, together with a translation thereof in English: Language of legislation

Provided that Parliament shall, at the stage of enactment of any law determine which text shall prevail in the event of any inconsistency between texts:

Provided further that in respect of all other written laws and the text in which such written laws were enacted or adopted or made, shall prevail in the event of any inconsistency between such texts.

(2) All Orders, Proclamations, Rules, By-laws, Regulations and Notifications made or issued under any written law other than those made or issued by a Provincial Council or a Local Authority and the Gazette

shall be published in Sinhala and Tamil together with a translation thereof in English.

(3) All Orders, Proclamations, Rules, By-laws, Regulations and Notifications made or issued under any written law by any Provincial Council or Local Authority and all documents, including circulars and forms issued by such Body or any Public Institution shall be published in the language used in the administration in the respective areas in which they function, together with a translation thereof in English.

(4) All Laws and subordinate legislation in force immediately prior to the commencement of the Constitution, shall be published in the Gazette in the Sinhala and Tamil languages as expeditiously as possible.

Languages of
the Courts

24. (I) Sinhala and Tamil shall be the languages of the Courts throughout Sri Lanka and Sinhala shall be used as the language of the courts situated in all the areas of Sri Lanka except those in any area where Tamil is the language of administration. The record and proceedings shall be in the language of the Court. In the event of an appeal from any court records shall also be prepared in the language of the court hearing the appeal, if the language of such court is other than the language used by the court from which the appeal is preferred:

Provided that the Minister in charge of the subject of Justice may, with the concurrence of the Cabinet of Ministers direct that the record of any court shall also be maintained and the proceedings conducted in a language other than the language of the court.

(2) Any party or applicant or any person legally entitled to represent such party or applicant may initiate proceedings and submit to court pleadings and other documents, and participate in the proceedings in courts, in either Sinhala or Tamil.

(3) Any judge, juror, party or applicant or any person legally entitled to represent such party or applicant, who is not conversant with the language used in a court, shall be entitled to interpretation and to translation into Sinhala or Tamil, provided by the State, to enable him to understand and participate in the proceedings before such court and shall also be entitled to obtain in such language any such part of the record or a translation thereof, as the case may be, as he may be entitled to obtain according to law.

(4) The Minister in charge of the subject of Justice may, with the concurrence of the Cabinet of Ministers, issue directions permitting the use of English in or in relation to the records and proceedings in any court for all purposes or for such purposes as may be specified therein. Every judge shall be bound to implement such directions.

(5) In this Article-

“Court” means any court or tribunal created and established for the administration of justice including the adjudication and settlement of industrial and other disputes, or any other tribunal or institution exercising judicial or quasi-judicial functions or any tribunal or institution created and established for the conciliation and settlement of disputes;

“judge” includes the President, Chairman, Presiding Officer and member of any court; and

“record” includes Pleadings, Judgments, Orders and other judicial and ministerial acts.

25. The State shall provide adequate facilities for the use of the languages provided for in this Chapter.

Provision
for adequate
facilities for use
of languages
provided for in
this Chapter.

APPENDIX 6
(V-2:3)

**APPLICATION FOR RELEASE/EXTENSION OF RELEASE TO STATUTORY
BOARDS/CORPORATIONS**

1. Name of Officer :
2. Department :
3. Present Post and Grade/ Class:
4. Whether post is permanent and Pensionable:
5. Whether he has been confirmed in the post:
6. Total length of service in a pensionable post/ posts under the State:
7. Date of Birth:
8. Whether he is under Agreement to serve State for any
period of obligatory service, if so full particulars:
.....
9. Statutory Board/ Corporation to which it is proposed to release him:
10. Post in Board/ Corporation:
11. Statutory provisions of Board / Corporation under which release is sought:
(Please quote the Section of the Act)
12. Nature of release; whether permanent / temporary, (letter of consent of the officer
to be attached) ; if temporary release, period asked for; if permanent release
whether the officer has been informed of the implication of permanent release :
.....
13. Date on which release is to take effect/ period of extension sought:
14. If an extension of the period is sought, particulars of original release:
15. Whether he has been on release previously to any
other Board/ Corporation, if so, full particulars:
.....
16. Observation in terms of Establishments Circular Letter No. 59 dated 03.09.1971
and Public Administration Circular No.52 dated 04.05.1972, if their provisions are
relevant:
17. Reference to any previous correspondence with this department/ Treasury:
18. Any other relevant information:

.....
Head of Department

APPENDIX 7

This Appendix has been removed as per the provisions of Section 31, Chapter XLVIII,
Volume II of the Establishments Code.

APPENDIX 8
(XII – 14: 4)
(XV – 4:12)

**FORM OF AGREEMENT TO BE SIGNED BY OFFICERS
PROCEEDING ON FULL - PAY STUDY LEAVE**

(This form should not be amended without the approval of the Director General of Establishments.)

Agreement

This Agreement is made this date of two thousand and between the Government of the Democratic Socialist Republic of Sri Lanka (hereinafter sometimes referred to as the Government) of the one part and (1) of the (hereinafter referred to as the said Trainee) of the other part.

(1) Full
name of
Trainee.

WHEREAS the (hereinafter sometimes referred to as the Awarding Agency) has awarded a Scholarship tenable for a period of from the (hereinafter referred to as the prescribed period) to the said Trainee to enable him to undergo

AND WHEREAS the Government of the Democratic Socialist Republic of Sri Lanka has agreed to grant the said Trainee (2) full-pay study leave on the terms and conditions hereinafter set out to enable him to undertake the said course of study and training.

(2) Period of
Leave.

AND WHEREAS the said Trainee has agreed to accept the said Scholarship upon the said terms and conditions and to proceed to (3) for the purpose aforesaid.

(3) Country.

NOW this Agreement witnesseth and it is hereby agreed as follows :-

- (1) That the said Trainee shall proceed to (3) as and when directed to do so by the Government and shall there diligently pursue during the prescribed period the course of study and training arranged for him by the Awarding Agency and/or the

- (2) That the said Trainee shall on arrival in (3)report himself to the Administrative Head of the Awarding Agency and shall carry out all instructions which he may receive from time to time from such person or persons as directed by the said Awarding Agency and/ or the in regard to his work.
- (3) That the said Trainee shall during his stay in (3) attend to whatever work the course of his said study or training may involve and duly comply without deviation with whatever instructions he may receive in regard to his work, residence and otherwise from the
- (4) That the said Trainee shall not either pursue any course of study or training for the purpose of obtaining or obtain any qualifications and/or training other than those prescribed herein during the prescribed period without the previous written approval of the
- (5) That if at any time during the course of his training the said Trainee shall have worked on or discovered any new process, technique or formula arising directly out of the facilities provided for him, he shall forthwith disclose such process, technique or formula complete with all details and send it under registered cover to the (4)..... and shall at all times keep and maintain complete secrecy on the subject until the same is released by the

(4) Designation
of Head of
Institution.
- (6) That the said Trainee shall not demand, receive or appropriate any fees or payments from the Authorities in charge of his study and training for any work done or services rendered by him during the period of the said course of study and training. Should any such fees or payments as aforesaid be made to him at any time, he shall dispose of same as directed by the (4)
- (7) That the said Trainee shall during his stay in (3) send to the (4) periodical reports of his study and training certified by the said Administrative Head of the Awarding Agency.
- (8) That the (4) shall be at liberty to rescind this agreement and recall the said Trainee at any time if
 - (a) the work and/or conduct of the said Trainee is unsatisfactory;

- (b) illness or ill-health of the said Trainee makes him unfit or unsuitable for further training ;
- (c) the said Trainee fails to comply with the terms and conditions herein set forth ;
- (d) the said Trainee fails to send to the (4) the periodical reports of his studies ;
- (e) the said Trainee criticises or makes offensive statements regarding the Government ofor of its people or customs.

In the event of the Awarding Agency forfeiting the return portion of his travel grant for any valid reason the said Trainee shall himself meet the cost of his return passage to Sri Lanka.

- (5) Period of obligatory service.
 - (9) That the said Trainee shall after completion of his said study and training in (3) forthwith return to Sri Lanka unless otherwise directed by the (4)..... and resume his duties under Government and shall serve the Government if so required for a term of not less than (5) years from the date of resumption by him of his duties as aforesaid.
 - (10) That the said Trainee shall within months of resuming duties submit a comprehensive report to the (4)incorporating whatever knowledge of matters of general or specific interest to his departmental officers which he has gained in the course of his said study and training infor the information of his departmental officers.
- (6) Representative of the Sri Lanka in Country of study.
 - (11) Any application made by the said Trainee to the (4) for termination or extension of his period of training on the ground of illness while in..... shall be supported by a certificate from a medical officer approved by the (6) in
 - (12) In the event of any extension of the period of training being granted to the Trainee for any reason whatsoever the said Trainee shall continue his training during the extended terms on the same terms as herein contained and the provisions of this agreement shall apply in all respects as though the extended period were originally included as part of the period of training.

It is agreed that the Trainee shall in the event of any such extension as aforesaid being granted serve the Government after resumption of duties for such further period of compulsory

service he may be called upon to serve in addition to the period of years already provided for herein.

- (13) (a) That if the Trainee resigns his scholarship or abandons his study and training before the expiration of its tenure for reasons which in the opinion of the (4) are not satisfactory he will be deemed to have forfeited his right to all benefits under this agreement and shall become liable to reimburse the Government the full amount of expenses incurred on him by the Government and Awarding Agency in connection with the said scholarship up to the date of resignation and shall make his own arrangements and meet the expenses of his return passage to Sri Lanka

(b) That if the said training facilities granted to the said Trainee be cancelled by the Awarding Agency on account of his work and/or Conduct being unsatisfactory or if the said Trainee shall be recalled to Sri Lanka under Clauses 8 (a), (c), (d) or (e) hereof, the said Trainee shall refund and repay the full amount of expenses on account of his Scholarship.

(c) If the said Trainee shall fail to return to Sri Lanka when directed to do so, or if he shall fail to resume duties under Government upon completion or sooner determination of his said course of study and training, or if, after resumption of his duties under Government, he shall fail to serve the Government for a period of at least (5) years from the date of resumption by him of his duties as aforesaid, or if ,after resuming his duties as aforesaid, he shall resign his appointment under Government before the expiry of the said period of years, or if he shall be dismissed or removed from office before the expiry of the said period (5) years on the ground of inefficiency or any other cause, or if he, before reaching the age of 60 years, exercises his option to retire before the expiry of the said period ofyears, or if he fails to comply with any of the other terms of this Agreement, the said Trainee shall be liable to refund and repay to the Government in respect of the expenses incurred by the Government and the Awarding Agency on a account if this Scholarship.

- (14) Nothing herein contained shall be deemed to imply or be construed to mean that the Government shall employ or be bound to employ the said Trainee for the said period of (5)..... years on his return to Sri Lanka after the completion or sooner

determination of his training.

- (15) It is agreed that a document purporting to be a statement of accounts and purporting to be certified by or on behalf of the (4) shall be prima facie evidence of the amount due and payable to the Government under the Clauses 12 and 13 without further or other proof of its execution, contents or signature thereon.
- (16) It, is agreed that a certificate by or on behalf of the (4) shall be prima facie evidence of any of the matters referred to in Clauses 8, 9 and 13 above, without further or other proof of the contents or the signature thereon.
- (17) The shall mean the officer holding the post of or acting in the office of the (4) or who for the time being is performing the functions now exercised by the (4)
- (18) “Expenses” shall include the amount of salary and allowances paid to the Trainee during the period of training, the cost of passages, any special allowances paid to the trainee while undergoing training, medical expenses and any amounts paid as fees, advances and allowances to the trainee or on the trainee’s behalf for the said course of study and training.

In witnesses whereof the said parties have signed these present at Colombo, this..... day of two thousand....

signed by acting herein for and on behalf of the Government of the Democratic Socialist Republic of Sri Lanka in the presence of the following witnesses.—

.....
Signature

Witnesses; 1. Signature:

Name:

Address:

2. Signature :

Name:

Address :

Signed by the said Trainee in the presence of the following witnesses :—

.....
Signature of Trainee

Witnesses; 1. Signature:

Name:

Address:

2. Signature :

Name:

Address :

APPENDIX 9
(XII – 15: 5)
(XV – 5: 1)

**FORM OF AGREEMENT TO BE SIGNED BY OFFICERS WHO
ARE
GRANTED STUDY LEAVE ON NO - PAY**

(This form should not be amended without the approval of the
Director General of Establishments)

- | | |
|--|--|
| (1) Full name of officer and designation. | THIS Agreement is made this day of..... two thousand..... between (1) (hereinafter referred to as officer) of the one part and (2) (hereinafter referred to as (3) and shall include his successors for the time being holding the office of (3) |
| (2) Full name of Head of Institution. | Sri Lanka acting for and on behalf of the Government of the Democratic Socialist Republic of Sri Lanka (hereinafter referred to as the Government.) of the other part. |
| (3) Designation of Head of Institution. | WHEREAS the said officer has applied for (4) months leave on no-pay in the first instance to proceed (5) to enable him to pursue a course of study/training in (6) |
| (4) Period of leave on no-pay | AND WHEREAS the Government has agreed to grant the said officer (4) months leave on no pay for the purpose aforesaid commencing on the day of 20 |
| (5) Country where the study /training is to be undertaken. | NOW this agreement witnesseth and it is hereby agreed as follows :- |
| (6) Course of study/ training. | (1) The Government agrees to grant the said officer (4) months leave on no pay commencing on theday of 20.. for the purpose of enabling the said officer to proceed to (5) and there pursue a course of study/ training in (6) |
| | (2) The said officer agrees - |
| | (i) that he will diligently and without deviation pursue the course of study/training for which purpose the said leave on no-pay has been granted. |
| | (ii) that he will not change his course of study/training during the said leave on no-pay nor curtail the course of study /training nor use any unexpired of such leave on no-pay for any other purposes without the prior sanction of the said (3) |

- (iii) that he will on completion of the period of leave on no-pay as aforesaid or on completion of the said course of study/training, whichever is earlier, forthwith return to Sri Lanka and resume his duties under Government in a suitable capacity, on the suitability of which the decision of the Government shall be final and binding on the said officer and that he will serve the Government for a term of not less than (7)months from the date of resumption by him of his duties as aforesaid.
- (iv) that, if he or she should fail to obtain the required qualifications or if he/she should fail to return to Sri Lanka on the expiration of the leave on no pay granted to him, or having returned to Sri Lanka he should fail to resume duties under Government as aforesaid or if after resumption of duties under Government he should fail to serve the Government for a said period of at least (7) months from the date of resumption by him of his duties as aforesaid or, if after resuming the duties aforesaid, he should resign his appointment under Government before the expiry of the said period of (7) months, or if he should be dismissed or removed from office before the expiry of the said period of (7) months on the ground of inefficiency or any other cause other than retrenchment or if he should fail to comply with any of the other terms of the agreement, then he the said officer will pay to the Government the sum of Rupees (8) lawful money of Sri Lanka.
- (3) It is further agreed between the parties that the Government may in its absolute discretion upon application made by the said officer from time to time extend the period of leave on no pay. Provided, that where the period of leave on no-pay is so extended, the minimum period of compulsory service after resumption of duties and the amount payable by the said officer in the event of default in terms hereof shall be proportionately increased to such further period and to such enlarged amount as the Government may determine. *
- (7) Period of obligatory service (calculated in terms of Sub-section 16:15 of Chapter XII)
- (8) Monetary penalty (Calculated in terms of Sub-section 5:2 of chapter XV)
- *See Note below.
- (4) It is agreed that where the period of leave on no pay is so extended and the minimum period of compulsory service and the amount payable by the said officer in default is so increased this agreement shall be read and construed as though the aggregate period of leave on no pay and the aggregate period of compulsory service and the aggregate amounts payable by the said officer were inserted in the appropriate clauses of this agreement in place of the periods and amounts now appearing therein.*

(5) That nothing herein contained shall be deemed to bind the Government to employ the said officer for the said period of (7) months on his return to Sri Lanka after the completion or sooner determination of his leave on no pay.

(6) It is agreed that a certificate by or on behalf of (3)..... shall be prima facie evidence of any of the matters referred to in clauses 2, 3 and 4 above without further or other proof of the contents or the signature thereon.

(7) (2)..... shall mean the officer holding the post of or acting in the office of (2) for the time being is performing the functions now exercised by (2)

In witness whereof the said parties have signed these presents at this day of 20

Signed by the said (2) for and on behalf of the Government of the Democratic Socialist Republic of Sri Lanka in the presence of

.....

Signature,

Designation :

Witnesses; 1. Signature:

Name:

Address:

2. Signature :

Name:

Address :

Signed by the said (1) in the presence of

.....

Signature

Witnesses; 1. Signature:

Name:

Address:

2. Signature :

Name:

Address :

* Note - (1) Where an officer's period of leave on no pay is extended beyond the original period stipulated in the Agreement, the period of obligatory service and the monetary penalty should be proportionately increased.

(2) The officer should be notified of the increased period of obligatory service and of the increased monetary penalty at the time the extension of leave is granted, and his consent thereto obtained in writing and filed of record along with the agreement.

APPENDIX 10
(XII – 16:5)

**FORM OF AGREEMENT TO BE SIGNED BY OFFICERS WHO
ARE GRANTED LEAVE ON NO-PAY FOR PAID ASSIGNMENT
ABROAD/TO TAKE UP EMPLOYMENT ABROAD**

(This form should not be amended without the approval of the Director General of Establishments.)

THIS agreement is made this day of two thousand between (1) (hereinafter referred to as officer) of the one part and (2) the Democratic Socialist Republic of Sri Lanka (hereinafter referred to as (3)..... and shall include his successors for the time being holding the office of (3) of Sri Lanka for and on behalf of the Government of the Democratic Socialist Republic of Sri Lanka (hereinafter referred to as the Government) of the other part.

- (1) Full name of officer and designation.
- (2) Designation of Head of Department.
- (3) Full name of Head of Department

WHEREAS the said officer has applied for (4) months leave on no-pay in the first instance to proceed to (5) enable him to take up an assignment/employment. (6)

- (4) Period of leave on no-pay

AND WHEREAS the Government has agreed to grant the said officer (4) months leave on no-pay for the purpose aforesaid commencing on the day of....., 20.....

- (5) Country where the assignment/employment is to be undertaken

NOW this agreement witnesseth and it is hereby agreed as follows :-

- (1) The Government agrees to grant the said officer (4) months leave on no-pay commencing on the day20 for the purpose of enabling the said officer to proceed to (5) and there to take up an assignment/employment (6)

- (6) Nature of assignment/employment

(2) The said officer agrees-

- (i) that he will diligently and without deviation attend to the duties of the assignment/employment for which purpose the said leave on no-pay has been granted.
- (ii) that he will not change his assignment/employment during the said leave on no-pay nor curtail the period of assignment/employment nor use any unexpired period of such leave on no-pay for any other purposes without the prior sanction of the said (3)
- (iii) that he will on completion of the period of leave on

(7) Period of
obligatory
service
(Calculated
in terms of
Sub-section
16:15 of
Chapter XII

no-pay as aforesaid on or completion of the said assignment/
employment whichever is earlier, forthwith return to
Sri Lanka and resume his duties under Government in a
suitable capacity, on the suitability of which the decision
of the Government shall be final and binding on the said
officer and that he will serve the Government for a term of
not less than (7) months from the date of
resumption by him of his duties as aforesaid.

(iv) that if he should fail to return to Sri Lanka on the expiration
of the leave on no-pay granted to him or if having
returned to Sri Lanka should fail to resume duties under
Government as aforesaid or if after resumption of duties
under Government he should fail to serve the Government
for a period of at least (7)months from the
date of resumption by him of his duties as aforesaid or, if
he should be dismissed or removed from office before the
expiry of the said period of (7)months on
the ground of inefficiency or any other cause other than
retrenchment or if he should fail to comply with any of the
other terms of the agreement, then the said officer will pay
to the Government the sum of Rupees (8)
lawful money of Sri Lanka.

(8) Monetary
penalty
(Calculated
in terms of
Sub-section 5:2 of
Chapter XV)

(3) It is further agreed between the parties that the Government may in
its absolute discretion upon application made by the officer from
time to time extend the period of leave on no-pay. *Provided that
where the period of leave on no-pay is so extended the minimum
period of compulsory service after resumption of duties and the
amount payable by the said officer in the event of default in terms
hereof shall be proportionately increased to such further period
and to such enlarged amount as the Government may determine*

(4) It is agreed that where the period of leave on no-pay is so
extended and the minimum period of compulsory service and the
amount payable by the said officer in default is so increased this
agreement shall be read and construed as though the aggregate
period of leave on no-pay and the aggregate period of compulsory
service and the aggregate amounts payable by the said officer
were inserted in the appropriate clauses of this agreement in place
of the periods and amounts now appearing therein.*

(5) That nothing herein contained shall be deemed to bind the Government to employ the said officer for the said period of (7) months on his return to Sri Lanka after the completion or sooner determination of his leave on no-pay.

(6) It is agreed that certificate by or on behalf of (3) shall be prima facie evidence of any of the matters referred to in Clauses 2, 3 and 4 above without further or other proof of the contents or the signature thereon.

(7) (3) shall mean the officer holding the post of or acting in the office of (3) or who for the time being is performing the functions now exercised by (3)

In witness whereof the said parties have signed these presents atthis day of two thousand

Signed by the said (2) for and on behalf of the Government of the Democratic Socialist Republic of Sri Lanka in the presence of

Signature

Designation (3) :

Witnesses; 1. Signature:

Name:

Address:

2. Signature :

Name:

Address :

Signed by the said (1) in the presence of

.....

Signature

Witnesses; 1. Signature:

Name:

Address:

2. Signature :

Name:

Address :

*Note.- 1. When an officer's period of leave on no-pay is extended beyond the original period stipulated in the Agreement, the period of obligatory service and the monetary penalty should be proportionately increased.

2. The officer should be notified of the increased period of obligatory service and of the increased monetary penalty at the time the extension of leave is granted, and his consent thereto obtained in writing and filed of record along with the Agreement.

APPENDIX 11

(XII – 16:5)

FORM OF AGREEMENT TO BE SIGNED BY OFFICERS WHO ARE GRANTED LEAVE ON NO-PAY FOR THE COMBINED PURPOSES OF EMPLOYMENT AND STUDY ABROAD

(This form should not be amended without the approval of the Director General of Establishment.)

THIS Agreement is made this day of two thousand.... between (1) (hereinafter referred to as officer) of the one part and (2) Sri Lanka (hereinafter referred to as (3) and shall include his successors for the time being holding the office of (3) Sri Lanka acting for and on behalf of the Democratic Socialist Republic of Sri Lanka (hereinafter referred to as the Republic) of the other part.

WHEREAS the said officer has applied for (4) months leave on no-pay in the first instance to proceed to (5) to enable him to pursue a course of study/training in and to take up an assignment (6)

AND WHEREAS the Republic has agreed to grant the said officer (4) months leave on no-pay for the purposes aforesaid commencing on the day of 20

Now this agreement witnesseth and it is hereby agreed as follows :-

(1) The Republic agrees; to grant the said officer (4) months leave on no-pay commencing on the day of 20..... for the purposes of enabling the said officer to proceed to (5) and there pursue a course of study/training in and to take up an assignment in (6)

(2) The said officer agrees-

(i) That he will diligently and without deviation pursue the course of study /training and attend to the duties of the assignment, for which purposes the said leave on no-pay has been granted.

(1) Full name of officer and designation.

(2) Designation of Head of Department.

(3) Full name of Head of Department

(4) Period of leave on no-pay

(5) Country where the assignment is to be undertaken.

(6) Nature of assignment

- (ii) that he will not change his course of study/training or his assignment during the said leave on no-pay nor curtail the course of study/training or the period of assignment nor use any unexpired period of such leave on no-pay for any other purposes without the prior sanction of the said (2)
- (iii) that he will on completion of the period of leave on no-pay as aforesaid or on completion of the said course of study /training and assignment, whichever is earlier, forthwith return to Sri Lanka and resume his duties under the Republic in a suitable capacity, on the suitability of which the decision of the Republic shall be final and binding on the said officer and that he will serve the Republic for a term of not less than (7) months from the date of resumption by him of his duties as aforesaid.
- (7) Period of obligatory service

Provided however, that in the event of the period of obligatory service extending beyond the age of optional retirement (55 years), the Republic may permit the said officer to retire subject to the payment by the said officer to the Republic of such amount as may be determined by the Republic in lieu of the unexpired period of obligatory service.

- (iv) that if he should fail to return to Sri Lanka on the expiration of the leave on no-pay granted to him, or if having returned to Sri Lanka he should fail to resume duties under the Republic as aforesaid or if after resumption of duties under the Republic he should fail to serve the Republic for a period of at least (7) months from the date of resumption by him of his duties as aforesaid, or if he should be dismissed or removed from office before the expiry of the said period of (7) months on the ground of inefficiency or any other cause other than retrenchment or if he should fail to comply with any of the other terms of this agreement then the said officer will pay to the Republic the sum of Rupees (8) lawful money of Sri Lanka.
- (8) Monetary penalty.

- (3) It is further agreed between the parties that the Republic may in its absolute discretion upon application made by the said officer from time to time extend the period of leave on no-pay. Provided that where the period of leave on no-pay is so extended the minimum period of compulsory service after resumption of duties and the amount payable by the said officer in the event of default in terms hereof shall be proportionately increased to such further period and to such enlarged amount as the Republic may determine.

- (4) It is agreed that where the period of leave on no pay is so extended and the minimum period of compulsory service and the amount payable by the said officer in default is so increased this agreement, shall be read and construed as though the aggregate period of leave on no-pay and the aggregate period of compulsory service and the aggregate amounts payable by the said officer were inserted in the appropriate clauses of this agreement in place of the periods and amounts now appearing therein.
- (5) That nothing herein contained shall, be deemed to bind the Republic to employ the said officer for the said period of (7) months on his return to Sri Lanka, after the completion or sooner determination of his leave on no-pay.
- (6) It is agreed that a certificate by or on behalf of (2) shall be prima facie evidence of any of the matters referred to in clauses 2, 3 and 4 above without further or other proof of the contents or the signature thereon.
- (7) (2) shall mean the officer holding the post of or acting in the office of (2) or who for the time being is performing the functions now exercised by (2)

In witness whereof the said parties have signed these presents at this day of two thousand

Signed by the said (2) for and on behalf of the Democratic Socialist Republic of Sri Lanka in the presence of

.....

Signature.

Designation:.....

Witnesses; 1. Signature:

Name:

Address:

2. Signature :

Name:

Address :

Signed by the said in the presence of

.....
Signature

Witnesses; 1. Signature:

Name:

Address:

2. Signature :

Name:

Address :

APPENDIX 12
(XIII – 6:3)

PERIODICAL CARD PASSES

FIRST CLASS

Secretary of His Excellency the President		...	...	All stations
Private Secretary of His Excellency the President	...			All stations
Assistant Auditor for Railways	...	...	...	All stations
Railway Telegraph Engineer	...	...	...	All stations

SECOND CLASS

Staff of Assistant Auditor for Railways	...	...	...	All stations
Inspector of Railway Telegraphs	...	...	...	All stations
Arachchi, President's House	...	...	...	All stations

THIRD CLASS

Skilled workmen, Linesmen, Fitters, Carpenters, Battery men and the Labourers of the Railway Telegraph				All stations
---	--	--	--	--------------

APPENDIX 13
(XIII – 6: 5)

GOVERNMENT CONCESSION PERIODICAL TICKETS

FIRST CLASS

The Chief Justice	...	...	All stations
Judges of the Supreme Court	...	...	All stations
Members of Parliament (including free sleeping berth accommodation)			All stations
The Auditor General	...	...	All stations
The Commander of the Army	...	...	All stations
The Commander of the Air Force	...	...	All stations
The Commander of the Navy	...	...	All stations
Chief Engineer Telegraphs	...	...	All stations

SECOND CLASS

Sri Lanka Police Officers including Sergeants and Constables	Fort and Talaimannar Pier
--	---------------------------------

THIRD CLASS

Servants of the Chief Justice, Judges of the Supreme Court (one in each case)	All Stations
One servant in each case of the Commander of the Army , the Commander of the Air Force and the Commander of the Navy.	All Stations
Servants of the Members of Parliament (one for each member)	All stations

APPENDIX 14
(XV – 2:3:2)

APPLICATION FOR FOREIGN TRAINING FACILITIES

(To be forwarded through the Ministry with the recommendation of the Secretary before 31st October each year)

Ref. No :

Secretary of the Ministry of:

1. Name of Officer:

Designation:

Educational Qualifications:

Age:

2. (a) Date of entry into service :

(b) No. of years in present position :

3. (a) Type of training required: (i.e. academic course, practical attachment, study tour etc.)

(b) Duration :

(c) Country of training (in order of preference) :

(d) Post to which the officer will return on completion of training :

4. (a) Is the training sought based on an approved scheme of training :

(b) Relation of training to the development proposals of the Department/ Ministry:
.....

.....
Head of Department.

Date :

Ref. No :

Director,

Governing Council of the Sri Lanka Institute of Development Administration.

.....

.....,
Secretary,

Ministry of,
Colombo.

APPENDIX 15
(XV – 4: 12)

Revision

**FORM OF BOND TO BE EXECUTED BY OFFICERS
PROCEEDING
ON FULL-PAY STUDY LEAVE**

(This form should not be amended without the approval of the Director General of Establishments.)

SURETY BOND

KNOW ALL MEN BY THESE PRESENT THAT-

We, (1)
of
as Principal Debtor and (2)
of
and (3)
of

(1) Full name
of trainee.

(2) and (3)
Full name
of both
Sureties.

as Sureties (all hereinafter sometimes collectivity referred to as the obligors are jointly and severally held and firmly bound into the Government of the Democratic Socialist Republic of Sri Lanka in the sum of Rupees (4) (Rs.) lawful money of Sri Lanka to be paid on demand to the Government of the Democratic Socialist Republic of Sri Lanka at Colombo for which payment to be well and truly made, we the obligors for ourselves and each of us and our respective heirs, executors and administrators do hereby bind ourselves jointly and severally firmly by these present we, that said (2) and (3) as sureties, as aforesaid, hereby renouncing the *Beneficium Ordinis Divisions et Excussionis* and all the other benefits privileges and exceptions to which sureties as such are by law entitled; the force and effect of renouncing which have been explained to us and each of us by our Attorney-at-Law Mr. and with which we hereby respectively declare that we are now fully acquainted.

(4) Monetary
penalty.

Dated at Colombo this day of
in the year two thousand

WHEREAS the said (1) in pursuance
of an agreement dated at Colombo, this day of
..... in the year two thousand and entered

(5) Country of study. into with the for and on behalf of the Government of the Democratic Socialist Republic of Sri Lanka has agreed that the said (1) shall undergo a course of Training in (5) for a period of as stipulated in the said Agreement dated

AND WHEREAS in and by the said Agreement it was agreed that the said (1) should with two sureties approved by enter into a Bond in the sum of Rupees (4) (Rs.) for the due and faithful fulfillment by the said (1) of the terms and conditions in the said Agreement contained.

AND WHEREAS the said (1) and (2) and (3) have pursued the said Agreement and have agreed to be sureties hereto.

NOW the condition of the above written bond or obligation is such that if the said (1) shall faithfully fulfill the terms and conditions contained in the said Agreementor in the event of any breach of the said terms and conditions by the said, (1) the said (1) or the said (2) and (3) of shall pay to the Government of the Democratic Socialist Republic of Sri Lanka the said sum of Rupees (4)(Rs.) then this bond or obligation shall be null and void but otherwise the same then be and remain in full force virtue and operation.

In witness whereof the parties hereto have here unto set their hands at Colombo this day of in the year two thousand and

Signature of Principal Debtor:

Signature of First Surety:

Signature of Second Surety:

Witnesses; 1. Signature:

Name:

Address:

2. Signature :

Name:

Address:

I hereby certify that the meaning of privileges *Beneficium Ordinis Divisions et Excussionis* and the effect or of renouncing the same were duly explained by me to the within named sureties before the above written bond was signed by them.

.....

Attorney-at-Law for Sureties

APPENDIX – 16
(XV - 10:4, 10:5)
APPLICATION FOR PRIOR PERMISSION TO BE OBTAINED BY
PUBLIC
OFFICERS TO TRAVEL ABROAD

Part 01

1.

1.1. Name

1.2. Post

1.3. Service to which the Officer belongs

2.

2.1. Date of Birth Date Month Year

2.2. N.I.C. Number :

3.

3.1. Ministry/Provincial Council :

3.2. Department/Institution :

4.

4. Arrangements made to cover
duties/Acting arrangements :

5

5.1. Purpose of travel/Field of training

5.2. Nature of travel Official Private

5.3. In case of training,
the Awarding Agency

5.4. How expenses are
mainly to be met
(Mark in cage)

Through Dept. of External Resources	Through a Project	Direct Award	Private Funds	Government of Sri Lanka

5.5. If met from GOSL
funds, nature and
amount

Air Travel	Subsistence Allowance	Course Fees	Additional Expenses	Other Personal Expenses. (to be specified)

5.6. In case of a foreign loan/
project particulars thereof :

5.7. Date of commencement of course/ training

--

5.8. Date of completion

--

5.9. Date of departure and of return

--	--

5.10. Countries to be visited

--

5.11. Foreign address: Telephone, Fax,
E-mail, indicating numbers :

.....

.....

.....

5.12. Has the report on the previous Official trip been submitted? :

6. Particulars of foreign travel of applicant during the current year and the preceding three years

Year	Purpose of Travel	Period	Country

6.1. Will the minister of the ministry concerned be away from the country during the relevant period (Information to be furnished in the applications of Secretaries to Ministries only)

7. Declaration by applicant

I certify that the particulars furnished in this application are true.

Date :

.....

Signature of Applicant

Part 2 (a)

Recommendation of the Head of Department/ Recommendation of Chief
Secretary of the Provincial Council

Ref. No. Ministry/ Department/ Provincial Council.....

Secretary of the President/ Secretary of the Prime Minister/ Secretary of the
Minister/ Secretary of the Governor

This nomination has been approved by the Hon. Minister
Hon. Governor... Province. Arrangements have been made to
cover duties/ Acting arrangements have been made.

Submitted for prior permission of His Excellency the President/ Hon. Prime
Minister/ Hon. Minister/Hon. Governor.

Date :

.....
Signature of the Head
of the Department/Secretary to the
Ministry/ Chief Secretary of
Provincial Council.(Name and
Official Stamp)

APPENDIX 17

This appendix has been removed by Public Administration Circular No. 21/2007.

APPENDIX 18
(XIX – 4:2:1)

**MODEL SCHEME OF POINTS FOR THE GUIDANCE OF AUTHORITIES
FOR ALLOCATING HOUSES**

- | | |
|---|---|
| 1. For each month on the waiting list | 1 point |
| 2. For each child living with the applicant
(sons under 18 years of age and unmarried daughters) | 1 point up to a
maximum of 6
points |
| 3. For unsatisfactory housing conditions, i.e., all living
conditions and distance from place of work | 1 -3 points |
| 4. Officers whose normal duties require that they reside in
close proximity to their place of work and are available
regularly or frequently at night | 1 -3 points |
| 5. Temporary officers | deduct 12 points |
| 6. Where the number of points is equal, seniority will be
the deciding factor | |

APPENDIX 19
(XX – 2:1)

**FORM OF APPLICATION FOR RESERVATION OF HOLIDAY BUNGALOWS,
WHICH ARE UNDER THE PURVIEW OF THE ESTABLISHMENT DIVISION
OF THE MINISTRY OF PUBLIC ADMINISTRATION AND HOME AFFAIRS**

Para: “A”

1. Name of the Holiday Bungalow required:-
2. Required period :-From.....to Number of nights
3.
 - i) Name of the applicant :-
 - ii) National Identity Card No: of the applicant :-
 - iii) Post held at present by the applicant :-
 - iv) Salary code and salary scale of the applicant :-
 - v) Date of the first appointment in Public Service
of the applicant :-
 - vi) If the applicant is a Staff Officer, date of
appointment to the post :-
 - vii) Service station of the applicant :-
 - viii) Date of occupying a Holiday Resort for the
last time and name of the Holiday Resort :-
 - ix) Contact numbers:- Office Personal
4. Details of the persons occupying the Holiday Resort (Details of children above
the age of 12 years, if any, should also be included)

Name	Relationship to the applicant	Name	Relationship to the applicant
i)		ix)	
ii)		x)	
iii)		xi)	
iv)		xii)	
v)		xiii)	
vi)		xiv)	
vii)		xv)	
viii)		xvi)	

(Total number of occupants.....)

It is hereby stated that the above mentioned particulars are correct and I agree to abide by the conditions mentioned in Para. B and further I will personally meet the care taker and stay at the Holiday Bungalow and no other person will be sent for accommodation facilities if I do not go with the above mentioned persons. Further, I hereby state that the number of permitted inmates will not be exceeded and I agree to pay for any damage from my salary which may be caused to any property of the Holiday Bungalow by the inmates.

Date :-.....

.....

Signature of the Applicant

Director General of Establishments,

The details mentioned from I to IX under No. 03 are accurate. I hereby recommend that the applicant is qualified to reserve the Holiday Resort.

Date:-.....

.....

Head of the Department
(Place the Official Stamp)

Para. "B"

My No:- EST-7/HOLBG/02/4500

Date:-

Mr./Mrs./Miss.....

I hereby grant approval for the ...persons, whose details are indicated on the reverse of the page, to occupy the Holiday Bungalow offordays from 10.00 a.m. on to 09.00 a.m. on..... You should adhere to the following conditions.

- I. **The charges for common utilities (telephone, electricity) should be paid to the caretaker of the Holiday Bungalow and a Form General 172 should be obtained. Water should be used carefully and the charges for the usage of linen should be paid to the caretaker of the Holiday Bungalow.**

- II. No damage should be caused to any flower plants and fruit trees within the premises of the Holiday Bungalow and inmates should refrain from plucking flowers. No damage should be caused to any property during the period of stay. You are liable to pay for the damages, if any.
- III. The maximum number of occupants allowed at the Holiday Bungalow in accordance with the facilities should not be exceeded.
- IV. It is strictly prohibited to hold ceremonies and other functions at this Holiday Bungalow.
- V. Applications submitted by you in future for the reservation of the Holiday Bungalow will not be entertained if any complaint is made on any misconduct committed by you during the period of stay at the Holiday Bungalow.
- VI. If the Holiday Bungalow, which has been reserved, is not occupied, it should be communicated to the Director General of Establishments in writing 07 working days prior to the date for which it has been reserved. The amount paid shall not be refunded due to any reason and if the Holiday Resort is not occupied due to an unavoidable circumstance only it will be considered to allocate another date before the end of the relevant year.
- VII. This reservation can be cancelled by short notice on official purposes. The amount charged will be refunded at such occasion.

Assistant Director of
Establishments
For Director General of
Establishments
Ministry of Public
Administration and Home
Affairs

Copy :-

- I. District Secretary – Nuwara Eliya
Divisional Secretary – Haputale/ Bandarawela
- II. Caretaker of the Holiday Bungalow -

<i>Name of the Holiday Bungalow</i>	<i>Location</i>	<i>Telephone No:</i>	<i>Fees charged Rs.</i>	<i>Number of rooms</i>	<i>Maximum number of occupants</i>
Nuwara Eliya (Old)	Near the Economic Centre	052-2222363	500.00	03	10
Nuwara Eliya (New) A1	Near the Economic Centre	052-2222363	1000.00	03	06
Nuwara Eliya (New) A2	Near the Economic Centre	052-2222363	1000.00	03	06

<i>Name of the Holiday Bungalow</i>	<i>Location</i>	<i>Telephone No:</i>	<i>Fees charged Rs.</i>	<i>Number of rooms</i>	<i>Maximum number of occupants</i>
Nuwara Eliya (New) B	Near the Economic Centre	052-2222363	750.00	02	04
Diyathalawa -A	Near the Railway Station	057-2229068	500.00	05	11
Diyathalawa - B	Near the Railway Station	057-2229069	400.00	03	07
Bandarawela - 01	Bindunuwewa Road	057-2222553	400.00	03	07
Bandarawela - 02	Bindunuwewa Road	057-2222553	400.00	03	07
Assistant Director of Establishment : 011-2699399 General No: 011-2696211 – Ext. 316 Fax : 011-2692158					

- * Nuwara Eliya (Old) and Diyathalawa A are reserved for Staff Officers. However, reservation is allowed for other officers only for the period of next seven days, if applications have not been submitted by Staff Officers.

APPENDIX 20
(XXIV– 3:5)

(See also F.R. 238 (4) (b))

**MONTHLY DEDUCTIONS ON PAY ABSTRACT, WHICH ARE EXCLUDED IN
THE COMPUTING OF THE PERMISSIBLE LIMIT ON DEDUCTIONS**

W. & O. P. abatements

Public Service Provident Fund.

Income Tax.

Premiums on life insurance policies.

Festival advance recoveries.

50% Salary advance recoveries.

Recoveries on account of salary overpayments, including half-pay and no-pay leave recoveries.

Housing loans obtained from the National Housing Development Authority or the Treasury

Amounts intimated by the National Housing Development Authority under section 10 of the National Housing (Amendment) Act, No. 42 of 1958.

Insurance premiums due to the Insurance Corporation of Sri Lanka.

Deduction of insurance premiums due in respect of insurance policies which have been hypothecated to the Lady Lochore Loan Fund.

Donations to Government.

Loans for the acquisition of a house or land for building a house

Loans for construction/ completing the construction of a house

Deductions on house rent, electricity and water bills of officers occupying government quarters.

APPENDIX 21
(XXIV-3:8:1)

READY RECKONER

Amount of monthly interest at 4.2% per annum

<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>
<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>
1	0.00	36	0.13	71	0.25	106	0.37
2	0.01	37	0.13	72	0.25	107	0.37
3	0.01	38	0.13	73	0.26	108	0.38
4	0.01	39	0.14	74	0.26	109	0.38
5	0.02	40	0.14	75	0.26	110	0.39
6	0.02	41	0.14	76	0.27	111	0.39
7	0.02	42	0.15	77	0.27	112	0.39
8	0.03	43	0.15	78	0.27	113	0.40
9	0.03	44	0.15	79	0.28	114	0.40
10	0.04	45	0.16	80	0.28	115	0.40
11	0.04	46	0.16	81	0.28	116	0.41
12	0.04	47	0.16	82	0.29	117	0.41
13	0.05	48	0.17	83	0.29	118	0.41
14	0.05	49	0.17	84	0.29	119	0.42
15	0.05	50	0.18	85	0.30	120	0.42
16	0.06	51	0.18	86	0.30	121	0.42
17	0.06	52	0.18	87	0.30	122	0.43
18	0.06	53	0.19	88	0.31	123	0.43
19	0.07	54	0.19	89	0.31	124	0.43
20	0.07	55	0.19	90	0.32	125	0.44
21	0.07	56	0.20	91	0.32	126	0.44
22	0.08	57	0.20	92	0.32	127	0.44
23	0.08	58	0.20	93	0.33	128	0.45
24	0.08	59	0.21	94	0.33	129	0.45
25	0.09	60	0.21	95	0.33	130	0.46
26	0.09	61	0.21	96	0.34	131	0.46
27	0.09	62	0.22	97	0.34	132	0.46
28	0.10	63	0.22	98	0.34	133	0.47
29	0.10	64	0.22	99	0.35	134	0.47
30	0.11	65	0.23	100	0.35	135	0.47
31	0.11	66	0.23	101	0.35	136	0.48
32	0.11	67	0.23	102	0.36	137	0.48
33	0.12	68	0.24	103	0.36	138	0.48
34	0.12	69	0.24	104	0.36	139	0.49
35	0.12	70	0.25	105	0.37	140	0.49

<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>
<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>
141	0.49	182	0.64	223	0.78	264	0.92
142	0.50	183	0.64	224	0.78	265	0.93
143	0.50	184	0.64	225	0.79	266	0.93
144	0.50	185	0.65	226	0.79	267	0.93
145	0.51	186	0.65	227	0.79	268	0.94
146	0.51	187	0.65	228	0.80	269	0.94
147	0.51	188	0.66	229	0.80	270	0.95
148	0.52	189	0.66	230	0.81	271	0.95
149	0.52	190	0.67	231	0.81	272	0.95
150	0.53	191	0.67	232	0.81	273	0.96
151	0.53	192	0.67	233	0.82	274	0.96
152	0.53	193	0.68	234	0.82	275	0.96
153	0.54	194	0.68	235	0.82	276	0.97
154	0.54	195	0.68	236	0.83	277	0.97
155	0.54	196	0.69	237	0.83	278	0.97
156	0.55	197	0.69	238	0.83	279	0.98
157	0.55	198	0.69	239	0.84	280	0.98
158	0.55	199	0.70	240	0.84	281	0.98
159	0.56	200	0.70	241	0.84	282	0.99
160	0.56	201	0.70	242	0.85	283	0.99
161	0.56	202	0.71	243	0.85	284	0.99
162	0.57	203	0.71	244	0.85	285	1.00
163	0.57	204	0.71	245	0.86	286	1.00
164	0.57	205	0.72	246	0.86	287	1.00
165	0.58	206	0.72	247	0.86	288	1.01
166	0.58	207	0.72	248	0.87	289	1.01
167	0.58	208	0.73	249	0.87	290	1.02
168	0.59	209	0.73	250	0.88	291	1.02
169	0.59	210	0.74	251	0.88	292	1.02
170	0.60	211	0.74	252	0.88	293	1.03
171	0.60	212	0.74	253	0.89	294	1.03
172	0.60	213	0.75	254	0.89	295	1.03
173	0.61	214	0.75	255	0.89	296	1.04
174	0.61	215	0.75	256	0.90	297	1.04
175	0.61	216	0.76	257	0.90	298	1.04
176	0.62	217	0.76	258	0.90	299	1.05
177	0.62	218	0.76	259	0.91	300	1.05
178	0.62	219	0.77	260	0.91	301	1.05
179	0.63	220	0.77	261	0.91	302	1.06
180	0.63	221	0.77	262	0.92	303	1.06
181	0.63	222	0.78	263	0.92	304	1.06

<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>
<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>
305	1.07	346	1.21	387	1.35	428	1.50
306	1.07	347	1.21	388	1.36	429	1.50
307	1.07	348	1.22	389	1.36	430	1.51
308	1.08	349	1.22	390	1.37	431	1.51
309	1.08	350	1.23	391	1.37	432	1.51
310	1.09	351	1.23	392	1.37	433	1.52
311	1.09	352	1.23	393	1.38	434	1.52
312	1.09	353	1.24	394	1.38	435	1.52
313	1.10	354	1.24	395	1.38	436	1.53
314	1.10	355	1.24	396	1.39	437	1.53
315	1.10	356	1.25	397	1.39	438	1.53
316	1.11	357	1.25	398	1.39	439	1.54
317	1.11	358	1.25	399	1.40	440	1.54
318	1.11	359	1.26	400	1.40	441	1.54
319	1.12	360	1.26	401	1.40	442	1.55
320	1.12	361	1.26	402	1.41	443	1.55
321	1.12	362	1.27	403	1.41	444	1.55
322	1.13	363	1.27	404	1.41	445	1.56
323	1.13	364	1.27	405	1.42	446	1.56
324	1.13	365	1.28	406	1.42	447	1.56
325	1.14	366	1.28	407	1.42	448	1.57
326	1.14	367	1.28	408	1.43	449	1.57
327	1.14	368	1.29	409	1.43	450	1.58
328	1.15	369	1.29	410	1.44	451	1.58
329	1.15	370	1.30	411	1.44	452	1.58
330	1.16	371	1.30	412	1.44	453	1.59
331	1.16	372	1.30	413	1.45	454	1.59
332	1.16	373	1.31	414	1.45	455	1.59
333	1.17	374	1.31	415	1.45	456	1.60
334	1.17	375	1.31	416	1.46	457	1.60
335	1.17	376	1.32	417	1.46	458	1.60
336	1.18	377	1.32	418	1.46	459	1.61
337	1.18	378	1.32	419	1.47	460	1.61
338	1.18	379	1.33	420	1.47	461	1.61
339	1.19	380	1.33	421	1.47	462	1.62
340	1.19	381	1.33	422	1.48	463	1.62
341	1.19	382	1.34	423	1.48	464	1.62
342	1.20	383	1.34	424	1.48	465	1.63
343	1.20	384	1.34	425	1.49	466	1.63
344	1.20	385	1.35	426	1.49	467	1.63
345	1.21	386	1.35	427	1.49	468	1.64

<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>
<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>
469	1.64	510	1.79	551	1.93	592	2.07
470	1.65	511	1.79	552	1.93	593	2.08
471	1.65	512	1.79	553	1.94	594	2.08
472	1.65	513	1.80	554	1.94	595	2.08
473	1.66	514	1.80	555	1.94	596	2.09
474	1.66	515	1.80	556	1.95	597	2.09
475	1.66	516	1.81	557	1.95	598	2.09
476	1.67	517	1.81	558	1.95	599	2.10
477	1.67	518	1.81	559	1.96	600	2.10
478	1.67	519	1.82	560	1.96	601	2.10
479	1.68	520	1.82	561	1.96	602	2.11
480	1.68	521	1.82	562	1.97	603	2.11
481	1.68	522	1.83	563	1.97	604	2.11
482	1.69	523	1.83	564	1.97	605	2.12
483	1.69	524	1.83	565	1.98	606	2.12
484	1.69	525	1.84	566	1.98	607	2.12
485	1.70	526	1.84	567	1.98	608	2.13
486	1.70	527	1.84	568	1.99	609	2.13
487	1.70	528	1.85	569	1.99	610	2.14
488	1.71	529	1.85	570	2.00	611	2.14
489	1.71	530	1.86	571	2.00	612	2.14
490	1.72	531	1.86	572	2.00	613	2.15
491	1.72	532	1.86	573	2.01	614	2.15
492	1.72	533	1.87	574	2.01	615	2.15
493	1.73	534	1.87	575	2.01	616	2.16
494	1.73	535	1.87	576	2.02	617	2.16
495	1.73	536	1.88	577	2.02	618	2.16
496	1.74	537	1.88	578	2.02	619	2.17
497	1.74	538	1.88	579	2.03	620	2.17
498	1.74	539	1.89	580	2.03	621	2.17
499	1.75	540	1.89	581	2.03	622	2.18
500	1.75	541	1.89	582	2.04	623	2.18
501	1.75	542	1.90	583	2.04	624	2.18
502	1.76	543	1.90	584	2.04	625	2.19
503	1.76	544	1.90	585	2.05	626	2.19
504	1.76	545	1.91	586	2.05	627	2.19
505	1.77	546	1.91	587	2.05	628	2.20
506	1.77	547	1.91	588	2.06	629	2.20
507	1.77	548	1.92	589	2.06	630	2.21
508	1.78	549	1.92	590	2.07	631	2.21
509	1.78	550	1.93	591	2.07	632	2.21

<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>
<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>
633	2.22	674	2.36	715	2.50	756	2.65
634	2.22	675	2.36	716	2.51	757	2.65
635	2.22	676	2.37	717	2.51	758	2.65
636	2.23	677	2.37	718	2.51	759	2.66
637	2.23	678	2.37	719	2.52	760	2.66
638	2.23	679	2.38	720	2.52	761	2.66
639	2.24	680	2.38	721	2.52	762	2.67
640	2.24	681	2.38	722	2.53	763	2.67
641	2.24	682	2.39	723	2.53	764	2.67
642	2.25	683	2.39	724	2.53	765	2.68
643	2.25	684	2.39	725	2.54	766	2.68
644	2.25	685	2.40	726	2.54	767	2.68
645	2.26	686	2.40	727	2.54	768	2.69
646	2.26	687	2.40	728	2.55	769	2.69
647	2.26	688	2.41	729	2.55	770	2.70
648	2.27	689	2.41	730	2.56	771	2.70
649	2.27	690	2.42	731	2.56	772	2.70
650	2.28	691	2.42	732	2.56	773	2.71
651	2.28	692	2.42	733	2.57	774	2.71
652	2.28	693	2.43	734	2.57	775	2.71
653	2.29	694	2.43	735	2.57	776	2.72
654	2.29	695	2.43	736	2.58	777	2.72
655	2.29	696	2.44	737	2.58	778	2.72
656	2.30	697	2.44	738	2.58	779	2.73
657	2.30	698	2.44	739	2.59	780	2.73
658	2.30	699	2.45	740	2.59	781	2.73
659	2.31	700	2.45	741	2.59	782	2.74
660	2.31	701	2.45	742	2.60	783	2.74
661	2.31	702	2.46	743	2.60	784	2.74
662	2.32	703	2.46	744	2.60	785	2.75
663	2.32	704	2.46	745	2.61	786	2.75
664	2.32	705	2.47	746	2.61	787	2.75
665	2.33	706	2.47	747	2.61	788	2.76
666	2.33	707	2.47	748	2.62	789	2.76
667	2.33	708	2.48	749	2.62	790	2.77
668	2.34	709	2.48	750	2.63	791	2.77
669	2.34	710	2.49	751	2.63	792	2.77
670	2.35	711	2.49	752	2.63	793	2.78
671	2.35	712	2.49	753	2.64	794	2.78
672	2.35	713	2.50	754	2.64	795	2.78
673	2.36	714	2.50	755	2.64	796	2.79

<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>
<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>
797	2.79	838	2.93	879	3.08	920	3.22
798	2.79	839	2.94	880	3.08	921	3.22
799	2.80	840	2.94	881	3.08	922	3.23
800	2.80	841	2.94	882	3.09	923	3.23
801	2.80	842	2.95	883	3.09	924	3.23
802	2.81	843	2.95	884	3.09	925	3.24
803	2.81	844	2.95	885	3.10	926	3.24
804	2.81	845	2.96	886	3.10	927	3.24
805	2.82	846	2.96	887	3.10	928	3.25
806	2.82	847	2.96	888	3.11	929	3.25
807	2.82	848	2.97	889	3.11	930	3.26
808	2.83	849	2.97	890	3.12	931	3.26
809	2.83	850	2.98	891	3.12	932	3.26
810	2.84	851	2.98	892	3.12	933	3.27
811	2.84	852	2.98	893	3.13	934	3.27
812	2.84	853	2.99	894	3.13	935	3.27
813	2.85	854	2.99	895	3.13	936	3.28
814	2.85	855	2.99	896	3.14	937	3.28
815	2.85	856	3.00	897	3.14	938	3.28
816	2.86	857	3.00	898	3.14	939	3.29
817	2.86	858	3.00	899	3.15	940	3.29
818	2.86	859	3.01	900	3.15	941	3.29
819	2.87	860	3.01	901	3.15	942	3.30
820	2.87	861	3.01	902	3.16	943	3.30
821	2.87	862	3.02	903	3.16	944	3.30
822	2.88	863	3.02	904	3.16	945	3.31
823	2.88	864	3.02	905	3.17	946	3.31
824	2.88	865	3.03	906	3.17	947	3.31
825	2.89	866	3.03	907	3.17	948	3.32
826	2.89	867	3.03	908	3.18	949	3.32
827	2.89	868	3.04	909	3.18	950	3.33
828	2.90	869	3.04	910	3.19	951	3.33
829	2.90	870	3.05	911	3.19	952	3.33
830	2.91	871	3.05	912	3.19	953	3.34
831	2.91	872	3.05	913	3.20	954	3.34
832	2.91	873	3.06	914	3.20	955	3.34
833	2.92	874	3.06	915	3.20	956	3.35
834	2.92	875	3.06	916	3.21	957	3.35
835	2.92	876	3.07	917	3.21	958	3.35
836	2.93	877	3.07	918	3.21	959	3.36
837	2.93	878	3.07	919	3.22	960	3.36

<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>	<i>Capital</i>	<i>Interest</i>
<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>	<i>Rs.</i>	<i>Rs.c.</i>
961	3.36	971	3.40	981	3.43	991	3.47
962	3.37	972	3.40	982	3.44	992	3.47
963	3.37	973	3.41	983	3.44	993	3.48
964	3.37	974	3.41	984	3.44	994	3.48
965	3.38	975	3.41	985	3.45	995	3.48
966	3.38	976	3.42	986	3.45	996	3.49
967	3.38	977	3.42	987	3.45	997	3.49
968	3.39	978	3.42	988	3.46	998	3.49
969	3.39	979	3.43	989	3.46	999	3.50
970	3.40	980	3.43	990	3.47	1000	3.50

APPENDIX 22
(XXIV- 3:17:10)

**SPECIMEN ENDORSEMENT FOR CANCELLATION OF A SURETY BOND
ON SUBSTITUTION OF A FRESH BOND (OTHER THAN FOR BUILDING
SITE OR HOUSE PROPERTY)**

A fresh bond with a new surety for the outstanding balance of Rupees
having been executed on this bond is cancelled and discharged with effect
from

.....
Principal Borrower

Witnesses; 1. Signature:

Name:

Address:

2. Signature :

Name:

Address :

.....
Surety

.....,
(For and on behalf of the
Government of the Democratic
Socialist
Republic of Sri Lanka)

Witnesses; Signature:

Name:

Address:.....

APPENDIX 22
(XXIV- 3:17:10)

**SPECIMEN ENDORSEMENT FOR CANCELLATION OF A SURETY BOND ON
SUBSTITUTION OF A FRESH BOND (BUILDING SITE OR HOUSE PROPERTY)**

A fresh bond with a new surety for the entire loan of Rupees having
been executed on this bond is cancelled and discharged with effect from
.....

.....
(Borrower)

Date :

Witnesses; Signature:

Name:

Address:

.....
(Surety)

.....,
(For and on behalf of the
Government of the Democratic
Socialist
Republic of Sri Lanka)

Witnesses; Signature:

Name:

Address:

Date :

**APPENDIX 22
(XXIV)**

**SPECIMEN ENDORSEMENT FOR CANCELLATION OF AGREEMENT,
SURETY BOND AND POWER OF ATTORNEY ON THE REPAYMENT IN
FULL OF THE LOAN**

(Shall be applicable for a loan obtained for acquisition of building site or house property before the issuance of Public Administration Circular 08/2005 dated 31.03.2005, which has been effective from 01.01.2005)

(a) Agreement (Form Gen.263)

“The Principal sum for the repayment of which this Agreement was executed having been repaid in full together with all interest and insurance due thereon on this day of Two Thousand this Agreement is hereby cancelled.”

.....
Borrower

Witnesses; 1 Signature:

Name:

Address:

2. Signature :

Name:

Address :

.....,
(For and on behalf of the
Government of the Democratic
Socialist
Republic of Sri Lanka)

Date :,

Witnesses; 1. Signature:

Name:

Address:

(b) Surety Bond (Form Gen.264)

“The Principal sum for the repayment of which this bond was executed having been repaid in full together with all interest and insurance due thereon on this day of Two Thousand this bond is hereby cancelled.”

.....
Surety

.....
Borrower.

Witnesses;

1. Signature: 2. Signature :

Name: Name:

Address : Address:

.....,
(For and on behalf of the
Government of the Democratic
Socialist
Republic of Sri Lanka)

Date :,

Witnesses; Signature:

Name:

Address:

(c) Power of Attorney (Form Gen.265)

“The Principal sum for the repayment of which this Power of Attorney was executed, having been repaid in full this Power of Attorney is hereby cancelled.”

.....
Borrower

Date :,

.....,
(For and on behalf of the
Government of the Democratic
Socialist
Republic of Sri Lanka)

APPENDIX 23
(XXIV– 14:10)

**FORM OF IRREVOCABLE UNDERTAKING TO COMMUTE PENSION
DECLARATION**

I, of the Department of, do hereby undertake to settle in full, at the time of my retiring from the public service the outstanding balance on the loan granted to me for In the event of my failing to do so, I shall exercise the option to commute my pension and authorize the Director of Pensions to recover the balance outstanding in full from the commuted pension I may receive.

Signed by the aforesaid at on the
..... day of two thousand

.....
Signature of the
Declarant

In the presence of witness: Signature :

Name :

Address :

APPENDIX 24
(XXIV 11:1:2)

This Appendix is cancelled by the provisions of Public Administration Circular 08/2005 dated 31.03.2005, which has been effective from 01.01.2005.

APPENDIX 25
(XXIV – 7:9:3, 8:9:2)

**OFFICERS ON TRANSFER - COMMUNICATION OF LOAN INSTALLMENT
PARTICULARS TO THE MINISTRY / DEPARTMENT TO WHICH THE
OFFICER IS TRANSFERRED**

My No: -
Ministry/ Department of

Mr./Mrs./Miss.....
who served in the Ministry/Department as.....
(designation) has been transferred to the Ministry/ Department of
.....with effect from

Particulars of the loan of Rs.....obtained by him/her
from thebranch of the Bank, are as
follows:

1. Name of the Officer :.....
Loan entitlement No:
Reference No. of the Bank:
Number of installments already paid:
Number of installments due:
Month for which the last installment was paid:.....

Particulars of the cheque

Cheque No:
Bank and branch:
Cheque Date:

2. Loan installment: -
Interest thereon (4%) Rs.
The difference in the interest borne by Rs.
the Government Rs.
Total remittance Rs.

.....
Secretary of the Ministry/
Head of the Department
(Official Stamp)

Date:

- Copies: 1. Manager: Bank
..... Branch
2.(Officer)

APPENDIX 26
(XXIV-3:13)

FORM OF APPLICATION FOR LOAN

1. Name with initials: Mr./ Mrs./Miss.....
Names indicated by the initials :.....
Permanent address :.....
.....
Civil Status:.....
Date and Place of Birth:..... NIC No:
Telephone No. (Residence).....
Place of work:.....
Designation:.... Period of service in the post:.....
Telephone No. (Official).....
2. Name of wife/husband in full:.....
Date and Place of Birth:..... NIC No:
Place of work:.....
Address:.....
Designation:.... Period of service in the post:.....
Telephone No. (Official).....
Number of dependents, their names and age:.....
3. Purpose for which the Loan is applied (as per Sub-section 11.1):
4. Amount of the Loan: Rs:..... Repayment period:.....
5. Legal description of the property offered as security
Assessment No :..... Extent of land :.....
Street and Town :.....
Ownership:.....
Purchase Price :..... Cost of Construction Rs:.....
Plan No:..... Lot No:..... Date of plan:.....

Surveyor's name :.....

Encumbrances if any:.....

6. Monthly income :.....

Total salary of the applicant : Rs.....

Total salary of the spouse : Rs.....

Other income (specify) : Rs.....

Total Income : Rs.....

7. Bank Accounts:

Name of Bank	Name of Branch	Account No	Type of Account
.....			
.....			

8. Existing obligations as a borrower guarantor

Name of Bank	Initial amount	Balance at present	Security offered	Purpose for which the loan was taken
.....	Rs.....	Rs.....	Rs.....	Rs.....
.....	Rs.....	Rs.....	Rs.....	Rs.....

9. I herewith submit the documents (originals) to be furnished in applying for the Loan in terms of Appendix 29.

In the case of a purchase:

Agreement regarding the sale, Copy of Deed of the property to be purchased and approved plan of the building,
Statement expressing Vendor's written consent to sell
(In terms of Appendix 30)

10. The Law Governing the Applicant:

Common Law/ Kandyan Law/ Tesawalame Law/ Muslim Law

I agree to obtain the property loan in terms of the provisions in Section 11 of Chapter XXIV of the Establishments Code, governing the granting of property loans and in conformity with the rules and regulations enforced by the bank.

.....
Signature of the applicant

Date:-

To be perfected by the Establishments Branch (of the Ministry/ Department).

1. Date of first appointment:.....
2. Date of birth:.....Age as of the date of application:.....
3. (a). Is the post permanent and pensionable?
(b). If so, from which date?
4. Particulars of any outstanding loans obtained from the Government

Category of Loans	Balance outstanding as at

5. Particulars of the monthly salary

- I. Consolidated salary per month: Rs.
- II. Allowances: Rs.
- III. Total salary: Rs.
- IV. Total deductions (inclusive of
obligatory deductions) Rs.
- V. Net Salary Rs.

(Salary particulars for the relevant month are attached)

- VI. The maximum amount of loan that can be granted to the officer in terms of the provisions of section 11.4.1 in Chapter XXIV of the Establishments Code should be determined taking into consideration the deduction of both the 4% of interest that can be levied from the employee as well as the loan installment from his/ her net monthly salary excluding allowances.

(..... in figures)

(..... in letters)

6. Particulars of any charges of misconduct pending against the officer or any charges of misconduct under investigation:-

.....

Date:

Staff Officer,
(Establishments)

Recommendation of the Secretary of the Ministry/ Head of the Department

My No.:-

Ministry/ Department:-

Manager

..... Bank

..... Branch

I recommend that the maximum amount of the loan that may be granted to Mr./Mrs./Miss at his/ her request, for the purpose of, at the subsidised rate of interest offered by the government, recoverable from the monthly salary is, Rs.

Further, I agree to remit monthly to the bank, in terms of Section 11.7.1, the loan installment calculated by the bank on his/ her salary as recommended by the bank, together with the interest at the rate of 4% payable by the officer and the interest borne by the government.

Signature:.....

Name:.....

Designation:.....

(Official Frank)

APPENDIX 27
(XXIV- 7:10:4, 8:10:4)

**FORMAT FOR COMMUNICATING TO THE MINISTRY/DEPARTMENT
THE RELEASE OF THE LOAN BY THE BANK**

..... (Secretary of the Ministry/ Head of the Department)

..... (Ministry/Department)

Release of the loan of Mr./ Mrs./Miss

1. Name of Bank and Branch of Bank:-.....

2. Loan entitlement No:-

3. Full name of the recipient of the loan:-

4. I. Post held by the recipient of the loan at present:

II. Service to which the recipient of the loan belongs:.....

5. Address: Personal :

 Official :

6. Amount of loan approved Rs.....(in figures)

Rs.....(in letters)

7. Date of approval of the loan :.....

8. Period of recovery of the loan

From year 20..... to year 20.....

9. Monthly loan instalment:

9.1 Value of the instalment inclusive of the interest: Rs.....

9.2 Total number of instalments :

.....

Date:.....

Signature of the Manager

Name:-.....

Official Stamp :-

Copies : 1. Ministry of

2. (Borrower)

APPENDIX 28
(XXIV - 11.11.7)

LIST OF BANKS FOR OBTAINING LOAN

1. Peoples' Bank
2. Bank of Ceylon
3. National Savings Bank
4. State Mortgage and Investment Bank

APPENDIX 29
(XXIV - 11:11:1)

DOCUMENTS TO BE SUBMITTED TO THE BANK WITH THE LOAN APPLICATION

The following documents should accompany the Loan Application

1. The National Identity Card (Two photo copies certified in accordance with the original)
2. Particulars of the last drawn salary (Particulars of the last drawn salary certified by the employer)
3. Approved Survey Plan (Original)
4. Title deed (a photo copy) – The original title deed should be submitted to the bank when obtaining the loan
5. Entries for 30 years (Folios from the Land Registry)
6. Title Report
7. Documents to be obtained from the Local Authority-
 - Certificate of ownership of property
 - Non-vesting Certificate
 - Street Line and Building Certificates
 - Assessment notice and receipt for the payment of rates for the last quarter
8. Sketch plan showing means of access
9. Approved building plan
10. In the case of a purchase, letter from the vendor (In terms of Appendix 30) and vendor's National Identity Card or a legally acceptable Identity Card (a photo copy certified in accordance with the original)
 - (E.g. Driving License or a valid Passport)

N.B.: The documents relevant to the amount of the loan applied for, would be adequate.

APPENDIX 29
(XXIV – 14:3)

**FORM OF APPLICATION FOR REQUEST OF SALARY ADVANCE TO
PUBLIC OFFICERS WHO SUFFER PROPERTY DAMAGE AND/OR LOSS OF
MOVABLES AS A RESULT OF THE DISTURBANCES THAT OCCUR IN THE
COUNTRY**

1. Full name of the applicant :
2. Designation:
3. Official address:.....
4. Annual salary (without allowances): Rs.
5. Amount applied for : Rs.
6. Amount of damage as estimated by the applicant : Rs.....
7. Documents in support of damage to property and/or loss of movables and the extent of such damage:

.....

Signature of the applicant

Date :-

APPENDIX 30
(XXIV- 11:11:1)
(Section 9 of Appendix 26)

**DECLARATION OF PROPERTY OWNER'S CONSENT TO SELL THE
PROPERTY**

.....
.....
.....
(Address of the vendor)
Date:

.....
.....Bank
Colombo

Declaration of Consent to sell the Property

I / We residing at the above
(Full name of vendor)
address declare my/our consent to sell the allotment of land/house property described
below, owned by me/us and situated within the area of authority of the
..... Municipal Council / Urban Council /
Pradeshiya Sabha, to
(Full name of vendee)
.....
(National Identity Card - Number and date)
residing at.....
(Address of vendee)

1. Deed No./ Court Decree No.....Date
Name of attesting Notary.....

2. Name of Licensed Surveyor who prepared the Survey Plan
Date of Survey Plan.....
Lot No..... Extent: Acres:..... Roods:.....Perches:.....
Assessment No.....Name of Street:.....

3. I declare my consent to sell the above property for a sum of Rupees.....
(in words)
(Rs.....)

In consideration of the sale of this property I/We have already received a sum of Rs....., which I/We acknowledge, I/We declare my/our consent to accept from the Vendee, at the time of attestation of the deeds, any difference between the amount of the loan approved by your institution and the sale price agreed upon already. I/ We request that the sum of money payable to me/us, be credited to my/our Bank Account, the particulars of which are as follows:

4. Name of Bank Account:.....

Bank/ Branch:.....

Account No:

(In the event that a Power of Attorney has been executed, the particulars of the Bank Account should be those of the Vendor and not those of the Attorney)

5. The Vendor's specimen signature should be attested by one of the following:

1. The Grama Niladhari of the relevant Division
2. An Attorney for the area of Jurisdiction
3. The Chief Priest of a place of worship
4. An officer included in the Civil List

.....

Specimen signature/s of the
Vendor / Vendors, with Number
and date of the National Identity Card

01.....

02.....

Signature attested by:

Name:.....

Designation:.....

Address:.....

.....

SignatureDate.....

N.I.C. Number.....

APPENDIX 31
(XXIV-3:13)

LOAN APPLICATION FORM

Loan application for.....

1. Full name of the officer.....
2. Permanent post (Present Class/Grade):-.....
3. Identity Card No:-.....
4. Permanent Address:-.....
 1. Personal:-.....
 2. Official:-.....
5. Telephone No:-
 1. Personal:-.....
 2. Official:-.....
6. Purpose for which the loan application is made :-.....
7. Amount of the loan applied for :- Rs.....
8. The bank and branch from which the loan is sought in terms of Appendix 32:.....

I agree to obtain the loan subject to the relevant rules and regulations in Section 7 / 8 of Chapter XXIV of the Establishments Code and the rules and regulations imposed by the bank thereunder.

Date:-.....

.....
Applicant for the loan

To be perfected by the Establishments Division of the Ministry/Department.....

1. Date of first appointment:-.....
2. Date of Birth:-.....Age on the date of application.....
3. (a) Whether the post is permanent and pensionable.....
(b) If so, from which date?.....

4. Particulars of loans already obtained from the Government:-

Category of loan	outstanding balance of loan as at.....

5. Particulars of the monthly salary:-

- I. Consolidated Monthly salary:-Rs.
- II. Allowances:-Rs
 - III. Total salary:-Rs.....
 - IV. Total deductions (inclusive of obligatory deductions):- Rs.....
 - V. Net salary:-Rs
- (Salary particulars for the relevant month are attached)
- VI. The maximum amount of the loan that can be granted to the officer in terms of Section 7.9 or 8.9 of Chapter XXIV of the Establishments Code.
 - (In figures:)
 - (In letters:)

6. Particulars of any charges of misconduct pending against the officer or any charges of misconduct under investigation :-.....
.....

Date:-

.....
Staff Officer
(Establishments)

Recommendation of the Head of the Department :-

My No:-.....

.....(Ministry/
Department) of I recommended the grant of a loan to Mr/Mrs/Miss.....
..... residing at.....
at his/her request, for (purpose)..... taking into consideration
the amount recoverable from the monthly salary, the maximum loan entitlement
and the recommendation of the bank.

Signature:-

Name:-

Designation:-

Official stamp:-

APPENDIX 32
(XXIV – 8:11:2)

LIST OF BANKS FOR OBTAINING LOAN

- 1) Bank of Ceylon
- 2) Peoples' Bank
- 3) National Savings Bank

INDEX

(Roman figures denote chapter numbers. Other figures denote section numbers)

A

*Chapter and Section or
Sub-section*

Accident leave and special leave –

Accident Leave should be made on Form General 5	XII	9:1:4
Only for accidents in actual performance of duty	XII	9:2:1
Should not be deducted from the normal leave	XII	9:2:4
		9:1:2
Special Sick Leave	XII	9:2
Up to one year on full pay and a further 06 months on half pay	XII	9:1:1

Accident whilst on duty –

Change of salary concerning to special event	VII	8:8:1
Not entitled to any benefit from prior service	VII	8:1
Post or grade from which he retired	VII	8:5
Pension to be paid to such officer	VII	8:6
Released from a post he holds be entitled to incremental credit	VII	8:2

Acquisition of land, Investment and mortgages –

Acquisition of land – Does not require prior approval of Government Agent/ District Secretary but the matter to be reported	XXIX	3:1
Applications relating to the Sanctioning authority	XXIX	1:1
Head of Department or a Member of the S.L.A.S	XXIX	3:2
Improper holdings	XXIX	3:3
Land acquired by Gifts, Dowry, etc	XXIX	3:1:1

Acting appointment of an officer -

All such appointments only by Appointing Authority	II	13:1
Must be formally appointed to “attend to the duties” of	II	13:5
Not as a matter of course	II	13:2
Only if fully qualified	II	13:4
Only as a Temporary measure	II	13:3
Quantum of additional remuneration	II	13:7

Acting salary and special additional remuneration -

Attending to the duties of a post	VII	12:3
For service with a special commission of committee of inquiry	VII	12:9
If acting in a post in a Corporation	VII	12:8
Overriding limits	VII	12:6
Periods for which acting pay is payable	VII	12:4:
Rate of acting pay	VII	12:5
When appointed to act in another post	VII	12:2

Address of officers and next-of-kin -

Change in the official designation	XXVIII	10:3
Every officer of Sri Lanka overseas service	XXVIII	10:2
Illness	XXVIII	10:4
In the event of a death	XXVIII	10:6
Shall be informed to Head of the Department	XXVIII	10:1

Advances to meet expenditures in civil proceedings –

Advances to defend in civil actions	XI	1:2
Bond to be entered into	XI	1:5
If Attorney General does not undertake the defence	XI	1:1
Recovery of Advances	XI	1:6

Advances to meet travelling expenses -

Breach of Rule	XIV	27:7
Extension of period not exceeding 3 months	XIV	27:6
Monthly statements	XIV	27:9
Not if earlier advance is outstanding	XIV	27:8
On transfer	XIV	27:3:3
Payable on day prior to journey only	XIV	27:3:1
Personal to officer	XIV	27:2
Recovered on travelling claim	XIV	27:4
Token Provision	XIV	27:1
Up to 75% of expenses	XIV	27:3:2
Within one month	XIV	27:5

Advertisement -

All vacancies to the Post in the Public Service	II	3:1
Affirmation or the oath and where it has to be filled of record	II	10:6 10:6:4

Agreement –

To be entered on first appointment	II	10:7
Where to be filed of record	II	10:8

Agreements and bonds when on full pay study leave –

Agreement to be signed	XV	4:1
A breach of any of the terms of the agreement	XV	4:7
If extended the period of study	XV	4:10
Form of agreement	XV	4:12
If the officer is on probation	XV	4:2
Period of obligatory Service	XV	4:1, 4:4
Responsibility of the Head of Department	XV	4:3
Sufficient time to serve the period of obligatory service Before reaching the age of 55 years	XV	4:3:1
A surety to a bond	XV	4:8
Where a probationer is sent abroad	XV	4:13

Agreement for no pay study leave –

Agreement to be entered into	XV	5:1
The amount recoverable in the case of an extension	XV	5:2:1
Penalty for failure to serve the period of obligatory service	XV	5:2
Period of obligatory service	XV	5:1

Allocation of Government Quarters -

Criteria for selection	XIX	4:2
Eligibility	XIX	4:1
Point system	XIX	4:2:1

Allowances, etc., when on study or training -

The allowance or stipend	XV	6:1
Not applicable to Sri Lanka Overseas Service	XV	9:9
Subsistence allowance	XV	8
Warm clothing allowance and advances	XV	9

Application for and issue of warrants –

Application to be sent to the Head of the Department where husband is employed	XVI	2:2
Date issuable	XVI	2:5
Date of travel for purpose of booking	XVI	2:7
Period of validity	XVI	2:6
Subject to railway regulation	XVI	2:8

Appointment –

Acknowledgement of the letter of appointment	II	8:3
Ante-dating of	II	1:10
By other public officers under delegated authority	II	1:5
Conditions to be satisfied	II	6:1
Confirmation of	II	11:5
Conform to the approved scheme of Recruitment	II	1:6
		2:1
Dating of the confirmation of	II	11:8
		11:10:2
Effective date of an appointment or a promotion	II	1:9
Form of letters of appointment	II	8:1
Necessary conditions for ante-dating	II	1:10:1
Non citizens	II	7:2
Officers retired for inefficiency, dismissed, etc	II	7:1
On casual basis	II	1:7
Power of appointment	II	1:1
		4:1
Prohibition of an unsalaried officer for appointment to additional posts	II	1:2:1
Security to be furnished	II	12:6

Appointing Authority – In respecting of staff grade –

A secretary	II	4:2:1
Cabinet of Ministers	II	4:1
Head of Department	II	4:2:1(b)
Public Service Commission	II	4:2:2
Secretary to the President	II	4:2:1(a)

Appointing authority - In respect of non staff grade –

Director General of Combined Service	II	4:3
Head of Department	II	4:3
Public officer holding delegated authority	II	4:3

Ascertaining the date of Birth **II** **10:10**

Attendance Register **XXVIII** **1:3**

Attorney General's Advice or opinion –

Advice not to be communicated to any person	XXXIII	1:7
Not on draft legislation: but on legal principles in contemplated legislation	XXXIII	1:6
Not on hypothetical cases	XXXIII	1:2
Precise and full statement	XXXIII	1:1

Authority for ordering transfers –

A head of Department	III	2:3
A Secretary	III	2:3
Cabinet	III	2:3
Director General of Combined Service	III	2:3
Secretary to the Ministry, Head of Department if not under a Ministry	III	2:3
Secretary Ministry of Public Administration	III	2:3
Secretary to the President	III	2:3

C

Canvassing support at an election–	XXVIII	1:6
---	---------------	------------

Card passes concession periodical tickets to travel on the railway –

Officers to whom a pass or concession tickets may be	XIII	6:5
Issued Passes, etc., to be returned when ceasing to hold office	XIII	6:4

Cash transactions –	XXVIII	1:1
----------------------------	---------------	------------

Casual Leave –

In addition to vacation leave	XII	5:2
Not to be combined with other types of leave	XII	5:3
Not to be exceed six days at a time	XII	5:1
Should not affect work of Department	XII	5:4

Certain type of post	II	2:8
-----------------------------	-----------	------------

Certain types of official travelling, return from leave out of the Island –

After half pay leave to same station	XIV	29:2
After vacation leave	XIV	29:2:1
To another station	XIV	29:2:2

Certificates of Service –

Authority for issuing	VI	7:3
Form and contents	VI	7:1
		7:2
Nature of particulars to be furnished	VI	7:4

Channel of communication and / or responsibilities -

A government Agent	XXVII	5
A Head of Department	XXVII	4
A Minister	XXVII	1:1

	<i>Chapter and Section or Sub-section</i>	
A Secretary	XXVII	3
The Attorney General	XXVII	2
Chauffeurs, Karyala Karya Sahayakas and servants -	XIV	19
Class of travel	XVI	1:2
Class of travel abroad for study, etc	XV	11
Class of travel on railways	XIV	17
Collection of money from staff	XXVIII	1:6
Collection of money from members of the staff	XXVIII	1:6
Combined Allowance -		
Daily paid officer	XIV	4:6
Detention	XIV	4:7
Duty allowance	XIV	4:2
Not for broken periods	XIV	4:4:2
On salary	XIV	4:5
Only for over seven miles	XIV	4:1
Parts of a day	XIV	4:4
Commutated Allowance –		
Composition	XIV	12:1
Deduction in payment	XIV	12:5
Who has extensive travelling	XIV	12
Who is receiving a permanent allowance is	XIV	12:3
Compensation for injury to person –		
Claims under Workmen’s Compensation Ordinance	XI	5:2
Investigation by board	XI	5:1
If claim under Pension Minute likely	XI	5:1
Compensation for loss or damage to property –		
Claims to Director General of Establishments	XI	4:3
Complaint to Police	XI	4:2
Inquiry into loss etc, and assessment of damage	XI	4:4

Maximum limit	XI	4:5
Secretary, Ministry of Public Administration may grant of compensation as an act of grace	XI	4:1
Compulsory leave -	XII	20:1 20:2
Concessionary Season Tickets –		
Period of validity	XVII	1:3
Permanent officer	XVII	1:1
Temporary, casual and Daily Paid Officer	XVII	1:2
Concessions to members of Trade Unions –		
Collection of contributions	XXV	1:1
Expressing his consent	XXV	1:2
Monthly schedules	XXV	1:5
On transfer	XXV	1:3
		1:8
Quarterly and annual subscriptions	XXV	1:7
Revocation of options	XXV	1:4
Concessions regarding transfer to an officer entitle to exercise Political Rights –		
An officer who wishes to avail himself of	XXXII	3:5
Subject to departmental and disciplinary requirements	XXXII	3:4
The offices which entitles him	XXXII	3:2
To certain office bearers in central committee	XXXII	3:1
Will lose concession on promotion, etc	XXXII	3:3
Conditions governing payment of a salary loan –		
A breach of any of the rules	XXIV	3:21
Application for a loan	XXIV	3:13
Action to be followed before no pay leave for purpose other than employment abroad is granted	XXIV	3:18
Consolidated as one amount	XXIV	3:6
Delay in compliance with the requirement	XXIV	3:17:6

	<i>Chapter and Section or Sub-section</i>	
Consequences of non-compliance	XXIV	3:1:3
Certificate of Head of Department	XXIV	3:19
Forms of agreement prescribed	XXIV	3:14
full amount of the loan must be applied promptly for the Specific purpose	XXIV	3:1
If a guarantor is dismissed or dies, another guarantor should be furnished	XXIV	3:17:4
Limit on total monthly deductions	XXIV	3:5
Neither the officer nor his surety is an absolved of the full liability	XXIV	3:11
No officer who has stood as surety should not be allowed to resign or retire	XXIV	3:17:7
No loan for the purchase of a vehicle of already in possession of one	XXIV	3:12
Not to be mortgaged or otherwise disposed of	XXIV	3:9
Officer applying no pay leave for employment abroad	XXIV	3:18:1
Only when the old surety bond should be cancelled	XXIV	3:17:9
Supporting documents	XXIV	3:2
Surety bond required	XXIV	3:15
Surety when acceptable	XXIV	3:17:3
That the loan amount should be limited to the actual cost	XXIV	3:3
The cancellation in the form of an endorsement	XXIV	3:17:10
The quantum of interest	XXIV	3:8:1
To insure a vehicle against all risks	XXIV	3:10
To recover interest monthly	XXIV	3:8
To utilize an outstanding balance from a loan	XXIV	3:9:2
When necessary documents not furnished within a fortnight	XXIV	3:1:2
When not utilized	XXIV	3:1:1
When principal debtor is in a position of authority over the surety	XXIV	3:17:1
When recovery should commence from the month Immediately	XXIV	3:7
Where disciplinary action should be instituted	XXIV	3:1:3
Where a sale or disposal takes place	XXIV	3:9:1
Whether surety is a fit and proper person	XXIV	3:17

Conditions of Tenancy for Government Quarters -

Cost of damages	XIX	6:8
Extensions	XIX	6:12
Full tenure may be completed	XIX	6:14:1
Inform District Engineer (Buildings) or Head of Dept	XIX	6:7
Intimation on ceasing to be eligible	XIX	6:14
Months' notice of vacation of quarters	XIX	6:5
Only for officer, family dependants	XIX	6:3
Prohibition of subletting, & dependants	XIX	6:4
Report date of occupation and vacation	XIX	6:6
Resignation on retirement	XIX	6:11
Sharing quarters	XIX	6:9
Tax time limits	XIX	6:1
To give vacant possession at the end of the period of tenure	XIX	6:15
Vacation of death - on termination of service or death while on service	XIX	6:10
When occupant is on leave abroad	XIX	6:13 6:13:1

Confidential Report -

Adverse comments	VI	6:4
Officers of combined Service	VI	6:1
Other grades	VI	6:3

Confirmation of appointment –

Authority to confirm	II	11:6
Probation period of an officer who is granted permanent status	IV	5:11
Seniority of an officer who is granted permanent status	IV	5:10

Contribution to the -

Public Service Provident Fund	II	12:3
Widows' and Orphans' pension scheme	II	12:2
Widowers' and Orphans' pension scheme	II	12:2

Conveyance of packages and baggage by Railway –

Free conveyance of luggage in certain cases	XIII	5:2
Luggage entitlement as for any other passenger	XIII	5:1
To be way billed in every case	XIII	5:3

Cost of living allowance –

Calculation of payment in the case of a daily paid officer	VIII	11:3
Every public officer is eligible	VIII	11:1
Payment is separate from other allowance and not reckoned for other purposes	VIII	11:5
Quantum of allowance to a monthly paid officer	VIII	11:2
When an officer avails himself of no pay leave	VIII	11:4

Custody, Preservation and Distribution of official documents –

A descriptive record	XXVIII	9:6
Documents which should not be destroyed	XXVIII	9:8
Preliminary schedules	XXVIII	9:4
Periodical destruction of values records	XXVIII	9:5
Prepare and update from time to time schedules of records	XXVIII	9:3
Safe custody	XXVIII	9:1
Transfer of Public Records	XXVIII	9:2
Transfer of documents	XXVIII	9:7

D

Date of confirmation	II	11:8
		11:10:2

Declaration of Assets and Liabilities -

Description of assets to be declared	XXIX	2:2
Includes assets of spouse	XXIX	2:3
On first appointment	XXIX	2:1
To be declared each time new assets are acquired	XXIX	2:3

Defence of an action against the Government -

To be reported to the Attorney-General	XXXIII	5:1
--	--------	-----

Defence of an action against Public Officers in their official capacity –

Any other officer	XXXIII	6:2
Civil action against Head of Department	XXXIII	6:1
Criminal action	XXXIII	6:5
If Attorney-General does not undertake defence	XXXIII	6:3
Where proceedings for the enforcement of fundamental rights	XXXIII	6:6

Definitions –

	I	I
Definitions of substitute, casual, temporary and permanent officer`	IV	2:1 2:2 2:3 2:4

Departmental Examination -

Requirement for the preparation of a Scheme of Examination	II	16:1
--	----	------

Determination of seniority -

Alteration of Seniority	II	14:2
By date of appointment	II	14:1
By reversion on disciplinary grounds	II	14:3:1
By reversion of abolition of office, redundancy, etc	II	14:3:2
By reversion at officer's request	II	14:3:3
seniority of an officer who is granted permanent status	IV	5:10

Diaries and Reviews -

Security	XXVIII	8:3
Should be type written with paragraph number	XXVIII	8:1
Should not be used as a medium for criticism	XXVIII	8:2

Distribution of the volumes of the code **I** **3**

Draft Legislation –

Procedure in referring to Legal Draftsman	XXXIII	2:3
Programme and order of Priority Legislation	XXXIII	2:2

Duty Leave –

If appointment as a patron of a sub office of a Development Council	XII	13:7
On Government business abroad	XII	13:1
To attend courts	XII	13:5
To attend a seminar in the capacity as a member of Trade Union	XII	13:6
To a chairman of a Gramadoya Mandalaya	XII	13:7
To an officer attending a disciplinary inquiry	XII	13:4
To a member of a deputation	XXV	2:2
To a member of the Special Police Reserve	XII	13:3
To a Member of Trade Union	XXV	2:1
To a member of Volunteer Force	XII	13:2

E

Efficiency Bar (s) -

By the application of the provisions of the Scheme of Recruitment	II	15:1
Certificate must be given to be promoted over an Efficiency Bar	II	15:3
Decision will operate as a deferment of the increment	II	15:5
Effective date of passing the examination	II	1:14 15:4:2
Effective date of promotion	II	1:9
Exception of an Efficiency Bar does not affect the past	II	15:8
Instances of exemption from the requirement of passing an Efficiency Bar	II	15:8
The manner in which the certificate should be given	II	15:3 15:4
When an appeal should be made to the Secretary to the Ministry of Public Administration	II	15:6

Employment of non citizens	II	7:2
-----------------------------------	----	-----

Exercise of political Rights by an officer entitles to do so -

Compulsory no pay leave during election time	XXXII	2:3:2
Express political opinion	XXXII	2:2:2
No canvassing in a Government office or display of symbols etc	XXXII	2:5
No political meetings in Government Premises	XXXII	2:4
May become member of a political party	XXXII	2:2:1
Notice of intended candidature to Head of Department	XXXII	2:3:2
Officer entitled	XXXII	2:1
Resign if elected to Parliament	XXXII	2:3:3
Stand for election	XXXII	2:2:3
Without prejudice to his work	XXXII	2:3:1

Expression of opinion and criticism of Government policy of Administrative action –

Criticism of Disciplinary action	XXXI	3:4
Criticism regarding conditions of service is permitted	XXXI	3:3
No obligation to enter into correspondence with the officer or with association by any Disciplinary Authority	XXXI	3:5
Prohibition of public discussion of Government action	XXXI	3:1 3:2

F

Failure to qualify for confirmation during the period of probation beyond the control of the officer	II	11:9
---	-----------	-------------

Failure to qualify for confirmation during the period of probation within the control of the officer	II	11:10
---	-----------	--------------

Fees –

Criteria for determining percentage	IX	2:2
Determination of percentage to be appropriated by the officer	IX	2:1
For local body	IX	4:1:1
For services by Registrar of Finger Prints including cost of delivery	IX	5:2
Services to a local body or a Corporation	IX	2:4
To be credited to the consolidated fund and the sums deposited to cover the expenses of returning documents should be remitted by court	IX	5:3

		<i>Chapter and Section or Sub-section</i>
Visiting Lecturer	IX	2:3
When an officer allowed to draw (fees) for services to Government	IX	1:1

Fees in District Court, Magistrate Court, etc. –

Accounting	IX	14:1
For binding records	IX	6:4
For copying documents in the excise Department	IX	8:1
For services on Medical Boards	IX	13:1
For searching records and translation	IX	7:1
Notices to be posted up	IX	6:1
Rate of payment for searching of documents	IX	6:3
Scale of fees payable to a Government Medical Officer for Judicial work	IX	11:2
Scale of fees payable to a Government Medical Officer for his services in connection with Workmen's Compensation	IX	12:1
Services for which fees may be recovered	IX	6:2

Full pay study leave -

Agreement to be entered into	XII	14:4
Authority for granting leave	XII	14:3 14:3:1
Departmental Scheme of training or scholarship	XII	14:1:1
Foreign Scholarships in terms of the scheme of recruitment	XII	14:1:3
Not for temporary officer or an officer on probation	XII	14:2
Period of obligatory service	XII	14:6
Permission of the President/ Prime Minister	XII	14:5
Scholarship by his own initiative	XII	14:1:4
Scholarship secured at the instance of the Government	XII	14:1:2
Seminar etc.	XII	14:1:5

G

General conditions on which a loan is granted --	XXIV	3
---	------	---

Government Quarters -

Construction of General service quarters should be under the direction of the Government Agent/District Secretary	XIX	2:1
--	-----	-----

Construction of scheduled quarters	XIX	2:2
Economic rent	XIX	5:6
General Service quarters	XIX	1:2
Grading of quarters	XIX	3
Payment of Water, Electricity	XIX	5:8
Refusal of Quarters attached to a post	XIX	5:7
Scheduled Quarters	XIX	1:1
Should conform to type plan	XIX	2:3

Grading of stations into such categories in respect of transfers	III	3:8:1
---	------------	--------------

Grant of permanent status –

Five years' service	IV	5:1
In last post held	IV	5:3

Grant of Temporary status and monthly pay --

Combined Services	IV	4:1
Conditions for granting temporary status	IV	4:3
Monthly pay	IV	4:2

General office hours	XXVIII	1:1
-----------------------------	---------------	------------

H

Half pay leave -

Commutation of half pay leave into full pay leave	XII	21:4:1
Commutated half pay leave intended to be spent abroad	XII	21:4
One year and running into the next year	XII	21:7
Full-pay leave not to follow half pay leave	XII	21:8
Holidays falling within period of half pay	XII	21:10
If officer retires while on leave	XII	21:4:4
One sixth of service	XII	21:2
Only half service	XII	21:9
Only when vacation leave exhausted	XII	21:1
Personal allowance	XII	21:6

*Chapter and Section or
Sub-section*

Report to Auditor-General	XII	21:11
Subordinate officers	XII	21:5
Up to 12 months at a time	XII	21:3

History Sheet -

Any adverse comments made	XV	1:1
Exceptions to standard form of history sheet	XV	2:2
Exempted from the maintenance of, custody of	XV	2:4
Immediately on appointment	XV	2:1
Manner of maintaining history sheets	VI	2:9
Monthly paid and daily paid officer	VI	2:3
Not accessible except once in 5 years to the officer	VI	2:9:6
Officers of the Combined service	VI	2:7
On retirement	VI	2:9:9
Report to Auditor-General	VI	2:10
Report to Director General of Combined Service	VI	2:8
When Disciplinary action is taken	VI	2:9:7
When officers transferred	VI	2:9:8

Holidays -

Public Holidays	VIII	8:1
Weekly off day	VIII	8:2

Holiday Bungalows -

Allocation	XX	5
Applications for allocation	XX	2:1
Bungalows available	XX	1:1 1:2 1:3
May be allocated to other officer	XX	3
Maximum period of occupation	XX	4
Occupant liable for breakages and damage	XX	7
Rent payable	XX	6:1

Holiday pay -

Accommodation for lieu leave	VIII	9:5
Holiday pay not part of salary for any purpose	VIII	9:8
How holiday pay and overtime to be charged to votes	VIII	9:7
Officer not eligible for overtime but only for lieu leave	VIII	9:3
Officer not required to work on holidays	VIII	9:2
Officer required to work on holidays	VIII	9:1
Travelling on duty on holidays	VIII	9:6
When public Holiday falls on weekly off day	VIII	9:9
Work on a part of a holiday	VIII	9:4

Holiday travel -

Against financial year	XVI	1:1
An officer unmarried or a widow or widower	XVI	1:3:2
Class of travel	XVI	1:2
Daily paid officer	XVI	1:1
Dating of	XVI	1:1:2
Entitlement in financial year	XVI	1:1
Family of an officer	XVI	1:3
For a part of year	XVI	1:1:3
Legally separated spouses	XVI	1:5
Limit of income	XVI	1:3:4
On interdiction	XVI	1:1:5
On retirement	XVI	1:1:4
Pensioners and members of his family	XVI	1:1
Pensioners re-employed	XVI	1:1
Proportionate entitlement on marriage	XVI	1:3:7
sleeping berth accommodation	XVI	1:2:2
Temporary officer	XVI	1:1
When both spouses are public officers	XVI	1:4
When granted leave abroad	XVI	1:3:8

I

Increments -

Appropriate authority for disallowing increments	VII	10:11
Appropriate authority for granting increments	VII	10:10
Appropriate period for each form of disallowance	VII	10:4
Conversion of suspension to stoppage or deferment	VII	10:6:1
Disallowance of increment	VII	10:2
Conversion of period of stoppage to deferment	VII	10:7
Not as a right but must be earned	VII	10:1
Period to be served to earn increments	VII	10:9
When deferment is due to failure to qualify for confirmation or pass Efficiency Bar	VII	10:5
When no-pay leave	VII	10:9:1

Incremental credit -

For such periods of prior service as are admissible under Sub sections 9:3 to 9:4	VII	9:5
Local government officers	VII	9:9
Only for service in “superior” or “comparable” post	VII	9:3
Periods not counted for incremental credit	VII	9:2
Salary if in inferior post	VII	9:8:3
Salary should not exceed the maximum	VII	9:8:2
Salary to be not less than initial	VII	9:8:1
The salary step on which an officer is to be placed in a new post	VII	9:7
When an officer moves from one post to another without any break in service	VII	9:4

Information-about diseases -

XXVIII 13

Institution of an action by the Government -

Appeal against inadequate sentence	XXXIII	4:5
Employment of services of an Attorney-at-Law	XXXIII	4:2
If previous sanction of Government is necessary	XXXIII	4:3
Mode of application to Attorney-General	XXXIII	4:4

Institution of an action by a public officer in his personal capacity	XXXIII	7:1
--	---------------	------------

Inventory and Inspection of official residences -

No rent recoverable	XVIII	1:5
Secretary-General of Parliament is responsible	XVIII	1:3:2

Inventions and Patents -

Agreement to be entered into where rights are shared	XXX	2:6:3
Amount of award	XXX	2:6:8
Awards to the officer	XXX	2:6:7 2:6:8
Determination on the of rights and conditions on which they may be imposed	XXX	2:4
Held in trust	XXX	2:5
How application is to be made	XXX	2:7
How to be dealt with	XXX	2:7:1
Manner of determination of extent of and conditions rights	XXX	2:6
Officer to furnish copy of his patent application to the Secretary	XXX	2:3
Patent advisory Committee	XXX	2:2
Right of Government	XXX	2:1

Investments, shares and other Interests -

Acquisition by a public officer or his/her spouse must be reported	XXIX	4:2
Conflict between private interest and public duty	XXIX	4:3
Non-Sri Lankan officers	XXIX	4:1

L

Labourers' charges (while on travel)	XIV	14
---	------------	-----------

Labour grades qualifications for pensionability	II	12:4
--	-----------	-------------

Lapsed Leave -

Application for	XII	10:3
Applications for lapsed leave	XII	10:5

	<i>Chapter and Section or Sub-section</i>	
Manner obtaining further leave on medical grounds, balance leave of whichever past year (consecutive or not) could be taken	XII	10:1:1
In which obtaining lapsed leave after exhausted all the vacation leave	XII	10:1
In any one year an officer can avail himself of the lapsed leaves of such period of two years only	XII	10:1:3
Only for special reasons	XII	10:2
Only to an officer who is expected to return to service	XII	10:6
To be recorded in the corresponding years	XII	10:4
When converted in to half pay	XII	10:6:2
Leave -		
Absence from station	XII	3:1
Application and replies by Telegram	XII	1:5
Authority for granting	XII	2:1
By Telephone	XII	1:6
Calculation of leave	XII	1:10
For part of a day	XII	4:1, 4:2, 4:3
Form of application	XII	1:2
Leave to a Head of Department will be granted by the Secretary	XII	2:2
Making a proper application	XII	3:2
Not as right, but as a privilege	XII	1:1
Procedure on transfer	XII	1:9
Public holidays falling within a period of leave on half pay or no pay	XII	1:10:1
Register of leave	XII	1:7
Reports on leave granted without acting pay, etc	XII	1:8
Reports rendered to Auditor-General	XII	1:8
To be made well in time	XII	1:3, 1:4
Leave preparatory to retirement -		
Officers resigning	XII	11:5
Officers retired for inefficiency	XII	11:4
To daily paid employees	XII	11:3
To minor employees	XII	11:1

Leave to an Apprentice and Trainees -

Casual leave	XII	32:1
Not entitlement	XII	32:2
Sick leave	XII	32:1

Leave to attend a Government Examination -	XII	19:1
---	-----	------

Leave to a casual officer -

Casual leave	XII	33:1
Entitlement for earned leave	XII	33:3
Half-pay leave following an accident	XII	33:2
Not entitled to accident leave	XII	33:2
Sick leave	XII	33:1

Leave to daily paid officer -

Accident leave and leave for illness contracted in the course of duties	XII	27:3
Casual leave	XII	27:2
Lapsed sick leave	XII	27:1:1
On retirement	XII	27:4
Sick leave 14 days	XII	27:1
When accommodated in temporary camps	XII	27:1:2

Leave to a minor employee -

Accident leave	XII	26:2
Casual leave	XII	26:4
Half pay leave	XII	26:5
Lapsed sick leave	XII	26:1:1
Leave for illness contracted in the course of duties	XII	26:3
On retirement	XII	26:6
Sick leave	XII	26:1
When accommodated in temporary camps	XII	26:1:2

Leave to an officer released for service in a Public Corporation -

No claim for earned leave while in service of the corporation	XII	34:2
Not eligible for leave under this code	XII	34:1

Leave to a Police Sergeant and Constable -

Accident Leave and leave for illness contracted in the course of duties	XII	30:6
Casual leave	XII	30:2
Half pay leave	XII	30:4
Lapsed leave	XII	30:5
Leave for hospitalization	XII	30:3
On retirement	XII	30:7
Vacation leave	XII	30:1

Leave to a Prison Officer below the rank of Jailor -

Not eligible for lapsed leave	XII	31:2
-------------------------------	-----	------

Leave to be spent out of the Island -

Address while on leave	XII	23:8
Agreement to be entered into	XII	23:15
Allowances and concessions to be paid while on leave	XII	23:14
Arrival after leave to be reported	XII	23:16
Authority for granting leave	XII	23:2
Curtailment of leave	XII	23:11
Date of commencement of leave	XII	23:6
Date of resumption on full salary	XII	23:17
Discharge of duties or training courses while on leave	XII	23:13
Exception to 4 years leave	XII	23:4:1
Extension of leave	XII	23:10
Form	XII	23:1
Handing over the public properties	XII	23:5:1
Handing over of cash	XII	23:5:2

Illness	XII	23:9
Maximum period	XII	23:3
Medical Certificate	XII	23:9:1
Officers retiring while on leave	XII	23:12
Only once in 4 years	XII	23:4
Payment of salary while on leave	XII	23:7
Informing to the Prime Minister	XII	23:5
Return of leave spent out of the Island to be sent to Auditor General	XII	23:18
Subordinate Officers	XII	23:3:1

Leave to a subordinate officer -

Accident leave and leave for illness contracted in the course of duties	XII	25:5
Casual leave	XII	25:2
Half pay leave	XII	25:4
Lapsed leave	XII	25:3
On retirement	XII	25:6
Vacation leave	XII	25:1

Leave to a teacher -

Accident leave and leave for illness contracted in the course of duties	XII	24:7
Aggregate of the school vacation which occur during that spell of leave or within from the commencement of that leave	XII	24:2
At beginning of leave	XII	24:2:2
Casual leave	XII	24:3
In a single uninterrupted period	XII	24:2:1
Leave for observe "Iddha"	XII	24:9
Longer periods of leave for illness	XII	24:4
Other leave granted during a school term is only on no pay	XII	24:6
Vacation leaves only during school vacation	XII	24:1

Leave to a temporary officer not serving under a contract on definite terms -

Accident leave and leave for illness contracted in the course of duties	XII	29:3
---	-----	------

	<i>Chapter and Section or Sub-section</i>	
Casual leave	XII	29:2
Full pay leave in the island	XII	29
Leave to a temporary officer serving under the contract for a definite term		
Casual leave	XII	28:7
Full pay leave in the island	XII	28:5
Half pay leave and commuted leave out of the island	XII	28:3
Half pay leave in the island	XII	28:6
On termination of employment	XII	28:8
Vacation leave out of the island	XII	28:4
Letter of Appointment	II	8:1
Letter of appointment for who is re-employed	II	9:4
Lieu leave -		
Conditions for the grant of lieu leave	XII	7:2
Lapsed after one year	XII	7:4
Not to be combined with leave out of the island	XII	7:5
Not to count against ordinary quota	XII	7:1
Limit of payment for overtime -		
Delegation of authority	VIII	7:2:1
Exceptions to 20 hours rule	VIII	7:2
Only for 20 hours per week	VIII	7:1
List of officers not to be re-employed	II	7:1
Loan for acquisition of a building site or house property -		
Arrears of loan installments	XXIV	11:8
Eligibility	XXIV	11:2
Fees for processing of loan applications	XXIV	11:9
General conditions	XXIV	11:10
Interest	XXIV	11:5
Maximum amount of the loan	XXIV	11:4
Maximum recovery period	XXIV	11:3

Member of the Reserve Police	XXIV	11:2:7
Officers belonging to the Volunteer Force in Armed Service	XXIV	11:2:6
Officers who are temporarily released	XXIV	11:2:4
Procedure for forwarding and recommending of application	XXIV	11:11
Purposes for which a loan may be granted	XXIV	11:1
Recovery and remittance of the loan installments	XXIV	11:7
Security	XXIV	11:6
Where both spouses are public officers	XXIV	11:2:3:2
Can be obtained once in a service period	XXIV	11:2:8

Loan for distress and other loans -

Amount of loan	XXIV	10:3
Eligibility	XXIV	10:2
For a house rent advance	XXIV	10:3:2
Purpose	XXIV	10:1
Sureties	XXIV	10:4
Temporary officer	XXIV	10:3:1

Special rate may be issued to a daily paid or monthly paid laborer	XVII	3:1
---	-------------	------------

Grant of loans for the purchase of a motor vehicle through banks	XXIV	7
---	-------------	----------

Granting of loans by Banks for the purchase of a motor cycle/scooter	XXIV	8
---	-------------	----------

Loan for a purchase of a Foot Bicycle -

Amount of the loan	XXIV	9:2
Eligibility	XXIV	9:1
Frequency	XXIV	9:5
Other conditions	XXIV	9:4
Sureties	XXIV	9:3

Loan to relive indebtedness space

Amount of the loan	XXIV	12.2
--------------------	------	------

Authority who should sanction	XXIV	12:8
Contents of application	XXIV	12:5
Custody of documents	XXIV	12:11
Documentary evidence	XXIV	12:5
Eligibility	XXIV	12:1
Insurance policy covering the debt against defeat	XXIV	12:6
Loss of funds due to neglect or lapse	XXIV	12:10
Surety	XXIV	12:7
Where both spouse are public officers	XXIV	12:3

M

Maintenance of inventories in respect of Government Quarters -

Electrical fittings	XIX	8:1
Government buildings	XIX	8:4
Other fittings	XIX	8:2
Rented Buildings	XIX	8:4

Maternity Leave –

Eligible female officers	XII	18:1
Maternity Leave with full pay	XII	18:2
Maternity Leave on Half Pay	XII	18:3
Maternity Leave on No Pay	XII	18:4

Medical attention -

Accounting procedure on transfer	XXVI	3:9
Bill to be settled by Head of the Department	XXVI	3:4 3:5
Families of officers and certain pensioners and their families at rates indicated	XXVI	2:3
Form of letter of introduction	XXVI	3:3
Free attention for officers drawing a salary below Rs. 18,030.00 for a month	XXVI	2:1
Hospital charges and regulations	XXVI	2:5
Interim bills when hospitalization prolonged	XXVI	3:7
No free medical attention at Colombo, Galle, Kandy and Jaffna	XXVI	2:2

		<i>Chapter and Section or Sub-section</i>
Officers drawing a salary of Rs. 18,030.00 or more but less than Rs.19,710.00 at rates indicated	XXVI	2:2
Police and Prison Department	XXVI	2:4
Procedure	XXVI	3:3
Recovery of Hospital Charges	XXVI	3
Recovery in eighteen installments	XXVI	3:6
Treated as an advances to the officer	XXVI	3:5
When an officer retires, is dismissed, or dies, steps to be taken to recovery of hospital charges	XXVI	3:10
 Medical examination -		
Actions to be taken if not submitting the medical report	II	10:3
On first appointment	II	10:1
Medical report	II	10:2
When found physically unfit	II	10:4
 Medical examination -		
Appeal against report	XXVI	4:5
Application	XXVI	4:2
Fee	XXVI	5:1
No fee for vaccination or inoculation of first appointment	XXVI	5:2
Report of medical examination	XXVI	4:4
Requesting by the officer or appropriate authority may call upon at any time	XXVI	4:1
Where the medical examination or Medical Board is ordered by the Government	XXVI	5:4
 Membership in an Association –		
Police and Prison Officers, etc may not form an association ; Others may form non political association	XXXI	1:2
Prohibition of becoming a member of political association, etc	XXXI	1:1
Registered Trade Unions only may make representations	XXXI	1:3
 Method of Selection for Government Quarters -		
Application form	XIX	4:3

		<i>Chapter and Section or Sub-section</i>
Changes on increase of salary	XIX	4:3:6
Declaration	XIX	4:3:2
Deviation from point system	XIX	4:4:1
Registers available from inspection	XIX	4:3:8
Waiting list	XIX	4:3:3

Mileage : Motor Cars -

Certain officers entitled	XIV	8:1 8:1:2
Empty running - only as per authorized by the secretary and could not be make payment under normal condition	XIV	8:2:3
Government not liable for travel risks	XIV	8:2:2
Officers drawing a fixed travelling allowance and commuted allowance are not entitled to mileage	XIV	8:1 8:1:1

Misuse of concessionary season ticket -

Concession will be withdrawn	XVII	4:2
Disciplinary action	XVII	4:3
Not transferable	XVII	4:1

Misuse of railway warrants and tickets -

Misuse by dependent of a public officer	XVI	4:3
Misuse by a Public Officer	XVI	4:4
Not transferable	XVI	4:1

Mode of travel -

By private vehicle	XIV	5:2
By road	XIV	5:1
Hired cars	XIV	5:4
In Government vehicle whenever available	XIV	5:5

N

Nature of appointment -

Requirement to serve any part of the island	II	12:7
---	----	------

Nature of a post -

Casual	IV	1:2
Pensionable	IV	1:2
Permanent	IV	1:2
Temporary	IV	1:2

No pay leave -

For purpose of study	XII	22:5
Holidays falling within period of no-pay	XII	22:3
May be spent abroad	XII	22:1:1
Only after other leave exhausted	XII	22:2
Release on no-pay leave for service outside Public service	XII	22:6
Returns to Auditor-General	XII	22:4
Up to three months	XII	22:1

No pay leave for study/or employment abroad -

Agreement to be entered into	XII	16:5
Concession extended to temporary officers probationary officers for study purposes only	XII	16:1:1
Entitlement for earned leave	XII	16:4
For purpose of increment	XII	16:7
For purpose of pension	XII	16:8
Foreign exchange required for purpose of study	XII	16:3
In the case of an officer who is temporary or who has not been confirmed, requirement of a bond in addition to the agreement	XII	16:6
Only for confirmed officer for period of 5 years	XII	16:1:1
Period of no-pay leave granted should not be reckoned for computing the qualification for promotion	XII	16:10
Period of obligatory services	XII	16:15
Prohibition to promote to any vacancies	XII	16:9
Relevance of Study	XII	16:2
Salary point to be reached for eligibility for promotion	XII	16:11
To formulate the own scheme for release	XII	16:13

No-pay study leave in the island -

Agreement to be entered into	XII	15:4
------------------------------	-----	------

	<i>Chapter and Section or Sub-section</i>	
Authority for granting leaves	XII	15:8
Intances such as exam preparation are not permitted	XII	15:2:1
Monetary penalty to be imposed	XII	15:7
Obligatory services	XII	15:6
Only for a permanent officer	XII	15:1
Period should not exceed one year in the first instance	XII	15:3
Recovery of installments due on any loan or advance granted	XII	15:10
Study Prorammes Conducted during the normal office hours	XII	15:2

Notice of Transfer **III** **4**

No unpaid person shall be employed in the Public Service **II** **1:2:1**

O

Obtain information regarding –

A persons race **XXVIII** **1:9**

Office not to be close on working days except with the approval of the secretary **XXVIII** **1:4**

Officers not eligible for Public Holidays **VIII** **8:3**

Officers not entitle to exercise political rights **XXXII** **1:1**

Officer retiring, Dying and whose services terminate during pendency of a loan -

An officer due to retire may be granted a loan **XXIV** **4:2**

Attorney-General should be consulted **XXIV** **4:4:1**

If the officer dies before recovery **XXIV** **4:4**

If the full amount cannot be recovered before termination **XXIV** **4:1:1**

Irrevocable undertaking **XXIV** **4:2:3**

Liabilities should not exceed approximate commuted pension **XXIV** **4:2:2**

No loan, except to acquire a building site or house property should be granted to a public officer while he is under temporary release for service in a public corporation/a statutory board **XXIV** **4:7**

Outstanding balances to be recovered from the commuted pension or gratuity **XXIV** **4:2:5**

Recovery in installments **XXIV** **4:2:1**

Should not be released out-night outright from service **XXIV** **4:8**

		<i>Chapter and Section or Sub-section</i>
To be recovered from the surety	XXIV	4:5
Where it is anticipated that an officer's service may terminate	XXIV	4:1
When an officer is due to retire	XXIV	4:2:4
Official circuits -		
A Head of Department when leaving	XXVIII	2:1
To notify the Government Agent	XXVIII	2:2
Official correspondence -		
A letter in important cases	XXVIII	3:3
A letter to be dispatched under counter-signature	XXVIII	3:3:1 3:3:2
Confidential correspondence	XXVIII	3:6
Important documents to be sent under registered post	XXVIII	3:7
Interim reply	XXVIII	3:8
Rules to be observed	XXVIII	3:1
To be relevant, polite and clearly expressed	XXVIII	3:2
With another Government	XXVIII	3:4
Writing in green	XXVIII	1:7
Official Language policy of the Government -		
Extension of probation period regarding Official Language	II	12:10:4
Proficiency Test in the Official Language	II	12:10
Official residences -		
Furnished and supplied	XVIII	1:1
Maintenance of	XVIII	1:1
Replacement of broken items	XVIII	1:2
One vehicle used by more than one officer	XIV	11 11:1 11:2
Other conveyances -		
Bicycle	XIV	9:3
Fixed Transport Allowance	XIV	13

	<i>Chapter and Section or Sub-section</i>	
Motor cycle	XIV	9:1
Public conveyance	XIV	9:2
Travel on foot	XIV	9:4
Other expenses incidental to travel -		
Exemption from parking space	XIV	16:4
Ferry tolls	XIV	16:3
Incidental expenses	XIV	16:2
Transport of luggage	XIV	16:1
Overtime -		
A system of checks and records to ensure proper output and to avoid payment for idle time	VIII	2:1
Categories not eligible	VIII	4:1
Commuted allowance	VIII	3:5
Only in exceptional circumstances	VIII	3:1
Only upto appreciable extent	VIII	3:4
To new grades or posts	VIII	4:3
When for vacant posts	VIII	3:6
When specifically ordered for special work where eligibility is extended	VIII	3:2
Without reference to the treasury only, where specific financial provision is available	VIII	1:2
Work must be outside normal office hours	VIII	3:4
Overtime, holidays and holiday pay and allowances –		
A Register should be maintained	VIII	10:2
Payment to certain grades for working on weekends and Public Holidays	VIII	10:1
Weekly off-day	VIII	8:2
P		
Paternity Leave	XII	18:11
Payments to Jurors, Witnesses, unofficial Magistrates and Inquirers –		
Acting allowance to a member of the Bar	X	2:1
For public officers	X	1:2
For retired public officers	X	1:2:1

	<i>Chapter and Section or Sub-section</i>	
Rate at which subsistence allowance will be paid	X	2:4
Rates of pay for an inquest	X	3:1
Rates prescribed by regulations under criminal procedure code	X	1:1
Subsistence allowance payable to an Inquirer	X	3:5
Payment for Miscellaneous services -		
At rates fixed by Government Agents	X	4:1
Escorts may be engaged	X	4:1:1
Issue of Railway Warrants to witnesses attending courts	X	4:3
Meals for accused in custody	X	4:2
Wounded and sick persons and accused in custody	X	4:1:3
Penalty for failure to vacate Government Quarters -		
Eviction	XIX	7:1
Penal rent: market value plus rent element of salary	XIX	7:2
Pensionable post -		
Requirement for the post to schedule in the minute on pensions	IV	6:1
Pensionable officer in non-pensionable post	IV	6:3
Period to be counted for overtime -		
For work in excess of daily or weekly hours of work	VIII	5:6
Fractions of an hour	VIII	5:3
Only after full time of duty for the day	VIII	5:2
Time spent on travelling	VIII	5:4
Personal File should be maintained in respect of every officer	VI	4
Personal record file -		
Authority responsible for maintaining	VI	3:2
Grades for whom it should be maintained	VI	3:1
Personal Record File/ Personal file -		
Censures should be entered in red ink	VI	5:2

Physical fitness	II	12:8
-------------------------	-----------	-------------

Power and functions of the -Pg. 505 - 506

Director General, Department of Management Services	II	1:2
Director General of Establishments	II	1:3

Probation –

A command confirmity the appointment or extension of probation period	II	11:2:2
Annual reports	II	11:2:2
Authority competent to confirm the appointment	II	11:6
Consequence of extension of the period for reasons within the control of an office on	II	11:10:1
Failure to qualify for conformation of reasons beyond the control of the officer during the period of	II	11:9
Final report on completion of the period of probation	II	11:2:2
Every appointment to a permanent post will be on probation	II	11:1
Procedure to be followed while on probation	II	11:2:1
Purpose of probation period	II	11:2
Specific decision to be taken at the end of the period of probation	II	11:2:3
Termination of appointment without assigning any reasons during the period of probation	II	11:4
To 'act' in lieu of probation	II	11:3
When inquiries are pending	II	11:2:4
When not qualified for confirmation during the period of probation	II	11:7
When the competency of official languages needed	II	12:10:3

Prohibition period officers to exercise political rights -

Officers not entitled	XXXII	1:1
Or make pre-preparation to further his own candidature	XXXII	1:3
Must first resign	XXXII	1:3
Taking any part in an election	XXXII	1:2:1
To support a candidate	XXXII	1:2:2

Protective clothing and uniforms -

Annual quota	XXI	3
--------------	-----	---

	<i>Chapter and Section or Sub-section</i>	
Certain common grades	XXI	2
Other grades	XXI	4
Principles governing issue	XXI	1
Provinces and Districts	XXVIII	12:1
Purposes for which a loan/ advance may be granted	XXIV	2
Q		
Qualification for appointment to the Public Service -		
A person, who has been in the Public Service and has been retired compulsorily for inefficiency, or been retired as a merciful alternative to dismissal	II	7:1
Maintaining record of such officers	II	7:1
R		
Railway warrants -		
Authority entitled to travel without a ticket	XIII	1:1
Authority issuing and altering warrants	XIII	1:5, 1:6
For government purposes	XIII	2:1
For others on funds deposited	XIII	2:2
G.A may issue warrants to poor persons	XIII	2:5
Government not liable for loss, injury, damage or delays	XIII	1:8
Issue of warrants	XIII	3:1
Issue of Warrants for President's and Prime Minister's Establishments	XIII	2:3
Officers in charge on Medical Institutions may issue to certain persons	XIII	2:5:1
Or allowance in lieu thereof	XIII	2:4:2
Others only with passes or tickets issued on warrants	XIII	1:2
Tickets obtainable only at stations named in warrants, etc	XIII	1:4
Warrants for Ministers but no allowance in lieu	XIII	2:4:3
Warrants for trucking cars of M.P.P	XIII	2:4
Rate of payment for overtime -		
Normal rate	VIII	6:1
Stand –by rate	VIII	6:2

Record and accounting procedure of Railway Warrants issued for Holiday travel -

Intimation to new Department on transfer	XVI	5:1:1
Payment	XVI	5:3
Register in standard form	XVI	5:1
Rendering of Bills	XVI	5:2
Warrant issued by local authorities	XVI	5:2:2

Recovery of possession of Government quarters **XIX** **9:1**

Reimbursements of expenses in civil or criminal proceeding -

If action is at the instance of the Government	XI	2:4
If officer is acquitted in action brought by Government	XI	2:5

Reimbursement of expenses on entertainment of foreign visitors -

Normally limited to meals and restricted to certain number of persons	XI	3:2
Parties	XI	3:6
Prior Approval	XI	3:3
Rates of reimbursement	XI	3:5

Release of an office bearer of a trade union for full time trade union work -

Authority required for the concession	XXV	4:4
Extent of membership	XXV	4:2
Extension of period beyond 4 years	XXV	4:3
In the first instance	XXV	4:1

Release for service outside Public Service -

Authority for release	V	2:1 2:2
At the instance of an officer	V	2:5:4
By the Appointing Authority	V	1:2
Condition of temporary release	V	2:5
Maximum period	V	2:5:1
On grounds of public policy	V	2:5:2

	<i>Chapter and Section or Sub-section</i>	
Permanent release	V	2:6
Refuse to release	V	1:3
Temporary release	V	1:6
Terms of reversion	V	2:5:5

Rent for occupation of Government Quarters -

An officer entitled to scheduled quarters	XIX	5:3
Chummeries	XIX	5:2:3
Officer sharing quarters	XIX	5:5
On salary	XIX	5:1
Permanent quarters	XIX	5:2:1
Semi-permanent quarters	XIX	5:2:2
Temporary Quarters	XIX	5:2:4
Where husband and wife are both public officers	XIX	5:4
Where one or both entitled to scheduled quarters	XIX	5:4:1

Responsibilities of officer making payment of a loan -

If borrower is ready to complete the purchase	XXIV	6:1:2
The loan is less than the purchase price	XXIV	6:1:4
To ensure that the borrower has executed all the necessary documents	XXIV	6:1:1

Reports

Not later than a month	XXVIII	7:4
To make material allegations	XXVIII	7:3
To state his own opinion	XXVIII	7:1
To treat as confidential	XXVIII	7:2

Representation to Government by an association -

Direct to authority concerned with copies to Head of Department	XXXI	2:1
Not to address any communication to an authority in regard to appointment, transfer, dismissal or disciplinary control of a public officer	XXXI	2:2
Secretary, Ministry of Public Administration	XXXI	2:1
To the Secretary	XXXI	2:1

Representations from a Member of the Public or from a Public Officer in his private Capacity

A written representation or petition	XXVIII	6:1
Where not entertained	XXVIII	6:2

Representation from public officer –

An appeal regarding a disciplinary matter	XXVIII	5:5
An application or appeal from an ex-public officer	XXVIII	5:4
An application or appeal to any duly constituted authority	XXVIII	5:1
An application or appeal to be sent through the officer's Head of Department and any other appropriate authority	XXVIII	5:4
To be acknowledged at once	XXVIII	5:3

Retirement - **V** **5**

Reversion -

No right of	V	3:1
Terms and reversion	V	3:3
When and by whom if permitted	V	3:2

S

Salary -

Absence without leave	VII	1:6
Different salary for different parts of a month	VII	2:4
Effective date for revision of scales	VII	1:5
For a month	VII	2:2
For a part of month	VII	2:3
New proposals	VII	1:4
Not to be altered	VII	1:3
On the initial on first appointment	VII	3:1
On interdiction	VII	1:7
On vacation of post	VII	1:8
To be determined by Director General of Establishments and by the Treasury	VII	1:1
When a point of a salary may be allowed	VII	3:3
When salary point is left open to negotiation	VII	3:4

Salary of a deceased officer

To whom payable	VII	11:1 11:2
-----------------	-----	--------------

Salary loans/ Advances -

Documents that should not be released	XXIV	1:7
Eligibility of an applicant	XXIV	1:3
Only for one of the specific purposes	XXIV	1:4
Provision of grants	XXIV	1:2
Recovery on transfer	XXIV	1:6
Subject to general terms and conditions	XXIV	1:5

Salary on promotion -

Effective date	VII	5:1
Fixed non incremental	VII	5:2
Future incremental date	VII	5:4
If the post is on an incremental scale	VII	5:3
When the point is above an efficiency bar	VII	5:5

Salary on re-employment -

After retirement on a non-pensionable basis	VII	8:6
After retirement on a pensionable basis	VII	8:3
If granted alternative employment in another post	VII	8:7
In a post or grade other than from which the officer retired	VII	8:4
		8:5

Salary on reversion -

At officer's own request	VII	6:3
On abolition of office or due to redundancy	VII	6:2
On disciplinary grounds	VII	6:1
On grounds other than Public policy	VII	6:5
On grounds of public policy	VII	6:4
Subject to Efficiency Bars	VII	6:2:1

Salary on revision of a salary scale -

Effective date	VII	4:1
Method of conversion	VII	4:2

**Salary payable to / or from a union official who
is released for trade union work -**

Monthly salary and the cost of living allowance	XXV	5:3
Pensionary contribution	XXV	5:1
Public Service Provident Fund	XXV	5:2

Scheme of recruitment -

Amendments of Scheme of Recruitment	II	2:9 2:9:1
Certificate of	II	2:5
Designation of posts not to be changed	II	1:4
Determination of salary	II	1:3
Every appointment must be made in accordance with the Scheme of Recruitment	II	1:6
How approval for amendments to be sought	II	2:9:1
In the form of a Service Minutes	II	2:1:3
If difference of opinion arises	II	2:4
New proposals	II	1:3:1
Not to be changed to meet transitory problems	II	2:7
Report and an alphabetical index on termination of employment	V	8:1 8:2
Selective appointments	II	2:8
Submission of certified copies to Director General of Establishments	II	2:6
Temporary deviation of	II	2:7 2:7:1

Security to be furnished **II** **12:6**

Seniority on appointment -

Alteration of	II	14:2
By reversion on abolition of office, redundancy, etc	II	14:3:2
By reversion at officer's request	II	14:3:3
By reversion on disciplinary grounds	II	14:3:1
Re- employed after terminate by resignation	II	14:4:3
Re-employed in a post or grade other than, after retirement	II	14:4:2
Re-employed in the same post or grade, after retirement	II	14:4:1
To be determined by date of appointment	II	14:1

Seniority on re-employment -

When re-employed after retirement in different post or grade	II	14:4:2
When re- employed after resignation etc	II	14:4:3
When re-employed after retirement in same post or grade	II	14:4:1

Service outside an officer's regular employment or office -

As assessors of property values	XXX	1:9
As manager of a school	XXX	1:8
Employment when on leave	XXX	1:7
Exceptions	XXX	1:5
Grants, etc, from an association and fund	XXX	1:6
Grant to meet surcharges	XXX	1:6
Private Agency	XXX	1:10
Prohibition on commercial undertaking, etc	XXX	1:2
Service of a fee	XXX	1:4
When services to others permitted	XXX	1:3

Short leave - XII 35:1

Sick leave -

A short period of leave up to six days at a time on account of illness	XII	6:2
Procedure to be followed	XII	6:1:2

Special full pay leave and concessions – for officers suffering from certain types of illness -

Congenial climate and light duty	XXIII	4
Eligibility	XXIII	1
First Medical Board	XXIII	2:1
Two interrupted periods of four months each for Tuberculosis	XXIII	1:1
Not exceeding six months for cancer	XXIII	1:3
Not exceeding twenty two months for leprosy	XXIII	1:2
Periodic examination	XXIII	3
Rehabilitation	XXIII	5
Treatment	XXIII	2:2
When other leave exhausted	XXIII	2

Special leave -

For certain illnesses	XII	12:8
For contacts of quarantinable diseases	XII	12:9
For sterilization	XII	12:11
For voting at elections	XII	12:3
To attend study classes during office hours	XII	12:2
To a member of a professional body	XII	12:10
To a member of Seva Vanitha	XII	12:13
To a member of Trade Union	XII	12:7
To a Muslim for religious observations	XII	12:1
To observe "Iddah"	XII	12:12
To represent the country at international conferences	XII	12:4
To represent the country in sports	XII	12:5

Station Allowance -

Rate of pay	VIII	12:1
Status of an officer	IV	1:2
Status of a post	IV	1:1

Subordinate legislation -

Form in which to be presented to Legal Draftsman	XXXIII	3:4
Not for local bodies unless Central Government has to approve	XXXIII	3:5
Opinion of Attorney-General where given	XXXIII	3:4
Revision of legislation	XXXIII	3:3
Where draft of any subordinate legislation should be prepared	XXXIII	3:2

State of Appointment -

Required to serve in any part of the Island	II	12:7
---	----	------

Supply of copies or Departmental circulars to a Trade Union **XXV** **8:1**

Surrender of season ticket and period of non-use -

Credit for period of non-use	XVII	2:2
On transfer, retirement, etc	XVII	2:1
Refunds	XVII	2:3

T

Take and subscribe affirmation or the oath and where it has to be Filed of record	II	10 : 6 10 : 6: 4
--	-----------	-----------------------------

Taking or issue of copies of official correspondence and official documents –

A certified copy of letter, etc.	XXVIII	4 : 3
Prohibition from taking	XXVIII	4 : 1

Termination of appointment when an inquiry is pending	II	11 : 2 : 4
--	-----------	-------------------

Termination of temporary appointment without assigning any reason	V	6 : 1
--	----------	--------------

Trade union federation –

Concession to travel on railway & S.L.C.T.B. buses	XXV	6 : 3
Restriction to two officials	XXV	6 : 1
Salary and allowances payable	XXV	6 : 2

Training and study programme –

A field relevant to a particular Department	XV	2 : 4
Co – ordination	XV	2 : 1
Eligibility	XV	3
Fields common to more than one Department	XV	2 : 5
Formulation	XV	2 : 3
Types of training or study	XV	2 : 2

Transfers -

Combines Services	III	2 : 3
Within a Department	III	2 : 3
Within Ministries	III	2 : 3

Transfers –

Departments exempted from transfers	III	1 : 4
Not as a matter of routing	III	1 : 1
Notice of effective date	III	4 : 1
Schemes of transfer	III	1 : 2
Time table	III	6 : 1

Transfer appeal Boards –

Final Authority for a transfers	III	5 : 3
Grounds on which appeals will be entertained	III	5 : 2

Transfer Boards –

Combined services from Ministry to another	III	3 : 7
Composition	III	3 : 5
Different services	III	3 : 4
Departmental	III	3 : 3
Outside the purview of	III	3 : 2
Scheme of	III	3 : 8

Transfers, deferment and cancellation of transfers at short notice –

Entitlement for setting in allowance	XIV	24 : 7
If attribute to omission or neglect on the part of any officer	XIV	24 : 13
Not payable if differed or cancelled at the officers own request or on disciplinary grounds	XIV	24 : 10
Only for packing and transport	XIV	24 : 9
Setting-in-allowance	XIV	24 : 2
Transfer order to be delivered immediately	XIV	24 : 5
Where a transfer is cancelled or deferred within 3 days of the date on which it is to take effect	XIV	24 : 8

Transfer on grounds of misconduct	XIV	25
--	------------	-----------

Transfers at short notice	III	4 : 2
----------------------------------	------------	--------------

Transfer of Trade Union Officials –

Appropriate authority	XXV	7 : 2
Key office bearers as determined by union appropriate Authorities	XXV	7 : 1
Loss of concession	XXV	7 : 3

Transport of conveyance by rail –

To an M.P. travelling on Parliamentary duty	XIV	15 : 1 : 1
Warrants to be issued	XIV	15 : 1

Transport to Home Station –

If unable to remove his family or his furniture to new station	XIV	23 : 2
Only once	XIV	23 : 2
Payment at a subsequent date	XIV	23 : 5
Record to be made in his Personal file	XIV	23 : 6

Transport of member of commissions and special committees –

A Secretary when not accompanying a commission	XIV	26 : 5
Exempt from limitation	XIV	26 : 2
First class warrants	XIV	26 : 1
Paid members	XIV	26 : 2 : 1

Travel abroad for study; transport, etc. –

Insurance	XV	13 : 2
Insurance - Air Risks	XV	14 : 1
Medical Examination	XV	15:1
A public officer governed by the provisions of the Sri Lanka Overseas Minute	XV	13:5
Unaccompanied baggage	XV	13 : 1

Travelling abroad for study, training or on other purposes –

Procedures to be followed in granting approval for public officers to travel abroad	XV	10
--	----	----

Travel abroad for study, training or on duty -

Agreement and/or Bond to be signed	XV	1 : 4
At the expense of a foreign Government or Agency	XV	1 : 2 : 2
At the expense of the Government of Sri Lanka	XV	1 : 2 : 3
At his own expense	XV	1 : 2 : 1
Selection for scholarships if at the expense of the foreign Government or organization	XV	1 : 5

Travelling claims –

Certification	XIV	28 : 2
Claims at the end of Financial year	XIV	28 : 7
Date of stamp	XIV	28 : 5 : 2

	<i>Chapter and Section or Sub-section</i>	
Deduction for the period of lapse	XIV	28 : 6
Form	XIV	28 : 1
Responsibility for correctness	XIV	28 : 3
To be treated as having lapsed	XIV	28 : 5 : 1
Within 30 days	XIV	28 : 5
Travel on duty within the Island –		
Definitions	XIV	1 : 3
Only a re-imbursement	XIV	1 : 2
Point of commencement	XIV	2
Shortest and quickest route	XIV	3 : 1
Travelling expenses -		
Returning from vacation leave	XIV	29 : 2 : 1
Station other than that from which he went on leave	XIV	29 : 2 : 2
To an officer presenting himself for a departmental Examination	XIV	29 : 5
To an officer summoned as a witness by court	XIV	29 : 6
To an officer summoned as a witness at a disciplinary inquiry	XIV	29 : 9
To an officer summoned to a Disciplinary Inquiry	XIV	29 : 7
To a Member of Parliament	XIV	31
To a person other than a public officer	XIV	30
To an officer representing another at a Disciplinary Inquiry	XIV	29 : 8
To widow of an officer dying in service	XIV	29 : 4
Travelling expenses on change of station -		
At the beginning and end of journey	XIV	20 : 4
Determination of salary	XIV	20 : 2
For any part of Journey which cannot be performed by rail	XIV	21 : 3
If on leave	XIV	20 : 7
Not exceeding one month	XIV	20 : 4 : 2
On transfer at short notice	XIV	20 : 5
Payment of Combined allowance	XIV	20 : 1
To issue railway warrants	XIV	21 : 1
Transport of Officer and his family	XIV	21

Travelling expenses on change of station; Transport of furniture, etc. –

Applicability	XIV	22 :21
Cart hire	XIV	22 :16
		22:16:1
Change of quarters within the station	XIV	22 :20
Lorry hire between the railway station and residence	XIV	22 :11
Lorry hire payable	XIV	22 :13
Maximum quantity of luggage for which free transport will be allowed	XIV	22 :5
12 months' rule	XIV	22 :19
Packing and incidental expenditure	XIV	22 :6
Rail transport available for whole or part of the distance	XIV	22 :10
Special transport	XIV	22 :18
Temporary storage if not transported	XIV	22 :12 :2
The maximum hire rates if transported by Government/ corporation vehicle	XIV	22 :10
To remove furniture at a subsequent date	XIV	22:12:1

Travelling expenses on retirement –

No combined allowance	XIV	29 : 3
Within one month	XIV	29 : 3 : 1

Travel by private or hired vehicle of by public Conveyance -

By motor cycle or push cycle at discretion of Head of Department	XIV	7 : 4
Certain categories of officers not obliged to use public conveyance	XIV	7 : 2
In emergencies	XIV	7 : 5
Or when carrying luggage	XIV	7 : 3
When conducting raids, etc.	XIV	7 : 6

Travel by road instead of by railway -

Head of Department may make exceptions	XIV	6 : 7
		6 : 7 : 1

		<i>Chapter and Section or Sub-section</i>
Incidental expenses	XIV	6 : 8 :1
On inspections	XIV	6 : 1
Ministers may travel always by road	XIV	6 : 2
Payment as for a hypothetical train journey	XIV	6 : 8
Reasonable conveyance hire	XIV	6 : 8 : 2

U

Unused Railway warrant or ticket –

Credit on unused tickets	XIII	4 : 2
Unused tickets to be endorsed by Station Masters	XIII	4 ; 1
Unused warrants to be returned to department	XIII	4 : 1

Unused Railway Warrants and tickets Issued for Holiday travel –

No refund allowed	XVI	3 : 4
Partly used	XVI	3 : 3
Tickets	XVI	3 ; 2
Warrants	XVI	3 : 1

V

Vacation leave –

At least 3 months to be served before leave for year is granted	XII	8 : 8
Availability of accumulated leave if spent abroad	XII	8 : 2 :1
Maximum Period	XII	8 : 1
On complete of two years' service after first appointment	XII	8 : 7
On first appointment	XII	8 : 6
Public holidays falling within the period of holidays	XII	8:3
Returns to duty after leave out of the Island and desires to avail himself again of leave out of the Island	XII	8:5

Vacation of post –

Authority by whom the notice of vacation of post should be served	V	7 ; 2
If the officer volunteers an explanation within a reasonable time	V	7 : 4
When an officer absence himself from work without leave	V	7 : 1

W

Weekly off day	VIII	8 : 2
Welfare amenities -		
Canteens	XXII	2 : 4
Electricity to canteens	XXII	5
Expenses not permitted	XXII	6
In order of priority	XXII	3
Inventories	XXII	4
Manner of applying	XXII	2 : 1
Release of public officers to the welfare societies of public officers	XXXVI	1
Submission of Applications	XXII	2
Under expenditure to be explained	XXII	2 : 7
 Where the designation of a post is changed	 II	 8:5
 Workmen's ticket at a special rate –		
Workmen's ticket at a special rate	XVII	3 : 1
 Working on week-ends and Public Holidays –		
Application for authority for special payment	VIII	10 : 1
Register to be maintained	VIII	10 : 2
Special payment to certain grade of officers	VIII	10 : 1
 Writing in green ink	 XXVIII	 1 : 7